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FEDERAL REGISTER

VOLUME 27 NUMBER 96

Washington, Thursday, May 17, 1962

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[Updated to January 1, 1962]

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Presidential Documents

Title 3—THE PRESIDENT

Proclamation 3475

NATIONAL TRANSPORTATION WEEK, 1962

By the President of the United States of America

A Proclamation

WHEREAS transportation has been of enormous significance in the settlement and growth of large areas of the United States; and

WHEREAS an efficient and dynamic transportation system is vital to the continued economic growth, productivity, and progress of our Nation; and

WHEREAS the promotion and development of an efficient transportation system are responsibilities of the Government, users of transportation, and labor and management; and

WHEREAS the Congress, by House Joint Resolution 628, approved May 14, 1962, has requested the President to proclaim annually the week in May of each year in which falls the third Friday of that month as National Transportation Week, as a tribute to the men and women who, night and day, move goods and people throughout our land:

NOW, THEREFORE, I, JOHN F. KENNEDY, President of the United States of America, do hereby designate the week beginning May 13, 1962, as National Transportation Week; and I urge all our people to join in appropriate activities and ceremonies with the various branches of the transportation industry and representatives of governmental agencies in such manner as will afford an opportunity for the people of each community to recognize the vital role which the transportation industry plays in our economy and in our daily lives.

IN WITNESS WHEREOF, I have hereunto set my hand and caused the Seal of the United States of America to be affixed.

DONE at the City of Washington this fourteenth day of May in the year of our Lord nineteen hundred and sixty-two, and of the [SEAL] Independence of the United States of America the one hundred and eighty-sixth.

JOHN F. KENNEDY

By the President:

DEAN RUSK,
Secretary of State.

[F.R. Doc. 62-4837; Filed, May 15, 1962; 4:39 p.m.]

Executive Order 11022

ESTABLISHING THE PRESIDENT'S COUNCIL ON AGING

By virtue of the authority vested in me as President of the United States, it is hereby ordered as follows:

SECTION 1. (a) There is hereby established the President's Council on Aging (hereinafter referred to as the "Council").

(b) The Council shall be composed of the Secretary of Health, Education, and Welfare, who shall be Chairman, the Secretary of Agriculture, the Secretary of Commerce, the Secretary of Labor, the Secretary of the Treasury, the Chairman of the Civil Service Commission, the Administrator of the Housing and Home Finance Agency, and the Administrator of Veterans' Affairs.

(c) The Chairman of the Council shall invite the head of any other Federal department or agency to attend any meeting of the Council at which any matter within or affecting the area of responsibility of such department or agency is considered and to be a temporary member with respect to such matter.

SEC. 2. The Council shall:

(a) Maintain a continuing study of the overall responsibilities of the Federal Government with respect to the problems of the aging and make recommendations to the President concerning policies and programs required to meet Federal responsibilities, particularly on matters which do not fall within the jurisdiction of a single agency.

(b) Identify matters which require coordinated action by two or more Federal agencies and make appropriate arrangements for joint or coordinated action, including, as appropriate, conferences, joint studies, and the development of recommendations to the President.

(c) Promote the sharing and dissemination of information on the needs of the aging and policies and programs relating to the aging, among Federal departments and agencies and between them and State, local, or private agencies and organizations having functions or interests in fields relating to the problems of the aging.

(d) Prepare an annual consolidated report to the President concerning the activities of the Council and the several Federal departments and agencies having programs relating to the aging.

SEC. 3. (a) Consonant with law, each department or agency represented on the Council shall, as may be necessary for the effectuation of the purpose of this order, furnish assistance to the Council in accordance with Section 214 of the Act of May 3, 1945, 59 Stat. 134 (31 U.S.C. 691).

(b) Other Federal departments and agencies are also authorized and directed, to the extent not inconsistent with law, to cooperate with the Council and to furnish it such information and assistance as it may find necessary in the performance of its functions.

SEC. 4. The Federal Council on Aging, established by a letter from the President to the Secretary of Health, Education, and Welfare, dated March 7, 1959, is hereby abolished and that letter is hereby superseded.

JOHN F. KENNEDY

THE WHITE HOUSE,
May 14, 1962.

[F.R. Doc. 62-4831; Filed, May 15, 1962; 3:58 p.m.]

Rules and Regulations

Title 7—AGRICULTURE

Chapter I—Agricultural Marketing Service (Standards, Inspections, Marketing Practices), Department of Agriculture

PART 52—PROCESSED FRUITS AND VEGETABLES, PROCESSED PRODUCTS THEREOF, AND CERTAIN OTHER PROCESSED FOOD PRODUCTS

Subpart—United States Standards for Grades of Frozen Broccoli

CORRECTIONS

In F.R. Doc. 62-3663, appearing at page 3585 of the issue for Saturday, April 14, 1962, the following changes are made in Table I:

1. The words "by weight" in the sixth line of the fifth column captioned "Reasonably well and poorly trimmed" should read "by count)".

2. The words "by weight" in the fourth line of the sixth column captioned "Poorly trimmed[1]" should read "by count)".

3. The words "by weight" in the seventh line of the seventh column captioned "Broken, damaged, and seriously damaged[1]" should read "by count)".

4. The words "by weight" in the fourth line of the eighth column captioned "Seriously damaged[1]" should read "by count)".

Dated: May 11, 1962.

G. R. GRANGE,
Deputy Administrator,
Marketing Services.

[F.R. Doc. 62-4771; Filed, May 16, 1962; 8:47 a.m.]

Title 9—ANIMALS AND ANIMAL PRODUCTS

Chapter I—Agricultural Research Service, Department of Agriculture

SUBCHAPTER C—INTERSTATE TRANSPORTATION OF ANIMALS AND POULTRY

PART 78—BRUCELLOSIS IN DOMESTIC ANIMALS

Subpart D—Designation of Modified Certified Brucellosis Areas, Public Stockyards, Specifically Approved Stockyards, and Slaughtering Establishments

MODIFIED CERTIFIED BRUCELLOSIS AREAS

Pursuant to § 78.16 of the regulations in Part 78, as amended, Title 9, Code of Federal Regulations, containing restrictions on the interstate movement of animals because of brucellosis, under sections 4, 5, and 13 of the Act of May 29, 1884, as amended, sections 1 and 2 of the Act of February 2, 1903, as amended, and section 3 of the Act of March 3, 1905, as amended (21 U.S.C. 111–113, 114a–1, 120, 121, 125), § 78.13 of said regulations designating modified certified brucellosis areas is hereby amended to read as follows:

§ 78.13 Modified certified brucellosis areas.

The following States, or specified portions thereof, are hereby designated as modified certified brucellosis areas:

Alabama. Baldwin, Barbour, Calhoun, Chambers, Cherokee, Clay, Cleburne, Coffee, Covington, Cullman, Dale, De Kalb, Escambia, Etowah, Geneva, Henry, Houston, Jackson, Lauderdale, Lee, Limestone, Madison, Marshall, Morgan, Randolph, Russell, Talladega, and Tallapoosa Counties;

Arizona. The entire State;

Arkansas. The entire State;

California. Alameda, Alpine, Amador, Butte, Calaveras, Colusa, Contra Costa, Del Norte, El Dorado, Fresno, Glenn, Humboldt, Imperial, Inyo, Kern, Kings, Lake, Lassen, Los Angeles, Madera, Marin, Mariposa, Mendocino, Merced, Modoc, Mono, Monterey, Napa, Nevada, Placer, Plumas, Riverside, Sacramento, San Benito, San Bernardino, San Diego, San Francisco, San Joaquin, San Luis Obispo, San Mateo, Santa Barbara, Santa Clara, Santa Cruz, Shasta, Sierra, Siskiyou, Solano, Sonoma, Stanislaus, Sutter, Tehama, Trinity, Tulare, Tuolumne, Ventura, Yolo, and Yuba Counties;

Colorado. Alamosa, Archuleta, Baca, Chaffee, Conejos, Costilla, Custer, Delta, Denver, Dolores, Eagle, Garfield, Gunnison, Hinsdale, Huerfano, Kit Carson, La Plata, Las Animas, Lincoln, Logan, Mesa, Mineral, Moffat, Montezuma, Montrose, Morgan, Ouray, Phillips, Pitkin, Pueblo, Rio Grande, Saguache, San Juan, San Miguel, Sedgwick, Washington, and Yuma Counties; Southern Ute Indian Reservation and Ute Mountain Ute Reservation;

Connecticut. The entire State;

Delaware. The entire State;

Florida. Baker, Bay, Bradford, Calhoun, Columbia, Dixie, Escambia, Flagler, Franklin, Gadsden, Gilchrist, Gulf, Hamilton, Holmes, Jackson, Jefferson, Lafayette, Leon, Levy, Liberty, Madison, Nassau, Okaloosa, Santa Rosa, Suwannee, Taylor, Union, Wakulla, Walton, and Washington Counties;

Georgia. The entire State;

Idaho. The entire State;

Illinois. Alexander, Bond, Boone, Bureau, Carroll, Champaign, Christian, Clark, Clay, Clinton, Coles, Cook, Crawford, Cumberland, De Kalb, De Witt, Douglas, DuPage, Edgar, Edwards, Effingham, Fayette, Ford, Franklin, Gallatin, Greene, Grundy, Hamilton, Iroquois, Jackson, Jasper, Jefferson, Jersey, Jo Daviess, Johnson, Kane, Kankakee, Kendall, Knox, Lake, La Salle, Lawrence, Lee, Livingston, Logan, McHenry, McLean, Macon, Macoupin, Madison, Mason, Massac, Menard, Mercer, Monroe, Montgomery, Morgan, Moultrie, Ogle, Perry, Piatt, Pulaski, Putnam, Randolph, Richland, Rock Island, St. Clair, Saline, Shelby, Stark, Stephenson, Tazewell, Union, Vermilion, Wabash, Washington, Wayne, White, Whiteside, Will, Williamson, Winnebago, and Woodford Counties;

Indiana. The entire State;

Iowa. Audubon, Boone, Carroll, Clinton, Delaware, Dickinson, Emmet, Fayette, Greene, Hamilton, Lyon, Mitchell, Monona, O'Brien, Osceola, Palo Alto, Pocahontas, Polk, Sac, Scott, Wapello, Warren, Winnebago, Woodbury, and Wright Counties;

Kansas. Allen, Barber, Barton, Cheyenne, Clark, Clay, Comanche, Decatur, Ford, Franklin, Geary, Gove, Graham, Gray, Greeley, Hamilton, Harper, Harvey, Haskell, Jefferson, Johnson, Kearney, Kingman, Kiowa, Leavenworth, Linn, Logan, Marshall, Meade, Miami, Mitchell, Morris, Morton, Nemaha, Norton, Osage, Osborne, Pawnee, Phillips, Rawlins, Reno, Rice, Riley, Rooks, Russell, Scott, Sheridan, Sherman, Smith, Stanton, Thomas, Trego, Wallace, Wichita, and Wyandotte Counties;

Kentucky. Allen, Anderson, Ballard, Barren, Boone, Boyd, Bracken, Breathitt, Breckenridge, Butler, Calloway, Campbell, Carlisle, Carroll, Carter, Clay, Clinton, Crittenden, Cumberland, Edmonson, Elliott, Estill, Floyd, Franklin, Fulton, Gallatin, Grant, Graves, Green, Greenup, Hardin, Harlan, Harrison, Hart, Henderson, Henry, Hickman, Hopkins, Jackson, Jefferson, Johnson, Kenton, Knott, Knox, Larue, Laurel, Lawrence, Leslie, Letcher, Lincoln, Livingston, Logan, McCracken, McCreary, McLean, Magoffin, Marion, Marshall, Martin, Mason, Meade, Menifee, Mercer, Metcalfe, Monroe, Morgan, Muhlenberg, Nelson, Ohio, Oldham, Owen, Pendleton, Perry, Pulaski, Robertson, Rockcastle, Rowan, Shelby, Simpson, Spencer, Todd, Trigg, Trimble, Union, Warren, Washington, Wayne, Webster, Whitley, and Wolfe Counties;

Louisiana. Ascension, Assumption, Claiborne, St. Helena, St. John the Baptist, and Webster Parishes;

Maine. The entire State;

Maryland. The entire State;

Massachusetts. The entire State;

Michigan. The entire State;

Minnesota. The entire State;

Mississippi. Alcorn, Amite, Attala, Benton, Choctaw, De Soto, Forrest, Franklin, George, Greene, Hancock, Harrison, Itawamba, Jackson, Jasper, Jefferson Davis, Jones, Lamar, Lawrence, Leake, Lee, Lowndes, Marion, Neshoba, Newton, Okitbbeha, Pearl River, Perry, Pike, Pontotoc, Prentiss, Simpson, Smith, Stone, Tallahatchie, Tippah, Tishomingo, Union, Walthall, Webster, Winston, and Yalobusha Counties;

Missouri. Adair, Bollinger, Buchanan, Butler, Callaway, Camden, Cape Girardeau, Carter, Cedar, Christian, Clark, Crawford, Dade, Dallas, Daviess, Dent, Dunklin, Franklin, Gasconade, Gentry, Greene, Grundy, Harrison, Hickory, Holt, Howard, Iron, Jackson, Jasper, Jefferson, Lafayette, Lawrence, Lincoln, Linn, Livingston, McDonald, Macon, Madison, Maries, Marion, Mercer, Miller, Monroe, Montgomery, New Madrid, Oregon, Osage, Ozark, Pemiscot, Perry, Pettis, Phelps, Platte, Polk, Pulaski, Ralls, Randolph, Reynolds, Ripley, St. Charles, St. Francis, Ste. Genevieve, Saline, Scotland, Scott, Shelby, Stoddard, Stone, Sullivan, Taney, Texas, Vernon, Warren, Washington, Wayne, Webster, and Worth Counties;

Montana. Beaverhead, Big Horn, Blaine, Broadwater, Carbon, Carter, Cascade, Chouteau, Daniels, Dawson, Deer Lodge, Fallon, Fergus, Flathead, Gallatin, Garfield, Glacier, Golden Valley, Granite, Hill, Jefferson, Judith Basin, Lake, Lewis and Clark, Liberty, Lincoln, McCone, Madison, Meagher, Mineral, Missoula, Musselshell, Park, Petroleum, Phillips, Pondera, Powell, Prairie, Ravalli, Richland, Roosevelt, Rosebud, Sanders, Sheridan, Silver Bow, Stillwater, Sweet Grass, Teton, Toole, Treasure, Valley, Wheatland, Wibaux, and Yellowstone Counties;

Nebraska. Adams, Banner, Burt, Butler, Cass, Cedar, Chase, Cheyenne, Clay, Colfax, Cuming, Dakota, Deuel, Dixon, Dodge, Douglas, Dundy, Fillmore, Franklin, Furnas, Gage, Gosper, Hall, Hamilton, Harlan, Hitchcock, Howard, Jefferson, Johnson, Kimball, Lancaster, Merrick, Nance, Nemaha, Nuckolls, Otoe, Pawnee, Perkins, Pierce, Platte, Polk, Richardson, Saline, Sarpy, Saunders, Seward, Stanton, Thayer, Thurston, Washington, Wayne, Webster, and York Counties;

Nevada. The entire State;

New Hampshire. The entire State;

New Jersey. The entire State;

New Mexico. The entire State;

New York. The entire State;

North Carolina. The entire State;

North Dakota. Adams, Barnes, Benson, Billings, Bottineau, Bowman, Burke, Cass, Cavalier, Divide, Dunn, Eddy, Emmons, Foster, Grand Forks, Grant, Griggs, Hettinger, Kidder, McHenry, McKenzie, McLean, Mercer, Morton, Mountrail, Nelson, Oliver, Pembina, Pierce, Ramsey, Ransom, Renville, Richland, Rolette, Sargent, Sheridan, Sioux, Slope, Stark, Steele, Towner, Traill, Walsh, Ward, Wells, and Williams Counties;

Ohio. Allen, Athens, Auglaize, Belmont, Butler, Carroll, Champaign, Clark, Clinton, Columbiana, Coshocton, Crawford, Cuyahoga, Darke, Defiance, Delaware, Fayette, Franklin, Fulton, Greene, Guernsey, Hancock, Hardin, Harrison, Henry, Hocking, Jackson, Knox, Lake, Licking, Logan, Lorain, Lucas, Mahoning, Marion, Medina, Meigs, Mercer, Miami, Monroe, Montgomery, Morgan, Morrow, Muskingum, Noble, Ottawa, Pauling, Perry, Pickaway, Pike, Portage, Preble, Putnam, Ross, Sandusky, Scioto, Seneca, Shelby, Stark, Summit, Tuscarawas, Union, Van Wert, Vinton, Warren, Washington, Williams, Wood, and Wyandot Counties;

Oklahoma. Adair, Choctaw, Cimarron, Delaware, Mayes, and Nawata Counties;

Oregon. The entire State;

Pennsylvania. The entire State;

Rhode Island. The entire State;

South Carolina. Abbeville, Aiken, Allendale, Bamberg, Barnwell, Beaufort, Berkeley, Calhoun, Charleston, Cherokee, Chester, Chesterfield, Clarendon, Colleton, Darlington, Dillon, Dorchester, Edgefield, Fairfield, Florence, Georgetown, Greenwood, Hampton, Horry, Jasper, Kershaw, Lancaster, Laurens, Lee, Lexington, McCormick, Marion, Marlboro, Newberry, Orangeburg, Pickens, Richland, Saluda, Spartanburg, Sumter, Union, Williamsburg, and York Counties;

South Dakota. Brookings, Buffalo, Butte, Campbell, Clay, Codington, Custer, Day, Deuel, Edmunds, Faulk, Hamlin, Hand, Harding, Lawrence, Lincoln, McPherson, Marshall, Miner, Minnehaha, Moody, Perkins, Roberts, Turner, Union, and Walworth Counties;

Tennessee. The entire State;

Texas. Andrews, Bandera, Baylor, Blanco, Borden, Brewster, Brown, Burnet, Cameron, Childress, Coke, Coleman, Comal, Concho, Cottle, Crane, Crockett, Culberson, Dallam, Dawson, Ector, Edwards, El Paso, Fisher, Gillespie, Glascock, Hardeman, Hartley, Haskell, Hays, Hidalgo, Howard, Hudspeth, Irion, Jeff Davis, Kendall, Kerr, Kimble, King, Kinney, Lampasas, Lipscomb, Llano, Loving, McCulloch, Martin, Mason, Menard, Midland, Mills, Mitchell, Motley, Nolan, Ochiltree, Oldham, Parmer, Pecos, Presidio, Reagan, Real, Reeves, Runnels, San Saba, Schleicher, Scurry, Shackelford, Stephens, Sterling, Stonewall, Sutton, Taylor, Terrell, Throckmorton, Tom Green, Upton, Val Verde, Ward, Winkler, and Young Counties;

Utah. The entire State;

Vermont. The entire State;

Virginia. Accomack, Alleghany, Amelia, Appomattox, Arlington, Augusta, Bath, Bedford, Bland, Botetourt, Brunswick, Buchanan, Buckingham, Campbell, Caroline, Carroll, Charles City, Chesterfield, Clarke, Craig, Culpeper, Cumberland, Dickenson, Dinwiddie, Essex, Fairfax, Fauquier, Fluvanna, Franklin, Frederick, Giles, Gloucester, Goochland, Greene, Greensville, Halifax, Hanover, Henrico, Highland, Isle of Wight, James City, King and Queen, King George, King William, Lancaster, Lee, Loudoun, Louisa, Lunenburg, Madison, Mathews, Mecklenburg, Middlesex, Nansemond, Nelson, New Kent, Norfolk, Northampton, Northumberland, Nottoway, Orange, Page, Patrick, Pittsylvania, Powhatan, Prince George, Prince William, Princess Anne, Pulaski, Rappahannock, Richmond, Roanoke, Rockingham, Scott, Southampton, Spotsylvania, Stafford, Surry, Sussex, Warren, Washington, Westmoreland, Wise, Wythe, and York Counties; City of Hampton, and City of Newport News;

Washington. The entire State;

West Virginia. The entire State;

Wisconsin. The entire State;

Wyoming. Albany, Big Horn, Campbell, Crook, Fremont, Hot Springs, Laramie, Lincoln, Niobrara, Park, Sweetwater, Teton, Uinta, Washakie, and Weston Counties;

Puerto Rico. The entire area; and

Virgin Islands of the United States. The entire area.

(Secs. 4, 5, 23 Stat. 32, as amended, secs. 1, 2, 32 Stat. 791–792, as amended, sec. 3, 33 Stat. 1265, as amended, sec. 13, 65 Stat. 693; 21 U.S.C. 111–113, 114a–1, 120, 121, 125; 19 F.R. 74, as amended; 9 CFR 78.16)

Effective date. The foregoing amendment shall become effective upon publication in the FEDERAL REGISTER.

The amendment adds the following additional areas to the list of areas designated as modified certified brucellosis areas because it has been determined that such areas come within the definition of § 78.1(i): Baldwin and Tallapoosa Counties in Alabama; Arkansas, Chicot, Desha, Little River, and Phillips Counties in Arkansas; Los Angeles County in California; Kit Carson and Morgan Counties in Colorado; Piatt and White Counties in Illinois; Harvey, Linn, Riley, Russell, Scott, and Stanton Counties in Kansas; Harlan County in Kentucky; Simpson County in Mississippi; Jackson, Pettis, Phelps, Saline, and Worth Counties in Missouri; Kidder County in North Dakota; Hand County in South Dakota; Cameron, Comal, Hays, and Hidalgo Counties in Texas; and Fauquier and Patrick Counties in Virginia.

The amendment deletes the following areas from the list of areas designated as modified certified brucellosis areas because it has been determined that such areas no longer come within the definition of § 78.1(i): Caldwell, Chariton, Clinton, Douglas, Newton, St. Louis, and Wright Counties in Missouri; and Madison County in Nebraska.

The amendment imposes certain restrictions necessary to prevent the spread of brucellosis in cattle and relieves certain restrictions presently imposed. It should be made effective promptly in order to accomplish its purpose in the public interest and to be of maximum benefit to persons subject to the restrictions which are relieved. Accordingly, under section 4 of the Administrative Procedure Act (5 U.S.C. 1003), it is found upon good cause that notice and other public procedure with respect to the amendment are impracticable and contrary to the public interest, and good cause is found for making the amendment effective less than 30 days after publication in the FEDERAL REGISTER.

Done at Washington, D.C., this 14th day of May 1962.

F. J. MULHERN,
Director, Animal Disease Eradication Division, Agricultural Research Service.

[F.R. Doc. 62-4801; Filed, May 16, 1962; 8:50 a.m.]

Title 12—BANKS AND BANKING

Chapter V—Federal Home Loan Bank Board

SUBCHAPTER D—FEDERAL SAVINGS AND LOAN INSURANCE CORPORATION

[No. FSLIC–1,351]

PART 561—DEFINITIONS

PART 563—OPERATIONS

Premiums and Premium Prepayments

MAY 11, 1962.

Resolved that the Federal Home Loan Bank Board, upon the basis of consideration by it of the advisability of amendment of Parts 561 and 563 of the rules and regulations for Insurance of Accounts (12 CFR Parts 561 and 563) as hereinafter set forth, so as to provide implementation of amendments made to title IV of the National Housing Act by Public Law 87–210, which was approved September 8, 1961, and became effective January 1, 1962, and for the purpose of effecting such amendment and such implementation, hereby amends said Parts 561 and 563 as follows, effective May 17, 1962:

1. Part 561 aforesaid is hereby amended by adding thereto, immediately after § 561.8, the following new sections:

§ 561.9 Premium prepayment; premium.

The term "premium prepayment" means and refers to the payments provided for by subsection (d) of section 404 of the National Housing Act, as amended. The term "premium" does not include or refer to additional premiums provided for by subsection (c) of section 404 of said act and, except where used in the term "premium prepayment", does not include or refer to payments provided for by said subsection (d).

§ 561.10 Primary Reserve; Secondary Reserve.

The term "Primary Reserve" means the Primary Reserve referred to in subsection (a) of section 404 of the National Housing Act, as amended, and the term "Secondary Reserve" means the Secondary Reserve referred to in said subsection (a).

2. Section 563.15 of said Part 563 (12 CFR 563.15) is hereby amended to read as follows:

§ 563.15 Premiums and their uses; amount; payment.

(a) *General provisions.* Each institution whose application for insurance is

approved by the Corporation shall pay to the Corporation a premium charge for such insurance at the rate fixed by statute, determined from the latest report of the insured institution filed with the Corporation. One-half of the first annual premium shall be paid at the time the certificate of insurance is issued by the Corporation. The balance of the first annual premium shall be paid six months later. Thereafter, each annual premium charge shall be paid in two equal installments, the first at the beginning of each insurance year and the second six months later. Such annual premiums shall be determined from the latest report of the insured institution filed with the Corporation or, if the institution has failed to file such report within 60 days prior to any date upon which its annual premium becomes due, from the latest report of the institution made or published pursuant to the requirements of law or regulations. Any amount contained in any such report covering interest accrued, but not due and payable, or dividends declared, but not due and distributable, upon an account of an insured member will not be included in the computation of premiums.

(b) *Suspension of requirement.* If, at the close of any December 31, the Primary Reserve equals or exceeds the percentage set forth in paragraph (2) of subsection (b) of section 404 of the National Housing Act, as amended, no premium under paragraph (1) of said subsection (b) shall be payable by any insured institution with respect to its premium year beginning during the year commencing on May 1 next succeeding such December 31, except that the foregoing provisions of this sentence shall not be applicable to any insured institution with respect to any of the twenty premium years beginning with the premium year commencing with the date on which such certificate is issued.

3. Part 563 aforesaid is hereby amended by adding thereto, immediately after § 563.16, the following new sections:

§ 563.16–1 Premium prepayments.

Except as otherwise provided in section 404 of the National Housing Act, as amended, each insured institution shall annually pay to the Corporation a premium prepayment in an amount determined by the Corporation in accordance with subsection (d) of said section 404. The premium prepayment payable by any insured institution in any calendar year shall become due on such date, which shall be the same for all insured institutions and shall not be earlier than April 1 of such year, as shall be specified in a notice of such premium prepayment which shall be given by the Corporation to such insured institution. Each premium prepayment shall be payable in cash, but at the option of the Corporation the whole or any part of any premium prepayment may be collected by the Corporation by application thereto of the whole or any part of any sum or sums due by the Corporation to the insured institution. For the purposes of the third sentence of § 563.16–2, any payment received by the Corporation not later than the expiration of a period of five days next following the date specified in the premium prepayment notice relating thereto shall be considered as having been paid on said date and any payment received by the Corporation after such expiration shall be considered as having been paid on the first day of the first calendar month which begins after the date on which such payment is received by the Corporation, and for the purposes of this sentence the date of any application under the sentence next preceding shall be considered as the date on which the amount applied is received by the Corporation.

§ 563.16–2 Secondary Reserve.

The amounts of the premium prepayments made by insured institutions shall be credited to the Secondary Reserve. The Corporation shall maintain records showing each insured institution's pro rata share of the Secondary Reserve. The Corporation shall credit to the Secondary Reserve, as of the close of each calendar year, a return on the outstanding balances of the Secondary Reserve during such calendar year, as determined by the Corporation in accordance with subsection (e) of section 404 of the National Housing Act, as amended. Except as provided in the next following sentence or by action of the Corporation pursuant to the last sentence of said subsection (e), no right, title, or interest of any institution in or with respect to its pro rata share of the Secondary Reserve shall be assignable or transferable, whether by operation of law or otherwise. In the event that an insured institution (hereinafter in this sentence called the merging institution) is merged into another insured institution (hereinafter in this sentence called the surviving institution), the merging institution's pro rata share of the Secondary Reserve shall automatically be transferred to the surviving institution, and in such event the amount of the increase in all accounts of the surviving institution's insured members as of the December 31 next following such merger shall, for premium prepayment purposes, be adjusted by the Corporation so that such increase shall not include the accounts of insured members of the merging institution as of the close of the immediately preceding December 31.

(Secs. 402, 403, 48 Stat. 1256, 1257, as amended; 12 U.S.C. 1725, 1726. Reorg. Plan No. 3 of 1947, 12 F.R. 4981, 3 CFR, 1947 Supp. Interprets or applies sec. 404, 48 Stat. 1258, as amended; 12 U.S.C. 1727)

Resolved further that, as the time involved in the affording of notice and public procedure on the above amendments would in the opinion of the Board involve danger of delay in the obtaining by the Federal Savings and Loan Insurance Corporation of premium prepayments during the present calendar year, the Board hereby finds that for that reason notice and public procedure on said amendments are impracticable and contrary to the public interest under the provisions of § 508.12 of the general regulations of the Federal Home Loan Bank Board or section 4(a) of the Administrative Procedure Act, and, as the time involved in the publication of said amendments for the period specified in section 4(c) of said act prior to the effective date of said amendments would in the opinion of the Board likewise involve such danger and the Board hereby so finds, the Board hereby provides that said amendments shall become effective as hereinbefore set forth.

By the Federal Home Loan Bank Board.

[SEAL] HARRY W. CAULSEN, *Secretary.*

[F.R. Doc. 62–4735; Filed, May 16, 1962; 8:46 a.m.]

Title 14—AERONAUTICS AND SPACE

Chapter I—Federal Aviation Agency

[Reg. Docket No. 1201; Amdt. 22–13; Supp. 3]

PART 22—LIGHTER-THAN-AIR PILOT CERTIFICATES

Miscellaneous Amendments

The manual material related to Part 22 of the Civil Air Regulations requires that a valid student lighter-than-air pilot certificate be held by an applicant as a prerequisite for taking a private pilot lighter-than-air written examination. It also provides that an applicant for a commercial pilot lighter-than-air written examination hold as a prerequisite either a private lighter-than-air pilot certificate or a valid student lighter-than-air pilot certificate which has been endorsed for solo and cross-country flight. Part 20 contains no similar requirements and it has been determined that there is no need for these requirements in Part 22 since they do not contribute significantly to the applicant's ability to meet the specified aeronautical knowledge requirements.

Further, Part 22 contains no provisions for: (1) Exchange of certificate for one of a lower grade; (2) change of name on a lighter-than-air pilot certificate; (3) replacement of a lost or destroyed pilot or medical certificate; or (4) issuance of a special purpose pilot certificate to foreign citizens. Part 20 does contain such provisions and since both parts concern pilot certificates, it has been determined that they should be uniform in regard to such privileges.

Therefore, Part 22 is amended to provide for uniformity with Part 20 in the foregoing respects.

Since this amendment relieves restrictions and imposes no additional burden on any person, I find that notice and public procedure hereon are unnecessary, and it may be made effective on less than 30 days' notice.

This amendment will be included in the recodification of the provisions of Part 22 under the Agency's Recodification Program announced in Civil Air Regulations Draft Release No. 61–25 (26 F.R. 10698).

In consideration of the foregoing, Part 22 of the Civil Air Regulations (14 CFR Part 22) is hereby amended as follows:

§ 22.11–4 [Deletion]

1. By deleting § 22.11–4.

§ 22.12–5 [Deletion]

2. By deleting § 22.12–5.

3. By adding a new § 22.27 to read as follows:

§ 22.27 Exchange of certificate.

The holder of a lighter-than-air pilot certificate may apply for a pilot certificate of a lower grade. If he so applies, he must include the following statement or its equivalent: "This request is made for my own reasons, with full knowledge that my [insert name of certificate] may not be reissued to me unless I again pass the tests prescribed for its issue."

4. By adding a new § 22.28 to read as follows:

§ 22.28 Change of name; replacement of lost or destroyed certificate.

(a) An application for a change of name on a certificate issued under this part must be accompanied by the applicant's current certificate and the marriage license, court order, or other document verifying the change. The documents are returned to the applicant after inspection.

(b) An application for a replacement of a lost or destroyed pilot certificate is made by letter to the Chief, Airman Certification Branch, Federal Aviation Agency, Oklahoma City, Oklahoma. The letter must:

(1) Contain a brief statement of the circumstances of the loss or destruction;

(2) Contain any available information regarding the grade, number, and date of issue of the certificate, the name in which it was issued and the ratings on it; and

(3) Be accompanied by a check or money order for $2.00, payable to the Federal Aviation Agency.

(c) An application for replacement of a lost or destroyed medical certificate is made by letter to the Civil Air Surgeon, Federal Aviation Agency, Washington 25, D.C., accompanied by a check or money order for $2.00, payable to the Federal Aviation Agency.

(d) A person whose certificate issued under this part or medical certificate, or both, has been lost may obtain a telegram from the FAA confirming that it was issued. The telegram may be carried as a pilot certificate or medical certificate, or both, pending his receiving a duplicate certificate under paragraph (b) or (c) of this section, unless he has been notified that the certificate has been suspended or revoked. The request for such a telegram may be made by prepaid telegram, stating the date upon which a duplicate certificate was requested, or including the request for a duplicate and a money order for the necessary amount. The request for a telegraphic pilot or medical certificate should be sent to the office prescribed in paragraph (b) or (c) of this section, as appropriate. However, a request for both at the same time should be sent to the office prescribed in paragraph (b) of this section.

5. By adding a new § 22.29 to read as follows:

§ 22.29 Special purpose pilot certificates; foreign citizens.

(a) An applicant for a lighter-than-air pilot certificate who is a citizen of a foreign country, who holds a current lighter-than-air pilot certificate issued by that country and who meets the requirements of this section, may have a lighter-than-air pilot certificate issued to him stating the operations it authorizes and containing ratings based on the ratings on his foreign pilot certificate. If he has no ratings on that certificate, the certificate issued under this part is limited to operating lighter-than-air aircraft that he has flown at least 10 hours, as pilot in command during the preceding 12 months. However, no instrument ratings may be placed on a certificate issued under this section.

(b) An applicant for a certificate under this section must submit satisfactory evidence of his aeronautical experience and must pass a test on Part 60 of this chapter. In addition, he must either submit satisfactory evidence that he currently meets the physical requirements for the foreign certificate that he holds or present an appropriate current medical certificate issued under Part 29 of this chapter.

(c) Each certificate issued under this section shows the basis upon which it was issued and may be used only for the specific purpose for which issued. If the applicant cannot read, speak, and understand the English language, the certificate may contain additional limitations that the Administrator considers necessary for air safety. A certificate issued under this section is effective only during the period it is used for the specific purpose for which it was issued, but not longer than 12 months.

(Secs. 313(a), 601, 602; 72 Stat. 752, 775, 776; 49 U.S.C. 1354, 1421, 1422)

Issued in Washington, D.C., on May 11, 1962.

N. E. HALABY,
Administrator.

[F.R. Doc. 62–4772; Filed, May 16, 1962; 8:48 a.m.]

Chapter III—Federal Aviation Agency

SUBCHAPTER C—AIRCRAFT REGULATIONS

[Reg. Docket No. 1200; Amdt. 439]

PART 507—AIRWORTHINESS DIRECTIVES

Douglas DC–8 Series Aircraft

There have been several cases of cracking and one failure of the wing flap actuating cylinder rod-end bearings on Douglas DC–8 Series aircraft. As this condition is likely to occur in other such aircraft, an airworthiness directive is being issued to require inspection of the bearings and replacement of any which are cracked.

As a situation exists which demands immediate action in the interest of safety, it is found that notice and public procedure hereon are impracticable and good cause exists for making this amendment effective upon publication in the FEDERAL REGISTER.

In consideration of the foregoing, and pursuant to the authority delegated to me by the Administrator (25 F.R. 6489), § 507.10(a) of Part 507 (14 CFR Part 507), is hereby amended by adding the following new airworthiness directive:

DOUGLAS. Applies to all DC–8 Series aircraft. Compliance required as indicated.

A number of wing flap actuating cylinder rod-end bearings have cracked and in one case there was complete failure. To preclude failure of the rod-end bearings in cylinders located at wing Stations 98 and 219, accomplish the following:

(a) Assemblies having 4,650 hours' or more time in service as of the effective date of this AD shall be inspected in accordance with (b) within the next 350 hours' time in service after the effective date of this AD and thereafter at intervals not exceeding 350 hours' time in service. Assemblies having less than 4,650 hours' time in service as of the effective date of this AD shall be inspected in accordance with (b) prior to the accumulation of 5,000 hours' time in service and thereafter at intervals not exceeding 350 hours' time in service.

(b) Visually inspect rod-end bearings P/N 4648686 in the area of the bearing case adjacent to the bearing dust shield using at least a 10-power glass, for evidence of cracks. Caution: Do not remove rod-end bearing dust shield or magnetically inspect the rod-ends.

(c) If cracks are found, replace the defective part. If no cracks are found, the 350 hour periodic inspection, specified in (b), shall be continued.

(d) When replacement assemblies P/N 4648686 are used, the inspection prescribed in (b) shall be accomplished prior to the accumulation of 5,000 hours' time in service and thereafter at intervals not exceeding 350 hours' time in service.

(e) When assembly P/N 4648686 is replaced by Douglas P/N 4648686–501 (Shafer P/N YD–200A) or –503 (Shafer P/N YD–200B), or FAA approved equivalent, the inspections called for in this AD may be discontinued.

(f) Upon request of the operator, an FAA maintenance inspector, subject to prior approval of the Chief, Engineering & Manufacturing Branch, FAA Western Region, may adjust the repetitive inspection intervals specified in this Airworthiness Directive to permit compliance at an established inspection period of the operator if the request contains substantiating data to justify the increase for such operator.

(Douglas Service Bulletin No. 27–127 reissue No. 1 dated April 2, 1962, covers this same subject.)

This amendment shall become effective May 17, 1962.

(Sec. 313(a), 601, 603; 72 Stat. 752, 775, 776; 49 U.S.C. 1354(a), 1421, 1423)

Issued in Washington, D.C., on May 11, 1962.

G. S. MOORE,
Acting Director,
Flight Standards Service.

[F.R. Doc. 62–4748; Filed, May 16, 1962; 8:45 a.m.]

SUBCHAPTER E—AIR NAVIGATION REGULATIONS

[Reg. Docket No. 1153; Amdt. 268]

PART 609—STANDARD INSTRUMENT APPROACH PROCEDURES

Miscellaneous Amendments

The amendments to standard instrument approach procedures contained herein are being adopted to become effective when indicated in order to promote safety. The revised procedures supersede the existing procedures of the same classification now in effect for the airports specified therein. For the convenience of the users, the revised procedures specify the complete procedure and indicate the changes to the existing procedures.

As a situation exists which demands immediate action in the interests of safety in air commerce, I find that compliance with the notice, procedure and effective date provisions of section 4 of the Administrative Procedure Act would be contrary to the public interest and is therefore not required.

Pursuant to the authority delegated to me by the Administrator (24 F.R. 5662), Part 609 is amended as follows:

1. The low or medium frequency range procedures prescribed in § 609.100(a) are amended to read in part:

LFR STANDARD INSTRUMENT APPROACH PROCEDURE

Bearings, headings, courses and radials are magnetic. Elevations and altitudes are in feet MSL. Ceilings are in feet above airport elevation. Distances are in nautical miles unless otherwise indicated, except visibilities which are in statute miles.

If an instrument approach procedure of the above type is conducted at the below named airport, it shall be in accordance with the following instrument approach procedure, unless an approach is conducted in accordance with a different procedure for such airport authorized by the Administrator of the Federal Aviation Agency. Initial approaches shall be made over specified routes. Minimum altitudes shall correspond with those established for en route operation in the particular area or as set forth below.

Transition				Ceiling and visibility minimums			
From—	To—	Course and distance	Minimum altitude (feet)	Condition	2-engine or less		More than 2-engine, more than 65 knots
					65 knots or less	More than 65 knots	
Amarillo VOR	AV-LFR	Direct	4800	T-dn	300-1	300-1	200-½
AM LOM	AV-LFR	Direct	5000	C-dn	500-1	500-1	500-1½
				A-dn	800-2	800-2	800-2

Procedure turn E side of North crs, 359° Outbnd, 179° Inbnd, 4900′ within 10 mi.
Minimum altitude over facility on final approach crs, 4400′.
Crs and distance, facility to airport, 124°—1.2 mi.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 1.2 mi. turn left, climb to 4700′ on the East crs of AV-LFR within 20 mi.
CAUTION: 3764′ msl grain elevator located adjacent to SW boundary of airport.

City, Amarillo; State, Tex.; Airport Name, Amarillo AFB-Municipal; Elev., 3604′; Fac. Class., SABRAZ; Ident., AV; Procedure No. 1, Amdt. 12; Eff. Date, 19 May 62; Sup. Amdt. No. 11; Dated, 30 Sept. 61

PROCEDURE CANCELLED, EFFECTIVE MAY 19, 1962.

City, Madison; State, Wis.; Airport Name, Truax Field; Elev., 859′; Fac. Class., BMRLZ; Ident., MSN; Procedure No. 1, Amdt. 8; Eff. Date, 26 Oct. 57; Sup. Amdt. No. 7; Dated, 4 May 57

2. The automatic direction finding procedures prescribed in § 609.100(b) are amended to read in part:

ADF STANDARD INSTRUMENT APPROACH PROCEDURE

Bearings, headings, courses and radials are magnetic. Elevations and altitudes are in feet MSL. Ceilings are in feet above airport elevation Distances are in nautical miles unless otherwise indicated, except visibilities which are in statute miles.

If an instrument approach procedure of the above type is conducted at the below named airport, it shall be in accordance with the following instrument approach procedure, unless an approach is conducted in accordance with a different procedure for such airport authorized by the Administrator of the Federal Aviation Agency. Initial approaches shall be made over specified routes. Minimum altitudes shall correspond with those established for en route operation in the particular area or as set forth below.

Transition				Ceiling and visibility minimums			
From—	To—	Course and distance	Minimum altitude (feet)	Condition	2-engine or less		More than 2-engine, more than 65 knots
					65 knots or less	More than 65 knots	
AMA VOR	AM LOM	Direct	5000	T-dn	300-1	300-1	200-½
AV LFR	AM LOM	Direct	5000	C-dn	600-1	600-1	600-1½
Soncy Int	AM LOM	Direct	5000	S-dn-3	600-1	600-1	600-1
Claude Int	AM LOM	Direct	5000	A-dn	800-2	800-2	800-2
Palo Duro Int	AM LOM	Direct	4900				
Tower Int	AM LOM	Direct	5300				
Sam Int	AM LOM	Direct	5300				
West Side Int	AM LOM	Direct	5000				

Procedure turn S side of crs 215° Outbnd, 035° Inbnd, 5000′ within 10 mi.
Minimum altitude over facility on final approach crs, 4600′.
Crs and distance, facility to airport, 035°—5.0 mi.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 5.0 mi after passing LOM, climb to 4900′ on crs 035° within 20 miles.
CAUTION: Towers 3994′ msl 3.4 mi SW; 3886′ msl 2.1 mi SW; 3855′ msl 2.7 mi SSW of airport.

City, Amarillo; State, Tex.; Airport Name, AFB-Municipal; Elev., 3604′; Fac. Class., LOM; Ident., AM; Procedure No. 1, Amdt. 4; Eff. Date, 19 May 62; Sup. Amdt. No. 3; Dated, 23 July 60

ADF STANDARD INSTRUMENT APPROACH PROCEDURE—Continued

Transition				Ceiling and visibility minimums			
From—	To—	Course and distance	Minimum altitude (feet)	Condition	2-engine or less		More than 2-engine, more than 65 knots
					65 knots or less	More than 65 knots	
BHM-VOR	ROE RBn	Direct	2500	T-dn	300-1	300-1	*200-½
BHM-LFR	ROE RBn	Direct	2500	C-dn	800-1	900-1	900-1½
Leeds Int	ROE RBn	Direct	2500	S-dn-23	800-1	800-1	800-1
Chelsea Int	ROE RBn	Direct	2500	A-dn	1000-2	1000-2	1000-2
Helena Int	ROE RBn	Direct	2800	If aircraft is equipped with dual ADF and course guidance is provided by receiving ROE RBn and LMM or LOM simultaneously, following minimums apply:			
Bessemer Int	ROE RBn	Direct	2500				
Trussville Int	ROE RBn (Final)	Direct	1900				
				S-dn-23	600-1	600-1	600-1

Radar vectoring authorized in accordance with approved patterns.
Procedure turn N side of crs, 052° Outbnd, 232° Inbnd, 2500′ within 10 mi.
Minimum altitude over facility on final approach crs, 1900′.
Crs and distance, facility to airport, 232°—4.4 mi.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 4.4 miles after passing ROE RBn, climb to 2800′ on crs 232° within 15 miles.
AIR CARRIER NOTE: No reduction in minima authorized.
CAUTION: Rotating beacon 1375′ msl 1.6 miles South of final approach course.
*Runways 5 and 23 only. Other runways, 300-1.

City, Birmingham; State, Ala.; Airport Name, Municipal; Elev., 643′; Fac. Class., MHW; Ident., ROE; Procedure No. 2, Amdt. Orig.; Eff. Date, 19 May 62

Bismarck LFR	LOM	Direct	3800	T-dn	300-1	300-1	*200-½
Bismarck VOR	LOM	Direct	3800	C-d	400-1	500-1	500-1½
Int W crs BK-LFR and 126° brng to LOM	LOM	Direct	3800	C-n	400-1½	500-1½	500-1½
Int R-117 BIS-VOR and 252° brng to LOM	LOM	Direct	3800	S-dn-30	400-1	400-1	400-1
				A-dn	800-2	800-2	800-2

Procedure turn E side SE crs, 126° Outbnd, 306° Inbnd, 3800′ within 10 mi.
Minimum altitude over LOM inbnd final, 2500′.
Crs and distance, facility to airport, 306°—3.7 mi.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 3.7 miles after passing LOM, climb to 3800′ on W crs BK-LFR or to 4000′ on R-262 BIS-VOR within 20 miles or, when directed by ATC, make right climbing turn to 4000′ on R-336 BIS-VOR within 20 miles.
CAUTION: Radio towers: 1756′ 0.5 mi S of airport, 2143′ 2.4 mi N, 1848′ 3.0 mi W, 2317′ 8.1 mi NW, and 2413′ 9.2 mi NE.
NOTE: Final approach from holding pattern at LOM not authorized. Procedure turn required.
*300-1 required on Runways 2, 20, 35, and 17.

City, Bismarck; State, N. Dak.; Airport Name, Municipal; Elev., 1653′; Fac. Class., LOM; Ident., B1; Procedure No. 1, Amdt. 11; Eff. Date, 19 May 62; Sup. Amdt. No. 10; Dated, 24 Feb. 62

SDF RBn	LOM	Direct	2200	T-dn	300-1	300-1	200-½
LOU VOR	LOM	Direct	2200	C-dn	600-1	600-1	600-1½
Jeffersonville Int	LOM	Direct	2200	S-dn-29	500-1	500-1	500-1
				A-dn	800-2	800-2	800-2

Radar vectoring authorized in accordance with approved radar patterns.
Procedure turn N side of crs 110° Outbnd, 290° Inbnd, 2200′ within 10 miles of LOM.
Minimum altitude over facility on final approach crs, 2200′.
Crs and distance, facility to airport, 290°—5.0 mi.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 5.0 miles after passing LK LOM, climb to 2600′ on heading 270°, intercept R-283 LOU-VOR and proceed to Corydon Int. Hold West 1-minute left turns.

City, Louisville; State, Ky.; Airport Name, Standiford Field; Elev., 497′; Fac. Class., LOM; Ident., LK; Procedure No. 2, Amdt. 1; Eff. Date, 19 May 62; Sup. Amdt. No. Orig.; Dated, 28 Apr. 62

MIA-VOR	LOM	Direct	1300	T-dn	300-1	300-1	200-½
BSY-VOR	LOM	Direct	1400	C-dn	500-1	500-1	500-1½
MIA RBn	LOM	Direct	1300	S-dn-9L and R	400-1	400-1	400-1
				A-dn	800-2	800-2	800-2

Radar vectoring authorized in accordance with approved patterns.
Procedure turn N side of crs, 266° Outbnd, 086° Inbnd, 1200′ within 10 mi.
Minimum altitude over facility on final approach crs, 700′.
Crs and distance, facility to Runway 9L, 086°—4.5 mi; Runway 9R, 097°—4.6 mi.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 4.5 miles after passing LOM, climb to 1400′ on crs of 086° within 20 miles or, when directed by ATC, turn right to 195°, climb to 1400′ and proceed to Perrine RBn via a course of 250°.

City, Miami; State, Fla.; Airport Name, International; Elev., 9′; Fac. Class., LOM; Ident., I-MI; Procedure No. 3, Amdt. Orig.; Eff. Date, 19 May 62

ORL-VOR	LOM	Direct	1700	T-dn	300-1	300-1	200-½
				C-dn	500-1	500-1	500-1½
				S-dn-7	500-1	500-1	500-1
				A-dn	800-2	800-2	800-2

Radar vectoring authorized in accordance with approved patterns.
Procedure turn S side of crs, 246° Outbnd, 066° Inbnd, 1700′ within 10 mi.
Minimum altitude over facility on final approach crs, 1100′.
Crs and distance, facility to airport, 066°—5.4 mi.
If visual contact not tablished upon descent to authorized landing minimums or if landing not accomplished within 5.4 miles, turn right, climb to 1300′ on R-098 ORL-VOR within 20 mi.

City, Orlando; State, Fla.; Airport Name, Orlando Municipal (Herndon); Elev. ,113′; Fac. Class., LOM; Ident., OR; Procedure No. 1, Amdt. Orig.; Eff. Date, 19 May 62

ADF STANDARD INSTRUMENT APPROACH PROCEDURE—Continued

Transition				Ceiling and visibility minimums			
From—	To—	Course and distance	Minimum altitude (feet)	Condition	2-engine or less		More than 2-engine, more than 65 knots
					65 knots or less	More than 65 knots	
PLN-VOR	Int*	Via PLN-VOR R-212.	2300	T-dn	300–1	300–1	200–½
				C-dn	700–1	700–1	700–1½
				A-dn	800–2	800–2	800–2
				Following minimums apply for aircraft capable of receiving VOR and ADF simultaneously and Int* identified:			
				C-dn	500–1	500–1	500–1½

Procedure turn E side of crs, 135° Outbnd, 315° inbnd, 1900′ within 10 mi.
Minimum altitude over facility on final approach crs, 1400′; over Int*, 1400′.
Facility on airport. Crs and distance, Int* to airport, 315°—2.9 mi.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 0.0 mile after passing PLN RBn, climb to 2300′ on 315° crs within 20 miles, then reverse course and proceed direct to PLN RBn.
CAUTION: 1326′ msl tower 2.8 mi SW of airport.
*Int: Int 135° brng from PLN RBn and PLM-VOR R-212.

City, Pellston; State, Mich.; Airport Name, Emmet County; Elev., 720′; Fac. Class., BHH; Ident., PLN; Procedure No. 1, Amdt. 5; Eff. Date, 19 May 62; Sup. Amdt. No. 4; Dated, 26 Nov. 55

PROCEDURE CANCELLED, EFFECTIVE MAY 19, 1962.

City, Pellston; State, Mich.; Airport Name, Emmet County; Elev., 720′; Fac. Class., BHH; Ident, PLN; Procedure No. 2, Amdt. Orig.; Eff. Date, 8 Apr. 61

PBI-VOR	LOM	Direct	1500	T-dn	300–1	300–1	200–½
PBI-LFR	LOM	Direct	1500	C-dn	500–1	500–1	500–1½
Monet Int	LOM	Direct	1500	S-dn-9	500–1	500–1	500–1
Andrews Int	LOM	Direct	1500	A-dn	800–2	800–2	800–2

Procedure turn S side of crs, 273° Outbnd, 093° Inbnd, 1500′ within 10 mi.
Minimum altitude over facility on final approach crs. 1500′.
Crs and distance, facility to airport, 093°—5.6 mi.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 5.6 mi after passing LOM, climb to 1500′ on crs of 093° within 20 miles of LOM.

City, West Palm Beach; State, Fla.; Airport Name, Palm Beach International; Elev., 19′; Fac. Class., LOM; Ident, PB; Procedure No. 1, Amdt. Orig.; Eff. Date, 19 May 62, or on com. of facility

3. The very high frequency omnirange (VOR) procedures prescribed in § 609.100(c) are amended to read in part:

VOR STANDARD INSTRUMENT APPROACH PROCEDURE

Bearings, headings, courses and radials are magnetic. Elevations and altitudes are in feet MSL. Ceilings are in feet above airport elevation. Distances are in nautical miles unless otherwise indicated, except visibilities which are in statute miles.
If an instrument approach procedure of the above type is conducted at the below named airport, it shall be in acordance with the following instrument approach procedure, unless an approach is conducted in accordance with a different procedure for such airport authorized by the Administrator of the Federal Aviation Agency. Initial approaches shall be made over specified routes. Minimum altitudes shall correspond with those established for en route operation in the particular area or as set forth below.

Transition				Ceiling and visibility minimums			
From—	To—	Course and distance	Minimum altitude (feet)	Condition	2-engine or less		More than 2-engine, more than 65 knots
					65 knots or less	More than 65 knots	
Amarillo LFR	AMA-VOR	Direct	4800	T-dn	300–1	300–1	200–½
AM LOM	AMA-VOR	Direct	5000	C-dn	500–1	500–1	500–1½
				S-dn-21	400–1	400–1	400–1
				A-dn	800–2	800–2	800–2

Procedure turn N side of crs, 029° Outbnd, 209° Inbnd, 4900′ within 10 mi.
Minimum altitude over facility on final approach crs, 4600′.
Crs and distance, facility to airport, 209°—4.5 mi.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 4.5 miles, climb to 5000′ on R-209 within 20 miles or, when directed by ATC, turn left, climb to 4700′ on R-075 within 20 mi.
CAUTION: 3764′ MSL grain elevator located adjacent to SW boundary of airport.

City, Amarillo; State, Tex.; Airport Name, AFB-Municipal; Elev., 3604′; Fac. Class., BVORTAC; Ident., AMA; Procedure No. 1, Amdt. 9; Eff. Date, 19 May 62; Sup. Amdt. No. 8; Dated 30 Sept. 61

AV LFR	AMA-VOR	Direct	5000	T-dn	300–1	300–1	200–½
AM LOM	AMA-VOR	Direct	5000	C-dn	500–1	500–1	500–1½
AM LOM	Potter Int* (Final)	037°—4.4	4500	S-dn-3	500–1	500–1	500–1
				A-dn	800–2	800–2	800–2

Procedure turn S side of crs, 210° Outbnd, 030° Inbnd, 5000′ within 10 mi of Potter Int.*
Minimum altitude over Potter Int* on final approach crs, 4500′.
Crs and distance, Potter Int* to airport, 030°—1.0 mi.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 1.0 mi after passing Potter Int, climb straight ahead to 4900′ on R-210 to the VOR, thence R-030 within 20 mi of AMA VOR or, when directed by ATC, climb to 4700′ on AMA VOR R-075 within 20 mi of VOR.
NOTE: This procedure is authorized only for aircraft equipped with VOR and ADF receivers.
CAUTION: Towers 3994′ MSL 5 mi. SW; 3886′ MSL 4 mi. SW; 3855′ MSL 5 mi. SSW. 3764′ MSL grain elevator located adjacent to SW boundary of airport.
*Potter Int: Int AMA VOR R-211 and brng 356° to AV-LFR.

City, Amarillo; State, Tex.; Airport Name, AFB-Municipal; Elev., 3604′; Fac. Class., BVORTAC; Ident., AMA; Procedure No. 2, Amdt. 7; Eff. Date, 19 May 62; Sup. Amdt. No. 6; Dated, 27 Jan. 62

VOR STANDARD INSTRUMENT APPROACH PROCEDURE—Continued

Transition				Ceiling and visibility minimums			
From—	To—	Course and distance	Minimum altitude (feet)	Condition	2-engine or less		More than 2-engine, more than 65 knots
					65 knots or less	More than 65 knots	
AMA VOR	ARO VOR	Direct	5000	T-dn	300–1	300–1	NA
AM LOM	ARO VOR	Direct	5000	C-dn	500–1	500–1	NA
				A-dn	NA	NA	NA

Procedure turn E side of crs, 183° Outbnd, 003° Inbnd, 5000′ within 10 miles.
Minimum altitude over facility on final approach crs, 4700′.
Crs and distance, facility to airport, 003°—3.2 mi.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 3.2 miles after passing ARO VOR, turn left, climb to 6000′ on R-241 AMA VOR within 20 miles.
CAUTION: Towers 3929′ and 3994′ MSL 2.1 mi NE of airport. Silver painted water tower approximately 3800′ MSL 2 mi NW.
NOTES: Radar vectoring authorized. No weather service at airport. Air carrier use NA.

City, Amarillo; State, Tex.; Airport Name, Tradewind; Elev., 3642′; Fac. Class., VOR; Ident., ARO; Procedure No. 1, Amdt. 1; Eff. Date, 19 May 62; Sup. Amdt. No. Orig.; Dated, 23 Dec. 61

				T-d	300–1	300–1	NA
				C-d	700–1	700–1	NA
				A-dn	NA	NA	NA

Procedure turn S side of crs, 240° Outbnd, 060° Inbnd, 1900′ within 10 miles.
Minimum altitude over facility on final approach crs, 1500′.
Crs and distance, facility to airport, 060°—4.3 mi.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 4.3 miles, make a climbing left turn to 1900′, proceed direct to SBJ-VOR. Hold SW 1-minute right turns, inbound crs 060°.
NOTE: No tower Unicom available.
CAUTION: 700′ terrain 2.5 miles past airport on 060°.

City, Bedminster; State, N.J.; Airport Name, Somerset; Elev., 105′; Fac. Class., BVORTAC; Ident., SBJ; Procedure No. 1, Amdt. 1; Eff. Date, 19 May 62; Sup. Amdt. No. Orig.; Dated, 7 Oct. 61

				T-dn	300–1	300–1	200–½
				C-dn	500–1	600–1	600–1½
				A-dn	NA	NA	NA

Procedure turn W side of crs, 360° Outbnd, 180° Inbnd, 1500′ within 10 mi.
Minimum altitude over facility on final approach crs, 1400′.
Crs and distance, facility to airport, 180°—6.0.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 6.0 mi after passing Colt's Neck VOR, climb to 1500′ on crs of 180 within 10 mi and return to Colt's Neck VOR. Hold South 1-minute right turns, 010° Inbnd.

City, Belmar; State, N.J.; Airport Name, Monmouth County; Elev., 155′; Fac. Class., BVOR; Ident., COL; Procedure No. 2, Amdt. 2; Eff. Date, 19 May 62; Sup. Amdt. No. 1; Dated, 24 Dec. 60

Acorn Int	OBK-VOR	Direct	2500	T-dn	300–1	300–1	200–½
Beacon Int	OBK-VOR	Direct	2500	C-dn	500–1	500–1	500–1½
Deerfield Int	OBK-VOR	Direct	2000	A-dn	NA	NA	NA
Lakewood Int	OBK-VOR	Direct	2000				

Radar transitions to final approach course authorized. Aircraft will be released for final approach without procedure turn on final approach inbound 3 miles from OBK-VOR.
Procedure turn N side of crs, 337° Outbnd, 157° Inbnd, 2000′ within 10 mi.
Minimum altitude over facility on final approach crs, 1500′.
Crs and distance, facility to airport, 157°—5.0 mi. Within 5.0 miles after passing OBK-VOR, make immediate left turn climb to 2500′ and proceed to OBK-VOR via OBK VOR R-140.
NOTES: Obtain Glenview NAS or O'Hare weather prior to beginning IFR approach. Cancel IFR flight plan with O'Hare approach control when landing assured.

City, Chicago; State, Ill.; Airport Name, Pal-Waukee; Elev., 642′; Fac. Class., BVORTAC; Ident., OBK; Procedure No. 1, Amdt. 3; Eff. Date, 19 May 62; Sup. Amdt. No. 2; Dated, 29 Oct. 60

Harrisburg LFR	HAR-VOR	Direct	2800	T-d	500–1	500–1	500–1
Harrisburg LOM	HAR-VOR	Direct	2800	T-n	500–2	500–2	500–2
				C-dn	1200–2	1200–2	1200–2
				A-dn	1200–2	1200–2	1200–2

Takeoff minimums of 300–1 authorized for Runways 8–26 only.
Procedure turn S side of crs, 288° Outbnd, 108° Inbnd, 2800′ within 10 mi.
Minimum altitude over facility on final approach crs, 2000′.
Crs and distance, facility to airport, 108°—7.5.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 7.5 miles after passing Harrisburg VOR, climb to 3000′ on HAR-VOR R-115 to Middletown Int.* Hold East 1-minute left turns, inbound crs 295°.
AIR CARRIER NOTE: Landing on Runway 2 authorized only during daylight hours with ceiling of 1500′ or better.
NOTE: Take-off on Runway 20 not authorized.
*Middletown Int: Int R-115 HAR-VOR and R-203 TWC-VOR.

City, Harrisburg; State, Pa.; Airport Name, York State; Elev., 347′; Fac. Class., BVORTAC; Ident., HAR; Procedure No. 1, Amdt. 5; Eff. Date, 19 May 62; Sup. Amdt. No. 4; Dated, 6 Aug. 60

Beacon Int	OBK-VOR	Direct	2500	T-dn	300–1	300–1	200–½
Acorn Int	OBK-VOR	Direct	2500	C-dn	500–1	500–1	500–1½
White Fish Int	OBK-VOR	Direct	2200	A-dn	NA	NA	NA
Lakewood Int	OBK-VOR	Direct	2200				

Radar transition to final approach crs authorized. Aircraft will be released for final approach without procedure turn on final approach course 3 miles from OBK-VOR.
Procedure turn N side of crs, 306° Outbnd, 126° Inbnd, 2200′ within 10 miles. Nonstandard due to O'Hare approach area.
Minimum altitude over facility on final approach crs, 1700′.
Crs and distance, facility to airport, 126°—4.5 mi.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 4.5 miles after passing OBK-VOR, make left turn climb to 2500′ and proceed direct to OBK-VOR. Hold East OBK-VOR on R-091, inbnd crs 271°, 1-minute right turns.
CAUTION: Gas tank 905′ MSL located ¾ mile NE of airport.
NOTES: Obtain Glenview NAS or O'Hare weather prior to beginning IFR approach. Cancel IFR flight plan with O'Hare approach control when landing assured. Aircraft executing missed approach may, after being reidentified, be radar controlled.
Other change: Deletes transition from Morton Int and Spring Lake Int.

City, Northbrook; State, Ill.; Airport Name, Sky Harbor; Elev., 680′; Fac. Class., BVORTAC; Ident., OBK; Procedure No. 1, Amdt. 1; Eff. Date, 19 May 62; Sup. Amdt. No. Orig.; Dated, 26 Nov. 60

VOR STANDARD INSTRUMENT APPROACH PROCEDURE—Continued

Transition				Ceiling and visibility minimums			
From—	To—	Course and distance	Minimum altitude (feet)	Condition	2-engine or less		More than 2-engine, more than 65 knots
					65 knots or less	More than 65 knots	
Barclay Int	TPL-VOR	Direct	2000	T-dn	300-1	300-1	200-½
Gerell Int*	TPL-VOR (Final)	Direct	1600	C-dn	500-1	500-1	500-1½
				S-dn-15	400-1	400-1	400-1
				A-dn#	800-2	800-2	800-2

Procedure turn E side of crs, 339° Outbnd, 159° Inbnd, 2100′ within 10 mi. Beyond 10 mi NA. Nonstandard to avoid restricted area R-6302. All turns to be made on E side of course.
Minimum altitude over facility on final approach crs, 1600′.
Crs and distance, facility to airport, 159°—3.1 mi.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 3.1 miles after passing TPL-VOR, turn left, climb to 2000′ and return to TPL-VOR via R-159.
#Alternate use authorized for air carriers only. No public weather service available.
*Gerell Int: Int R-202 ACT-VOR and R-339 TPL-VOR.

City, Temple; State, Tex.; Airport Name, Draughon-Miller Municipal; Elev., 698′; Fac. Class. BVOR; Ident., TPL; Procedure No. 1, Amdt. 3; Eff. Date, 19 May 62; Sup. Amdt. No. 2; Dated, 17 June 61

4. The terminal very high frequency omnirange (TerVOR) procedures prescribed in § 609.200 are amended to read in part:

TERMINAL VOR STANDARD INSTRUMENT APPROACH PROCEDURE

Bearings, headings, courses and radials are magnetic. Elevations and altitudes are in feet MSL. Ceilings are in feet above airport elevation. Distances are in nautical miles unless otherwise indicated, except visibilities which are in statute miles.
If an instrument approach procedure of the above type is conducted at the below named airport, it shall be in accordance with the following instrument approach procedure, unless an approach is conducted in accordance with a different procedure for such airport authorized by the Administrator of the Federal Aviation Agency. Initial approaches shall be made over specified routes. Minimum altitudes shall correspond with those established for en route operation in the particular area or as set forth below.

Transition				Ceiling and visibility minimums			
From—	To—	Course and distance	Minimum altitude (feet)	Condition	2-engine or less		More than 2-engine, more than 65 knots
					65 knots or less	More than 65 knots	
				T-dn	300-1	300-1	200-½
				C-dn	400-1	500-1	500-1½
				S-dn-32R	400-1	400-1	400-1
				A-dn	800-2	800-2	800-2

Radar transition to final approach course authorized. Aircraft will be released for final approach inbound to Fairview Int* on final approach course to cross Fairview Int* at 2500′.
Procedure turn not authorized.
Minimum altitude over Fairview Int* on final approach crs, 2500′.
Crs and distance, Fairview Int* to Runway 32R, 311°—6.0 mi.
Crs and distance, breakoff point to Runway 32R, 318°—1.0 mi.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 6.0 miles after passing Fairview Int,* make right turn climb to 2500′, proceed to OBK-VOR via OBK R-170.
CAUTION: Takeoffs on Runway 27 when weather is below 2000-3 will intercept ORD-VOR R-250 and climb to 2000′ before proceeding westbound. Takeoffs on Runway 32L when weather is below 2000-3 will intercept ORD-VOR R-306 and climb to 2000′ before proceeding westbound.
NOTE: Aircraft must be equipped to receive VOR/ILS simultaneously unless Fairview Int* is identified by O'Hare Radar.
*Fairview Int: Int ORD-VOR R-131 and API-VOR R-057.

City, Chicago; State, Ill.; Airport Name, O'Hare International; Elev., 666′; Fac. Class., VORTAC; Ident., ORD; Procedure No. Ter VOR-32R, Amdt. 1; Eff. Date, 19 May 62; Sup. Amdt. No. Orig.; Dated, 29 Aug. 59

				T-d	300-1	300-1
				T-n*	600-2	600-2
				C-d	700-1½	700-1½
				C-n*	1000-2	1000-2
				S-d-5	700-1	700-1
				S-n-5*	700-2	700-2
				A-dn	2000-2	2000-2

Procedure turn S side of crs, 240° Outbnd, 060° Inbnd, 2400′ within 10 mi.
Facility on airport.
Minimum altitude over facility on final approach crs, 1200′.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 0.0 mile, make an immediate right turn, climb to 2500′ on HOT-VOR R-240 within 20 miles.
CAUTION: Hills 1470′ MSL 1.3 mi N of airport. Maneuvering not authorized in N quadrant designated by extension of runway centerlines.
NOTE: No reduction in takeoff or landing minimums authorized.
*Night operations require rotating beacon, and all runway and obstruction lights to be operating.

City, Hot Springs; State, Ark.; Airport Name, Memorial Field; Elev., 535′; Fac. Class., VOR; Ident., HOT; Procedure No. TerVOR-5, Amdt. 2; Eff. Date, 19 May 62; Sup. Amdt. No. 1; Dated, 2 Dec. 61

TERMINAL VOR STANDARD INSTRUMENT APPROACH PROCEDURE—Continued

Transition				Ceiling and visibility minimums			
From—	To—	Caurse and distance	Minimum altitude (feet)	Condition	2-engine or less		More than 2-engine, more than 65 knots
					65 knots or less	More than 65 knots	
Orangeville Int	Plainwell Int*	Via PMM R-076 and AZO R-002.	2600	T-dn	300-1	300-1	200-½
				C-dn	700-1	700-1	700-1½
				S-dn-17	700-1	700-1	700-1
Plainwell Int*	Tower Int** (Final)	Direct	2000	A-dn##	NA	NA	NA
BTL-VOR	AZO-VOR	Direct	2400	The following minimums apply for aircraft equipped with dual VORs and Tower Int identified:			
GRR LOM	AZO-VOR	Direct	2900				
PMM-VOR	AZO-VOR	Direct	2400	C-dn	400-1	500-1	500-1½
ELX-VOR	AZO-VOR	Direct	2400	S-dn-17	400-1	400-1	400-1
Cooper Int	AZO-VOR	Direct	2400				
LeRoy Int	AZO-VOR	Direct	2400				
Lawton Int	AZO-VOR	Direct	2400				
Centerville Int	AZO-VOR	Direct	2400				
Marcellus Int#	AZO-VOR	Direct	2400				

Procedure turn W side of crs, 002° Outbnd, 182° Inbnd, 2400′ within 10 miles.
Minimum altitude over facility on final approach crs, 1600′; over Tower Int, 1900′.
Facility on airport.
Crs and distance, Tower Int** to airport, 182°—4.0 mi.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 0.0 mile after passing AZO-VOR, make climbing right turn to 2700′ and proceed to Cooper Int via AZO R-321 or, when directed by ATC, climb to 2700′ on AZO R-182, then reverse course and return to AZO-VOR.
NOTE: All approaches controlled by Battle Creek Approach Control.
*Plainwell Int: Int AZO R-002 and BTL R-305.
**Tower Int: Int AZO R-002 and BTL R-270.
#Marcellus Int: Int AZO-VOR R-230 and PMM-VOR R-148.
##800-2 minimums authorized when AZO tower operational or for Air Carrier with weather reporting service.

City, Kalamazoo; State, Mich.; Airport Name, Kalamazoo Municipal; Elev., 874′; Fac. Class., BVOR; Ident., AZO; Procedure No. TerVOR-17, Amdt. 1; Eff. Date, 19 May 62; Sup. Amdt. No. Orig.; Dated, 6 Jan. 62

Cooper Int	AZO-VOR	Direct	2400	T-dn	300-1	300-1	200-½
BTL-VOR	AZO-VOR	Direct	2400	C-dn	1000-1	1000-1	1000-1½
GRR LOM	AZO-VOR	Direct	2900	S-dn-23	1000-1	1000-1	1000-1
PMM-VOR	AZO-VOR	Direct	2400	A-dn#	NA	NA	NA
ELX-VOR	AZO-VOR	Direct	2400	The following minimums apply to dual VOR equipped aircraft and Comstock Int** identified:			
Leroy Int	AZO-VOR	Direct	2400				
BTL VOR	Gull Int*	Direct	2400	C-dn	400-1	500-1	500-1½
Gull Int*	Comstock Int** (Final)	Direct	1900	S-dn-23	400-1	400-1	400-1
Lawton Int	AZO-VOR	Direct	2400				
Marcellus Int%	AZO-VOR	Direct	2400				
Centerville Int	AZO-VOR	Direct	2400				

Procedure turn W side of crs, 040° Outbnd, 220° Inbnd, 2400′ within 10 miles.
Minimum altitude over facility on final approach crs, 1900′; over Comstock Int**, 1900′.
Facility on airport. Crs and distance, Comstock Int** to airport, 220°—4.0 mi.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 0 mile after passing AZO-VOR, make climbing right turn to 2700′ and proceed to Cooper Int via AZO-VOR R-321 or, when directed by ATC, climb to 2700′ on R-220, reverse course and proceed direct to AZO-VOR.
NOTE: All approaches controlled by Battle Creek Aproach Control.
%Marcellus Int: Int AZO-VOR R-230 and PMM-VOR R-148.
*Gull Int: Int AZO-VOR R-040 and BTL-VOR R-286.
**Comstock Int: Int AZO-VOR R-040 and BTR-VOR R-265.
#800-2 minimums authorized when AZO tower operational or for Air Carrier with weather reporting service.

City, Kalamazoo; State, Mich.; Airport Name, Kalamazoo; Elev., 874′; Fac. Class., BVOR; Ident., AZO; Procedure No. TerVOR-23, Amdt. 3; Eff. Date, 19 May 62; Sup. Amdt. No. 2; Dated, 2 Dec. 61

Centerville Int	AZO-VOR	Direct	2400	T-dn	300-1	300-1	200-½
BTL-VOR	AZO-VOR	Direct	2400	C-dn	1000-1	1000-1	1000-1½
Lawton Int	AZO-VOR	Direct	2400	S-dn-27	1000-1	1000-1	1000-1
GRR LOM	AZO-VOR	Direct	2900	A-dn##	NA	NA	NA
PMM-VOR	AZO-VOR	Direct	2400	The following minimums apply to dual VOR equipped aircraft and Scotts Int** identified:			
ELX-VOR	AZO-VOR	Direct	2400				
Cooper Int	AZO-VOR	Direct	2400	C-dn	500-1	500-1	500-1½
Leroy Int	AZO-VOR	Direct	2400	S-dn-27	400-1	400-1	400-1
Marcellus Int#	AZO-VOR	Direct	2400				
BTL-VOR	Climax Int*	Direct	2100				
Climax Int*	Scotts Int** (Final)	Direct	1900				

Procedure turn N side of crs, 101° Outbnd, 281° Inbnd, 2100′ within 10 mi.
Minimum altitude over facility on final approach crs, 1900′; over Scott Int**, 1900′.
VOR on airport. Crs and distance, Scott Int** to airport, 281°—4.2 mi.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 0.0 mile after passing AZO-VOR, make climbing right turn to 2700′ and proceed to Cooper Int via AZO-VOR R-321 or, when directed by ATC, climb to 2700′ on AZO-VOR R-281, then reverse course and return to AZO-VOR.
NOTE: All approaches controlled by Battle Creek Approach Control.
#Marcellus Int: Int AZO-VOR R-230 and PMM-VOR R-148.
*Climax Int: Int BTL-VOR R-210 and AZO-VOR R-101.
**Scotts Int: Int BTL-VOR R-238 and AZO-VOR R-101.
##800-2 minimums authorized when AZO Tower operational or for Air Carrier with weather reporting service.

City, Kalamazoo; State, Mich.; Airport Name, Kalamazoo Municipal; Elev., 874′; Fac. Class., BVOR; Ident., AZO; Procedure No. TerVOR-27, Amdt. 2; Eff. Date, 19 May 62; Sup. Amdt. No. 1; Dated, 8 Nov. 58

TERMINAL VOR STANDARD INSTRUMENT APPROACH PROCEDURE—Continued

Transition				Ceiling and visibility minimums			
From—	To—	Course and distance	Minimum altitude (feet)	Condition	2-engine or less		More than 2-engine, more than 65 knots
					65 knots or less	More than 65 knots	
Cooper Int	AZO-VOR	Direct	2400	T-dn	300-1	300-1	200-½
Lawton Int	AZO-VOR	Direct	2400	C-dn	500-1	500-1	500-1½
GRR LOM	AZO-VOR	Direct	2900	S-dn-35	500-1	500-1	500-1
PMM-VOR	AZO-VOR	Direct	2400	A-dn##	NA	NA	NA
ELX-VOR	AZO-VOR	Direct	2400	The following minimums apply for dual VOR equipped aircraft and Austin Int indentified:			
Marcellus Int#	AZO-VOR	Direct	2400	C-dn	400-1	500-1	500-1½
BTL-VOR	AZO-VOR	Direct	2400	S-dn-35	400-1	400-1	400-1
Centerville Int	Kimble Int*	Direct	2100				
Kimble Int*	Austin Int** (Final)	Direct	2000				
Leroy Int	AZO-VOR	Direct	2400				

Procedure turn E side of crs, 168° Outbnd, 348° Inbnd, 2000′ within 10 mi.
Minimum altitude over facility on final approach crs, 1400′; over Austin Int**, 2000′.
VOR on airport. Crs and distance, Austin Int** to airport, 348°—4.6 mi.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 0.0 mile after passing AZO-VOR, make climbing left turn to 2700′ and proceed to Cooper Int via AZO-VOR R-321 or, when directed by ATC, climb to 2700′ on AZO-VOR R-348, then reverse course and return to AZO-VOR.
NOTE: All approaches controlled by Battle Creek Approach Control.
#Marcellus Int: Int AZO-VOR R-230 and PMM-VOR R-148.
*Kimble Int: Int AZO-VOR R-348 and BTL-VOR R-218.
**Austin Int: Int AZO-VOR R-348 and BTL-VOR R-233.
##800-2 minimums authorized when AZO Tower operational or for Air Carrier with weather reporting service.

City, Kalamazoo; State, Mich.; Airport Name, Kalamazoo Municipal; Elev., 874′; Fac. Class., BVOR; Ident., AZO; Prodecure No. TerVOR-35, Amdt. 1; Eff. Date, 19 May 62; Sup. Amdt. No. Orig.; Dated, 6 Jan. 62

				T-dn	300-1	300-1	200-½
				C-dn*	400-1	500-1	500-1½
				S-dn-25*	400-1	400-1	400-1
				A-dn	800-2	800-2	800-2

Radar vectoring authorized in accordance with approved patterns.
Procedure turn S side of crs, 063° Outbnd, 243° Inbnd, 1300′ within 10 mi. Beyond 10 mi NA. Nonstandard due Navy traffic north.
Minimum altitude over facility on final approach crs, *500′.
Crs and distance, breakoff point to approach end of Runway 25, 250°—0.3 mi.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 0 mile, turn right and climb to 1700′ on R-308 within 20 miles of airport.
CAUTION: Radio tower 687′ MSL 3.7 mi west of airport.
*If Barton Int** not identified on final, descent below 700′ msl NA.
**Barton Int: Int ORL R-063 and 195° brng to McCoy RBn, or 5.0 mi DME Fix on ORL R-063.

City, Orlando; State, Fla.; Airport Name, Orlando Municipal (Herndon), Elev., 113′; Fac. Class., BVOR; Ident., ORL; Procedure No. TerVOR-25, Amdt. 2; Eff. Date, 19 May 62; Sup. Amdt. No. 1; Dated, 20 May 61

				T-dn	300-1	300-1	200-½
				C-dn *	400-1	500-1	500-1½
				S-dn-31 *	400-1	400-1	400-1
				A-dn	800-2	800-2	800-2

Radar vectoring authorized in accordance with approved patterns.
Procedure, turn N side of crs, 125° Outbnd, 305° Inbnd, 1300′ within 10 miles.
Minimum altitude over facility on final approach crs, *500.
Crs and distance, breakoff point to app end runway 31, 310°—0.4.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 0 mile, climb to 1700′ on R-308 within 20 miles of airport.
CAUTION: Radio tower 687′ MSL 3.7 miles west of airport.
*If Wilcox Int** not identified on final, descent below 700′ msl NA.
**Wilcox Int: Int ORL-VOR R-125 and 195° brng to McCoy RBn, or 4.0 mi DME Fix on ORL R-125.

City, Orlando; State, Fla.; Airport Name, Orlando Municipal (Herndon); Elev., 113′; Fac. Class., BVOR; Ident., ORL; Procedure No. TerVOR-31, Amdt. 4; Eff. Date, 19 May 62; Sup. Amdt. No. 3; Dated, 20 May 61

5. The instrument landing system procedures prescribed in § 609.400 are amended to read in part:

ILS STANDARD INSTRUMENT APPROACH PROCEDURE

Bearings, headings, courses and radials are magnetic. Elevations and altitudes are in feet MSL. Ceilings are in feet above airport elevation. Distances are in nautical miles unless otherwise indicated, except visibilities which are in statute miles.
If an instrument approach procedure of the above type is conducted at the below named airport, it shall be in accordance with the following instrument approach procedure, unless an approach is conducted in accordance with a different procedure for such airport authorized by the Administrator of the Federal Aviation Agency. Initial approaches shall be made over specified routes. Minimum altitudes shall correspond with those established for en route operation in the particular area or as set forth below.

Transition				Ceiling and visibility minimums			
From—	To—	Course and distance	Minimum altitude (feet)	Condition	2-engine or less		More than 2-engine, more than 65 knots
					65 knots or less	More than 65 knots	
AMA-VOR	LOM	Direct	5000	T-dn	300-1	300-1	200-½
AV-LFR	LOM	Direct	5000	C-dn	500-1	500-1	500-1½
Borger Int	LOM	Direct	5000	S-dn-03	200-½	200-½	200-½
Canyon Int	LOM	Direct	5000	A-dn	600-2	600-2	600-2
Claude Int	LOM	Direct	5000				
Finley	LOM	Direct	5000				
Palo Duro Int	LOM	Direct	5000				
Plant Int	LOM	Direct	5300				
Sam Int	LOM	Direct	5300				
Tower Int	LOM	Direct	5300				
West Side Int	LOM	Direct	5000				

Procedure turn S side of crs, 215° Outbnd, 035° Inbnd, 5000′ within 10 mi.
Altitude of glide slope and distance to approach end of runway at OM, 5000′—5.0 mi; at MM, 3815′—0.5 mi.
Minimum altitude at glide slope interception inbnd on final, 5000′.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished climb to 4900′ on NE crs ILS within 20 miles or, when directed by ATC, (1) turn right, climb to 4700′ and intercept R-076 AMA-VOR within 20 miles or (2) turn left, climb to 5300′ on R-307 AMA-VOR within 20 miles.
CAUTION: Towers 3994′ msl 3.4 mi SW; 3886′ msl 2.1 mi SW; 3885′ msl 2.7 mi SW of airport. 3764′ msl grain elevator located adjacent to SW boundary of airport.

City, Amarillo; State, Tex.; Airport Name, Amarillo AFB-Munipical; Elev., 3604′; Fac. Class., ILS; Ident., I-AMA; Procedure No. ILS-3, Amdt. 4; Eff. Date, 19 May 62; Sup. Amdt. No. 3; Dated, 15 Apr. 61

ILS STANDARD INSTRUMENT APPROACH PROCEDURE—Continued

Transition				Ceiling and visibility minimums			
From—	To—	Course and distance	Minimum altitude (feet)	Condition	2-engine or less		More than 2-engine, more than 65 knots
					65 knots or less	More than 65 knots	
AV-LFR	AMA-VOR	Direct	5000	T-dn	300-1	300-1	200-½
AM LOM	AMA-VOR	Direct	5000	C-dn	500-1	500-1	500-1½
Borger Int	AMA-VOR	Direct	5000	S-dn-21	300-1	300-1	300-1
				A-dn	800-2	800-2	800-2

Procedure turn S side of crs, 035° Outbnd, 215° Inbnd, 5000′ within 10 mi. (Nonstandard due ATC requirements.)
No glide slope.
Minimum altitude over AMA-VOR* R-125 on final approach crs, 4600′.
Crs and distance, AMA-VOR* R-125 to airport, 215°—4.5 mi.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 4.5 miles, climb to 5500′ on SW crs of ILS within 10 miles or, when directed by ATC, turn left and intercept R-076 AMA-VOR, climbing to 4700′ within 10 miles.
CAUTION: 3764′ msl grain elevator located adjacent to SW boundary of airport.
*AMA-VOR lies 1000′ NW of localizer course. Positive station passage required for descent below 4600′.

City, Amarillo; State, Tex.; Airport Name, Amarillo AFB-Municipal; Elev., 3604′; Fac. Class., ILS; Ident., I-AMA; Procedure No. ILS-21, Amdt. 2; Eff. Date, 19 May 62; Sup. Amdt. No. 1; Dated, 22 Apr. 61

Bismarck LFR	LOM	Direct	3800	T-dn	300-1	300-1	*200-½
Bismarck VOR	LOM	Direct	3800	C-d	400-1	500-1	500-1½
Int W crs BK-LFR and SE crs ILS	LOM	Direct	3800	C-n	400-1½	500-1½	500-1½
Int R-117 BIS-VOR and 252° brng to LOM	LOM	Direct	3800	S-dn-30	200-½	200-½	200-½
				A-dn	600-2	600-2	600-2

Procedure turn E side SE crs, 126° Outbnd, 306° Inbnd, 3800′ within 10 mi.
Minimum altitude at glide slope int inbnd, 2800′.
Altitude of glide slope and distance to approach end of runway at OM 2770—3.7, at MM 1868—0.6.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished climb to 3800′ on W crs BK-LFR or to 4000′ on R-262 BIS-VOR within 20 miles or, when directed by ATC, make right climbing turn to 4000′ on R-336 BIS-VOR within 20 miles.
CAUTION: Radio towers: 1756′ 0.5 mile S of airport, 2143′ 2.4 mi N, 1848′ 3.0 mi W, 2317′ 8.1 mi NW and 2413′ 9.2 mi NE.
NOTE: Final approach from holding pattern at LOM not authorized. Procedure turn required.
*300-1 required on Runways 2, 20, 35, and 17.

City, Bismarck; State, N. Dak.; Airport Name, Municipal; Elev., 1653; Fac. Class., ILS; Ident., I-BIS; Procedure No. ILS-30, Amdt. 11; Eff. Date, 19 May 62; Sup. Amdt. No. 10; Dated, 24 Feb. 62

				T-dn	300-1	300-1	200-½
				C-dn	400-1	500-1	500-1½
				S-dn-32R	400-1	400-1	400-1
				A-dn	800-2	800-2	800-2

Radar transition to final approach course authorized. Aircraft will be released for final approach inbound to Indian Int* on final approach course to cross Indian Int at 2500′.
Procedure turn NA.
Minimum altitude over Indian Int* on final approach crs, 2500′.
Crs and distance, Indian Int* to airport, 318°—6.2 mi.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 6.2 miles after passing Indian Int,* make right turn climb to 2500′ and proceed to OBK-VOR via OBK R-170.
NOTE: Functioning ILS and VOR receivers required unless Indian Int* is identified by O'Hare Radar. No glide slope, markers, compass locators or approach lights. 4° localizer course.
CAUTION: Takeoffs on Runway 27 when weather is below 2000-3 will intercept ORD-VOR R-250 and climb to 2000′ before proceeding westbound. Takeoffs on Runway 32L when weather is below 2000-3 will intercept ORD-VOR R-306 and climb to 2000′ before proceeding westbound.
*Indian Int: Int SW crs OHA ILS and API-VOR R-058.

City, Chicago; State, Ill.; Airport Name, O'Hare International; Elev., 667′; Fac. Class., ILS; Ident., I-OHA; Procedure No. ILS-32R, Amdt. 1; Eff. Date, 19 May 62; Sup. Amdt. No. Orig.; Dated, 10 July 60

				T-dn	300-1	300-1	200-½
				C-dn	400-1	500-1	500-1½
				S-dn-32L	400-1	400-1	400-1
				A-dn	800-2	800-2	800-2

Radar transition to final approach course authorized. Aircraft will be released for final approach inbnd to River Grove Int* on final approach course to cross River Grove Int* at 2500′.
Procedure turn NA.
Minimum altitude over River Grove Int* on final approach crs, 2500′.
Crs and distance, River Grove Int* to airport, 318°—6.2 mi.
If visual contact not established upon descent to authorized landing minimums of if landing not accomplished within 6.2 miles after passing River Grove Int*, make right turn climb to 2500′ and proceed to OBK-VOR via OBK R-170.
NOTES: Functioning ILS and VOR receiver required unless River Grove Int* is identified by O'Hare Radar. No glide slope, markers, compass locators or approach lights. 4° localizer course, VGSI installed.
CAUTION: Takeoffs on Runway 27 when weather is below 2000-3 will intercept ORD-VOR R-250 and climb to 2000′ before proceeding westbound. Takeoffs on Runway 32L when weather is below 2000-3 will intercept ORD-VOR R-306 and climb to 2000′ before proceeding westbound.
*River Grove Int: Int SW crs ORD ILS and API-VOR R-060.

City, Chicago; State, Ill.; Airport Name, O'Hare International; Elev., 667 ; Fac. Class., ILS; Ident., I-ORD.; Procedure No. ILS-32L, Amdt. 2; Eff. Date, 19 May 62; Sup. Amdt. No. 1; Dated, 19 Nov. 60

CLE LFR	Stadium RBn	Direct	3000	T-dn	300-1	300-1	200-½
Vermillion Int	Stadium RBn	(@)	3000	C-dn#	400-1	500-1	500-1½
Sharon Int	Stadium RBn	(##)	3000	S-dn-23R#	400-1	400-1	400-1
Mentor Int	Stadium RBn	Direct	3000	A-dn	800-2	800-2	800-2

Radar transitions and vectoring authorized in accordance with approved radar patterns. When used in lieu of procedure turn, alignment on final approach heading within 10 miles of final approach fix is required.
Procedure turn N side NE crs, 054° Outbnd, 234° Inbnd, 3000′ within 10 miles of Stadium RBn.
No glide slope or markers. Minimum altitude over Stadium RBn inbnd final, 3000′. Minimum altitude 1500′ after RBn inbnd final until 4-mile radar fix received.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 4.0 mi after passing radar fix or 6.9 mi after RBn, make right climbing turn to 3000′ direct to CLE VOR.
CAUTION: TV towers approximately 1970′ approximately 6 miles ESE of airport.
NOTE: Four-mile radar fix not normally provided by ATC unless weather is 700-1½ or below.
#When radar fix not available, 700-1½ minimums will apply.
*Descend to landing minimum after passing 4-mile radar fix.
@This transition is via CLE LFR.
##This transition is via STG VOR R-183 and the STG VOR R-036.

City, Cleveland; State, Ohio; Airport Name, Cleveland-Hopkins; Elev., 789′; Fac. Class., ILS; Ident., I-CLE; Procedure No. ILS-23R, Amdt. 11; Eff. Date, 19 May 62; Sup. Amdt. No. 10; Dated, 14 Dec. 61

ILS STANDARD INSTRUMENT APPROACH PROCEDURE—Continued

Transition				Ceiling and visibility minimums			
From—	To—	Course and distance	Minimum altitude (feet)	Condition	2-engine or less		More than 2-engine, more than 65 knots
					65 knots or less	More than 65 knots	
Cincinnati VOR	LOM	Direct	2000	T-dn	300-1	300-1	200-½
New Baltimore Int	LOM	Direct	2300	C-dn	400-1	500-1	500-1⅛
LUK LFR	LOM	Direct	2400	S-dn-36#*	200-½	200-½	200-½
Dry Ridge Int	Union Int	Direct	2200	A-dn	600-2	600-2	600-2
Grants Lick Int	Union Int	Direct	2000				
Union Int	LOM	Direct	2000				

Radar transitions and vectoring authorized in accordance with approved radar patterns.
Procedure turn E side of crs, 180° Outbnd, 360° Inbnd, 2000′ within 10 mi.
Minimum altitude at glide slope int inbnd, 2000′.
Altitude of glide slope and distance to approach end of runway at OM, 1831′—3.4 mi; at MM, 1069′—0.5 mi.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished, climb to 2300′ on crs 360° to the New Baltimore Int. Hold North 1-minute right turns, 186° Inbnd, 006° Outbnd.
CAUTION: Glide slope# point of touchdown approximately 1750′ in from approach end of runway.
*400-¾ required with glide slope inoperative.

City, Covington; State, Ky.; Airport Name, Greater Cincinnati; Elev., 890′; Fac. Class., ILS; Ident., I-CVG; Procedure No. ILS-36, Amdt. 14; Eff. Date, 19 May 62; Sup. Amdt. No. 13; Dated, 28 Apr. 62

Harrisburg LFR	LOM	Direct	2700	T-d	500-1	500-1	500-1
Harrisburg VOR	LOM	Direct	2700	T-n	500-2	500-2	500-2
				S-d-8	600-1½	600-1½	600-1½
				S-n-8	600-2	600-2	600-2
				C-dn	1000-2	1000-2	1000-2
				A-dn	1000-2	1000-2	1000-2

Procedure turn N side of W crs, 259° Outbnd, 079° Inbnd, 2700′ within 10 miles.
Minimum altitude over LOM 2700′. No glide slope. Distance to appr end of runway at OM 7.1, at MM 1.8.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 7.1 miles after passing LOM, climb to 3000′ on Harrisburg VOR R-115 to Middletown Int*. Hold East 1-minute left turns, inbnd crs 295°.
AIR CARRIER NOTES: Landing on Runway 2 authorized only during daylight hrs with ceiling 1500′ or better.
NOTES: 1. Takeoff minimums of 300-1 authorized for Runways 8-26 only. 2. Takeoff on Runway 20 NA. 3. ADF approach NA.
CAUTION: Circling minimums do not provide standard clearance over 1136′ ridge and tower 1.6 mi S of airport. Nonstandard instrument landing system. Approaches not authorized with any commissioned component inoperative. Course vagaries and/or flag indications may be encountered below 6000′ beyond 10 miles of localizer antenna when more than 15 degrees south of the localizer course.
*Int R-115 HAR-VOR and R-203 TWC-VOR.

City, Harrisburg; State, Pa.; Airport Name, York State; Elev., 347′; Fac. Class., ILS; Ident., I-HA ; Procedure No. ILS-8, Amdt. 7; Eff. Date, 19 May 62; Sup. Amdt. No. 6; Dated, 15 July 61

SDF RBn	LOM	Direct	2200	T-dn	300-1	300-1	200-½
LOU VOR	LOM	Direct	2200	C-dn	600-1	600-1	600-1½
Jeffersonville Int	LOM	Direct	2200	S-dn-29*	300-¾	300-¾	300-¾
				A-dn	600-2	600-2	600-2

Radar vectoring authorized in accordance with approved radar patterns.
Procedure turn N side of crs 110° Outbnd, 290° Inbnd, 2200′ within 10 miles of LOM.
Minimum altitude at glide slope interception inbnd, 2200′.
Altitude of glide slope and distance to approach end of Runway 29 at OM, 2141′—5.0 mi; at MM, 714′—0.55 mi.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 5.0 miles after passing LK LOM, climb to 2600′ on heading 270°, intercept R-283 LOU-VOR and proceed to Corydon Int. Hold West 1-minute, left turns.
NOTE: Approach light system nonstandard—not a component of ILS. Approach lights operated by the city of Louisville, Ky. The Federal Government disclaims responsibility for non-Federal navigation facilities.
*400-¾ with glide slope inoperative.

City, Louisville; State, Ky.; Airport Name, Standiford Field; Elev., 497′; Fac. Class., ILS; Ident., I-LKS; Procedure No. ILS-29, Amdt. 1; Eff. Date, 19 May 62; Sup. Amdt. No. Orig.; Dated, 28 Apr. 62

MIA-VOR	LOM	Direct	1300	T-dn	300-1	300-1	200-½
BSY-VOR	LOM	Direct	1400	C-dn	500-1	500-1	500-1½
MIA RBn	LOM	Direct	1300	S-dn-9L*	200-½	200-½	200-½
				A-dn	600-2	600-2	600-2

Radar vectoring authorized in accordance with approved patterns.
Procedure turn N side of crs, 266° Outbnd, 086° Inbnd, 1300′ within 10 mi.
Minimum altitude at glide slope interception inbnd, 1300′.
Altitude of glide slope and distance to approach end of Runway at OM, 1228′—4.4 mi; at MM, 192′—0.6 mi.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished, climb to 1400′ on E crs ILS within 20 miles or climb to 1400′ on crs of 086° from LOM within 20 mi.
*400-¾ required when glide slope inoperative.

City, Miami; State, Fla.; Airport Name, International; Elev., 9′; Fac. Class., ILS; Ident., I-MIA; Procedure No. ILS-9L, Amdt. Orig.; Eff. Date, 19 May 62

Salinas VOR	LMM	Direct	4000	T-dn	300-1	300-1	300-¾
Shark Int	Int BSR R-308 and W crs ILS	Direct	3700	C-d	700-2	700-2	700-2
Int BSR R-308 and W crs ILS	LOM (Final)	Direct	1700	C-n	700-3	700-3	700-3
Carmel Int	LOM	Direct	4000	S-dn-10#	300-¾	300-¾	300-¾
				A-d	700-2	700-2	700-2
				A-n	700-3	700-3	700-3

Procedure turn S side of W crs, 276° Outbnd, 096° Inbnd, 1700′ within 10 mi. Beyond 10 mi NA.
Mimimum altitude at glide slope int inbnd, 1700′.
Altitude of glide slope and distance to approach end of runway at LOM, 1630′—4.1 mi; at MM, 370′—0.5 mi.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 0.0 mile after passing LMM make immediate left climbing turn and climb to 1800′ to LOM.
CAUTION: Circling minimums do not provide standard clearance over terrain south of airport. All maneuvering for circling approaches must be accomplished north of localizer course.
AIR CARRIER NOTE: No reductions in visibility minimums authorized, except for takeoff on Runway 28.
#400-1 required with any component of the ILS inoperative except that 700-1½ required with glide slope inoperative.

City, Monterey; State, Calif.; Airport Name, Monterey Peninsula; Elev., 220′; Fac. Class., ILS; Ident., I-MRY; Procedure No. ILS-10, Amdt. 8; Eff. Date, 19 May 62; Sup. Amdt. No. 7; Dated, 7 Jan 61

ILS STANDARD INSTRUMENT APPROACH PROCEDURE—Continued

Transition				Ceiling and visibility minimums			
From—	To—	Course and distance	Minimum altitude (feet)	Condition	2-engine or less		More than 2-engine, more than 65 knots
					65 knots or less	More than 65 knots	
ORL-VOR	LOM	Direct	1700	T-dn	300-1	300-1	200-½
				C-dn	#400-1	500-1	500-1½
				S-dn-7*	200-½	200-½	200-½
				A-dn	600-2	600-2	600-2

Radar vectoring authorized in accordance with approved patterns.
Procedure turn S side of crs, 246° Outbnd, 066° Inbnd, 1700′ within 10 mi.
Minimum altitude at glide slope interception inbnd, 1700′.
Altitude of glide slope and distance to approach end of runway at OM, 1700′—5.4 mi; at MM, 317′—0.6 mi.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished, turn right, climb to 1300′ on R-098 ORL-VOR within 20 miles.
*500-¾ required with glide slope inoperative.
#500-1 required with glide slope inoperative.

City, Orlando; State, Fla.; Airport Name, Orlando Municipal (Herndon); Elev., 113′; Fac. Class., ILS; Ident., I-ORL; Procedure No. ILS-7, Amdt. Orig.; Eff. Date, 19 May 62

Flat Rock VOR via R-120	Bellwood Int	Direct	#1700	T-dn	300-1	300-1	200-½
Flat Rock VOR	LOM	Direct	2000	C-dn	400-1	500-1	500-1½
Richmond LFR	LOM	Direct	1500	S-dn-6	*200-½	*200-½	*200-½
Int N crs Richmond LFR and SW crs ILS	LOM	Direct	1500	A-dn	600-2	600-2	600-2
Manakin Rbn	LOM	Direct	2000				
Petersburg Int	LOM	Direct	1500				

Procedure turn S side of crs, 243° Outbnd, 063° Inbnd, 1500′ within 10 mi.
Minimum altitude at glide slope Int inbnd, 1500′.
Altitude of glide slope and distance to appr end of runway at OM 1370—3.8; at MM 370—0.6.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 3.8 miles after passing LOM, climb to 1500′ on course 063° within 10 miles of LOM or, when directed by ATC, make a left climbing turn to 1500′ on N crs Richmond LFR within 10 miles.
#After interception of localizer crs inbnd, descent on glide slope to cross outer marker at 1370′ is authorized.
*400-¾ required with glide slope inoperative.

City, Richmond; State, Va.; Airport Name, Byrd Field; Elev., 167′; Fac. Class., ILS; Ident., I-RIC; Procedure No. ILS-6, Amdt. 12; Eff. Date, 19 May 62; Sup. Amdt. No. 11; Dated, 14 Apr. 62

Long Lake Int	Elkhart Int	Via GSH R-018 and E crs ILS.	2200	T-dn	300-1	300-1	200-½
				C-dn	*400-1	500-1	500-1½
North Liberty Int	LOM	Direct	3000	S-dn-27*	200-½	200-½	200-½
South Bend LFR	LOM	Direct	2200	A-dn	600-2	600-2	600-2
South Bend VOR	LOM	Direct	2200				
Bristol Int	Elkhart Int#	Via E crs ILS	2200				
Goshen LFR	Elkhart Int#	Via 144° brng to GH-LFR.	2200				
Elkhart Int#	LOM (Final)	Direct	2000				
Goshen VOR	E crs loc	Via R-345 GSH-VOR.	2400				
Int GSH R-345 and E crs loc	LOM (Final)	Direct	2000				

Procedure turn N side of final approach crs, 089° Outbnd, 269° Inbnd, 2200′ within 10 miles.
Minimum altitude at glide slope int inbnd, 2000′.
Altitude of glide slope and distance to approach end of runway at OM, 1900′—3.8; at MM, 975—0.6.
If visual contact not established upon decsent to authorized landing minimums or if landing not accomplished make climbing right turn to 2300′ and proceed direct to the SBN-VOR or, when directed by ATC, climb to 2200′ and proceed direct to the SN LFR.
CAUTION: 2019′ msl tower 5.6 mi S of LOM.
*500-1 required when glide slope inoperative.
#Elkhart Int: Int E crs SBN ILS & R-36 GSH-VOR or 144* brng to GH-LFR.

City, South Bend; State, Ind.; Airport Name, St. Joseph County; Elev., 778′; Fac. Class, ILS; Ident., I-SBN; Procedure No. ILS-27, Amdt. 16; Eff. Date, 19 May 62; Sup. Amdt. No. 15; Dated, 5 May 62

TPA-LFR	Dawson Int#	Direct	1500	T-dn	300-1	300-1	*200-½
PIE-VOR	Dawson Int#	Direct	1500	C-dn	500-1	500-1	500-1½
Int S crs ILS and SW crs LFR or PIE-VOR R-121.	Dawson Int# (Final)	Direct	1500	S-dn-36	400-1	400-1	400-1
				A-dn	800-2	800-2	800-2
Int N crs ILS and PIE-VOR R-038	Dawson Int#	Direct	1500				
All directions	Radar Site	Within 25 mi	1500				

Radar control must provide 1000′ clearance when within 3 mi or 500′ clearance when between 3-5 mi of radio antenna towers 861′ MSL 12 mi SE and 1135′ MSL 16 mi SE of airport.
Procedure turn E side S crs, 181° Outbnd, 001° Inbnd, 1500′ within 10 mi.
No glide slope. No markers. Altitude over Dawson Int# on final, 1500′.
Crs and distance, Dawson Int# to Runway 36, 001°—4.5 mi.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 4.5 miles, climb to 1200′ on N crs of ILS within 20 miles.
CAUTION: 210′ radio tower 1 mile WSW of airport.
AIR CARRIER NOTES: 200—½ absolute minimum for takeoff Runway 27. Runway 14-32 closed to all air carrier operations.
*1 mile visibility required all operations on Runway 14-32.
#Int S crs TPA ILS and PIE-VOR R-097 or 271° brng from TPA-LFR.

City, Tampa; State, Fla.; Airport Name, International; Elev., 27′; Fac. Class., ILS; Ident., I-TPA; Procedure No. ILS-36, Amdt. 6; Eff. Date, 19 May 62; Sup. Amdt. No. 5; Dated, 3 June 61

PBI-VOR	LOM	Direct	1500	T-dn	300-1	300-1	200-½
PBI-LFR	LOM	Direct	1500	C-dn	*400-1	500-1	500-1½
Monet Int	LOM	Direct	1500	S-dn-9*	300-¾	300-¾	300-¾
Andrews Int	LOM	Direct	1500	A-dn	600-2	600-2	600-2

Procedure turn S side of crs, 273° Outbnd, 093° Inbnd, 1600′ within 10 mi.
Minimum altitude at glide slope interception inbnd, 1600′.
Altitude of glide slope and distance to approach end of runway at OM, 1560′—5.6 mi; at MM, 217′—0.6 mi.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished climb to 1500′ on E crs of ILS within 20 miles.
*No approach lights. 500-¾ required when glide slope inoperative.

City, West Palm Beach; State, Fla.; Airport Name, Palm Beach International; Elev., 19′; Fac. Class., ILS; Ident., I-PBI; Procedure No. ILS-9, Amdt. Orig.; Eff. Date, 19 May 62, or on com. of facility

6. The radar procedures prescribed in § 609.500 are amended to read in part:

RADAR STANDARD INSTRUMENT APPROACH PROCEDURE

Bearings, headings, courses and radials are magnetic. Elevations and altitudes are in feet, MSL. Ceilings are in feet above airport elevation. Distances are in nautical miles unless otherwise indicated, except visibilities which are in statute miles.

If a radar instrument approach is conducted at the below named airport, it shall be in accordance with the following instrument procedure, unless an approach is conducted in accordance with a different procedure for such airport authorized by the Administrator of the Federal Aviation Agency. Initial approaches shall be made over specified routes. Minimum altitude(s) shall correspond with those established for en route operation in the particular area or as set forth below. Positive identification must be established with the radar controller. From initial contact with radar to final authorized landing minimums, the instructions of the radar controller are mandatory except when (A) visual contact is established on final approach at or before descent to the authorized landing minimums, or (B) at pilot's discretion if it appears desirable to discontinue the approach, except when the radar controller may direct otherwise prior to final approach, a missed approach shall be executed as provided below when (A) communication on final approach is lost for more than 5 seconds during a precision approach, or for more than 30 seconds during a surveillance approach; (B) directed by radar controller; (C) visual contact is not established upon descent to authorized landing minimums; or (D) if landing is not accomplished.

Transition				Ceiling and visibility minimums			
From—	To—	Course and distance	Minimun altitude (feet)	Condition	2-engine or less		More than 2-engine, more than 65 knots
					65 knots or less	More than 65 knots	
All directions		10–20 mi	2500	Surveillance approach			
145°	322°	0–10 mi	2500				
322°	145°	0–10 mi	2000	T–dn	300–1	300–1	200–½
				C–dn*	500–1	500–1	500–1½
				S–dn*	400–1	400–1	400–1
				A–dn	800–2	800–2	800–2

All bearings are from radar site with sector azimuths progressing clockwise.

If visual contact not established upon descent to authorized landing minimums or if landing not accomplished make immediate left or right turn, climb to 2500'; proceed to OBK–VOR via ORD–VOR R–030 and OBK–VOR R–135 or, when directed by ATC, make immediate left or right turn climb to 2500' and proceed to IA LOM, then direct to OBK–VOR.

NOTE: Right or left turn as appropriate for the direction of the approach.

CAUTION: Takeoffs on Runway 27 when weather is below 2000–3 will intercept ORD–VOR R–250 and climb to 2000' before proceeding westbound. Takeoffs on Runway 32L, when weather is below 2000–3, will intercept ORD–VOR R–306 and climb to 2000' before proceeding westbound.

*Runways 14L and R, 32L and R, 27, 22#.

#Do not descend below 1200' until radar advises passing 926' tower 4.2 miles from end of runway 22.

City, Chicago; State, Ill.; Airport Name, O'Hare International; Elev., 666'; Fac. Class., O'Hare; Ident., Radar; Procedure No. 1, Amdt. 3; Eff. Date, 19 May 62; Sup. Amdt. No. 2; Dated, 21 Feb. 59

Radar terminal area maneuvering sectors and altitudes														Ceiling and visibility minimums			
From	To	Dist.	Alt.	Dist.	Alt.	Dist.	Alt.	Dist.	Alt.	Dist.	Alt.	Dist.	Alt.	Condition	2-engine or less		More than 2-engine, more than 65 knots
															65 knots or less	More than 65 knots	
110	195	20 mi	5600	15 mi	4000									Surveillance approach			
195	035	20 mi	3000	15 mi	2700												
060	110	20 mi	3000	15 mi	2400									T–d–All*@	500–1	500–1	500–1
														T–n–All*@	500–2	500–2	500–2
														C–dn–8/30%	1100–2	1100–2	1100–2
														C–dn–26%	1000–2	1000–2	1000–2
														S–dn–8/30	1100–2	1100–2	1100–2
														S–dn–26	600–1½	600–1½	600–1½
														A–dn–8/30	1100–2	1100–2	1100–2
														A–dn–26	1000–2	1000–2	1000–2

All sectors within 10 miles 2400.#

All bearings are from the radar site with sector azimuths progressing clockwise.

If visual contact not established upon descent to authorized landing minimums or if landing not accomplished—

Runway 30: Make climbing left turn to 3000', proceed direct to HAR–VOR. Hold west HAR–VOR 1-minute right turns inbound course 101°.

Runway 26: Make climbing right turn to 3000', proceed direct to HAR–VOR. Hold west HAR–VOR 1-minute right turns inbound course 101°.

Runway 8: Climb to 3000' on HAR–VOR R–115 to Middletown Int#. Hold east 1-minute left turns inbound crs 295°.

NOTE: Landing on Runway 2 authorized only during daylight hours with ceiling 1500' or better.

*Takeoff minimums of 300–1 authorized for Runways 8–26 only.

@Takeoff on Runway 20 NA.

#Radar control will provide 1000' vertical clearance within a 3-mile radius or 500' vertical clearance within a 3–5 mile (inclusive) radius of TV towers 1589' msl 7.5 mi NW and 1517' msl 7.8 mi N of airport.

%Circling minimums do not provide standard clearance over 1136' ridge and tower 1.6 mi south of airport.

#Middletown Int: Int R–115 HAR–VOR and R–203 TWC–VOR.

City, Harrisburg; State, Pa.; Airport Name, York State; Elev., 347'; Fac. Class., Harrisburg; Ident., Radar; Procedure No. 1, Amdt. 1; Eff. Date, 19 May 62; Sup. Amdt. No. Orig.; Dated, 14 Apr. 62

These procedures shall become effective on the dates specified therein.

(Secs. 313(a), 307(c), 72 Stat. 752, 749; 49 U.S.C. 1354(a), 1348(c))

Issued in Washington, D.C., on April 12, 1962.

G. S. MOORE,
Acting Director, Flight Standards Service.

[F.R. Doc. 62–3728; Filed, May 16, 1962; 8:45 a.m.]

[Reg. Docket No. 1172; Amdt. 269]

PART 609—STANDARD INSTRUMENT APPROACH PROCEDURES

Miscellaneous Amendments

The amendments to standard instrument approach procedures contained herein are being adopted to become effective when indicated in order to promote safety. The revised procedures supersede the existing procedures of the same classification now in effect for the airports specified therein. For the convenience of the users, the revised procedures specify the complete procedure and indicate the changes to the existing procedures.

As a situation exists which demands immediate action in the interests of safety in air commerce, I find that compliance with the notice, procedure and effective date provisions of section 4 of the Administrative Procedure Act would be contrary to the public interest and is therefore not required.

Pursuant to the authority delegated to me by the Administrator (24 F.R. 5662), Part 609 is amended as follows:

1. The low or medium frequency range procedures prescribed in § 609.100(a) are amended to read in part:

LFR STANDARD INSTRUMENT APPROACH PROCEDURE

Bearings, headings, courses and radials are magnetic. Elevations and altitudes are in feet MSL. Ceilings are in feet above airport elevation. Distances are in nautical miles unless otherwise indicated, except visibilities which are in statute miles.

If an instrument approach procedure of the above type is conducted at the below named airport, it shall be in accordance with the following instrument approach procedure, unless an approach is conducted in accordance with a different procedure for such airport authorized by the Administrator of the Federal Aviation Agency. Initial approaches shall be made over specified routes. Minimum altitudes shall correspond with those established for en route operation in the particular area or as set forth below.

Transition				Ceiling and visibility minimums			
From—	To—	Course and distance	Minimum altitude (feet)	Condition	2-engine or less		More than 2-engine, more than 65 knots
					65 knots or less	More than 65 knots	
Huron VOR	HK-LFR	Direct	2500	T-dn	300–1	300–1	200–½
				C-d	500–1	500–1	500–1½
				C-n	500–1½	500–1½	500–1½
				A-dn	800–2	800–2	800–2

Procedure turn S side of crs, 225° Outbnd, 045° Inbnd, 2500′ within 10 mi.
Minimum altitude over facility on final approach crs, 2000′.
Crs and distance, facility to airport, 041°—2.4 mi.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 2.4 miles, climb to 3000′ on NE crs of LFR within 20 miles.
CAUTION: Radio tower 1484′ MSL 1¼ mi S of airport.

City, Huron; State, S. Dak.; Airport Name, Howes Municipal; Elev., 1287′; Fac. Class., BMRLZ; Ident., HK; Procedure No. 1, Amdt. 11; Eff. Date, 26 May 62; Sup. Amdt. No. 10; Dated, 12 Mar. 60

2. The automatic direction finding procedures prescribed in § 609.100(b) are amended to read in part:

ADF STANDARD INSTRUMENT APPROACH PROCEDURE

Bearings, headings, courses and radials are magnetic. Elevations and altitudes are in feet MSL. Ceilings are in feet above airport elevation. Distances are in nautical miles unless otherwise indicated, except visibilities which are in statute miles.

If an instrument approach procedure of the above type is conducted at the below named airport, it shall be in accordance with the following instrument approach procedure, unless an approach is conducted in accordance with a different procedure for such airport authorized by the Administrator of the Federal Aviation Agency. Initial approaches shall be made over specified routes. Minimum altitudes shall correspond with those established for en route operation in the particular area or as set forth below.

Transition				Ceiling and visibility minimums			
From—	To—	Course and distance	Minimum altitude (feet)	Condition	2-engine or less		More than 2-engine, more than 65 knots
					65 knots or less	More than 65 knots	
				T-dn	300–1		
				C-dn	700–1		
				S-dn-16	700–1		
				A-dn	1000–2		

Procedure turn W side of crs, 341° Outbnd, 161° Inbnd, 1800′ within 10 mi.
Minimum altitude over facility on final approach crs, 1000′.
Crs and distance, facility to airport, 161°—3.0 mi.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 3.2 miles, make a left climbing turn to 1800′, returning to the LOM. Hold West 1-minute right turns, inbound crs, 085°.

City, Bridgeport; State, N.J.; Airport Name, Bridgeport; Elev., 23′; Fac. Class., LOM; Ident., PH; Procedure No. 1, Amdt. 2; Eff. Date, 26 May 62; Sup. Amdt. No. 1; Dated, 5 Aug. 61

CRP VOR	LOM	Direct	1400	T-dn	300–1	300–1	200–½
CP RBn	LOM	Direct	1400	C-dn*	400–1	500–1	500–1½
Robstown Int	LOM	Direct	1800	S-dn-13*	400–1	400–1	400–1
Sinton Int	San Pat Int%	Via R-040 ALI-VOR.	1400	A-dn	800–2	800–2	800–2
San Pat Int%	LOM (Final)	Direct	1400				

Radar coverage extends from the radar site clockwise between the 230° to the 030° bearings.
Radar terminal transition altitude 1500′ within 20 miles. Radar control will provide 1000′ vertical clearance within a 3-mile radius, or 500′ vertical clearance within a 3- to 5-mile (inclusive) radius of tower 792′ msl 6 miles W of airport.
Procedure turn W side of NW crs, 307° Outbnd, 127° Inbnd, 1800′ within 10 mi. Beyond 10 mi NA.
Minimum altitude over facility on final approach crs, 1400′.
Crs and distance, facility to airport, 127°—4.8 mi; Tank Fix# to airport, 127°—1.6 mi.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 4.8 miles, turn left, climb to 1500′ direct to CRP-VOR and proceed outbound on R-045 within 20 miles or, when directed by ATC, turn right, climb to 1800′ on CRP-VOR R-227 within 20 mi.
*Aircraft must be equipped with operating ADF and VOR receivers and Tank Fix received; if Tank Fix not received, ceiling minimum is 600′.
#Tank Fix: Brng 127° from LOM and CRP-VOR R-210.
%San Pat Int: Int ALI-VOR R-040 and 127° brng to the LOM, or CRP ILS NW crs.

City, Corpus Christi; State, Tex.; Airport Name, International; Elev., 44′; Fac. Class., LOM; Ident., CR; Procedure No. 1, Amdt. 7; Eff. Date, 26 May 62; Sup. Amdt. No. 6; Dated, 18 Nov. 61

				T-dn	300–1	300–1	NA
				C-dn	600–1	600–1	NA
				S-dn-15	500–1	500–1	NA
				A-dn	1000–2	1000–2	NA

Procedure turn W side of crs, 310° Outbnd, 130° Inbnd, 2000′ within 10 mi. Beyond 10 mi NA.
Minimum altitude over facility on final approach crs, 1500′.
Crs and distance, facility to airport, 141°—3.8 mi.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 3.8 miles after passing POE RBn, turn right, climb to 2000′ returning to POE RBn.
CAUTION: Pilots using this approach must acquaint themselves with any activity in R-3803 and R-3804.
NOTES: 1. Authorized for military use only except by prior arrangement. 2. Procedure not entirely within controlled airspace.

City, Fort Polk; State, La.; Airport Name, Polk AAF; Elev., 330′; Fac. Class., MHW; Ident., POE; Procedure No. 1, Amdt. Orig.; Eff. Date, 26 May 62

ADF STANDARD INSTRUMENT APPROACH PROCEDURE—Continued

Transition				Ceiling and visibility minimums			
From—	To—	Course and distance	Minimum altitude (feet)	Condition	2-engine or less		More than 2-engine, more than 65 knots
					65 knots or less	More than 65 knots	
FAT-VOR	FN RBn	Direct	2000	T-dn	300–1	300–1	NA
Bowles Int	FN RBn (Final)	Direct	1000	C-dn	800–2	800–2	NA
				A-dn	800–2	800–2	NA

Procedure turn E side of crs, 135° Outbnd, 315° Inbnd, 2000′ within 10 miles.
Minimum altitude over facility on final approach crs, 1100′.
Crs and distance, facility to airport, 035°—0.9 mi.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 0.9 mile, climb to 2000′ on 315′ brng within 10 miles.

City, Fresno; State, Calif.; Airport Name, Fresno-Chandler; Elev., 277′; Fac. Class., H; Ident., FN; Procedure No. 1, Amdt. Orig.; Eff. Date, 26 May 62

Alaska FM	LOM	Direct	2900	T-dn	300–1	300–1	*300–1
GRR-LFR	LOM	Direct	2900	C-d	500–1	500–1	500–1½
Lowell Int	LOM	Direct	2900	C-n	500–1½	500–1½	500–1½
Orangeville Int	LOM	Direct	2900	S-dn-36R	500–1	500–1	500–1
PMM-VOR	LOM	Direct	2900	A-dn	800–2	800–2	800–2
Lee Int**	LOM (Final)	Direct	2000				
AZO-VOR	Lee Int**	Via AZO R-355	2900				

Procedure turn W side of crs, 176° Outbnd, 356° Inbnd, 2900′ within 10 mi.
Minimum altitude over facility on final approach crs, 2000′.
Crs and distance, facility to airport, 356°—5.0 mi.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 5.0 mi after passing LOM, climb to 2200′ on crs of 356° from LOM to Comstock Int or, when directed by ATC, (1) make right climbing turn to 2200′ on SE crs GRR-LFR to Caledonia Int; (2) make left climbing turn to 2900′ and proceed direct to GRR LOM.
CAUTION: 1180′ tower 5.0 miles S, 905′ stack 0.5 mi W, and 913′ tower 1.7 mi S of airport.
*200–½ authorized on 18L and 36R only.
**Lee Int: Int 176° brng from GRR LOM and PMM-VOR R-055.

City, Grand Rapids; State, Mich.; Airport Name, Kent County; Elev., 692′; Fac. Class., LOM; Ident., GR; Procedure No. 1, Amdt. 6; Eff. Date, 26 May 62; Sup. Amdt. No. 5; Dated, 18 Feb. 61

Huron LFR	LOM	Direct	2500	T-dn	300–1	300–1	200–½
Huron VOR	LOM	Direct	2500	C-d	500–1	500–1	500–1½
				C-n	500–1½	500–1½	500–1½
				S-dn-12	400–1	400–1	400–1
				A-dn	800–2	800–2	800–2

Procedure turn W side of crs, 298° Outbnd, 118° Inbnd, 2500′ within 10 mi.
Minimum altitude over facility on final approach crs, 2400′.
Crs and distance, facility to airport, 118°—3.9 mi.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 3.9 mi of LOM, climb to 2800′ on 118° brng from LOM within 15 miles or, when directed by ATC, climb to 3000′ on NE crs HK-LFR within 15 miles.
CAUTION: Radio tower 1484′ 1¼ miles S of airport.
NOTE: No approach lights.

City, Huron; State, S. Dak.; Airport Name, Howes Municipal; Elev., 1287′; Fac. Class., LOM; Ident., HO; Procedure No. 1, Amdt. 5; Eff. Date, 26 May 62; Sup. Amdt. No. 4; Dated, 8 Apr. 61

Buffalo VOR	IA LOM	Direct	2000	T-dn	300–1	300–1	*200–½
Buffalo RBn	IA LOM	Direct	2000	C-dn	500–1	500–1	500–1½
Int SE crs Toronto LFR and brng 097° to LOM				S-dn-28R	400–1	400–1	400–1
	IA LOM	Direct	1800	A-dn	800–2	800–2	800–2
Wolcottsville Int	IA LOM (Final)	Direct	1800				

Procedure turn N side of crs, 097° Outbnd, 277° Inbnd, 1800′ within 10 miles of LOM.
Minimum altitude over facility on final approach crs, 1300′.
Crs and distance, facility to airport, 277°—4.5 mi.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 4.5 miles after passing LOM, climb straight ahead on course 277° to 2000′ within 10 miles, then make right turn and return to the LOM. Hold East 1-minute right turns, inbnd crs 277°.
*300–1 required on Runways 10R, 28L, 18, and 36.

City, Niagara Falls; State, N.Y.; Airport Name, Niagara Falls Municipal; Elev., 590′; Fac. Class., LOM; Ident., IA; Procedure No. 1, Amdt. 5; Eff. Date, 26 May 62; Sup. Amdt. No. 4 (ADF portion Comb ILS-ADF); Dated, 18 Aug. 56

ADF APPROACH TO RUNWAY 31 CANCELLED, EFFECTIVE MAY 26, 1962, OR UPON DECOM. OF FACILITY.

City, Orlando; State, Fla.; Airport Name, Orlando Municipal (Herndon); Elev., 113′; Fac. Class., LOM; Ident., OR; Procedure No. 1, Amdt. 10; Eff. Date, 20 May 61; Sup. Amdt. No. 9; Dated, 17 Dec. 60

Mechanicsburg Int	SGH MHW	Direct	2800	T-dn	300–1	300–1	200–½
South Solon Int	SGH MHW	Direct	2800	C-dn	400–1	500–1	500–1¼
Gladstone Int	SGH MHW	Direct	2800	S-dn-23	400–1	400–1	400–1
DAY VOR	SGH MHW	Via R-106 DAY VOR.	2800	A-dn	800–2	800–2	800–2

Radar vectoring authorized in accordance with approved radar patterns.
Procedure turn N side of crs, 055° Outbnd, 235° Inbnd, 2800′ within 10 miles.
Minimum altitude over facility on final approach crs, 1800′.
Crs and distance, facility to airport, 235°—2.9 mi.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 2.9 miles, make climbing left turn to 3000′, return to SGH MHW.

City, Springfield; State, Ohio; Airport Name, Springfield Municipal; Elev., 1049′; Fac. Class., MHW; Ident., SGH; Procedure No. 1, Amdt. 5; Eff. Date, 26 May 62; Sup. Amdt. No. 4; Dated, 17 Mar. 62

ADF STANDARD INSTRUMENT APPROACH PROCEDURE—Continued

Transition				Ceiling and visibility minimums			
From—	To—	Course and distance	Minimum altitude (feet)	Condition	2-engine or less		More than 2-engine, more than 65 knots
					65 knots or less	More than 65 knots	
Waco VOR	Waco LOM	Direct	1600	T-dn	300–1	300–1	200–½
Brandon Int	Int 185° brng to LOM and ACT-VOR R-028.	Direct	1800	C-dn	400–1	500–1	500–1½
				S-dn-18	400–1	400–1	400–1
Int 185° brng to LOM and ACT-VOR R-028.	Waco LOM (Final)	Direct	1600	A-dn	800–2	800–2	800–2
Bostic Int*	Int 005° brng to LOM and ACT-VOR R-164.	Direct	2000				
Int 005° brng to LOM and ACT-VOR R-164.	Waco LOM	Direct	2000				

Radar terminal maneuvering area 2000′ within 20 miles of radar site (James Connally AFB).
Radar control will provide 1000′ vertical clearance within a 3-mile radius or 500′ vertical clearance within a 3- to 5-mile (inclusive) radius of 1749′ msl TV tower 12 mi S of airport.
Procedure turn W side of crs, 005° Outbnd, 185° Inbnd, 1800′ within 10 mi. Beyond 10 mi NA.
Minimum altitude over facility on final approach crs, 1600′.
Crs and distance, facility to airport, 185°—4.6 mi.
If visual contact not established upon descent to authorized landing minimums or if landin not accomplished within 4.6 miles, climb to 2700′ on 185° crs from LOM within 20 miles or, when directed by ATC, (1) turn right, climb to 2000′ proceeding to Waco LOM or (2) turn left, climb to 2000′ and intercept R–136 Waco VOR within 20 mi.
CAUTION: 1749′ msl tower located 12 mi S of airport.
*Bostic Int: Int TPL–VOR R–029 and ACT–VOR R–164.

City, Waco; State, Tex.; Airport Name, Waco Municipal; Elev., 515′; Fac. Class., LOM; Ident., AC; Procedure No. 1, Amdt. 2; Eff. Date, 26 May 62; Sup. Amdt. No. 1; Dated, 8 July 61

3. The very high frequency omnirange (VOR) procedures prescribed in § 609.100(c) are amended to read in part:

VOR STANDARD INSTRUMENT APPROACH PROCEDURE

Bearings, headings, courses and radials are magnetic. Elevations and altitudes are in feet MSL. Ceilings are in feet above airport elevation. Distances are in nautical miles unless otherwise indicated, except visibilities which are in statute miles.
If an instrument approach procedure of the above type is conducted at the below named airport, it shall be in accordance with the following instrument approach procedure, unless an approach is conducted in accordance with a different procedure for such airport authorized by the Administrator of the Federal Aviation Agency. Initial approaches shall be made over specified routes. Minimum altitudes shall correspond with those established for en route operation in the particular area or as set forth below.

Transition				Ceiling and visibility minimums			
From—	To—	Course and distance	Minimum altitude (feet)	Condition	2-engine or less		More than 2-engine, more than 65 knots
					65 knots or less	More than 65 knots	
Amarillo VOR	Buffalo VOR	Direct	5000	T-dn	300–1	300–1	200–½
Amarillo LFR	Buffalo VOR	Direct	5000	C-dn	500–1	500–1	500–1½
ILS LOM	Buffalo VOR	Direct	5000	S-dn-3	500–1	500–1	500–1
Canyon Int	Buffalo VOR	Direct	5000	A-dn	800–2	800–2	800–2
Claude Int	Buffalo VOR	Direct	5000				
Finley Int	Buffalo VOR	Direct	5000				
Palo Duro Int	Buffalo VOR	Direct	5000				
Plant Int	Buffalo VOR	Direct	5300				
Sam Int	Buffalo VOR	Direct	5300				
Tower Int	Buffalo VOR	Direct	5000				
West Side Int	Buffalo VOR	Direct	5000				

Teardrop procedure turn—procedure turn E side of crs 196° Outbnd, 034° Inbnd, 5100′ within 10 mi.
Minimum altitude over facility on final approach crs, 5100′.
Crs and distance, facility to airport, 034°—7.7 mi.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 7.7 miles after passing ARO–VOR, climb to 5000′ on R–034 ARO–VOR within 20 miles.
CAUTION: Towers 3994′ msl 3.4 mi SW; 3886′ msl 2.1 mi SW; 3885′ msl 2.7 SW of airport. 3764′ msl grain elevator located adjacent to SW boundary of airport.

City, Amarillo; State, Tex.; Airport Name, Amarillo AFB/Municipal; Elev., 3607′; Fac. Class., VORW; Ident., ARO; Procedure No. 3, Amdt. Orig.; Eff. Date, 26 May 62

BX–LFR	BOI–VOR	Direct	4200	T-dn	300–1	300–1	200–½
				C-dn	700–1	700–1½	700–1½
				S-dn-10R#	400–1	400–1	400–1
				A-dn	800–2	800–2	800–2

Procedure turn S side of crs, 286° Outbnd, 106° Inbnd, 4200′ within 10 mi.
Minimum altitude over Meridian Int* or 3.5-mi DME fix on final approach, 3600′.
Crs and distance, Meridian Int* or 3.5-mi DME fix to airport, 106°—3.5 mi.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 0.0 mile after passing BOI–VOR, climb to 5000′ on R–112 within 10 miles.
*Meridian Int: Int BOI–VOR R–286 and 196° brng to BOI LOM.
#Circling minimums apply if Meridian Int* not received.

City, Boise; State, Idaho; Airport Name, Boise Air Terminal; Elev., 2858′; Fac. Class., BVORTAC; Ident., BOI; Procedure No. 1, Amdt. 3; Eff. Date, 26 May 62; Sup. Amdt. No. 2; Dated, 12 Feb. 56

OOD–VOR	Swedesboro Int# (Final)	Direct	1000	T-dn	300–1		
				C-dn*	600–1		
				S-dn-34*	600–1		
				A-dn	1000–2		

Procedure turn E side of crs, 181° Outbnd, 001° Inbnd, 1600′ within 10 miles.
Minimum altitude over facility on final approach crs, 1000′.
Crs and distance, facility to airport, 001°—9.5 mi.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 9.5 mi after passing OOD–VOR, make a right climbing turn to 1600′, returning to the OOD–VOR. Hold South, 1 minute, right pattern, 001° Inbnd.
#Swedesboro Int: Int OOD–VOR R–001 and EWT–VOR R–083.
*Maintain 1000′ until passing Swedesboro Intersection. If Swedesboro Int not received, ceiling minimum of 1000′ is applicable for landing.

City, Bridgeport; State, N.J.; Airport Name, Bridgeport; Elev., 23′; Fac. Class., BVOR; Ident., OOD; Procedure No. 1, Amdt. 2; Eff. Date, 26 May 62; Sup. Amdt. No. 1; Dated, 5 Aug. 61

VOR STANDARD INSTRUMENT APPROACH PROCEDURE—Continued

Transition				Ceiling and visibility minimums			
From—	To—	Course and distance	Minimum altitude (feet)	Condition	2-engine or less		More than 2-engine, more than 65 knots
					65 knots or less	More than 65 knots	
MYR-VOR	Skipper Int* (Final)	Direct	1200	T-dn	300-1	300-1	200-½
				C-dn	700-1	700-1	700-1½
				S-dn-5	700-1	700-1	700-1
				A-dn#	800-2	800-2	800-2
				If aircraft equipped with VOR and ADF receivers operating normally and Skipper Int* received, the following minimums are authorized:			
				C-dn	400-1	500-1	500-1½
				S-dn-5	400-1	400-1	400-1

Procedure turn W side of crs, 241° Outbnd, 061° Inbnd, 1200′ within 10 miles.
Minimum altitude over facility on final approach crs, 1200′; over Skipper Int, 700′.
Crs and distance, facility to airport, 061°—9.2 mi; Skipper Int* to airport, 061°—4.9 mi.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 4.9 miles after passing Skipper Int* or 9.5 miles after passing MYR-VOR, climb to 1500′ on R-056 of MYR-VOR or, when directed by ATC, turn left, climb to 1500′ and proceed to MYR-VOR via MYR R-061.
NOTE: Procedure may be authorized for air carriers having approval of their arrangement for communications and weather service at this airport.
*Skipper Int: Int MYR-VOR R-061 and 123° crs from MTL "H".
#Alternate usage authorized for air carrier only.

City, Crescent Beach; State, S.C.; Airport Name, Crescent Beach/Myrtle Beach Elev., 32′; Fac. Class., BVOR; Ident., MYR; Procedure No. 1, Amdt. Orig.; Eff. Date, 26 May 62

Huron LFR	HON-VOR	Direct	2400	T-dn	300-1	300-1	200-½
				C-d	500-1	500-1	500-1½
				C-n	500-1½	500-1½	500-1½
				S-dn-12	400-1	400-1	400-1
				A-dn	800-2	800-2	800-2

Procedure turn W side NW crs, 304° Outbnd, 124° Inbnd, 2400′ within 10 mi.
Minimum altitude over facility on final approach crs, 2400′.
Crs and distance, facility to airport, 124°—4.5 mi.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished with 4.5 mi climb to 2800′ on R-124 within 15 mi HON-VOR.
CAUTION: Radio tower 1484′ MSL 1¼ mi S of airport.

City, Huron; State, S. Dak.; Airport Name, Howes Municipal; Elev., 1287′; Fac. Class., BVOR; Ident., HON; Procedure No. 1, Amdt. 6; Eff. Date, 26 May 62; Sup. Amdt. No. 5; Dated, 8 Apr. 61

				T-dn	300-1	300-1	200-½
				C-d	600-1	600-1	600-1½
				C-n	600-2	600-2	600-2
				S-d-17	600-1	600-1	600-1
				S-n-17	600-2	600-2	600-2
				A-dn	800-2	800-2	800-2

Procedure turn E side of crs, 015° Outbnd, 195° Inbnd, 2300′ within 10 mi.
Minimum altitude over facility on final approach crs, 1700′.
Crs and distance, facility to airport, 195°—6.9 mi.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 6.9 miles, climb to 2300′ on R-195 within 15 miles.
CAUTION: Tower 1338′ 3 miles NW of airport, tower 1070′ 3 miles NE of airport.
Other change: Deletes transition from Spartanburg LFR.

City, Spartanburg, State, S.C.; Airport Name, Spartanburg Municipal; Elev., 816′; Fac. Class., BVORTAC; Ident., SPA; Procedure No. 1, Amdt. 1; Eff. Date, 26 May 62; Sup. Amdt. No. Orig.; Dated, 1 Jan. 55

Brazos Int	ACT-VOR (Final)	Direct	1400	T-dn	300-1	300-1	200-½
				C-dn	400-1	500-1	500-1½
				S-dn-14	400-1	400-1	400-1
				A-dn	800-2	800-2	800-2

Radar terminal maneuvering altitude all directions within 20 miles of radar site—2000′.
Radar control will provide 1000′ vertical clearance within a 3-mile radius or 500′ vertical clearance within a 3- to 5-mile (inclusive) radius of 1749′ tower 12 mi S of airport.
Procedure turn W side of crs, 321° Outbnd, 141° Inbnd, 2000′ within 10 miles.
Minimum altitude over facility on final approach crs, 1400′.
Crs and distance, facility to airport, 141°—3.0 mi.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 3 miles, climb to 2000′ on R-136 within 20 miles or, when directed by ATC, turn right, climb to 2000′ on R-187 within 20 miles, or turn right, climb to 2000′ and return to ACT-VOR, or turn right, climb to 2000′ on R-321 and proceed to Brazos Int.
CAUTION: 1749′ msl tower 12 mi S of airport.

City, Waco; State, Tex.; Airport Name, Municipal; Elev., 515′; Fac. Class., BVORTAC; Ident., ACT; Procedure No. 1, Amdt. 6; Eff. Date, 26 May 62; Sup. Amdt. No. 5; Dated, 25 Jan. 58

PROCEDURE CANCELLED, EFFECTIVE MAY 26, 1962.

City, Waco; State, Tex.; Airport Name, Municipal; Elev., 515′; Fac. Class., BVOR-DME; Ident., ACT; Procedure No. 2, Amdt. 3; Eff. Date, 25 Jan. 58; Sup. Amdt. No. 2; Dated, 5 Oct. 57

4. The terminal very high frequency omnirange (TerVOR) procedures prescribed in § 609.200 are amended to read in part:

TERMINAL VOR STANDARD INSTRUMENT APPROACH PROCEDURE

Bearings, headings, courses and radials are magnetic. Elevations and altitudes are in feet MSL. Ceilings are in feet above airport elevation. Distances are in nautical miles unless otherwise indicated, except visibilities which are in statute miles.

If an instrument approach procedure of the above type is conducted at the below named airport, it shall be in accordance with the following instrument approach procedure, unless an approach is conducted in accordance with a different procedure for such airport authorized by the Administrator of the Federal Aviation Agency. Initial approaches shall be made over specified routes. Minimum altitudes shall correspond with those established for en route operation in the particular area or as set forth below.

Transition				Ceiling and visibility minimums			
From—	To—	Course and distance	Minimum altitude (feet)	Condition	2-engine or less		More than 2-engine, more than 65 knots
					65 knots or less	More than 65 knots	
				T-dn	300–1	300–1	200–½
				C-dn	600–1	600–1	600–1¼
				A-dn	800–2	800–2	800–2

Procedure turn E side of crs, 177° Outbnd, 357° Inbnd, 2000′ within 10 miles.
Facility on airport.
Minimum altitude over facility on final approach crs, 1200′.
Crs and distance, breakoff point to approach end of Runway 1, 007°—0.4 mi.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 0 mile, climb to 2000′ on R–357 within 10 miles or, when directed by ATC, make a left climbing turn, return to Rush Int at 2000′.
AIR CARRIER NOTE: Takeoff on Runway 12 and landing on Runway 30 NA.
Other changes: Deletes transition from Rush Int. Deletes straight-in minima.

City, Rochester; State, N.Y.; Airport Name, Rochester-Monroe County; Elev., 560′; Fac. Class., BVOR; Ident, ROC; Procedure No. TerVOR–1, Amdt. 4; Eff. Date, 26 May 62; Sup. Amdt. No. 3; Dated 11 Nov. 61

Murdock Int	SRQ–VOR	Direct	1200	T-dn	300–1	300–1	200–½
Hansen Int	SRQ–VOR	Direct	1300	C-dn	500–1	500–1	500–1¼
Egmont RBn	SRQ–VOR	Direct	1300	S-dn–13	500–1	500–1	500–1
				A-dn#	800–2	800–2	800–2

Procedure turn S side of crs, 297° Outbnd, 117° Inbnd, 1300′ within 10 mi.
Minimum altitude over facility on final approach crs, 500′.
Crs and distance, breakoff point to appr end of Runway 13, 133°—0.1 mi.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 0 mile, climb to 1200′ on R–117 within 20 miles.
AIR CARRIER NOTE: Procedure may be authorized only for carriers having approval of their arrangements for weather service at this airport.
#Limited weather information available to public. Alternate usage authorized for air carriers only.

City, Sarasota; State, Fla.; Airport Name, Sarasota-Bradenton; Elev., 24′; Fac. Class., BVOR; Ident., SRQ; Procedure No. TerVOR–13, Amdt. 2; Eff. Date, 26 May 62; Sup. Amdt. No. 1; Dated 29 July 61

5. The instrument landing system procedures prescribed in § 609.400 are amended to read in part:

ILS STANDARD INSTRUMENT APPROACH PROCEDURE

Bearings, headings, courses and radials are magnetic. Elevations and altitudes are in feet, MSL. Ceilings are in feet above airport elevation. Distances are in nautical miles unless otherwise indicated, except visibilities which are in statute miles.

If an instrument approach procedure of the above type is conducted at the below named airport, it shall be in accordance with the following instrument approach procedure, unless an approach is conducted in accordance with a different procedure for such airport authorized by the Administrator of the Federal Aviation Agency. Initial approaches shall be made over specified routes. Minimum altitudes shall correspond with those established for en route operation in the particular area or as set forth below.

Transition				Ceiling and visibility minimums			
From—	To—	Course and distance	Minimum altitude (feet)	Condition	2-engine or less		More than 2-engine, more than 65 knots
					65 knots or less	More than 65 knots	
CRP–VOR	LOM	Direct	1400	T-dn	300–1	300–1	200–½
CP RBn	LOM	Direct	1400	C-dn	400–1	500–1	500–1¼
Robstown Int	LOM	Direct	1800	S-dn–13	200–½	200–½	200–½
Sinton Int	LOM	Direct	1400	A-dn	600–2	600–2	600–2
Sinton Int	San Pat Int*	Via R–040 ALI–VOR	1400				
*San Pat Int	LOM (Final)	Direct	1400				

Radar coverage extends from radar site clockwise between the 230° to the 030° bearings.
Radar terminal transition altitude 1500′ within 20 miles. Radar control will provide 1000′ vertical clearance within a 3-mile radius, or 500′ vertical clearance within a 3- to 5-mile (inclusive) radius of tower 792′ msl 6 miles W of airport.
Procedure turn W side of NW crs, 307° Outbnd, 127° Inbnd, 1800′ within 10 mi. Beyond 10 mi NA.
Minimum altitude at glide slope Int inbnd, 1400′.
Altitude of glide slope and distance to approach end of runway at LOM, 1400′—4.8 mi; at LMM, 244′—0.5 mi.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished, turn left, climb to 1500′ direct to CRP–VOR and proceed outbound on R–045 within 20 miles or, when directed by ATC, turn right, climb to 1800′ on CRP–VOR R–227 within 20 mi.
*San Pat Int: Int ALI–VOR R–040 and CRP ILS NW crs.

City, Corpus Christi; State, Tex.; Airport Name, International; Elev., 44′; Fac. Class., ILS; Ident., I–CRP; Procedure No. ILS–13, Amdt. 5; Eff. Date, 26 May 62; Sup. Amdt. No. 4; Dated, 18 Nov. 61

ILS STANDARD INSTRUMENT APPROACH PROCEDURE—Continued

Transition				Ceiling and visibility minimums			
From—	To—	Course and distance	Minimum altitude (feet)	Condition	2-engine or less		More than 2-engine, more than 65 knots
					65 knots or less	More than 65 knots	
Alaska FM	LOM	Direct	2900	T-dn	300–1	300–1	#300–1
Short Int*	LOM	Direct	2900	C-d	@500–1	500–1	500–1½
GRR–LFR	LOM	Direct	2900	C-n	@500–1½	500–1½	500–1½
City Int**	LOM	Direct	2900	S-dn-36R$	300–¾	300–¾	300–¾
Lowell Int	LOM	Direct	2900	A-dn	600–2	600–2	600–2
Orangeville Int	LOM	Direct	2900				
PMM–VOR	Lee Int%	Direct	2900				
Lee Int%	LOM (Final)	Direct	2300				
AZO–VOR	Lee Int%	Via AZO R–355	2900				

Procedure turn W side of crs, 176° Outbnd, 356° Inbnd, 2900′ within 10 mi. (Nonstandard due to ATC separation requirement.)
Minimum Altitude at glide slope Int Inbnd, 2300′.
Altitude of glide slope and distance to approach end of runway at LOM, 2309°—5.0 mi; at LMM, 933′—0.6 mi.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished, climb to 2200′ on North crs GRR ILS to Comstock Int or, when directed by ATC, (1) make right climbing turn to 2200′ on SE crs GRR LFR to Caledonia Int; (2) make left climbing turn to 2900′ and proceed direct to GRRLOM.
AIR CARRIER NOTE: No approach lights.
CAUTION: 1180′ tower 5.0 mi South; 905′ stack 0.5 mi West; 913′ tower 1.7 mi South.
*Int SW crs GRR-LFR and S crs ILS.
**Int NW crs GRR-LFR and N crs ILS.
#200–½ authorized on 18L and 36R only.
@400′ ceiling is authorized for circling if all turns prior to landing are made E and N of airport.
$500–1 required when glide slope not used.
%Lee Int: Int S crs GRR ILS and PMM-VOR R–055.

City, Grand Rapids; State, Mich; Airport Name, Kent County; Elev., 692′; Fac. Class., ILS; Ident., I-GRR; Procedure No. ILS–36R, Amdt. 7; Eff. Date, 26 May 62; Sup. Amdt. No. 6; Dated, 18 Feb. 61

Huron LFR	LOM	Direct	2500	T-dn	300–1	300–1	200–½
Huron VOR	LOM	Direct	2500	C-d	500–1	500–1	500–1½
				C-n	500–1½	500–1½	500–1½
				S-dn–12*	300–¾	300–¾	300–¾
				A-dn	800–2	800–2	800–2

Procedure turn W side NW crs, 298° Outbnd, 118° Inbnd, 2500′ within 10 miles.
Minimum altitude at glide slope interception inbnd, 2500′.
Altitude of glide slope and distance to approach end of runway at OM 2433—3.8 mi, at MM 1488–0.4 mi.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished, climb to 2800′ on SE crs ILS within 15 miles or, when directed by ATC, climb to 3000′ on NE crs HK–LFR within 20 miles.
CAUTION: Radio tower 1484′ msl 1¼ mi S of airport.
*No approach lights.

City, Huron; State, S. Dak.; Airport Name, Howes Municipal; Elev., 1287′; Fac. Class., ILS; Ident., I-HON; Procedure No. ILS–12, Amdt. 5; Eff. Date, 26 May 62; Sup. Amdt. No. 4; Dated, 8 Apr. 61

Buffalo VOR	LOM	Direct	2000	T-dn	300–1	300–1	*200–½
Wolcottsville Int	LOM (Final)	Direct	**1800	C-dn	500–1	500–1	500–1½
Buffalo RBn	LOM	Direct	2000	S-dn–28R#	300–¾	300–¾	300–¾
Int SE crs Toronto LFR and E crs ILS (or brng 097° to LOM).	LOM	Direct	1800	A-dn##	600–2	600–2	600–2
Buffalo RBn via VOR R–346	E crs ILS	Direct	**2000				
Buffalo RBn via crs 008°	E crs ILS	Direct	**2000				

Procedure turn N side E crs, 097° Outbnd, 277° Inbnd, 1800′ within 10 mi of LOM.
Minimum altitude at glide slope Int Inbnd, 1800′.
Altitude of glide slope and distance to approach end of runway at OM 1755′—4.5 mi, at MM 805°—0.6 mi.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished, climb straight ahead on crs 277° to 2000′ within 10 miles, then make right turn and return to LOM. Hold East 1-minute right turns inbnd crs 277°.
*300–1 required on runways 10R, 28L, 18, and 36.
**After interception of localizer crs inbnd, descent on glide slope to cross outer marker at 1755 is authorized.
#400–¾ required with glide slope inoperative.
##All installed components of the ILS must be operating, otherwise alternate minimums of 800–2 apply.

City, Niagara Falls; State, N.Y.; Airport Name, Municipal; Elev., 590′; Fac. Class., ILS; Ident., I-IAG; Procedure No. ILS–28R, Amdt. 5; Eff. Date, 26 May 62; Sup. Amdt. No. 4 (ILS portion Comb. ILS–ADF); Dated, 18 Aug. 56

OMA–VOR	LOM	Direct	2700	T-dn#	*300–1	*300–1	##200–½
OA–LFR	LOM	Direct	2600	C-d	600–1	700–1	700–1½
California FM	LOM	Direct	2600	C-n	600–1½	700–1½	700–1½
Neola VOR	LOM	Direct	2600	S-dn–14L%	300–¾	300–¾	300–¾
				A-dn	700–1½	700–1½	700–1½

Radar transitions authorized all sectors 2600′ except 2700′ within 3 mi of 1739′ tower 4 miles W and 2700′ within 3 mi of 1746′ tower 3 mi SW of airport.
Procedure turn W side of crs, 315° Outbnd, 135° Inbnd, 2600′ within 10 mi of OM.
Minimum altitude at glide slope Int Inbnd, 2100′.
Altitude of glide slope and distance to approach end of runway at OM, 2085′—4.0 mi; at MM, 1180′—0.6 mi.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 4.0 mi after passing LOM, climb to 2700′ on SE crs ILS, then proceed direct to OMA VOR or, when directed by ATC, (1) Climb to 2500′ on SE crs ILS, turn left and proceed direct to Neola VOR. Aircraft executing missed approach may be radar controlled after being reidentified.
CAUTION: Bluff 1339′ msl 1.3 mi E; TV towers 1739′ msl 4 mi WNW and 1746′ msl 3 mi SW of airport. Stack 1192′ msl 0.8 mi SSE of LOM.
#After takeoff climb to 2000′ msl prior to proceeding in a westerly direction.
AIR CARRIER NOTES: *No reduction in 2-eng. or less aircraft takeoff minimums authorized except on Runways 14L, 32R, 17L, and 35R. ##300–1 takeoff minimums required for more than 2-eng. aircraft except Runways 14L, 32R, 17L, and 35R. %500–¾ straight-in required when glide slope inoperative.

City, Omaha; State, Nebr.; Airport Name, Eppley Airfield; Elev., 982′; Fac. Class., ILS; Ident., I-OMA; Procedure No. ILS–14L, Amdt. 11; Eff. Date, 26 May 62; Sup. Amdt. No. 10; Dated, 26 Aug. 61

PROCEDURE CANCELLED, EFFECTIVE MAY 26, 1962, OR UPON DECOM. OF FACILITY.

City, Orlando; State, Fla.; Airport Name, Orlando Municipal (Herndon); Elev., 113′; Fac. Class., ILS; Ident., I-ORL; Procedure No. ILS–31, Amdt. 11; Eff. Date, 20 May 61; Sup. Amdt. No. 10; Dated, 18 Mar. 61

ILS STANDARD INSTRUMENT APPROACH PROCEDURE—Continued

Transition				Ceiling and visibility minimums			
From—	To—	Course and distance	Minimum altitude (feet)	Condition	2-engine or less		More than 2-engine, more than 65 knots
					65 knots or less	More than 65 knots	
PIE–VOR	Sawgrass Int*	Direct	1300	T–dn	300–1	300–1	200–½
Egmont Key RBn	Sawgrass Int*	Direct	1300	C–dn	400–1	500–1	500–1½
All directions	Radar Site	Within 25 mi	#1500	S–dn–35	400–1	400–1	400–1
				A–dn	800–2	800–2	800–2

Procedure turn W side of crs, 170° Outbnd, 350° Inbnd, 1300′ within 10 mi of Sawgrass Int.*
Minimum altitude over Sawgrass Int* on final approach crs, 1300′.
Crs and distance, Sawgrass Int* to Runway 35, 350°—4.3 mi.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 4.3 miles, left turn, climb to 1300′ on the PIE-VOR R–334 within 20 miles.
*Sawgrass Int: Int PIE ILS South crs and 070° brng to TPA–LFR.
#Radar control will provide 1000′ vertical clearance within a 3-mile radius or 500′ vertical clearance within a 3- to 5-mile (inclusive) radius of radio towers 861′ msl 19.5 miles ESE and 1135′ msl 23 miles ESE of airport.

City, St. Petersburg; State, Fla.; Airport Name, St. Petersburg-Clear-International; Elev., 10′; Fac. Class., ILS; Ident., I–PIE; Procedure No. ILS–35, Amdt. Orig.; Eff. Date, 26 May 62

Waco VOR	Waco LOM	Direct	1600	T–dn	300–1	300–1	200–½
Brandon Int	N crs ILS	Via R–028 ACT–VOR.	1800	C–dn	400–1	500–1	500–1½
				S–dn–18	200–½	200–½	200–½
N crs ILS and R–028 ACT–VOR	Waco LOM (Final)	Direct	1800	A–dn	600–2	600–2	600–2
Bostic Int*	S crs ILS	Via R–164 ACT–VOR.	2000				
S crs ILS and R–164 ACT–VOR	Waco LOM	Direct	2000				

Radar terminal maneuvering area 2000′ within 20 miles of radar site (James Connally AFB).
Radar control will provide 1000′ vertical clearance within a 3-mile radius or 500′ vertical clearance within a 3- to 5-mile (inclusive) radius of 1749′ msl tower located 12 miles South of airport.
Procedure turn W side of N crs, 005° Outbnd, 185° Inbnd, 1800′ within 10 mi. Beyond 10 mi NA.
Minimum altitude at glide slope Int Inbnd, 1800′.
Altitude of glide slope and distance to approach end of runway at OM, 1766′—4.6 mi; at MM, 700′—0.6 mi.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished, climb to 2700′ on S crs of ILS (185°) within 20 miles or, when directed by ATC, (1) turn right and climb to 2000′ proceeding to Waco VOR or (2) turn left, climb to 2000′ and intercept R–136 of Waco VOR within 20 miles.
CAUTION: 1749′ msl tower 12 mi S of airport.
*Bostic Int: Int TPL–VOR R–029 and ACT–VOR R–164.

City, Waco; State, Tex.; Airport Name, Waco Municipal; Elev., 515′; Fac. Class., ILS; Ident., I–ACT; Procedure No. ILS–18, Amdt. 2; Eff Date, 26 May 62; Sup. Amdt. No. 1; Dated, 8 July 61

ACT–VOR	Turner Int*	Direct	2000	T–dn	300–1	300–1	200–½
Bostic Int**	Turner Int* (Final)	Direct	1500	C–dn	400–1	500–1	500–1½
TPL–VOR	Lambert Int#	Via TPL–VOR R–020.	2700	S–dn–36	400–1	400–1	400–1
				A–dn	800–2	800–2	800–2
Lambert Int#	Turner Int* (Final)	Direct	1500				

Radar terminal maneuvering area 2000′ within 20 mi of radar site (James Connally AFB).
Radar control will provide 1000′ vertical clearance within a 3-mile radius or 500′ vertical clearance within a 3- to 5-mile (inclusive) radius of 1749′ msl tower located 12 mi S of airport.
Procedure turn E side of crs, 185° Outbnd, 005° Inbnd, 2700′ within 10 mi of Turner Int. Minimum altitude over facility on final approach crs, 1500′.
Crs and distance, Turner Int* to airport, 005°—4.0 mi.
No glide slope.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 4.0 miles after passing Turner Int,* climb to 2000′ on N crs ILS to LOM or, when directed by ATC, turn left, climb to 2000′ and proceed to Brazos Int via ACT–VOR R–321.
CAUTION: 710′ stacks 7.5 mi SSE and 1049′ tower 4.6 mi SE. TV tower 1749′ msl 12 mi S of airport.
#Lambert Int: Int S crs ACT ILS and 240° brng from Connally RBn.
*Turner Int: Int S crs ACT ILS and 274° brng from Connally RBn.
**Bostic Int: Int TPL–VOR R–029 and ACT–VOR R–164.

City, Waco; State, Tex.; Airport Name, Municipal; Elev., 515′; Fac. Class., ILS; Ident., I–ACT; Procedure No. ILS–36, Amdt. 1; Eff. Date, 26 May 62; Sup. Amdt. No. Orig.; Dated, 12 Aug. 61

6. The radar procedures prescribed in § 609.500 are amended to read in part:

RADAR STANDARD INSTRUMENT APPROACH PROCEDURE

Bearings, headings, courses and radials are magnetic. Elevations and altitudes are in feet, MSL. Ceilings are in feet above airport elevation. Distances are in nautical miles unless otherwise indicated, except visibilities which are in statute miles.

If a radar instrument approach is conducted at the below named airport, it shall be in accordance with the following instrument procedure, unless an approach is conducted in accordance with a different procedure for such airport authorized by the Administrator of the Federal Aviation Agency. Initial approaches shall be made over specified routes. Minimum altitude(s) shall correspond with those established for en route operation in the particular area or as set forth below. Positive identification must be established with the radar controller. From initial contact with radar to final authorized landing minimums, the instructions of the radar controller are mandatory except when (A) visual contact is established on final approach at or before descent to the authorized landing minimums, or (B) at pilot's discretion if it appears desirable to discontinue the approach, except when the radar controller may direct otherwise prior to final approach, a missed approach shall be executed as provided below when (A) communication on final approach is lost for more than 5 seconds during a precision approach, or for more than 30 seconds during a surveillance approach; (B) directed by radar controller; (C) visual contact is not established upon descent to authorized landing minimums; or (D) if landing is not accomplished.

Transition				Ceiling and visibility minimums			
From—	To—	Course and Distance	Minimum altitude (feet)	Condition	2-engine or less		More than 2-engine, more than 65 knots
					65 knots or less	More than 65 knots	
0°.....	360°.....	Within 30 mi.....	3000	Precision approach			
				S-dn-5L*.....	200-½	200-½	200-½
				A-dn.....	600-2	600-2	600-2
				Surveillance approach			
				T-dn@.....	300-1	300-1	200-½
				C/S-dn-all.....	400-1	500-1	500-1½
				A-dn.....	800-2	800-2	800-2

If visual contact not established upon descent to authorized landing minimums or if landing not accomplished, R/W 9 make left climbing turn to 3000' on STG R-360 to CXR R-284 and proceed to Crib Int. All other runways, make climbing turn to 3000', direct to CLE VOR.

CAUTION: TV towers approximately 1970' approximately 6 mi ESE of airport.

*Runway Visual Range 2600' also authorized for landing on Runway 5L; providing all components of the PAR, high intensity runway lights, condenser discharge flashers, middle and outer compass locators, and all related airborne equipment are operating satisfactorily. Descent below 989' msl shall not be made unless visual contact with approach lights has been established or the aircraft is clear of clouds.

@Runway Visual Range 2600' also authorized for takeoff on Runway 5L when 200-½ is authorized, providing high intensity runway lights are operational.

City, Cleveland; State, Ohio; Airport Name, Cleveland-Hopkins; Elev., 789'; Fac. Class. and Ident., Cleveland Radar; Procedure No. 1, Amdt. 8; Eff. Date, 26 May 62; Sup Amdt. No. 7; Dated, 14 Dec. 61

All Sectors.....	Radar Site.....	Within 20 mi.....	2500	Precision approach			
				T-dn.....	300-1	300-1	200-½
				C-dn.....	500-1	500-1	500-1½
				S-dn-29L*%.....	300-¾	300-¾	300-¾
				A-dn-29L*%.....	700-2	700-2	700-2
				Surveillance approach			
				T-dn.....	300-1	300-1	200-½
				C-dn#.....	500-1	500-1	500-1½
				C-dn-22.....	600-1	600-1	600-1½
				S-dn#.....	400-1	400-1	400-1
				S-dn-22.....	600-1	600-1	600-1
				C-dn-4.....	500-1	500-1	500-1½
				S-dn-4.....	500-1	500-1	500-1
				A-dn.....	800-2	800-2	800-2

If visual contact not established upon descent to authorized landing minimums or if landing not accomplished, climb to 2500' on NW crs ILS to Int. R-221 MSP-VOR and ILS crs or, as directed by ATC: 1. Make left climbing turn, climb to 2500' on crs of 241° within 22 miles. 2. Make left climbing turn, climb to 2200' and return to LOM.

CAUTION: On approach to Runway 11R do not descend below 1400' msl until radar controller has advised passing tower located 2.5 miles from approach end Runway 11R.

#Runways 11R, 29L.

*No approach lights.

%Touchdown point, 4200' from approach end of Runway 29L.

City, Minneapolis; State, Minn.; Airport Name, Minneapolis-St. Paul International; Elev., 840'; Fac. Class. and Ident., Minneapolis Radar; Procedure No. 1, Amdt. 12; Eff. Date, 26 May 62; Sup. Amdt. No. 11; Dated, 21 Apr. 62

These procedures shall become effective on the dates specified therein.

(Secs. 313(a), 307(c), 72 Stat. 752, 749; 49 U.S.C. 1354(a), 1348(c))

Issued in Washington, D.C., on April 19, 1962.

G. S. MOORE,
Acting Director, Flight Standards Service.

[F.R. Doc. 62-4057; Filed, May 16, 1962; 8:45 a.m.]

[Reg. Docket No. 1185; Amdt. 270]

PART 609—STANDARD INSTRUMENT APPROACH PROCEDURES

Miscellaneous Amendments

The amendments to standard instrument approach procedures contained herein are being adopted to become effective when indicated in order to promote safety. The revised procedures supersede the existing procedures of the same classification now in effect for the airports specified therein. For the convenience of the users, the revised procedures specify the complete procedure and indicate the changes to the existing procedures.

As a situation exists which demands immediate action in the interests of safety in air commerce, I find that compliance with the notice, procedure and effective date provisions of section 4 of the Administrative Procedure Act would be contrary to the public interest and is therefore not required.

Pursuant to the authority delegated to me by the Administrator (24 F.R. 5662), Part 609 is amended as follows:

1. The automatic direction finding procedures prescribed in § 609.100(b) are amended to read in part:

ADF STANDARD INSTRUMENT APPROACH PROCEDURE

Bearings, headings, courses and radials are magnetic. Elevations and altitudes are in feet MSL. Ceilings are in feet above airport elevation. Distances are in nautical miles unless otherwise indicated, except visibilities which are in statute miles.

If an instrument approach procedure of the above type is conducted at the below named airport, it shall be in accordance with the following instrument approach procedure, unless an approach is conducted in accordance with a different procedure for such airport authorized by the Administrator of the Federal Aviation Agency. Initial approaches shall be made over specified routes. Minimum altitudes shall correspond with those established for en route operation in the particular area or as set forth below.

Transition				Ceiling and visibility minimums			
From—	To—	Course and distance	Minimum altitude (feet)	Condition	2-engine or less		More than 2-engine, more than 65 knots
					65 knots or less	More than 65 knots	
Lakewood Int	OR LOM (Final)	Via OBK R-271 and brng 138° to OR LOM.	2200	T-dn	300-1	300-1	200-½
				C-dn	400-1	500-1	500-1½
				S-dn-14R	400-1	400-1	400-1
OBK-VOR	OR LOM	Direct	2200	A-dn	800-2	800-2	800-2
Acorn Int	OR LOM	Direct	2500				
Beacon Int	OR LOM	Direct	2500				
Deerfield Int	OR LOM	Direct	2500				
Elgin Int	OR LOM	Direct	2500				

Radar vectoring authorized in accordance with approved patterns.
Procedure turn W side of crs, 318° Outbnd, 138° Inbnd, 2500′ within 10 mi.
Minimum altitude over facility on final approach crs, 2200′.
Crs and distance, facility to airport, 138°—5.4 mi.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 5.4 miles after passing OR LOM, make left turn climb to 2500′, proceed direct to IA LOM, then direct to OBK-VOR or, when directed by ATC, (1) make right turn after passing LMM, climb to 2000′ on ORD-VOR R-250, then make right climbing turn to 2500′ and proceed to Elgin Int via ORD-VOR R-271.
NOTES: Aircraft executing missed approach may be radar vectored after being reidentified. Runway 14R, LOM designated ROMEO; Runway 14L, LOM designated LIMA.
CAUTION: Takeoffs on Runway 27, when weather is below 2000-3, will intercept ORD-VOR R-250 and climb to 2000′ be ore proceeding westbound. Takeoffs on Runway 32L, when weather is below 2000-3, will intercept ORD-VOR R-306 and climb to 2000′ before proceeding westbound.

City, Chicago; State, Ill.; Airport Name, O'Hare International; Elev., 666′; Fac. Class., LOM; Ident., OR; Procedure No. 1, Amdt. 4; Eff. Date, 2 June 62; Sup. Amdt. No. 3; Dated, 10 July 61

Lakewood Int	OH LOM (Final)	Via OBK R-271 and 318° brng from LOM.	2200	T-dn	300-1	300-1	200-½
				C-dn	400-1	500-1	500-1½
				S-dn-14L	400-1	400-1	400-1
Acorn Int	OH LOM	Direct	2500	A-dn	800-2	800-2	800-2
Beacon Int	OH LOM	Direct	2500				
Deerfield Int	OH LOM	Direct	2500				
OBK-VOR	OH LOM	Direct	2500				

Radar vectoring authorized in accordance with approved patterns.
Procedure turn W side of NW crs, 318° Outbnd, 138° Inbnd, 2500′ within 10 mi.
Minimum altitude over LOM on final approach crs, 2000′.
Crs and distance, facility to airport, 138°—5.7 mi.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 5.7 miles after passing OH LOM, make left turn climb to 2500′ and proceed to IA LOM, then direct to OBK-VOR or, when directed by ATC, make left turn climb to 2500′, proceed to OBK-VOR via ORD-VOR R-030 and OBK-VOR R-135.
NOTES: Aircraft executing missed approach may be radar vectored after being reidentified. Runway 14R, LOM designated ROMEO; Runway 14L, LOM designated LIMA.
CAUTION: Takeoffs on Runway 27, when weather is below 2000-3, will intercept ORD-VOR R-250 and climb to 2000′ before proceeding westbound. Takeoffs on Runway 32L, when weather is below 2000-3, will intercept ORD-VOR R-306 and climb to 2000′ before proceeding westbound.

City, Chicago; State, Ill.; Airport Name, O'Hare International; Elev., 666′; Fac. Class., LOM; Ident., OH; Procedure No. 2, Amdt. 2; Eff. Date, 2 June 62; Sup. Amdt. No. 1; Dated, 10 June 61

SVM-VOR	DW LOM	Direct	2700	T-dn	300-1	300-1	200-½
YIP-VOR	DW LOM	Direct	2700	C-dn	500-1	500-1	500-1½
CRL-VOR	DW LOM	Direct	2700	S-dn-21R and L	500-1	500-1	500-1
QG-VOR	DW LOM	Direct	2700				
Royal Int	Lucy Int*	Via brng 212° to LOM.	2700	A-dn	800-2	800-2	800-2
Lucy Int*	DW LOM (Final)	Direct	2300				

Radar transition authorized in accordance with approved patterns.
Procedure turn N side of crs, 032° Outbnd, 212° Inbnd, 2700′ within 10 miles.
Minimum altitude over facility on final approach crs, 2300′.
Crs and distance, facility to Runway 21R, 212°—5.2 mi; to Runway 21L, 205°—5.1 mi.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 5.1 miles of DW LOM, climb to 2000′, proceed direct to DT LOM or, when directed by ATC, (1) make right turn climb to 2300′, proceed to Ford RBn, (2) climb to 2300′, make left turn, proceed to Rockwood Int via SVM R-143.
*Lucy Int: Int 212° brng to LOM and QG R-302 or SVM R-097.

City, Detroit; State, Mich.; Airport Name, Metroplitan Wayne County; Elev., 639′; Fac. Class., LOM; Ident., DW; Procedure No. 2, Amdt. Orig.; Eff. Date, 2 June 62

Fort Myers VOR	FMY RBn	Direct	1500	T-dn	300-1	300-1	200-½
				C-dn	400-1	500-1	500-1½
				S-dn-4	400-1	400-1	400-1
				A-dn	800-2	800-2	800-2

Procedure turn S side of crs, 220° Outbnd, 040° Inbnd, 1500′ within 10 mi.
Minimum altitude over facility on final approach crs, 600′.
Crs and distance, facility to airport, 040°—4.1 mi.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 4.1 miles, climb to 1500′ on crs of 057° from FMY RBn within 20 miles.

City, Fort Myers; State, Fla.; Airport Name, Page Field; Elev., 17′; Fac. Class., BH; Ident., FMY; Procedure No. 1, Amdt. 2; Eff. Date, 2 June 62; Sup. Amdt No. 1; Dated, 5 Aug. 61

ADF STANDARD INSTRUMENT APPROACH PROCEDURE—Continued

Transition				Ceiling and visibility minimums			
From—	To—	Course and distance	Minimum altitude (feet)	Condition	2-engine or less		More than 2-engine, more than 65 knots
					65 knots or less	More than 65 knots	
GF LFR	LOM	Direct	6200	T-dn**	300–1	300–1	200–½
GTF VOR	LOM	Direct	6200	C-dn	500–1	500–1	500–1½
Belt FM	LOM	Direct	6200	S-dn-34	500–1	500–1	500–1
Millegan Int	LOM	Direct	6200	A-dn	800–2	800–2	800–2
Cascade FM	LOM	Direct	6200				

Radar transitions and vectoring utilizing Great Falls Radar authorized in accordance with approved radar patterns.
Procedure turn W side of crs, 161° Outbnd, 341° Inbnd, 6200′ within 10 miles. Beyond 10 miles NA. All turns W side of crs. High terrain E.
Minimum altitude over facility on final approach crs, 5500′.
Crs and distance, facility to airport, 341°—6.5 mi.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 6.5 miles, climb to 6000′ on crs of 341° within 20 mi or, when directed by ATC, climb to 5000′ on NW crs GTF–LFR within 15 mi.
CAUTION: 3840′ msl towers 1.1 mi SW of airport.
**300–1 required on Runways 11–29.

City, Great Falls; State, Mont.; Airport Name, Great Falls International; Elev., 3671′; Fac. Class., LOM; Ident., GT; Procedure No. 1, Amdt. 4; Eff. Date, 2 June 62; Sup. Amdt. No. 3; Dated, 16 July 60

2. The very high frequency omnirange (VOR) procedures prescribed in § 609.100(c) are amended to read in part:

VOR STANDARD INSTRUMENT APPROACH PROCEDURE

Bearings, headings, courses and radials are magnetic. Elevations and altitudes are in feet MSL. Ceilings are in feet above airport elevation. Distances are in nautical miles unless otherwise indicated, except visibilities which are in statute miles.
If an instrument approach procedure of the above type is conducted at the below named airport, it shall be in accordance with the following instrument approach procedure, unless an approach is conducted in accordance with a different procedure for such airport authorized by the Administrator of the Federal Aviation Agency. Initial approaches shall be made over specified routes. Minimum altitudes shall correspond with those established for en route operation in the particular area or as set forth below.

Transition				Ceiling and visibility minimums			
From—	To—	Course and distance	Minimum altitude (feet)	Condition	2-engine or less		More than 2-engine, more than 65 knots
					65 knots or less	More than 65 knots	
				T-dn	300–1	300–1	200–½
				C-dn	1000–3	1000–3	1000–3
				S-dn-27	1000–3	1000–3	1000–3
				A-dn#	NA	NA	NA
				The following minimums apply to aircraft equipped with dual VOR receivers and when Zang Int* identified:			
				C-dn	500–1	500–1	500–1½
				S-dn-27	500–1	500–1	500–1

Procedure turn N side of crs, 086° Outbnd, 266° Inbnd, 2100′ within 10 miles.
Minimum altitude over facility on final approach crs, 1600′; over Zang Int,* 1600′.
Crs and distance, facility to airport, 266°—13.3 mi; facility to Zang Int,* 266°—3.0 mi.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 13.3 miles after passing the ELX–VOR or 3.0 miles after passing Zang Int,* climb to 2000′ on ELX–VOR R–266 within 20 miles, then proceed direct to ELX–VOR and contact SBN approach control for further instructions.
*Zang Int: Int ELX–VOR R–266 and SBN–VOR R–356.
#Use as alternate authorized for air carriers with approved weather reporting service.

City, Benton Harbor; State, Mich.; Airport Name, Ross Field; Elev., 642′; Fac. Class., BVOR; Ident., ELX; Procedure No. 1, Amdt. 1; Eff. Date, 2 June 62; Sup. Amdt. No. Orig.; Dated, 28 Sept. 57

Acorn Int	OBK–VOR	Direct	2500	T-dn	300–1	300–1	200–½
Beacon Int	OBK–VOR	Direct	2500	C-dn	500–1	500–1	500–1½
Deerfield Int	OBK–VOR	Direct	2000	A-dn	NA	NA	NA
Lakewood Int	OBK–VOR	Direct	2000				

Radar transitions to final approach course authorized. Aircraft will be released for final approach without procedure turn on final approach inbound 3 miles from OBK–VOR.
Procedure turn North side of crs, 337° Outbnd, 157° Inbnd, 2000′ within 10 mi.
Minimum altitude over facility on final approach crs, 1500′.
Crs and distance, facility to airport, 157°—5.0 mi.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 5.0 miles after passing OBK–VOR, make immediate left turn climb to 2500′ and proceed to OBK–VOR via OBK VOR R–140.
NOTES: Obtain Glenview NAS or O'Hare weather prior to beginning IFR approach. Cancel IFR flight plan with O'Hare approach control when landing assured.

City, Chicago; State, Ill.; Airport Name, Pal-Waukee; Elev., 642′; Fac. Class., BVORTAC; Ident., OBK; Procedure No. 1, Amdt. 4; Eff. Date, 2 June 62; Sup. Amdt. No. 3; Dated, 19 May 62

				T-dn	1000–1	1000–1	NA
				C-dn	1200–2	1200–2	NA

Procedure turn W side of crs, 150° Outbnd, 330° Inbnd, 2000′ within 10 miles.
Minimum altitude over facility on final approach crs, 1500′.
Crs and distance, facility to airport, 343°—7.2 mi.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 7.2 miles after passing ILA–VOR, make left turn, climb to 2000′ on R–150 within 10 miles.
NOTE: Pilots will contact Marysville or Sacramento FSS for current altimeter setting prior to commencing IFR approach to Colusa County Airport.

City, Colusa; State, Calif.; Airport Name, Colusa County; Elev., 25′; Fac. Class., VORTAC; Ident., ILA; Procedure No. 1, Amdt. Orig.; Eff. Date, 2 June 62

VOR STANDARD INSTRUMENT APPROACH PROCEDURE—Continued

Transition				Ceiling and visibility minimums			
From—	To—	Course and distance	Minimum altitude (feet)	Condition	2-engine or less		More than 2-engine, more than 65 knots
					65 knots or less	More than 65 knots	
GF-LFR	GTF-VOR	Direct	5500	T-dn	300–1	300–1	*200–½
Belt FM	GTF-VOR	Direct	5500	C-dn	500–1	500–1	500–1½
GTF LOM	GTF-VOR	Direct	5500	A-dn	800–2	800–2	800–2
Cascade FM	GTF-VOR	Direct	5500				

Procedure turn S side of crs, 203° Outbnd, 023° Inbnd, 5500′ within 10 mi. NA beyond 10 mi.
Minimum altitude over facility on final approach crs, 4300′.
Crs and distance, facility to airport, 026°—1.9 mi.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 1.9 miles, climb to 5500′ on R–018 within 20 miles or, when directed by ATC, execute climbing left turn, climb to 5500′ on R–312 within 20 miles.
CAUTION: 3840′ msl LFR towers located 1.5 mi, SW of airport.
Other change: Deletes straight-in minimums to Runway 3.
*300–1 required on Runways 11–29.

City, Great Falls; State, Mont.; Airport Name, Great Falls International; Elev., 3671′; Fac. Class., BVOR; Ident., GTF; Procedure No. 1, Amdt. 4; Eff. Date, 2 June 62; Sup. Amdt. No. 3; Dated, 17 Oct. 59

Lexington HW	LEX-VOR	Direct	2300	T-dn	300–1	300–1	200–½
Richmond Int	LEX-VOR	Direct	2500	C-d	600–1	600–1	600–1½
Union Hall Int	LEX-VOR	Direct	2500	C-n	600–1½	600–1½	600–2
				A-dn	800–2	800–2	800–2

Procedure turn N side of crs, 124° Outbnd, 304° Inbnd, 2200′ within 10 miles.
Minimum altitude over facility on final approach crs, 2000′.
Crs and distance, facility to airport, 304°—7.3 mi.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 7.3 miles, climb to 2200′ on R–304 LEX–VOR within 10 miles or, when requested by ATC, make climbing left turn and return to Lexington VOR at 2300′.

City, Lexington; State, Ky.; Airport Name, Blue Grass; Elev., 978′; Fac. Class., BVORTAC; Ident., LEX; Procedure No. 1, Amdt. 5; Eff. Date, 2 June 62; Sup. Amdt. No. 4; Dated, 17 Dec. 60

Seaweed Int	High Tide Int (R–119 LIH–VOR and R–085 SOK–VOR).	Direct	2000	T-dn*	500–1	500–1	500–1
				C-d#	600–1½	600–1½	600–1½
High Tide Int**	Lihue VOR (Final)	Direct	700	C-n#	700–2	700–2	700–2
				A-dn	1000–2	1000–2	1000–2

Procedure turn N side of crs, 119° Outbnd, 299° Inbnd, 2600′ within 10 miles. Procedure turn not authorized when inbound from Seaweed Int via High Tide Int.
Minimum altitude over High Tide Int on final approach crs, 2000′; over LIH–VOR, 700′.
Crs and distance, facility to airport, 328°—0.9 mi.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 0.0 mile, make right turn climb to 3000′ on R–030 within 20 miles, reverse course, climbing to 4000′ over LIH–VOR.
CAUTION: Terrain 725′ high, 1.3 miles NW and 786′, 1.8 miles south of airport.
NOTES: 1. Strict adherence to final approach course and missed approach procedure is required. 2. Dual omni receivers or single omni and DME required for approach with ceiling below 1000′.
AIR CARRIER NOTE: Sliding scale not authorized.
*Takeoff on Runway 21 restricted to 600–2 day, 700–2 night.
**DME 9-mile fix may be substituted in lieu of South Kauai R–085 to determine High Tide Int.
#Circling to west not authorized.

City, Lihue; State, Hawaii; Airport Name, Lihue; Elev., 148′; Fac. Class., VOR; Ident., LIH; Procedure No. 2, Amdt. Orig.; Eff. Date, 2 June 62

3. The terminal very high frequency omnirange (TerVOR) procedures prescribed in § 609.200 are amended to read in part:

TERMINAL VOR STANDARD INSTRUMENT APPROACH PROCEDURE

Bearings, headings, courses and radials are magnetic. Elevations and altitudes are in feet MSL. Ceilings are in feet above airport elevation. Distances are in nautical miles unless otherwise indicated, except visibilities which are in statute miles.
If an instrument approach procedure of the above type is conducted at the below named airport, it shall be in accordance with the following instrument approach procedure, unless an approach is conducted in accordance with a different procedure for such airport authorized by the Administrator of the Federal Aviation Agency. Initial approaches shall be made over specified routes. Minimum altitudes shall correspond with those established for en route operation in the particular area or as set forth below.

Transition				Ceiling and visibility minimums			
From—	To—	Course and distance	Minimum altitude (feet)	Condition	2-engine or less		More than 2-engine, more than 65 knots
					65 knots or less	More than 65 knots	
Austin Int	AUM VOR	Direct	3200	T-dn	300–1	300–1	200– ½
RST VOR	AUM VOR	Direct	3200	C-dn	600–1	600–1	600–1½
				S-dn–17	600–1	600–1	600–1
				A-dn**	800–2	800–2	800–2
				Following minimums apply for aircraft equipped with operating dual omni receivers and the Sargeant Int.* received:			
				C-dn	400–1	500–1	500–1½
				S-dn–17	400–1	400–1	400–1

Procedure turn W side of crs, 345° Outbnd, 165° Inbnd, 2500′ within 10 mi.
Minimum altitude over facility on final approach crs, 1800′.
Crs and distance breakoff point to Runway 17, 168°—1.0 mi.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 0.0 mile of AUM–VOR, climb to 2700′ on R–165 within 20 miles.
CAUTION: 1670′ msl tower 3.5 mi SW, 1477′ msl tower 2.3 mi north, 1330′ msl tank 1 mi west.
*Sargeant Int: Int R–345 AUM–VOR and R–245 RST–VOR.
**Authorized for air carriers with weather reporting service at the airport.

City, Austin; State, Minn.; Airport Name, Austin; Elev., 1237′; Fac. Class., BVOR; Ident., AUM (State-owned); Procedure No. TerVOR–17, Amdt. 1; Eff. Date, 2 June 62; Sup. Amdt. No. Orig.; Dated, 21 Apr. 62

TERMINAL VOR STANDARD INSTRUMENT APPROACH PROCEDURE—Continued

Transition				Ceiling and visibility minimums			
From—	To—	Course and distance	Minimum altitude (feet)	Condition	2-engine or less		More than 2-engine, more than 65 knots
					65 knots or less	More than 65 knots	
Austin Int	AUM VOR	Direct	3200	T-dn	300–1	300–1	200–½
RST VOR	AUM VOR	Direct	3200	C-dn	500–1	500–1	500–1½
				S-dn-35	500–1	500–1	500–1
				A-dn**	800–2	800–2	800–2
				Following minimums apply for aircraft equipped with operating dual omni receivers and the London Int.* received:			
				C-dn	400–1	500–1	500–1½
				S-dn-35	400–1	400–1	400–1

Procedure turn E side of crs, 170° Outbnd, 350° Inbnd, 2700′ within 10 mi.
Minimum altitude over facility on final approach 1700′.
Crs and dist breakoff point to Runway 35, 348°—0.6 mi.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 0.0 mile of the AUM VOR, climb to 2500′ on R-350 within 20 mi.
CAUTION: 1670′ msl tower 3.5 mi. SW 1477′ msl tower 2.3 miles north. 1330′ msl tank 1 mi. west.
*London Int: Int R-170 AUM-VOR and R-233 RST-VOR.
**Authorized for air carriers with weather reporting service at the airport.

City, Austin; State, Minn.; Airport Name, Austin; Elev., 1237′; Fac. Class., BVOR; Ident., AUM (State-owned); Procedure No. TerVOR-35, Amdt. 1; Eff. Date, 2 June 62; Sup. Amdt. No. Orig.; Dated, 21 Apr. 62

OBK-VOR	Arlington Int*	Via R-235 OBK and R-329 ORD.	2200	T-dn	300–1	300–1	200–½
				C-dn	700–1	700–1	700–1½
Palatine Int#	Arlington Int* (Final)	Via R-329 ORD-VOR.	2200	S-dn-14L	700–1	700–1	700–1
				A-dn	800–2	800–2	800–2
Lakewood Int	Palatine Int	Via R-271 OBK and R-329 ORD.	2200	##Following minimums apply for dual VOR equipped aircraft and Arlington Int received or radar fix in lieu of Arlington Int:			
				C-dn	400–1	500–1	500–1½
Acorn Int	ORD-VOR	Direct	2500	S-dn-14L	400–1	400–1	400–1
Deerfield Int	ORD-VOR	Direct	2500				
Beacon Int	ORD-VOR	Direct	2500				
OBK-VOR	ORD-VOR	Direct	2500				

Radar vectoring authorized in accordance with approved patterns.
Procedure turn W side of crs, 329° Outbnd, 149° Inbnd, 2500′ within 15 mi. of VOR.
Minimum altitude over facility on final approach crs, 1400′; over## Arlington Int* or 6 mi radar fix, 2200′.
Crs and distance, Arlington Int* to Runway 14L, 149°—6.0 mi.
Crs and distance, breakoff point to approach end of Runway 14L, 138°—0.5 mi.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 0.0 mile, make left turn, climb to 2500′ and proceed to OBK-VOR via ORD-VOR R-030 and OBK-VOR R-135 or, when directed by ATC, make left turn climb to 2500′ and proceed to IA LOM, then direct to OBK-VOR.
NOTE: Aircraft executing missed approach may be radar vectored after being reidentified.
CAUTION: Takeoffs on Runway 27, when weather is below 2000–3, will intercept ORD-VOR R-250 and climb to 2500′ before proceeding westbound. Takeoffs on Runway 32L, when weather is below 2000–3, will intercept ORD-VOR R-306 and climb to 2500′ before proceeding westbound.
*Arlington Int: Int ORD-VOR R-329 and OBK-VOR R-193.
#Palatine Int: Int ORD-VOR R-329 and OBK-VOR R-235.

City, Chicago; State, Ill.; Airport Name, O'Hare International; Elev., 666′; Fac. Class., VORTAC; Ident., ORD; Procedure No. TerVOR-14L, Amdt. 2; Eff. Date, 2 June 62; Sup. Amdt. No. 1; Dated, 24 June 61

OBK R-076	Glencoe Int#	Via R-033 ORD-VOR.	2300	T-dn	300–1	300–1	200–½
				C-dn	400–1	500–1	500–1½
Glencoe Int#	Grove Int* (Final)	Via R-033 ORD-VOR.	1800	S-dn-22	400–1	400–1	400–1
				A-dn	800–2	800–2	800–2
OBK-VOR	Glencoe Int#	Via R-118 OBK-VOR.	2000				
Beacon Int	ORD-VOR	Direct	2500				
Lakewood Int	ORD-VOR	Direct	2500				
Acorn Int	ORD-VOR	Direct	2500				
OBK-VOR	ORD-VOR	Direct	2500				

Radar transition to final approach crs authorized. Aircraft will be released for final approach without procedure turn 3 mi from Grove Int.*
Procedure turn N side of crs, 033° Outbnd, 213° Inbnd, 2500′ within 10 miles.
Minimum altitude over Grove Int* on final approach crs, 1800′.
Crs and distance, Grove Int* to Runway 22, 213°—3.8 mi.
Crs and distance, breakoff point to approach end of Runway 22, 218°—0.5 mi.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 0.0 mile, make left turn climb to 2500′, proceed to OBK-VOR via ORD R-075 and OBK R-135 or, when directed by ATC, (1) make left turn climb to 2500′, proceed to OBK-VOR via ORD R-030 and OBK R-135, (2) make left turn climb to 2500′ and proceed to IA LOM, then direct to OBK-VOR.
NOTES: Dual VOR receivers required or radar fix in lieu of Grove Int.*
CAUTION: Takeoffs on Runway 27 when weather is below 2000–3 will intercept ORD-VOR R-250 and climb to 2000′ before proceeding westbound. Takeoffs on Runway 32L when weather is below 2000–3 will intercept ORD-VOR R-306 and climb to 2000′ before proceeding westbound.
#Glencoe Int: Int OBK-VOR R-118 and ORD-VOR R-033.
*Grove Int: Int ORD-VOR R-033 and OBK-VOR R-153.

City, Chicago; State, Ill.; Airport Name, O'Hare International; Elev., 666′; Fac. Class., VORTAC; Ident., ORD; Procedure No. TerVOR-22, Amdt. 2; Eff. Date, 2 June 62; Sup. Amdt. No. 1; Dated, 12 Sept. 59

4. The very high frequency omnirange-distance measuring equipment (VOR/DME) procedures prescribed in § 609.300 are amended to read in part:

VOR-DME STANDARD INSTRUMENT APPROACH PROCEDURE

Bearings, headings, courses and radials are magnetic. Elevations and altitudes are in feet MSL. Ceilings are in feet above airport elevation. Distances are in nautical miles unless otherwise indicated, except visibilities which are in statute miles.

If an instrument approach procedure of the above type is conducted at the below named airport, it shall be in accordance with the following instrument approach procedure, unless an approach is conducted in accordance with a different procedure for such airport authorized by the Administrator of the Federal Aviation Agency. Initial approaches shall be made over specified routes. Minimum altitudes shall correspond with those established for en route operation in the particular area or as set forth below.

Transition				Ceiling and visibility minimums			
From—	To—	Course and distance	Minimum altitude (feet)	Condition	2-engine or less		More than 2-engine, more than 65 knots
					65 knots or less	More than 65 knots	
Deer Park VHF Int	23-mi DME fix R-141	Via 23-mi orbit (clockwise).	3000	T-dn	300-1	300-1	200-½
				C-dn	600-1	600-1	600-1½
Sandy Hook VHF Int	19-mi DME fix R-141	Via 19-mi orbit (counterclockwise).	2000	A-dn	800-2	800-2	800-2

Terminal area radar transitions authorized from R-030 through R-210 IDL-VOR, 1500′ within 20 miles; 2500′ within 25 miles.

Procedure turn NA. Radar vectors to final approach required.

Minimum altitude on approach radial 19-mile DME fix to 4-mile DME fix R-141, 1500′; 4-mile DME fix to 3-mile DME fix R-141, 1200′; 3-mile DME fix to 2-mile DME fix R-141, 900′; 2-mile DME fix to 1-mile DME fix R-141, 600′.

Crs and distance, breakoff point to approach end of Runway 31L, 312°—1.0 mi.

If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 0.0 mile of IDL-VOR, make left climbing turn to 2000′ on R-190 IDL-VOR and proceed to Sandy Hook VHF Int, hold at Sandy Hook Int right turns, 1-minute, 010° Inbnd.

NOTE: DME fixes are line of sight.

AIR CARRIER NOTE: Sliding scale not authorized.

City, New York; State, N.Y.; Airport Name, International; Elev., 12′; Fac. Class., BVORTAC; Ident., IDL; Procedure No. VOR/DME No. 1, Amdt. Orig.; Eff. Date, 2 June 62

5. The instrument landing system procedures prescribed in § 609.400 are amended to read in part:

ILS STANDARD INSTRUMENT APPROACH PROCEDURE

Bearings, headings, courses and radials are magnetic. Elevations and altitudes are in feet, MSL. Ceilings are in feet above airport elevation. Distances are in nautical miles unless otherwise indicated, except visibilities which are in statute miles.

If an instrument approach procedure of the above type is conducted at the below named airport, it shall be in accordance with the following instrument approach procedure, unless an approach is conducted in accordance with a different procedure for such airport authorized by the Administrator of the Federal Aviation Agency. Initial approaches shall be made over specified routes. Minimum altitudes shall correspond with those established for en route operation in the particular area or as set forth below.

Transition				Ceiling and visibility minimums			
From—	To—	Course and distance	Minimum altitude (feet)	Condition	2-engine or less		More than 2-engine, more than 65 knots
					65 knots or less	More than 65 knots	
Lakewood Int	OR LOM (Final)	Via OBK R-271 NW crs ORD ILS.	2200	T-dn#	300-1	300-1	200-½
				C-dn	400-1	500-1	500-1½
				S-dn-14R*%	200-½	200-½	200-½
Acorn Int	OR LOM	Direct	2500	A-dn	600-2	600-2	600-2
Elgin Int	OR LOM	Direct	2500				
Beacon Int	OR LOM	Direct	2500				
Deerfield Int	OR LOM	Direct	2500				
OBK-VOR	OR LOM	Direct	2500				

Radar vectoring authorized in accordance with approved patterns.

Procedure turn W side of crs, 318° Outbnd, 138° Inbnd, 2500′ within 10 miles.

Minimum altitude at glide slope int inbnd, 2200′.

Altitude of glide slope and distance to approach end of runway at LOM, 2132′—5.3; at LMM, 861′—0.5.

If visual contact not established upon descent to authorized landing minimums or if landing not accomplished make right turn after passing the LMM, climb to 2000′ on ORD-VOR R-250, then make right climbing turn to 2500′ and proceed to Elgin Int via ORD-VOR R-271 or, when directed by ATC, (1) make immediate left turn, climb to 2500′ and proceed to OBK-VOR via ORD R-030 and OBK R-135, (2) make left turn, climb to 2500′ and proceed to IA LOM, then direct to OBK VOR.

NOTES: Aircraft executing missed approach may, after being reidentified, be radar controlled. 4° localizer course.

%400-¾ required when glide slope inoperative.

NOTE: Runway 14R, LOM designated ROMEO; Runway 14L, LOM designated LIMA.

CAUTION: Takeoffs on Runway 27, when weather is below 2000-3, will intercept ORD-VOR R-250 and climb to 2000′ before proceeding westbound. Takeoffs on Runway 32L, when weather is below 2000-3, will intercept ORD-VOR R-306 and climb to 2000′ before proceeding westbound.

*Runway Visual Range of 2600′ also authorized for landing on Runway 14R: *Provided*, That all components of the ILS, high intensity runway lights, approach lights, condenser-discharge flashers, middle and outer compass locators and all related airborne equipment are operating satisfactorily. Descent below the authorized landing minimum altitude of 867′ msl shall not be made unless visual contact with the approach lights has been established or the aircraft is clear of clouds.

#Runway Visual Range 2600′ authorized for takeoff in lieu of 200-½ when 200-½ is authorized, providing high intensity runway lights are in satisfactory operating condition.

City, Chicago; State, Ill.; Airport Name, O'Hare International; Elev., 666′; Fac. Class., ILS; Ident., I-ORD; Procedure No. ILS-14R, Amdt. 6; Eff. Date, 2 June 62; Sup. Amdt. No. 5; Dated, 10 June 61

Lakewood Int	OH LOM (Final)	Via OBK R-271 and NW crs OHA ILS.	2500	T-dn	300-1	300-1	200-½
				C-dn	400-1	500-1	500-1½
				S-dn-14L#	300-¾	300-¾	300-¾
Acorn Int	OH LOM	Direct	2500	A-dn	800-2	800-2	800-2
Deerfield Int	OH LOM	Direct	2500				
Beacon Int	OH LOM	Direct	2500				
OBK-VOR	OH LOM	Direct	2500				

Radar vectoring authorized in accordance with approved patterns.

Procedure turn W side of NW crs, 318° Outbnd, 138° Inbnd, 2500′ within 10 mi.

Minimum altitude at glide slope int inbnd, 2500′.

Altitude of glide slope and distance to approach end of runway at LOM, 2481′—5.7 mi; at LMM, 900′—0.6 mi.

If visual contact not established upon descent to authorized landing minimums or if landing not accomplished make left turn, climb to 2500′ and proceed to IA LOM, then direct to OBK-VOR or, when directed by ATC, make left turn, climb to 2500′ and proceed to OBK-VOR via ORD R-030 and OBK R-135.

NOTES: Runway 14R, LOM designated ROMEO; Runway 14L, LOM designated LIMA. No approach lights, 4° localizer course.

CAUTION: Takeoffs Runway 27 when weather is below 2000-3 will intercept ORD-VOR R-250 and climb to 2000′ before proceeding westbound. Takeoffs Runway 32L when weather is below 2000-3 will intercept ORD R-306 and climb to 2000′ before proceeding westbound.

#400-1 required when glide slope not utilized.

City, Chicago; State, Ill.; Airport Name, O'Hare International; Elev., 666′; Fac. Class., ILS; Ident., I-OHA; Procedure No. ILS-14L, Amdt. 3; Eff. Date, 2 June 62; Sup. Amdt. No. 2; Dated, 26 Dec. 59

ILS STANDARD INSTRUMENT APPROACH PROCEDURE—Continued

Transition				Ceiling and visibility minimums			
From—	To—	Course and distance	Minimum altitude (feet)	Condition	2-engine or less		More than 2-engine, more than 65 knots
					65 knots or less	More than 65 knots	
PROCEDURE CANCELLED, EFFECTIVE JUNE 2, 1962.							
City, Detroit; State, Mich.; Airport Name, Metropolitan Wayne County; Elev., 639'; Fac. Class., ILS; Ident., I-DTW; Procedure No. ILS-21R, Amdt. 3; Eff. Date, 4 Mar. 61; Sup. Amdt. No. 2, Dated, 31 May 56							
SVM-VOR	DW LOM	Direct	2700	T-dn	300-1	300-1	200-½
YIP-VOR	DW LOM	Direct	2700	C-dn	400-1	500-1	500-1½
CRL-VOR	DW LOM	Direct	2700	S-dn-21R#	300-¾	300-¾	300-¾
QG-VOR	DW LOM	Direct	2700	A-dn	700-2	700-2	700-2
Royal Int	Lucy Int*	Via NE crs DWC ILS.	2700				
Lucy Int*	DW LOM (Final)	Direct	2300				
Radar transitions authorized in accordance with approved patterns. Procedure turn N side of NE crs, 032° Outbnd, 212° Inbnd, 2700' within 10 mi. Minimum altitude at glide slope int inbnd, 2300'. Altitude of glide slope and distance to approach end of runway at OM, 2289'—5.2 mi; at MM, 869'—0.55 mi. If visual contact not established upon descent to authorized landing minimums or if landing not accomplished, climb to 2000', proceed direct to DT LOM or, when directed by ATC, (1) make right turn climb to 2300', proceed to FRD RBn, (2) climb to 2300', make left turn, proceed to Rockwood Int via SVM R-143. NOTES: No approach lights. 4° localizer course. *Lucy Int: Int NE crs ILS and QG R-302 or SVM R-097. #400-1 required with glide slope inoperative.							
City, Detroit; State, Mich.; Airport Name, Metropolitan Wayne County; Elev., 639'; Fac. Class., ILS; Ident., I-DWC; Procedure No. ILS-21R, Amdt. Orig.; Eff. Date, 2 June 62							
GF-LFR	LOM	Direct	6200	T-dn**	300-1	300-1	200-½
GTF-VOR	LOM	Direct	6200	C-dn	400-1	500-1	500-1½
Belt FM	LOM	Direct	6200	S-dn-34*	200-½	200-½	200-½
Cascade FM	LOM	Direct	6200	A-dn	600-2	600-2	600-2
Millegan Int	LOM	Direct	6200				
Radar transitions and vectoring utilizing Great Falls Radar authorized in accordance with approved Radar patterns. Procedure turn W side of crs, 161° Outbnd, 341° Inbnd, 6200' within 10 miles. NA beyond 10 mi. All turns W side of crs—high terrain east. Minimum altitude at glide slope int inbnd, 6200'. Altitude of glide slope and distance to approach end of runway at OM, 5835'—6.6 mi; at MM, 3915'—0.6 mi. If visual contact not established upon descent to authorized landing minimums or if landing not accomplished, climb to 6000' on N crs ILS within 20 miles or, when directed by ATC, climb to 5000' on NW crs GF-LFR or R-312 GTF-VOR within 15 miles. CAUTION: 3840' msl LFR towers 1.1 miles SW of airport. *400-¾ required with glide slope inoperative. **300-1 required for Runways 11-29.							
City, Great Falls; State, Mont; Airport Name, Great Falls International; Elev., 3671'; Fac. Class., ILS; Ident., I-GTF; Procedure No. ILS-34, Amdt. 5; Eff, Date. 2 June 62; Sup. Amdt. No. 4; Dated, 25 Mar. 61							
Fremont FM-HW	Hayward HW (Final)	Direct	2600	T-dn* ##	300-1	300-1	200-½
OK-LFF/"H"	Hayward HW	Direct	4000	C-dn	500-1	600-1	600-1½
OAK VOR	Hayward HW	Direct	4000	S-dn-27R%	200-½	200-½	200-½
Bay Point Int	Hayward HW	Direct	6000	S-dn-27L#	400-1	400-1	400-1
Altamont Int	Hayward HW	Direct	5000	A-dn	600-2	600-2	600-2
Sunol Int	Hayward HW (Final)**	Direct	4000				
Decota Int	Hayward HW (Final)	Direct	2600				
Radar transitions and vectoring authorized using Oakland Radar in accordance with approved radar patterns. Procedure turn S side of crs, 095° Outbnd, 275° Inbnd, 4000' within 10 miles of HWD HW. Beyond 10 mi NA. (Nonstandard due to high terrain North.) Minimum altitude at glide slope int. inbnd, 2700'. Altitude of glide slope and distance to approach end of runway at HWD HW, 2590'—8.2 mi at OM, 1320'—4.1; at MM, 230'—0.6. If visual contact not established upon descent to authorized landing minimums or if landing not accomplished, climb to 2000' in a 1-minute right turn holding pattern on R-300 OAK-VOR (120° Inbnd, 300° Outbnd, all turns W side of crs). An aircraft executing a missed approach may, after being reidentified, be radar controlled. Missed approaches must cross OAK-VOR not above 1500'. *300-1 required for takeoff on Runway 33. **Descend on glide slope to cross Hayward HW at 2590'. #Crs and distance, OM to Runway 27L, 274°—4.1 mi. %Runway Visual Range 2600' also authorized for landing on Runway 27R: *Provided*, That all components of the ILS, high intensity runway lights, approach lights, condenser-discharge flasher, middle compass locator, outer compass locator, outer marker, Hayward HW and all related airborne equipment are operating satisfactorily. Descent below 205' msl shall not be made unless visual contact with the approach lights has been established or the aircraft is clear of clouds. ##Runway Visual Range 2600' also authorized for takeoff on Runway 27R in lieu of 200-½ when 200-½ is authorized, providing high intensity runway lights are operational.							
City, Oakland; State, Calif.; Airport Name, Metropolitan Oakland International; Elev., 5'; Fac. Class., ILS; Ident., I-OAK; Procedure No. ILS-27/L, Amdt. 17; Eff. Date, 2 June 62; Sup. Amdt. No. 16; Dated, 10 Mar. 62							
Pendleton VOR	LOM	Direct	4600	T-dn	300-1	300-1	200-½
Pendleton LFR	LOM	Direct	4600	C-dn	500-1	500-1	500-1½
Athena Int	LOM	Direct	4600	S-dn-25R	200-½	200-½	200-½
Cabbage Hill FM	LOM	Direct	4800	A-dn	600-2	600-2	600-2
Athena Int	Int ALW-VOR R-180 and E crs PDT ILS.	Direct	4600				
Int ALW-VOR R-180 and E crs PDT ILS	LOM (Final)	Direct	*4500				
Pilot Rock Int	LOM	Direct	4800				
Procedure turn N side of crs, 070° Outbnd, 250° Inbnd, 4600' within 10 miles. Minimum altitude at glide slope int inbnd, 3200'. Altitude of glide slope and distance to approach end of runway at OM 2750'—4.1; at MM 1725'—0.6. If visual contact not established upon descent to authorized landing minimums or if landing not accomplished, climb to 4000' direct to PDT-VOR, continue climb on R-250 within 15 miles or, when directed by ATC, climb to 4000' on crs 250° Outbnd, 070° Inbnd within 15 mi of DT LMM. *Descent on glide slope to cross LOM at 2750' is authorized.							
City, Pendleton; State, Oreg.; Airport Name, Pendleton; Elev., 1493'; Fac. Class, ILS; Ident., I-PDT; Procedure No. ILS-25R, Amdt. 5; Eff. Date, 2 June 62; Sup. Amdt. No. 4; Dated, 17 June 61							

ILS STANDARD INSTRUMENT APPROACH PROCEDURE—Continued

Transition				Ceiling and visibility minimums			
From—	To—	Course and distance	Minimum altitude (feet)	Condition	2-engine or less		More than 2-engine, more than 65 knots
					65 knots or less	More than 65 knots	
PIE–VOR	LOM	Direct	1300	T–dn	300–1	300–1	200–½
TPA–LFR	LOM	Direct	1500	C–dn	400–1	500–1	500–1½
Radar terminal area transition altitudes	Radar site	Within 25 miles	#1500	S–dn–17	200–½	200–½	200–½
				A–dn	600–2	600–2	600–2

Procedure turn W side of crs, 350° Outbnd, 170° Inbnd, 1300′ within 10 mi.
Minimum altitude at glide slope int inbnd, 1300′.
Altitude of glide slope and distance to approach end of runway at OM, 1166′—4.2 mi; at MM, 189′—0.5 mi.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished, turn right, climb to 1500′ on PIE–VOR R–270 within 20 miles or, when directed by ATC, turn right and climb to 1500′ on crs of 270°, intercept and proceed out 220° brng from PI LOM within 20 miles.
NOTE: 500–¾ required when glide slope not utilized.
#Radar control will provide 1000′ vertical clearance within a 3-mile radius or 500′ vertical clearance within a 3- to 5-mile (inclusive) radius of radio towers 861′ msl 19.5 miles ESE and 1135′ msl 23 miles ESE of airport.

City, St. Petersburg; State, Fla.; Airport Name, St. Petersburg-Clearwater International; Elev., 10′; Fac. Class., ILS; Ident., I–PIE; Procedure No. ILS–17, Amdt. 2; Eff. Date, 2 June 62; Sup. Amdt. No. 1; Dated, 27 Jan. 62

Thornhurst VOR	CYE RBn*	Direct	3500	T–dn#	600–1	600–1	600–1
Effort Int	CYE RBn*	Direct	3500	C–d	900–1½	1000–1½	1000–2
Pocono Int	CYE RBn*	Direct	3500	C–n	1300–2	1300–2	1300–2
Avoca Int	CYE RBn*	Direct	3500	S–dn–4**	600–1	600–1	600–1
Lopez Int	CYE RBn*	Direct	3500	A–d	1200–2	1200–2	1200–2
Hazleton RBn	CYE RBn*	Direct	3500	A–n	1600–3	1600–3	1600–3
Scranton Int##	CYE RBn*	Direct	4000				

Procedure turn W% side SW crs, 223° Outbnd, 043° Inbnd, 3500′ within 10 mi of Crystal Lake RBn.
Minimum altitude at glide slope int inbnd final, 3500′ over Crystal Lake RBn.
Altitude of glide slope and distance to approach end of runway at CYE* RBn, 3500′—8.5 mi; at OM, 2230′—3.9 mi; at MM, 1180′—0.6.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 3.9 miles after passing Wilkes-Barre LOM or 8.5 miles after passing Crystal Lake RBn, climb to 3500′ on crs 043° from the Wilkes-Barre LOM, then proceed direct to the Wilkes-Barre VOR, maintain 4000′. Hold E; 1-minute right turns, inbnd crs 268° or, when directed by ATC, (1) climb to 3500′ on crs 043° from the LOM, turn left and proceed direct to Crystal Lake RBn, maintain 3500′, hold SW 1-minute left turns inbnd crs 043°, (2) hold W of Crystal Lake RBn, 3500′ 1-minute right turns, inbnd crs 100°.
NOTE: High terrain to E, SE, and S of airport within 2.5 miles.
AIR CARRIER NOTE: Provisions for reduced visibility not authorized at night or with day minimums below 1 mile for 65 knots or less aircraft and 1½ miles for more than 65 knots aircraft.
#Takeoff minimums for Runways 10 and 16: Day, 600–2; night, 800–2.
*Crystal Lake RBn—this approach is authorized only when Crystal Lake radio beacon is operating.
%Procedure turn nonstandard to provide separation from approaches to Hazleton, Pa.
**If glide slope not utilized, straight-in minimums to Runway 4 will be 800–1—65 knots or less, 800–1½—more than 65 knots. After passing CYE RBn, if OM not received do not descend below 2600′.
##Scranton Int: Int R–349 Thornhurst VOR and R–289 Wilkes-Barre VOR.

City, Wilkes-Barre; State, Pa.; Airport Name, Wilkes-Barre-Scranton; Elev., 956′; Fac. Class., ILS; Ident., I–AVP; Procedure No. ILS–4, Amdt. 13; Eff. Date, 2 June 62; Sup. Amdt. No. 12; Dated, 21 Apr. 62

6. The radar procedures prescribed in § 609.500 are amended to read in part:

RADAR STANDARD INSTRUMENT APPROACH PROCEDURE

Bearings, headings, courses and radials are magnetic. Elevations and altitudes are in feet, MSL. Ceilings are in feet above airport elevation. Distances are in nautical miles unless otherwise indicated, except visibilities which are in statute miles.
If a radar instrument approach is conducted at the below named airport, it shall be in accordance with the following instrument procedure, unless an approach is conducted in accordance with a different procedure for such airport authorized by the Administrator of the Federal Aviation Agency. Initial approaches shall be made over specified routes. Minimum altitude(s) shall correspond with those established for en route operation in the particular area or as set forth below. Positive identification must be established with the radar controller. From initial contact with radar to final authorized landing minimums, the instructions of the radar controller are mandatory except when (A) visual contact is established on final approach at or before descent to the authorized landing minimums, or (B) at pilot's discretion if it appears desirable to discontinue the approach, except when the radar controller may direct otherwise prior to final approach, a missed approach shall be executed as provided below when (A) communication on final approach is lost for more than 5 seconds during a precision approach, or for more than 30 seconds during a surveillance approach; (B) directed by radar controller; (C) visual contact is not established upon descent to authorized landing minimums; or (D) if landing is not accomplished.

Transition				Ceiling and visibility minimums			
From—	To—	Course and distance	Minimum altitude (feet)	Condition	2-engine or less		More than 2-engine, more than 65 knots
					65 knots or less	More than 65 knots	
All directions		Within 5- to 20-mile radius#.	2000	T–dn	300–1	300–1	200–½
				C–dn	500–1	500–1	500–1½
				A–dn	800–2	800–2	800–2

Aircraft on any direct course to Addison TVOR may descend to 1100′ msl from 5-mile radar fix.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 0.0 mile after passing Addison VOR, proceed direct to DAL–VOR, climbing to 2000′.
NOTE: Air carrier use NA. No weather service available.
Other change: Remove notes regarding non-Federal facility and no weather service available.
#Radar control must provide 1000′ clearance within 3 mi or 500′ clearance when within 3–5 mi of radio towers 2349′ msl 23 mi SSW, 1221′ msl 10 mi WSW, and 1108′ msl 14 mi north of airport.

City, Dallas; State, Tex.; Airport Name, Addison; Elevation, 644′; Fac. Class., Dallas Radar; Ident., Addison VOR; Procedure No. 1; Amdt. 2; Eff. Date, 2 June 62; Sup. Amdt. No. 1; Dated, 13 Dec. 58

These procedures shall become effective on the dates specified therein.

(Secs. 313(a), 307(c), 72 Stat. 752, 749; 49 U.S.C. 1354(a), 1348(c))

Issued in Washington, D.C., on April 26, 1962.

G. S. MOORE,
Acting Director, Flight Standards Service.

[F.R. Doc. 62–4329; Filed, May 16, 1962; 8:45 a.m.]

Title 5—ADMINISTRATIVE PERSONNEL

Chapter I—Civil Service Commission

PART 6—EXCEPTIONS FROM THE COMPETITIVE SERVICE

Department of Defense

Effective upon publication in the FEDERAL REGISTER, subparagraph (4) is added to paragraph (b) of § 6.104 as set out below.

§ 6.104 **Department of Defense.**

* * * * *

(b) *Entire Department (including the Office of the Secretary of Defense and the Departments of the Army, Navy, and Air Force).* * * *

(4) Positions of Educational Specialist the incumbents of which will serve as Director of Religious Education on the Staffs of the Chaplains in the military services.

(R.S. 1753, sec. 2, 22 Stat. 403, as amended; 5 U.S.C. 631, 633)

UNITED STATES CIVIL SERVICE COMMISSION,
[SEAL] MARY V. WENZEL,
Executive Assistant to the Commissioners.

[F.R. Doc. 62-4799; Filed, May 16, 1962; 8:50 a.m.]

Title 15—COMMERCE AND FOREIGN TRADE

Chapter II—National Bureau of Standards, Department of Commerce

PART 230—STANDARD SAMPLES AND REFERENCE STANDARDS ISSUED BY NATIONAL BUREAU OF STANDARDS

Subpart B—Standard Samples and Reference Standards With Schedule of Weights and Fees

DESCRIPTIVE LIST; MISCELLANEOUS AMENDMENTS

In accordance with the provisions of section 4 (a) and (c) of the Administrative Procedure Act, it has been found that notice and hearing on these schedules of fees are unnecessary for the reason that such procedures, because of the nature of these rules, serve no useful purpose. These amendments are effective from May 1, 1962.

In § 230.11 *Descriptive list:*

1. Paragraph (i) *Chemicals* is amended to add sample number 949 (Plutonium Metal Chemical Standard) to read as follows:

Sample No.	Purity	Weight of sample	Price per sample
949 [1]	99.97±0.03%	0.5g	$34.00

[1] This standard is available to SS stations, AEC licensees, and foreign governments which have entered with an Agreement for Cooperation with the United States Government concerning the Civil Uses of Atomic Energy. Requests for the standard must be made on special order forms (Form NBS-285) obtainable free of charge from the Department of Commerce, National Bureau of Standards, Division of Analytical and Inorganic Chemistry, Washington 25, D.C.

Domestic orders should be addressed directly to the National Bureau of Standards. Foreign orders must be sent in triplicate to the Division of International Affairs, U.S. Atomic Energy Commission, Washington 25, D.C. Standards will be shipped Express Collect.

Domestic purchasers will be billed by the National Bureau of Standards. Remittances in payment of foreign orders must be made payable to the National Bureau of Standards and are requested in advance. These remittances must be drawn on a bank in the United States and payable at the standard rate of United States currency.

2. Paragraph (m) *Spectrographic standards* is amended by the addition of ten new samples to the (Copper-base alloys series) to read as follows:

Sample No.[1]	Name	Price per sample
C1100	Cartridge Brass A, Chill Cast	$25.00
1101	Cartridge Brass B, Wrought	25.00
C1101	Cartridge Brass B, Chill Cast	25.00
1102	Cartridge Brass C, Wrought	25.00
C1102	Cartridge Brass C, Chill Cast	25.00
C1109	Red Brass A, Chill Cast	25.00
1110	Red Brass B, Wrought	25.00
C1110	Red Brass B, Chill Cast	25.00
1111	Red Brass C, Wrought	25.00
C1111	Red Brass C, Chill Cast	25.00

[1] Sizes: The sample numbers not preceded by a letter "C" are wrought and are disks 1¼ in. in diameter, ¾ in. thick; the sample numbers preceded by the letter "C" generally have the same composition but are in the form of chill-cast sections 1¼ in. square, ¾ in. thick.

3. Paragraph (r) *Radioactivity standards* is amended to add sample numbers 4942 (Calcium-45) and 4943 (Chlorine-36) to read as follows:

Sample No.	Radiation	Nuclide	Nominal activity	Price per sample
4942	β	Calcium 45	10^5dps/g	$38.00
4943	β	Chlorine-36	10^4/s/g	26.00

4. Paragraph (gg) Portland cement samples (Nos. 1011, 1013, 1014, 1015, and 1016) published in the FEDERAL REGISTER dated April 13, 1962 (27 F.R. 3551) is amended by renumbering the samples to read as follows:

Sample No.	Name	Price per sample
1311	Portland cement	$6.00
1313	do	6.00
1314	do	6.00
1315	do	6.00
1316	do	6.00

5. A new series (Set of five filters for checking spectrophotometers equipped with tristimulus integrators) is added and designated paragraph (ii) to read as follows:

(ii) *Set of five filters for checking spectrophotometers equipped with tristimulus integrators.*

Sample No.	Description	Price per set
2101 2102 2103 2104 2105	Set of five filters for checking spectrophotometers equipped with tristimulus integrators (to be sold in sets of five only).	$250.00

6. A new series (Soda-lime-silica glass viscosity standards) is added and designated paragraph (jj) to read as follows:

(jj) *Soda-lime-silica glass viscosity standards.*

Sample No.	Description	Weight	Price per sample
710	Soda-Lime-Silica glass viscosity standards—Temperature Range 560° C–1450° C.	Approximately 2 pounds.	$40.00

(Sec. 9, 31 Stat. 1450, as amended; 15 U.S.C. 277. Interprets or applies sec. 7, 70 Stat. 959; 15 U.S.C. 275a)

A. V. ASTIN,
Director.

[F.R. Doc. 62-4791; Filed, May 16, 1962; 8:49 a.m.]

Proposed Rule Making

DEPARTMENT OF AGRICULTURE

Agricultural Marketing Service

[7 CFR Part 58]

NONFAT DRY MILK (SPRAY PROCESS)

Proposed Standards for Grades

Notice is hereby given that the United States Department of Agriculture is considering the issuance, as hereinafter proposed, of an amendment to the United States Standards for Grades of Nonfat Dry Milk (Spray Process) (7 CFR Part 58, Subpart L) currently in effect pursuant to the authority contained in the Agricultural Marketing Act of 1946 (60 Stat. 1087; 7 U.S.C. 1621 et seq.).

The proposed amendment provides, under § 58.2528 *Requirements for U.S. grades of nonfat dry milk*, and § 58.2538 *Basis for obtaining heat treatment classification*, for a higher maximum solubility index for nonfat dry milk that qualifies for the U.S. High Heat classification. The purpose of the increase is to allow for possible rise in the solubility index of product subjected to high heat treatment. Such heat treatment is considered essential for the type of nonfat dry milk used for certain baking purposes.

All persons who desire to submit written data, views or arguments for consideration in connection with this proposed amendment should file the same in triplicate with the Chief of the Standardization Branch, Dairy Division, Agricultural Marketing Service, United States Department of Agriculture, Room 2742 South Building, Washington 25, D.C., not later than 30 days after publication of this notice in the FEDERAL REGISTER.

§ 58.2528 [Amendment]

1. In § 58.2528, change paragraph (a) (3) (v) to read as follows:

(v) Solubility index: Not more than 1.2 ml., except that product designated as U.S. High Heat may not have more than 2.0 ml.

2. In § 58.2528, change paragraph (b) (3) (v) to read as follows:

(v) Solubility index: Not more than 2.0 ml., except that product designated as U.S. High Heat may have not more than 2.5 ml.

3. In Table III—Classification According to Laboratory Analyses for Nonfat Dry Milk Spray Process, of § 58.2528, change item (5) to read as follows:

	Extra	*Standard*
(5) Solubility index, ml-----	1.2	2.0
U.S. High Heat-----------	2.0	2.5

4. Change § 58.2538 to read:

§ 58.2538 Basis for obtaining heat treatment classification.

Heat treatment classification is not a U.S. Grade requirement except in cases when the higher solubility index specified for U.S. High Heat product is permitted. In all other instances, product submitted for USDA grading may be analyzed for heat treatment classification upon request of the applicant and the results shown on the grading certificate. Heat treatment classification will be made available only upon a U.S. graded product.

(60 Stat. 1090; 7 U.S.C. 1624)

Done at Washington, D.C., this 11th day of May 1962.

G. R. GRANGE,
Deputy Administrator,
Marketing Services.

[F.R. Doc. 62-4770; Filed, May 16, 1962; 8:47 a.m.]

Agricultural Research Service

[7 CFR Part 301]

JAPANESE BEETLE

Notice of Proposed Amendment of Quarantine and Regulated Areas

Notice is hereby given under section 4 of the Administrative Procedure Act (5 U.S.C. 1003) that the Administrator of the Agricultural Research Service, pursuant to sections 8 and 9 of the Plant Quarantine Act of 1912, as amended, and section 106 of the Federal Plant Pest Act (7 U.S.C. 161, 162, 150ee), is considering the amendment of notice of quarantine No. 48 (Japanese Beetle Quarantine No. 48, 7 CFR 301.48) and §§ 301.48–1 and 301.48–2a of the regulations supplemental thereto (7 CFR 301.48–1, 301.48–2a), in the following respects:

§ 301.48 [Amendment]

1. Amend the first paragraph of § 301.48 by inserting, among the quarantined States named therein, in the proper alphabetical order, the States of Georgia, Indiana, Kentucky, and South Carolina; and by transposing, wherever they occur together in said first paragraph, the words "products, articles" to read "articles, products".

2. Amend § 301.48(c) by deleting therefrom the words "Alaska" and "Hawaii."

3. In § 301.48–1, amend paragraph (a) by deleting therefrom the word "living"; and amend paragraph (c) and (f) to read as follows:

§ 301.48–1 Definitions.

* * * * *

(c) *Regulated area.* Any State or District, or any county or other minor civil division, or part thereof, designated in administrative instructions under § 301.48–2 as a regulated area.

* * * * *

(f) *Regulated articles.* Soil, and other articles and products, and means of conveyance, the movement of which is regulated by the Japanese beetle quarantine and the regulations in this subpart.

4. Amend § 301.48–2a to read as follows:

§ 301.48–2a Administrative instructions designating regulated areas under the Japanese beetle quarantine.

Infestations of the Japanese beetle have been determined to exist, in the quarantined States and District and in the counties, and other minor civil divisions, and parts thereof in such States, listed below, or it has been determined that such infestation is likely to exist therein, or it is deemed necessary to regulate such localities because of their proximity to infestation or their inseparability for quarantine enforcement purposes from infested localities. Accordingly, such States and District, and such counties, and other minor civil divisions, and parts thereof, are hereby designated, as follows, as Japanese beetle regulated areas, which are further divided into generally infested areas and suppressive areas, within the meaning of the provisions in this subpart:

(a) *Connecticut*—(1) *Generally infested area.* The entire State.

(2) *Suppressive area.* None.

(b) *Delaware*—(1) *Generally infested area.* The entire State.

(2) *Suppressive area.* None.

(c) *District of Columbia*—(1) *Generally infested area.* The entire District.

(2) *Suppressive area.* None.

(d) *Georgia*—(1) *Generally infested area.*

Clayton County. Georgia Militia Districts 548, 1189, 1406, 1446, and 1644.

Cobb County. That portion of the county lying south of State Highway 120, including all the area within the corporate limits of the city of Marietta.

Dawson County. The entire county.

DeKalb County. That portion of the county lying south, west, and north of Interstate Highway 285, including all of the area within the corporate limits of Doraville.

Fannin County. Georgia Militia Districts 1027, 1242, and 1488.

Forsyth County. That portion of the county lying north of State Highway 20, including all the area within the corporate limits of the city of Cumming.

Fulton County. That area bounded by a line beginning at the intersection of Interstate Highway 285 and the Fulton-DeKalb County line, and extending south along the Fulton-DeKalb County line to the Fulton-Clayton County line, thence west and south along the Fulton-Clayton County line to the Fulton-Fayette County line, thence southwestward along the Fulton-Fayette County line to its intersection with State Highway 92, thence northwestward along said highway to its intersection with the Chattahoochee River, thence northeastward along said river to its intersection with Interstate Highway 285, thence eastward along Interstate Highway 285 to the Fulton-DeKalb County line, the point of beginning, excluding the city of Fairburn.

Hall County. The entire county.

Lumpkin County. The entire county.

Stephens County. That portion of the county lying within the corporate limits of the city of Toccoa.

Union County. Georgia Militia Districts 994, 995, and 1241.

White County. The entire county.
(2) *Suppressive area.*
Bibb County. The entire county.
Macon County. The entire county.
Muscogee County. The entire county.
Richmond County. That portion of the county lying north of Butler Creek.
Spalding County. That portion of the county lying within the corporate limits of the city of Griffin.
(e) *Indiana*—(1) *Generally infested area.* The entire State.
(2) *Suppressive area.* None.
(f) *Kentucky*—(1) *Generally infested area.*
Boone County. The entire county.
Boyd County. The entire county.
Campbell County. The entire county.
Greenup County. The entire county.
Kenton County. The entire county.
Lawrence County. The entire county.
Letcher County. The entire county.
Martin County. The entire county.
Pike County. The entire county.
(2) *Suppresive area.* None.
(g) *Maine*—(1) *Generally infested area.*
Androscoggin County. The entire county.
Cumberland County. The entire county.
Kennebec County. The entire county.
Lincoln County. The entire county.
Oxford County. The entire county.
Sagadahoc County. The entire county.
York County. The entire county.
(2) *Suppressive area.* None.
(h) *Maryland*—(1) *Generally infested area.* The entire State.
(2) *Suppressive area.* None.
(i) *Massachusetts*—(1) *Generally infested area.* The entire State.
(2) *Suppressive area.* None.
(j) *New Hampshire*—(1) *Generally infested area.* The entire State.
(2) *Suppressive area.* None.
(k) *New Jersey*—(1) *Generally infested area.* The entire State.
(2) *Suppressive area.* None.
(l) *New York*—(1) *Generally infested area.* The entire State.
(2) *Suppressive area.* None.
(m) *North Carolina*—(1) *Generally infested area.* The entire State.
(2) *Suppressive area.* None.
(n) *Ohio*—(1) *Generally infested area.*
Ashland County. The townships of Green, Hanover, Lake, Mifflin, Mohican, and Vermilion.
Ashtabula County. The entire county.
Athens County. The entire county.
Belmont County. The entire county.
Butler County. The townships of Fairfield, Hanover, Liberty, Morgan, Reily, Ross, St. Clair, and Union; and cities of Fairfield and Hamilton.
Carroll County. The entire county.
Columbiana County. The entire county.
Coshocton County. The entire county.
Cuyahoga County. The entire county.
Franklin County. The cities of Bexley, Columbus, Grandview Heights, Marble Cliff, Upper Arlington, and Whitehall.
Gallia County. The entire county.
Geauga County. The entire county.
Guernsey County. The entire county.
Hamilton County. The entire county.
Harrison County. The entire county.
Holmes County. The entire county.
Jackson County. The entire county.
Jefferson County. The entire county.
Lake County. The entire county.
Lawrence County. The entire county.
Licking County. The townships of Bowling Green, Eden, Fallsburg, Franklin, Granville, Hanover, Hopewell, Licking, Madison, Mary Ann, Newark, Newton, Perry, and Washington; and the city of Newark.
Lorain County. The townships of Amherst, Avon, Avon Lake, Black River, Columbia, Elyria, Ridgeville, and Sheffield; and the cities of Amherst, Elyria, Lorain, and Sheffield.
Lucas County. The townships of Adams, Harding, Monclova, Oregon, Ottawa Hills, Richfield, Spencer, Springfield, Swanton, Sylvania, and Washington; and the cities of Maumee, Oregon, Sylvania, and Toledo.
Mahoning County. The entire county.
Medina County. The entire county.
Meigs County. The entire county.
Monroe County. The entire county.
Morgan County . The entire county.
Muskingum County. The entire county.
Noble County. The entire county.
Perry County. The entire county.
Portage County. The entire county.
Richland County. The townships of Madison, Mifflin, and Monroe; and the city of Mansfield.
Ross County. The townships of Harrison, Jefferson, Liberty, Scioto, and Springfield, and the city of Chillicothe.
Stark County. The entire county.
Summit County. The entire county.
Trumbull County. The entire county.
Tuscarawas County. The entire county.
Vinton County. The entire county.
Washington County. The entire county.
Wayne County. The entire county.
Wood County. The townships of Lake, Perrysburg, Ross, and Rossford; and the city of Perrysburg.
(2) *Suppressive area.* None.
(o) *Pennsylvania*—(1) *Generally infested area.* The entire State.
(2) *Suppressive area.* None.
(p) *Rhode Island*—(1) *Generally infested area.* The entire State.
(2) *Suppressive area.* None.
(q) *South Carolina*—(1) *Generally infested area.*
Cherokee County. The entire county.
Dillon County. The entire county.
Greenville County. The entire county.
Marlboro County. The entire county.
Oconee County. The entire county.
Pickens County. The entire county.
Spartanburg County. The entire county.
(2) *Suppressive area.* None.
Aiken County. The entire county.
Florence County. The entire county.
Lexington County. The entire county.
Richland County. The entire county.
(r) *Vermont*—(1) *Generally infested area.* The entire State.
(2) *Suppressive area.* None.
(s) *Virginia*—(1) *Generally infested area.* The entire State.
(2) *Suppressive area.* None.
(t) *West Virginia*—(1) *Generally infested area.* The entire State.
(2) *Suppressive area.* None.

(Sec. 9, 37 Stat. 318, sec. 106, 71 Stat. 33, 7 U.S.C. 162, 150ee; 19 F.R. 74, as amended. Interprets or applies sec. 8, 37 Stat. 318, as amended; 7 U.S.C. 161)

These proposals are based in part on testimony offered at a public hearing held at Memphis, Tenn., on December 5, 1961, to consider the advisability of quarantining the States of California, Georgia, Illinois, Indiana, Iowa, Kentucky, Michigan, Missouri, South Carolina, and Tennessee; notice of such public hearing having been published in the FEDERAL REGISTER on October 18, 1961 (26 F.R. 9780).

It is now proposed to quarantine the four States of Georgia, Indiana, Kentucky, and South Carolina, and to place under regulation the entire State of Indiana (where Japanese beetle infestation is widespread), together with 5 entire counties and parts of 12 others in Georgia, 9 counties in Kentucky and 11 counties in South Carolina. Three counties and parts of two others in Georgia as well as four counties in South Carolina would be designated as suppressive areas, in which cooperative State-Federal measures aimed at eradicating the infestations would be carried out.

All remaining nonregulated areas in the States of New Hampshire, New York, and Vermont are proposed for inclusion in the regulated areas.

In Maine, the counties of Androscoggin, Cumberland, and Kennebec, now partially regulated, would be included in their entirety, and the entire counties of Lincoln, Oxford, and Sagadahoc would be regulated for the first time. The city of Brewer, in Penobscot County, Maine, is proposed for removal from regulation, since it is more practicable from an administrative standpoint to regulate this area under the State of Maine Japanese beetle quarantine.

Quite a few additions to the Ohio regulated areas are proposed. In previously regulated counties it is proposed to add three cities in Lorain County, seven townships and two cities in Lucas County, and two townships in Richland County. Additions proposed in counties not previously regulated are: Ashland County, six townships; Bulter County, seven townships and two cities; Hamilton, Jackson, Perry, and Vinton Counties in their entirety; Ross County, five townships and one city; and Wood County, four townships and one city. The designation of the township of Marion in Franklin County as regulated area is deleted because this township is now included in the city limits of Columbus, Ohio, which is a regulated area.

All areas listed in these administrative instructions, except for the small suppressive areas in Georgia and South Carolina, are for proposed designation as generally infested areas.

After a study of testimony presented at the public hearing, it has been decided not to quarantine the States of California, Illinois, Iowa, Michigan, Missouri, or Tennessee. Suppressive measures applied by the State of Iowa to the limited infestations discovered in that State have apparently been successful, since no Japanese bettles were found there in 1961. The other States omitted from the quarantine are committed to an aggressive program of Japanese bettle control, eradication, and prevention of spread.

All persons who desire to submit written data, views, or arguments in connection with this matter should file the same with the Director of the Plant Pest Control Division, Agricultural Research Service, United States Department of Agriculture, Washington 25, D.C., within 30 days after the date of publication of this notice in the FEDERAL REGISTER.

Done at Washington, D.C., this 14th day of May 1962.

[SEAL] M. R. CLARKSON,
Acting Administrator,
Agricultural Research Service.

[F.R. Doc. 62-4800; Filed, May 16, 1962; 8:50 a.m.]

Agricultural Stabilization and Conservation Service

[7 CFR Part 1049]

[Docket No. AO-319-A1]

MILK IN INDIANAPOLIS, IND., MARKETING AREA

Decision on Proposed Amendments to Tentative Marketing Agreement and to Order

Pursuant to the provisions of the Agricultural Marketing Agreement Act of 1937, as amended (7 U.S.C. 601 et seq.), and the applicable rules of practice and procedure governing the formulation of marketing agreements and marketing orders (7 CFR Part 900), a public hearing was held at Indianapolis, Indiana, on January 30–February 1, 1962, pursuant to notice thereof issued on December 29, 1961 (27 F.R. 122).

Upon the basis of the evidence introduced at the hearing and the record thereof, the Assistant Secretary of Agriculture on April 13, 1962 (27 F.R. 3685; F.R. Doc. 62–3776) filed with the Hearing Clerk, United States Department of Agriculture, his recommended decision containing notice of the opportunity to file written exceptions thereto.

The material issues, findings and conclusions, rulings and general findings of the recommended decision (27 F.R. 3685; F.R. Doc. 62–3776) are hereby approved and adopted and set forth in full herein.

1. The fifth paragraph of issue numbered 7 and 8 is revised.

2. Three new paragraphs are added immediately following the revised fifth paragraph of issue numbered 7 and 8.

3. The new paragraphs are added immediately following the sixth paragraph of issue numbered 7 and 8.

The material issues on the record of the hearing relate to:

1. Expansion of the marketing area;
2. Revision of pool plant qualifications;
3. Modification of provisions with respect to plants also meeting the pooling requirements of another Federal order;
4. Revision of the transfer provisions;
5. Extension of the months when unlimited diversion is permitted;
6. Classification and pricing of nonfat dry milk solids used to fortify fluid milk products;
7. The level of the Class I and Class II prices;
8. Separate classification and pricing of specified manufactured products;
9. Revision of shrinkage provisions;
10. Revision of location differentials to both handlers and producers;
11. Changing the date for filing reports and making payments;
12. Changing the rate of the administrative assessment; and
13. Administrative and conforming changes.

The record evidence demonstrates the need for amendatory action with respect to Issues 2, 3, 5, 7 and 8 as soon as possible. Since making effective an amendment dealing with all the above mentioned issues, many of which require exhaustive analysis, will require considerable time, this decision is confined to Issues 2, 3, 5, 7, and 8 and the remaining issues will be dealt with in a separate decision at a later date.

Findings and conclusions. The following findings and conclusions on material issues 2, 3, 5, 7, and 8 are based on evidence presented at the hearing and the record thereof:

2. The requirements that a distributing plant must meet to maintain pool status should be revised to provide that a distributing plant which is a pool plant for each of the months of September through May, may continue to be a pool plant in the succeeding months of June, July, and August if it continues to distribute fluid milk products on routes in the marketing area in each of these months.

This amendment was submitted on behalf of the Purdue University Creamery. This plant operated by the University, a state supported institution, produces only a small portion of the milk which it processes. The remainder is purchased from dairy farmers. Since the primary outlet for the fluid milk products processed and packaged in the University creamery are on campus, during the months of summer vacation its fluid distribution falls far below the 50 percent of its receipts of Grade A milk which is required for pool plant status.

During the remainder of the year the plant has a fairly high utilization. It would be inequitable to the dairy farmers who regularly supply the plant with milk to drop them from the pool during the months of June, July and August because the student population at the University is on summer vacation. It would also be impractical, if not impossible, for these producers to be transferred to other plants during these months, since at that time milk is in ample supply and other handlers are finding it a burden to dispose of the seasonal surplus in their own plants.

To preserve orderly marketing, therefore, it is necessary that a plant such as the Purdue Creamery, which, for the year as a whole, disposes of as high a percentage of its milk in Class I as does the rest of the market, be permitted to maintain pool status during the months of summer vacation.

It was proposed also that, in order to share in the pool, dairy farmers whose milk is delivered to such a plant during the months of June, July and August would have to have been on the market as producers for at least the three months preceding. Such a restriction might interfere with the orderly marketing of milk in the area as a whole, since it might afford an incentive for plants to take on an oversupply of milk during the winter months.

To prevent sharing in the marketwide pool by dairy farmers who are not a part of the regular supply for the fluid market it should also be provided that if milk is moved from a supply plant to such a plant during June, July or August such shipments would be excluded in determining the pool status of the supply plant.

A further proposal considered at the hearing would grant automatic pool status during the months of April through July to a plant which was a pool distributing plant during a portion of the August through January qualifying period and a supply plant during the remainder of such period.

The handler who made this proposal, last fall acquired a pool distributing plant at Muncie, Indiana. In December this handler ceased bottling at Muncie and consolidated the bottling operations at the Greenville, Ohio, plant, also a pool distributing plant under the order. The Muncie plant is now operated as a supply plant for the Greenville operation. It also serves as a manufacturing plant to handle the reserve supplies not needed for bottling.

Under the present provisions, in order to maintain pool status, it would be necessary that 50 percent of the receipts at Muncie be moved to the distributing plant every month, even though it were not needed for fluid distribution. In some months it might be necessary to move the milk back to Muncie to have it manufactured into dairy products. Such movements would be uneconomic and not in the interest of orderly marketing.

While it has been customary that a plant must qualify, either as a distributing plant or as a supply plant, and not by a combination of these functions, in the present instance an exception should be made to accommodate the unusual circumstances here involved. During the months of August through January this plant qualified as a pool plant by meeting the performance standards each month as either a supply plant or a distributing plant. The order should be amended to permit a supply plant which was a pool distributing plant during a portion of the qualifying months to retain pool status during the months of April through July as though it had been a supply plant during the entire qualifying period if it qualified as a pool supply plant for the months of December through March.

3. The pooling provisions of the order should be modified to permit a distributing plant meeting the requirements for full regulation under this order and another Federal order and which the Secretary determines has a greater proportion of its Class I disposition in the other market, but which was pooled under this order in the most recent month, to retain pooling status under this order until the third consecutive month in which a greater volume of Class I milk is disposed of on routes in such other marketing area. It must be recognized, however, that the provisions of such other order may require the plant to be pooled under such other order. In these circumstances, the plant would be exempt from regulation under this order, except that it would be required to file reports and permit verification. The order should also exempt a distributing plant doing a greater proportion of its total Class I business in this marketing area but which is nevertheless subject to regulation for the month under another order. Federal orders usually provide that a distributing plant meeting the pooling requirements of more than one order will be regulated under that order covering the area in which a greater volume of its Class I sales is made. Nevertheless, it should be recognized that other orders may contain provisions

similar to that proposed herein to deter plants from shifting back and forth between orders on a month-to-month basis.

Under the provisions of the present order a handler operating a distributing plant which meets the pooling requirements of this order is exempt from the provisions of this order (except reporting) if a greater proportion of his milk is disposed of as Class I milk in another Federal order marketing area and his milk is classified and priced under such other order.

The shifting of plants back and forth between Federal orders can create instability in the market, particularly during the months of the "Louisville" plan operation. There are regulated handlers under this order whose distribution on routes in this marketing area is only a little greater than their distribution in the Fort Wayne, Indiana, market. There are, likewise, handlers regulated under the Fort Wayne order whose sales are almost equal to their sales in the Indianapolis marketing area. Very minor changes in the proportion of distribution between the two markets could result in shifting the regulation of such a handler from one order to the other and back again every month or two.

Such shifts in regulation would tend to create disorder between the two markets because of the effect on the respective market blend prices and because of the variations in the "Louisville" plan of fall incentive payments in the two orders.

A distributing plant which meets the pooling requirements of more than one order should in general be regulated under the order covering the area in which it has the greatest proportion of its fluid distribution. It is necessary to recognize, however, the adverse effects of the shifting back and forth from month to month by a plant which is usually associated with the Indianapolis market. This situation can be substantially improved by adoption of the changes recommended herein. A handler operating a distributing plant which has been subject to regulation under this order and which continues to meet the pool plant standards provided herein generally should not become subject to another order unless he has disposed of more milk on routes in such other marketing area than in the Indianapolis marketing area for three consecutive months. This will afford the handler reasonable notice that the plant is shifting from one order to another and will afford him the opportunity to make adjustments in his business if he desires to do so.

Provision should also be made to exempt from regulation under this order a plant which may for one or two months dispose of a greater portion of milk in this marketing area than in the area of the order to which it has been subject if such other order contains a provision similar to that recommended herein.

5. The months within which unlimited diversion is permitted should be extended to include the months of July and August.

The present order provides that milk may be diverted to a nonpool plant on any number of days during the months of April through June. Experience during the operation of the order has demonstrated that, during the months of July and August, milk is in substantially greater supply than is needed for the fluid requirements of the market. Consequently, it is necessary to move a large volume of milk to manufacturing plants to process into butter, nonfat dry milk solids, cheese and other products. It is uneconomical to require pool plants to receive this milk physically before moving it to manufacturing plants which, in many instances, are located closer to the farms where the milk is produced than is the pool plant. In the interest of orderly marketing and efficiency in the handling of milk, handlers should be permitted to move milk directly from the farm to manufacturing plants as often as needed during the months of July and August, which have been found to be months of relatively flush production.

7 and 8. The price for Class II milk under the order should be changed to the average price per hundredweight paid for manufacturing grade milk in the States of Minnesota and Wisconsin, as reported by the United States Department of Agriculture, adjusted to a 3.5 percent butterfat content. This price series was incorporated in the order as the basic formula for pricing Class I milk, effective March 1, 1962.

At the present time the Class II price is based on the higher of two alternative formulae, one based on the market prices of butter and nonfat dry milk, and the other based on the reported paying price of a group of midwestern condenseries located in Michigan and Wisconsin. Originally there were 18 plants in the group but recently the number has dwindled until now there are only eight plants reporting.

So that the Class II price may accurately reflect the nationwide market for most manufactured dairy products, the Class II price should be based on the average price paid dairy farmers as determined by the Minnesota-Wisconsin price series. This price for manufacturing grade milk in Minnesota and Wisconsin is issued by the State-Federal Crop Reporting Service on about the 5th day of each month for milk received at manufacturing plants in these states in the previous month. Plant operators report the pounds of manufacturing grade milk received from farmers, the butterfat content and the total money paid to farmers for milk delivered at their plants. This two-state area is one in which there is a heavy concentration of manufacturing grade milk and where many plants are competing for the supply. In Minnesota about 80 percent, and in Wisconsin about 65 percent, of the milk sold off farms is of manufacturing grade. About half of all the manufacturing grade milk sold off farms in the United States is produced in these two states.

Since the Minnesota-Wisconsin price as announced is that paid for milk of the actual butterfat test received by the plants, it will be necessary to adjust the announced price to reflect the value of milk of 3.5 percent butterfat content. As in the case of the basic formula now used for pricing Class I milk, this would be done by using a differential equal to 0.12 times the average quotation for the month for Grade A (92-score) butter at Chicago.

Based on exceptions received from producers and handlers, the limitation on the Class II price stated in the recommended decision should be revised so that the Class II price (Minnesota-Wisconsin price) should not exceed the price resulting from a revised butter-powder formula, plus ten cents. The revised butter-powder formula would be identical to the butter-powder formulas under the Fort Wayne, Toledo, North Central Ohio, and Northeastern Ohio Federal orders.

The present butter-powder formula of the order provides no make allowance on butter, whereas the formulas in the above mentioned orders provide for a deduction of three cents from the price of 92-score Chicago butter in computing the formula price. Thus the revised butter-powder formula price to be used as a limit on Class II price will be approximately 13 cents lower than the present butter-powder formula price.

While it is expected that the Class II price based on the Minnesota-Wisconsin price series will provide an excellent measure of the value of milk used for manufacturing purposes in the Indianapolis market, it is desirable to set a limit on such price to insure that the Class II price will continue to reflect the value of milk used in the manufacture of butter and powder in the unlikely event that the Minnesota-Wisconsin price should be unduly influenced by supply-demand conditions in a particular segment of the manufactured milk industry.

A limit of ten cents on the revised butter-powder formula will provide an appropriate ceiling. This is approximately three cents less than the ceiling provided in the recommended decision.

Both producers and handlers proposed that a special classification be provided for milk utilized in butter, nonfat dry milk solids, cheeses (other than cottage cheese), evaporated milk and whole milk powder during the months of April through August. The producers proposed that such special classification be priced at the price paid for manufacturing grade milk in Minnesota and Wisconsin, less ten cents. Handlers proposed that the Minnesota-Wisconsin price be used but that 20 cents be deducted in pricing the above mentioned products.

In their exceptions, producers and handlers objected to the recommended Class II price level which would result from use of the Minnesota-Wisconsin price and as limited by the present butter-powder formula of the order. For the most part, exceptions were a reiteration of proposals presented at the hearing for special classification and pricing during months of flush production as heretofore discussed. One producers' association, however, fully endorsed the recommended decision, including the proposed Class II price. Another association in its exceptions urged that the butter-powder formula used in the Fort Wayne order plus five cents be substituted for the present butter-powder formula in establishing the upper limit on

the Class II price. Alignment of reserve prices between orders can best be achieved by providing that ten cents be added to the revised butter-powder formula in establishing a Class II price limit.

Exceptions received also referred to the level of reserve milk prices under certain other Federal orders. Specifically, the Cincinnati, Dayton-Springfield and the newly designated Louisville-Lexington-Evansville orders were mentioned as having lower reserve price levels than that recommended for the Indianapolis Class II price. While prices for reserve milk in the above mentioned orders are currently at lower levels than the proposed Indianapolis Class II price, such prices were established on the basis of record evidence of specific conditions in each respective market. Such price levels in no way detract from the appropriateness of the Minnesota-Wisconsin price as a basis for pricing reserve milk in the Indianapolis market, particularly when consideration is given to alignment of the Indianapolis Class II price with markets such as Chicago and Northeastern Ohio which presently employ the series for pricing reserve milk.

During the period from March 1961, the effective date of the order, through February 1962, the Class II price under the order averaged $3.31. For the April through August period the price averaged $3.30. For the twelve months the average of the Minnesota-Wisconsin prices would have been $3.27, and for the months of April through August would have been $3.24.

In this market the producers' associations have for a number of years assumed the responsibility for the orderly disposition of milk in excess of the market's fluid needs. In the past, the major association has been able to dispose of all of the reserve milk on the market. During the period April through August 1961 it was able to dispose of this milk at the Class II price provided in the order. It reports, however, that such disposition was difficult and that, at the present time, it has been unable to secure commitments from manufacturers that they would accept the seasonal surpluses at the existing Class II price during the coming flush months.

Handlers indicated their willingness to pay the Minnesota-Wisconsin price for all products presently classified as Class II during the months of September through March. They also indicated their willingness to pay such a price for milk utilized in cottage cheese, ice cream and related items during the months of April through August. It was their contention, however, that they could not handle milk in excess of their requirements for these items and which must be manufactured into storable products, unless there was a reduction in the Class II price during the flush months.

Based on a comparison of previous years' experiences the Class II price recommended herein represents a lowering of the Class II price by approximately four cents on an annual average and by an average of six cents during the months of flush production. It is expected that such reduction will afford a price which will accommodate the needs of the market and promote the orderly disposal of milk surplus to the fluid requirements of the market. It will return to producers a value for their milk consistent with the value of milk used in the manufacture of similar products in nearby markets. While it is high enough that it will not furnish plant operators an incentive to add unneeded supplies on the market for the purpose of using them in the manufacture of dairy products, it is at a level low enough that it should not interfere with the orderly disposal of surplus supplies.

A comparison of the proposed price with those in nearby markets indicates that it will return prices comparable to those in other Federal order markets. Both the Northeastern Ohio order and the Chicago, Illinois, order use the Minnesota-Wisconsin series for pricing milk utilized in butter, cheese, nonfat solids and similar products.

Official notice is taken of a proposal made at a recent hearing on amendments to the Fort Wayne, Indiana, milk order to use the Minnesota-Wisconsin price series as the basis for pricing Class II milk under that order. Such a proposal, if adopted, would fix the price of Class II milk in the Fort Wayne market at the same level as that provided herein.

Official notice is also taken of the fact that the order for the merged Ohio Valley and Louisville-Lexington market, which became effective on March 1, provides that the Minnesota-Wisconsin formula be used in pricing Class II milk. Although that order provides that ten cents be deducted from such price during the months of April through August, it must be noted that during the months of April through August 1961 the Class II price in the Ohio Valley market averaged 25 cents under the price in the Indianapolis market. There will, therefore, exist a much better alignment of the Class II prices between Indianapolis and the erstwhile Ohio Valley market than existed heretofore.

Rulings on proposed findings and conclusions. Briefs and proposed findings and conclusions were filed on behalf of certain interested parties. These briefs, proposed findings and conclusions and the evidence in the record were considered in making the findings and conclusions set forth above. To the extent that the suggested findings and conclusions filed by interested parties are inconsistent with the findings and conclusions set forth herein, the requests to make such findings or reach such conclusions are denied for the reasons previously stated in this decision.

General findings. The findings and determinations hereinafter set forth are supplementary and in addition to the findings and determinations previously made in connection with the issuance of the aforesaid order and of the previously issued amendments thereto; and all of said previous findings and determinations are hereby ratified and affirmed, except insofar as such findings and determinations may be in conflict with the findings and determinations set forth herein.

(a) The tentative marketing agreement and the order, as hereby proposed to be amended, and all of the terms and conditions thereof, will tend to effectuate the declared policy of the Act;

(b) The parity prices of milk as determined pursuant to Section 2 of the Act are not reasonable in view of the price of feeds, available supplies of feeds, and market supply and demand for milk in the marketing area, and the minimum prices specified in the proposed marketing agreement and the order, as hereby other economic conditions which affect proposed to be amended, are such prices as will reflect the aforesaid factors, insure a sufficient quantity of pure and wholesome milk, and be in the public interest; and

(c) The tentative marketing agreement and the order, as hereby proposed to be amended, will regulate the handling of milk in the same manner as, and will be applicable only to persons in the respective classes of industrial and commercial activity specified in, a marketing agreement upon which a hearing has been held.

Rulings on exceptions. In arriving at the findings and conclusions, and the regulatory provisions of this decision, each of the exceptions received was carefully and fully considered in conjunction with the record evidence pertaining thereto. To the extent that the findings and conclusions, and the regulatory provisions of this decision are at variance with any of the exceptions, such exceptions are hereby overruled for the reasons previously stated in this decision.

Marketing agreement and order. Annexed hereto and made a part hereof are two documents entitled respectively, "Marketing Agreement Regulating the Handling of Milk in the Indianapolis, Indiana, Marketing Area", and "Order Amending the Order Regulating the Handling of Milk in the Indianapolis, Indiana, Marketing Area", which have been decided upon as the detailed and appropriate means of effectuating the foregoing conclusions.

It is hereby ordered, That all of this decision, except the attached marketing agreement, be published in the FEDERAL REGISTER. The regulatory provisions of said marketing agreement are identical with those contained in the order as hereby proposed to be amended by the attached order which will be published with this decision.

Determination of representative period. The month of December 1961 is hereby determined to be the representative period for the purpose of ascertaining whether the issuance of the attached order amending the order regulating the handling of milk in the Indianapolis, Indiana, marketing area, is approved or favored by producers, as defined under the terms of the order as hereby proposed to be amended, and who, during such representative period, were engaged in the production of milk for sale within the aforesaid marketing area.

Signed at Washington, D.C., on May 11, 1962.

JOHN P. DUNCAN, Jr.,
Assistant Secretary.

Order[1] *Amending the Order Regulating the Handling of Milk in the Indianapolis, Indiana, Marketing Area*

§ 1049.0 Findings and determinations.

The findings and determinations hereinafter set forth are supplementary and in addition to the findings and determinations previously made in connection with the issuance of the aforesaid order and of the previously issued amendments thereto; and all of said previous findings and determinations are hereby ratified and affirmed, except insofar as such findings and determinations may be in conflict with the findings and determinations set forth herein.

(a) *Findings upon the basis of the hearing record.* Pursuant to the provisions of the Agricultural Marketing Agreement Act of 1937, as amended (7 U.S.C. 601 et seq.), and the applicable rules of practice and procedure governing the formulation of marketing agreements and marketing orders (7 CFR Part 900), a public hearing was held upon certain proposed amendments to the tentative marketing agreement and to the order regulating the handling of milk in the Indianapolis, Indiana, marketing area. Upon the basis of the evidence introduced at such hearing and the record thereof, it is found that:

(1) The said order as hereby amended, and all of the terms and conditions thereof, will tend to effectuate the declared policy of the Act;

(2) The parity prices of milk, as determined pursuant to section 2 of the Act, are not reasonable in view of the price of feeds, available supplies of feeds, and other economic conditions which affect market supply and demand for milk in the said marketing area, and the minimum prices specified in the order as hereby amended are such prices as will reflect the aforesaid factors, insure a sufficient quantity of pure and wholesome milk, and be in the public interest; and

(3) The said order as hereby amended, regulates the handling of milk in the same manner as, and is applicable only to persons in the respective classes of industrial or commercial activity specified in, a marketing agreement upon which a hearing has been held.

Order relative to handling. It is therefore ordered, that on and after the effective date hereof the handling of milk in the Indianapolis, Indiana, marketing area shall be in conformity to and in compliance with the terms and conditions of the aforesaid order as amended, and as hereby further amended, as follows:

The provisions of the proposed marketing agreement and order amending the order contained in the recommended decision issued by the Assistant Secretary of Agriculture on April 13, 1962 (27 F.R. 3685; F.R. Doc. 62-3776) shall be and are the terms and provisions of this order, and are set forth in full herein subject to the following revisions: Changes are made in § 1049.51(b).

1. Section 1049.12 is revised by adding a new paragraph (c) as follows:

§ 1049.12 Pool plant.

* * * * *

(c) A plant which was a pool plant in each of the preceding months of August through March and which was a supply plant in each of such months of December through March shall be a pool plant for the months of April through July, unless written application is filed with the market administrator on or before the first day of any such month to be designated a nonpool plant for such month and for each subsequent month through July during which it would not otherwise qualify as a pool plant.

2. Section 1049.12(a) is revised by adding thereto the following: *"Provided,* That a distributing plant which was a pool plant in each of the months of September through May inclusive, shall continue to be a pool plant in the months of June, July and August immediately following, if such plant disposes of fluid milk products on routes in the marketing area during such month."

3. The second proviso of § 1049.12(b) is revised to read as follows: *"And provided further,* That shipments to a plant described in the proviso in paragraph (a) of this section during the months of June, July and August shall be excluded in determining a plant's qualification pursuant to this paragraph; and"

4. Section 1049.16 is revised as follows:

§ 1049.16 Approved milk.

* * * *And provided further,* That in any of the months of September through March milk diverted from an approved plant to a nonpool plant which is not subject to the classification and pricing provisions of another order issued pursuant to the Act for more days of production than such milk was delivered to an approved plant shall not be approved milk for such days.

5. Section 1049.51(b) is revised to read as follows:

§ 1049.51 Class prices.

* * * * *

(b) *Class II milk price.* The price for Class II milk shall be the basic formula price computed pursuant to § 1049.50, except that in no event shall such price exceed the price computed from the sum of subparagraphs (1) and (2) of this paragraph rounded to the nearest cent plus ten cents:

(1) From the butter price, subtract three cents, and multiply by 4.2; and

(2) From the arithmetical average of the weighted averages of carlot prices per pound of spray and roller process nonfat dry milk for human consumption, f.o.b. manufacturing plants in the Chicago area, as published for the period from the 26th day of the preceding month through the 25th day of the current month by the Department, deduct 5.5 cents and multiply by 8.2.

6. Section 1049.63 is revised to read as follows:

§ 1049.63 Plants subject to other Federal orders.

In the case of a handler in his capacity as the operator of a plant specified in paragraph (a) or (b) of this section the provisions of this part shall not apply, except that such handler shall, with respect to his total receipts and disposition of skim milk and butterfat, make reports to the market administrator at such time and in such manner as the market administrator may require and shall allow verification of such reports by the market administrator:

(a) A distributing plant from which the Secretary determines a greater portion of fluid milk products is disposed of on routes in another marketing area regulated by another order issued pursuant to the Act and such plant is fully subject to regulation of such other order: *Provided,* That a distributing plant which was a pool plant under this order in the immediately preceding month shall continue to be subject to all of the provisions of this part until the third consecutive month in which a greater proportion of its Class I disposition on routes is made in such other marketing area unless, notwithstanding the provisions of this paragraph, it is regulated by such other order; and

(b) A distributing plant which meets the requirements set forth in § 1049.12 (a) which also meets the requirements of another marketing order on the basis of its distribution in such other marketing area and from which the Secretary determines a greater quantity of milk is disposed of during the month on routes in this marketing area than is so disposed of in such other marketing area but which plant is nevertheless fully regulated under such other marketing order.

[F.R. Doc. 62-4802; Filed, May 16, 1962; 8:50 a.m.]

[1] This order shall not become effective unless and until the requirements of § 900.14 of the rules of practice and procedure governing proceedings to formulate marketing agreements and marketing orders have been met.

[7 CFR Part 1094]

[Docket No. AO 103-A19]

MILK IN NEW ORLEANS MARKETING AREA

Decision on Proposed Amendments to Tentative Marketing Agreement and to Order

Pursuant to the provisions of the Agricultural Marketing Agreement Act of 1937, as amended (7 U.S.C. 601 et seq.), and the applicable rules of practice and procedure governing the formulation of marketing agreements and marketing orders (7 CFR Part 900), a public hearing was held at New Orleans, Louisiana, on November 2, 1961, pursuant to notice thereof issued on October 18, 1961 (26 F.R. 9947).

Upon the basis of the evidence introduced at the hearing and the record thereof, the Assistant Secretary, United States Department of Agriculture, on April 13, 1962 (27 F.R. 3689; F.R. Doc. 62-3778) filed with the Hearing Clerk, United States Department of Agriculture, his recommended decision containing notice of the opportunity to file written exceptions thereto.

The material issues, findings and conclusions, rulings, and general findings of the recommended decision (27 F.R. 3689; F.R. Doc. 62–3778) are hereby approved and adopted and are set forth in full herein.

The material issues of the hearing relate to modification of:

1. The diversion provisions.
2. The pooling standards for distributing plants.
3. The procedure for computing obligations of handlers operating nonpool distributing plants.
4. The Class II price and Class II location differentials.

Findings and conclusions. The following findings and conclusions on the material issues are based on evidence presented at the hearing and the record thereof:

1. *Modification of the diversion provisions.* The order should be revised to permit diversion to nonpool plants of not more than 15 days' production of any producer during any of the months of September through November and January and unlimited diversion in other months. In addition, an alternative procedure should be provided whereby, in lieu of the 15-day limitation a cooperative association may divert to nonpool plants up to 20 percent of the milk of its producer-members during any such month and a proprietary handler may divert up to 20 percent of the total nonmember producer receipts at his pool plant during any such month without affecting the status of the milk as producer milk.

Under the existing order provisions, diversion of a producer's milk to a nonpool plant in any of the months of September through December is limited to not more than 10 days' production and in other months of the year is unlimited. Diversions between pool plants may be made without limit in all months of the year and no change was proposed in this regard.

The Gulf Milk Association, a cooperative association representing the majority of producers on the New Orleans market, proposed modification of the diversion provisions to permit greater flexibility and more economic handling of the market's reserve milk supply during the months of shortest production in relation to Class I requirements, i.e., September through November. They further proposed that December be made a month of unlimited diversion and that January be included as a month of limited diversion.

Presently over one-half of the producers, producing over two-thirds of the regular milk supply of the market, deliver their milk from farm bulk tanks, and the shift to this method of delivery is continuing. Meanwhile, a substantial quantity of milk is still delivered in cans to three receiving stations still associated with the market. Milk received at can receiving stations is generally transferred to city bottling plants for fluid uses. The cooperative association, which operates two of these stations, uses its can milk to supply the smaller handlers who cannot use full tank loads of milk. The milk received from farm tanks is moved to the city plants of the larger handlers to the extent of their needs, and milk in excess of their requirements is diverted within the limits provided under the order to nonpool manufacturing plants for manufacturing uses.

Virtually all of the farm tank milk is associated with city bottling plants. Under the existing order the cooperative association as well as some proprietary handlers have found it necessary during the months of September through December to move milk to city plants for receipt and transfer for manufacturing uses solely for the purpose of maintaining producer milk status for such milk.

In the New Orleans market there is little or no overlapping of the production area with the marketing area. Milk not needed in the market for Class I use most economically may be handled by direct movement from the farm to nearby manufacturing plants. The order should not require the uneconomic movement of milk to city plants and backhaul to manufacturing plants in the production area solely for the purpose of maintaining the status of producer milk. It is concluded, therefore, that proponent's request for diversion to nonpool plants of not more than 15 days' production in any month of September through November and January should be adopted. This requirement will preserve reasonable performance standards and hence will deter any handler from associating milk with the pool solely for the purpose of maintaining a supply of Grade A milk for manufacturing uses. At the same time orderly disposition of the market's reserve supply will be implemented.

The present order provides that where the milk of any producer is diverted in excess of the limits prescribed only that milk physically received at pool plants shall be producer milk. No change is recommended in this procedure.

Because of the holidays during the latter part of December, the market's fluid requirements are normally significantly less in that month than in the month of January. Although production in January generally exceeds production in December, a significantly greater volume of producer milk is normally moved into Class II uses in December than in January. Handlers have been hampered in their efforts to economically handle the December milk supplies in excess of fluid requirements under the limited diversion privileges. The substitution of January for December as a month of limited diversion was generally supported at the hearing. This change will not significantly alter the present pooling standards and will implement handling of the market's reserve milk supply.

Additional flexibility and more economical handling of the market's reserve supply may be provided through an alternative diversion procedure during the months when diversions are limited. It is provided therefore, that 20 percent of a cooperative's member-producer milk may be diverted by the cooperative to nonpool plants during such months. Other handlers may similarly divert 20 percent of their nonmember producer receipts. While the percentage provisions would allow less diversions than the 15-day limitation, it will in some situations implement more efficient movement of milk since it will permit regular diversion of certain routes.

Under the percentage diversion limitation member milk may be diverted only for the account of the association. Diversion of nonmember milk would be at the direction of the operator of the pool plant. Thus, there is a clear responsibility for both the cooperative association and proprietary handlers with respect to meeting the percentage limitation. It is incumbent on a handler receiving cooperative member milk to ascertain, prior to diverting any such milk, the basis on which the cooperative is accounting for milk which it is diverting to nonpool plants during the month. If the cooperative is diverting on a percentage basis, no other handler may account for milk of any of the cooperative's members under any diversion provision. If the cooperative is not using the percentage diversion provision, member milk may be diverted by either the proprietary handler or the cooperative.

In the event that the percentage limitation is exceeded by any handler diverting under that provision in any month, all diversion by such handler during the month automatically would be under the 15-day provision. Milk diverted in conformity with the diversion privileges prescribed is treated as a receipt by the diverting handler at a pool plant at the location of the plant from which diverted.

2. *Modification of the pooling standards for distributing plants.* The pooling standards for distributing plants should be modified to provide full regulation for a plant which distributes on routes in the marketing area at least the lesser of 20 percent of its receipts of Grade A milk or 1500 pounds on a daily average during the month and which meets all of the other requirements for pooling.

Under the present order provisions a distributing plant is pooled in any month in which 50 percent or more of its receipts of Grade A milk from dairy farmers and supply plants are disposed of on routes, provided that such disposition in the marketing area represents 20 percent or more of such receipts. Where such a plant meets the requirements of both this order and another Federal order and has a greater proportion of its route sales in the other Federal order marketing area, it is exempted from regulation except for filing reports and permitting verification. Distributing plants located outside the marketing area and with less than 200 pounds of route distribution in the marketing area are similarly exempted.

Gulf Milk Association proposed revision of the pooling standards to provide full regulation of any plant meeting the other pooling requirements and which has route disposition in the marketing area equal to the lesser of 15 percent of its total Class I sales or 4300 pounds on a daily average. At the hearing proponents modified the proposed daily average figure to 1500 pounds.

The spokesman for the proponent cooperative pointed out that there are no nonpool distributing plants with route sales in the marketing area. Hence,

neither the present order provisions nor the revisions proposed would have application to any handler presently operating in the market. It was proponent's position, however, that under the existing provisions a new handler could enter the market and maintain unregulated status even though his route sales in the market were of a very substantial nature. This, he pointed out, could be accomplished by tailoring Grade A receipts to a fixed relationship with total Class I sales and maintaining in-area sales at a level less than 20 percent of the plant's Grade A receipts.

In support of his position proponent pointed to a similar provision in the adjacent Mississippi Gulf Coast order under which a partially regulated handler (a handler with route sales in that market of less than 20 percent of his Grade A receipts) had bought out a fully regulated handler, closed the plant and was serving its former customers from his nonpool plant. These sales along with his previous sales in the marketing area accounted for nearly 10 percent of the total Class I sales in the market. Nevertheless, the handler continued to maintain unregulated status by virtue of the fact that his receipts increased in substantially the same proportion as his Class I sales. By returning to his dairy farmers at least the amount of his obligation, computed as though he were a pool handler, he was avoiding any payment to the producer-settlement fund, notwithstanding the fact that the purchase and closing of the plant represented a substantial loss of Class I sales for regular producers on the Gulf Coast market. Proponent suggested that the existing pooling provisions were an open invitation for outside handlers to invade the New Orleans market with unpriced milk at the expense of regular producers.

Since there are no partially regulated handlers on the New Orleans market and any change in the pooling provisions along the lines requested by the cooperative association would not change this situation, the question to be resolved is whether the existing pooling provisions would tend to effectuate the purpose of the Act in the event an outside handler should enter the market with sales approaching the limits at which full regulation is now required and, if not, what provision would be appropriate.

It is apparent that under the present provisions an outside handler could, by judicious handling of in-area sales on a predetermined relationship to his out-of-area sales and total Grade A receipts, escape full regulation while, at the same time, being a substantial factor in the regulated market. This has been amply demonstrated in the example cited by proponent. It is desirable, therefore, that the pooling provisions be modified to deter an outside handler from accumulating sizable Class I sales in the market without pooling.

The requirement that a distributing plant have a 50 percent Class I utilization to qualify for pooling provides a reasonable safeguard against any handler pooling his plant for the specific purpose of using the blend price to maintain a supply of milk for manufacturing uses. Under the 20 percent provision a sizable handler could enter the market with substantial sales and not be required to pool. While this situation exists there is a continuing threat to the maintenance of an orderly market under the order. Fifteen hundred pound daily route distribution in this market is the equivalent of the large retail route or a large wholesale account. The addition of a 1500-pound limitation in conjunction with the present 20 percent provision will provide assurance that any plant substantially associated with the market will be subjected to full regulation. A plant with route distribution in the marketing area not in excess of the lesser of 20 percent of its Grade A receipts or 1500 pounds on a daily average does not have a substantial association with the New Orleans fluid market.

While proponents proposed that the 20 percent requirement be reduced to 15 percent it is not apparent that such a change is necessary in conjunction with the 1500-pound requirement, since the percentage requirement under the amendment herein recommended will have application only with respect to smaller plants having daily market area sales of less than 1500 pounds. There has been no problem under the existing provisions and there is no reason to believe that any small plant with less than 1500 pounds of Class I sales, constituting less than 20 percent of its total Grade A receipts, could be a disruptive factor in the market.

In conjunction with the inclusion of the 1500-pound limitation in the pooling standards, the existing provision exempting any plant located outside the marketing area and with less than 200 pounds of average daily Class I sales in the market should be deleted. There is no evidence that any plant has ever been exempted under the provision. It is obvious since the provision would apply only in the case of a plant located outside the marketing area, that the order would provide different treatment to two plants identical in all respects except location. Hence, the deletion of the provision will tend to assure equity among handlers in the application of the order.

3. *Modification of the procedure for computing pool obligations of handlers operating nonpool distributing plants.* No change should be made in the procedure for computing the pool obligations of the operators of nonpool distributing plants.

Under the existing order, the operator of a nonpool distributing plant may elect to pay to the producer-settlement fund the difference between the Class I price and the Class II price on each hundredweight of route distribution in the marketing area. Otherwise his payment is the lesser of that amount or any amount by which the use value of his milk, computed as though his plant were a pool plant, exceeds his payments to his regular dairy farmers. If the option is elected he pays administrative assessment only on his marketing area route sales. If the election is not made the administrative assessment is computed in the same manner as though his plant were a pool plant.

The Gulf Milk Association proposed that the order be modified to require that the operator of a nonpool distributing plant pay to the producer-settlement fund, on each hundredweight of route sales in the marketing area, any amount by which the use value of all his milk, computed as though his plant were a pool plant and divided by the total hundredweight of such milk, exceeds the uniform price announced by the market administrator.

In support of the proposal, proponent contended that under the present provision, the operator of a nonpool distributing plant could imply through his records, that he was paying the full use value of all of his milk to his producers and avoid any obligation to the producer-settlement fund, and at the same time have a cost of product advantage gained by charging exorbitant hauling rates and/or by under-testing or underweighing the milk of his dairy farmers.

The purpose of the present provision is to assure that any unregulated handler with route sales in the marketing area shall have no procurement cost advantage under the order over fully regulated handlers. If such a handler does not elect the straight compensatory payment on his marketing area route sales, his over-all obligation is computed by the market administrator in the identical manner as though he were a pool handler. The market administrator has the same responsibility in seeing that such obligation is paid to such handler's dairy farmers or to the pool, as the case may be, as he has in the case of a pool handler. This includes determining whether or not hauling rates charged are reasonable and appropriate, as well as whether or not the handler reports accurate weights and tests. Hence, there is no basis for proponent's contention.

A handler proposed that the order be amended to provide partial regulation for a regulated handler under another Federal order with route sales in the New Orleans market if such handler had not made full payment to producers under the other Federal order. The proposal was prompted by a situation in the adjacent Gulf Coast market in which a handler had purchased milk from a cooperative association in its capacity as a handler and was delinquent in his payments for such milk. The handler involved has sales in the New Orleans market and proponent contended that to assure equity as between handlers, such handler should be required to make prompt and full payment for his supply of milk.

It would be inappropriate and unnecessary to require regulation of a handler under two orders on the same milk. The matter raised by proponent is related to the operation of the Mississippi Gulf Coast order and official notice is taken of the fact that the amendment to that order issued on March 30, 1962, corrects a possible order deficiency of which proponent complains. Accordingly, there is no need for amending the New Orleans order to accomplish proponent's objective.

4. *Modification of the Class II price and Class II location differentials.* No changes should be made in either the level of the Class II price or in the Class II location differential presently pre-

scribed by the order. However, the plants named in the price computation provisions of the order should be corrected to reflect current ownership.

Two changes in Class II pricing were proposed by handlers. One proposal would lower the price by 13.5 cents and eliminate the location differential on Class II milk. The effect of this change would be to lower the Class II price only at plants located within 50 miles of New Orleans, leaving the price unaffected elsewhere in the milkshed. The second proposal would lower the Class II price by 20 cents at all locations.

As has been previously indicated, a characteristic of the New Orleans market is the lack of geographical overlap of the marketing area and the supply area. A second characteristic is the location in and near the production area of adequate manufacturing facilities to handle the reserve milk supply of the market. Hence, it is not necessary that producers deliver their milk to the marketing area when such milk is not needed for Class I uses. The Class II price applicable at plants located in excess of 50 miles from New Orleans reflects the value of milk for manufacturing uses in the production area. If handlers require milk for other than Class I use at their city plants it is not appropriate to assess on producers the cost of moving such milk to the city. For this reason the Class II price at city plants is established under the order at a level 13.5 cents higher than the price at country plants.

One proponent handler contended that he was unable to realize the Class II price plus hauling to the manufacturing outlet through which he disposes of his reserve supply. However, the Gulf Milk Association, which handles the bulk of the market's reserve milk, substantiated through invoices covering the period August 1960 through September 1961, that they were able to move large quantities of milk to manufacturing outlets in northern Mississippi located from 225 to 305 miles from their nonpool manufacturing plant at Franklinton, Louisiana, at prices generally ranging from $3.60 to $3.75. These prices, they contended, exceeded the order prices by amounts sufficient to at least cover transportation and handling.

Proponents also contended that the New Orleans Class II price was not in alignment with the adjacent Mississippi Federal order Class II prices. Official notice is taken of the monthly price announcements of the market administrator of the Mississippi Gulf Coast and Central Mississippi orders for the period October 1960, through September 1961. During this period the country plant Class II price under the New Orleans order averaged only 3.3 and 2.5 cents, respectively, over the Class II prices in these markets. These minor differences are the result of differences in seasonality of pricing as between the orders and different local manufacturing plants whose pay prices are the basis of computing the Class II prices. Under the circumstances it would be almost impossible to maintain closer alignment.

Lastly, proponents suggested that a lower Class II price would be effective in deterring production and hence, in promoting better supply-demand balance in the market.

The Class II price under the order is established at that level which at once accommodates the orderly disposition of the reserve supply of the market and returns to producers a fair value for milk disposed of for manufacturing uses. If, as proponents suggest, producer returns under the order are presently attracting a greater than necessary market supply, desirable supply adjustment should be directed through appropriate adjustments in the Class I price. The level of Class I price was not an issue at the hearing and no action may be taken in this regard on the basis of the record of the hearing.

Under the existing order the average pay price of four local manufacturing plants is one of the three alternative components used in computing the basic formula price to which specified differentials are added in the computation of the Class I price. The average of these local plant pay prices is also the basis for computing the Class II price. At the hearing it was pointed out that the plant at Macon, Mississippi, listed in the name of Wilson and Company is now owned and operated by the Borden Company. In recognition of this change in ownership the reference to the Wilson and Company plant should be changed to the Borden Company. This change will have no substantive effect on the prices established under the order since the market administrator has continued to use the pay price of this plant in the price computations since the change in ownership.

Rulings on proposed findings and conclusions. Briefs and proposed findings and conclusions were filed on behalf of certain interested parties. These briefs, proposed findings and conclusions and the evidence in the record were considered in making the findings and conclusions set forth above. To the extent that the suggested findings and conclusions filed by interested parties are inconsistent with the findings and conclusions set forth herein, the requests to make such findings or reach such conclusions are denied for the reasons previously stated in this decision.

General findings. The findings and determinations hereinafter set forth are supplementary and in addition to the findings and determinations previously made in connection with the issuance of the aforesaid order and of the previously issued amendments thereto; and all of said previous findings and determinations are hereby ratified and affirmed, except insofar as such findings and determinations may be in conflict with the findings and determinations set forth herein.

(a) The tentative marketing agreement and the order, as hereby proposed to be amended, and all of the terms and conditions thereof, will tend to effectuate the declared policy of the Act;

(b) The parity prices of milk as determined pursuant to section 2 of the Act are not reasonable in view of the price of feeds, available supplies of feeds, and other economic conditions which affect market supply and demand for milk in the marketing area, and the minimum prices specified in the proposed marketing agreement and the order, as hereby proposed to be amended, are such prices as will reflect the aforesaid factors, insure a sufficient quantity of pure and wholesome milk, and be in the public interest; and

(c) The tentative marketing agreement and the order, as hereby proposed to be amended, will regulate the handling of milk in the same manner as, and will be applicable only to persons in the respective classes of industrial and commercial activity specified in, a marketing agreement upon which a hearing has been held.

Rulings on exception. In arriving at the findings and conclusions, and the regulatory provisions of this decision, the exception received was carefully and fully considered in conjunction with the record evidence pertaining thereto. To the extent that the findings and conclusions, and the regulatory provisions of this decision are at variance with the exception, such exception is hereby overruled for the reasons previously stated in this decision.

Marketing agreement and order. Annexed hereto and made a part hereof are two documents entitled, respectively, "Marketing Agreement Regulating the Handling of Milk in the New Orleans Marketing Area", and "Order Amending the Order Regulating the Handling of Milk in the New Orleans Marketing Area", which have been decided upon as the detailed and appropriate means of effectuating the foregoing conclusions.

It is hereby ordered, That all of this decision, except the attached marketing agreement, be published in the FEDERAL REGISTER. The regulatory provisions of said marketing agreement are identical with those contained in the order as hereby proposed to be amended by the attached order which will be published with this decision.

Referendum order: determination of representative period: and designation of Referendum agent. It is hereby directed that a referendum be conducted to determine whether the issuance of the attached order amending the order regulating the handling of milk in the New Orleans marketing area, is approved or favored by the producers, as defined under the terms of the order, as hereby proposed to be amended, and who, during the representative period, were engaged in the production of milk for sale within the aforesaid marketing area.

The month of March 1962, is determined to be the representative period for the conduct of such referendum.

William J. Larzelere is hereby designated agent of the Secretary to conduct such referendum in accordance with the procedure for the conduct of referenda to determine producer approval of milk marketing orders (15 F.R. 5177), such referendum to be completed on or before the 30th day from the date this decision is issued.

Signed at Washington, D.C., on May 11, 1962.

JOHN P. DUNCAN, Jr.,
Assistant Secretary.

Order[1] *Amending the Order Regulating the Handling of Milk in the New Orleans Marketing Area*

§ 1094.0 **Findings and determinations.**

The findings and determinations hereinafter set forth are supplementary and in addition to the findings and determinations previously made in connection with the issuance of the aforesaid order and of the previously issued amendments thereto; and all of said previous findings and determinations are hereby ratified and affirmed, except insofar as such findings and determinations may be in conflict with the findings and determinations set forth herein.

(a) *Findings upon the basis of the hearing record.* Pursuant to the provisions of the Agricultural Marketing Agreement Act of 1937, as amended (7 U.S.C. 601 et seq.), and the applicable rules of practice and procedure governing the formulation of marketing agreements and marketing orders (7 CFR Part 900), a public hearing was held upon certain proposed amendments to the tentative marketing agreement and to the order regulating the handling of milk in the New Orleans marketing area. Upon the basis of the evidence introduced at such hearing and the record thereof, it is found that:

(1) The said order as hereby amended, and all of the terms and conditions thereof, will tend to effectuate the declared policy of the Act;

(2) The parity prices of milk, as determined pursuant to section 2 of the Act, are not reasonable in view of the price of feeds, available supplies of feeds, and other economic conditions which affect market supply and demand for milk in the said marketing area, and the minimum prices specified in the order as hereby amended are such prices as will reflect the aforesaid factors, insure a sufficient quantity of pure and wholesome milk, and be in the public interest; and

(3) The said order as hereby amended, regulates the handling of milk in the same manner as, and is applicable only to persons in the respective classes of industrial or commercial activity specified in, a marketing agreement upon which a hearing has been held.

Order relative to handling. It is therefore ordered, that on and after the effective date hereof, the handling of milk in the New Orleans marketing area shall be in conformity to and in compliance with the terms and conditions of the aforesaid order, as hereby amended, and the aforesaid order is hereby amended as follows:

The provisions of the proposed marketing agreement and order amending the order contained in the recommended decision issued by the Assistant Secretary, United States Department of Agriculture, April 13, 1962, and published in the FEDERAL REGISTER on April 18, 1962 (27 F.R. 3689; F.R. Doc. 62–3778), shall be and are the terms and provisions of this order, and are set forth in full herein.

1a. In § 1094.10(a), the phrase reading "§ 1094.61 or" is deleted.

1b. Change § 1094.10(a)(1) to read as follows:

(1) Disposition in the marketing area of fluid milk products on routes is at least the lesser of a daily average of 1,500 pounds or 20 percent of receipts from dairy farmers, cooperatives in their capacities as handlers pursuant to § 1094.12(d) and supply plants; and

2. Change § 1094.14 to read as follows:

§ 1094.14 **Producer.**

"Producer" means any person, except a producer-handler, who produces milk in compliance with the Grade A inspection requirements of a duly constituted health authority which milk is received at a pool plant or by a cooperative association pursuant to § 1094.12(d) or is diverted pursuant to paragraphs (a) through (c) of this section: *Provided,* That milk so diverted shall be deemed to have been received at the location of the pool plant from which diverted:

(a) To the pool plant of another handler;

(b) To a nonpool plant during any month(s) of December and February through August;

(c) Except as provided in subparagraphs (1) and (2) of this paragraph, to a nonpool plant during each month of January and September through November, but not more than 15 days production of any dairy farmer during any such month: *Provided,* That if this limit is exceeded for any dairy farmer, such dairy farmer shall be a producer only with respect to that milk physically received at pool plants during such month:

(1) A cooperative association may divert for its account the milk of any member producer without limit during the month if the total volume of milk so diverted does not exceed 20 percent of its member producer milk received by all pool handlers during the month: *Provided,* That if this percentage limitation is exceeded all diversions by such association during the month shall be subject to the 15-day limitation prescribed above.

(2) A handler in his capacity as the operator of a pool plant may divert for his account the milk of any nonmember producer without limit during the month if the total volume of nonmember milk so diverted does not exceed 20 percent of the nonmember producer milk received at such pool plant during the month: *Provided,* That if this percentage limitation is exceeded all diversions by such handler during the month shall be subject to the 15-day limitation prescribed above.

3. In the preamble of § 1094.30, the phrase reading "§ 1094.61 or" is deleted.

4. Delete § 1094.33 in its entirety.

5. In paragraph (c) of § 1094.50 change the present operator and plant location listed as "Wilson and Company, Macon, Mississippi" to "The Borden Company, Macon, Mississippi".

6. Delete § 1094.61 in its entirety.

7. In the preamble of § 1094.62, the phrase reading "§ 1094.61 or" is deleted.

[F.R. Doc. 62–4803; Filed, May 16, 1962; 8:50 a.m.]

[1] This order shall not become effective unless and until the requirements of § 900.14 of the rules of practice and procedure governing proceedings to formulate marketing agreements and marketing orders have been met.

FEDERAL AVIATION AGENCY

[14 CFR Part 600]

[Airspace Docket No. 62–SO–5]

FEDERAL AIRWAYS

Proposed Alteration

Pursuant to the authority delegated to me by the Administrator (14 CFR 409.13), notice is hereby given that the Federal Aviation Agency is considering amendments to §§ 600.6016, 600.6115, 600.6875, 600.1538 and 600.1548 of the regulations of the Administrator, the substance of which is stated below.

Low altitude VOR Federal airway No. 16 is designated in part from the Crossville, Tenn., VORTAC via the intersection of the Crossville VOR 107° and the Knoxville, Tenn., VORTAC 248° True radials (Sweetwater intersection); to the Knoxville VORTAC. Intermediate altitude VOR Federal airway No. 1538 is designated between Crossville and Knoxville via the alignment of Victor 16. Low altitude VOR Federal airway No. 115 is designated in part from the Chattanooga VORTAC via the intersection of the Chattanooga VORTAC 032° and the Knoxville VORTAC 248° True radials; to the Knoxville VORTAC. Low altitude VOR Federal airway No. 875 and Intermediate altitude VOR Federal airway No. 1548 are designated in part from Chattanooga to Knoxville via the alignment of Victor 115.

The Federal Aviation Agency has under consideration the following actions.

1. Redesignate Victor 16 in part from the Crossville VORTAC direct to the Knoxville VORTAC including a south alternate via the intersection of the Crossville VORTAC 100° and the Knoxville VORTAC 247° True radials.

2. Redesignate Victor 1538 in part from the Crossville VOR direct to the Knoxville VOR as a 10-mile wide airway.

3. Redesignate Victor 115 and Victor 875 in part from the Chattanooga VORTAC via the intersection of the Chattanooga VORTAC 037° and the Knoxville VORTAC 247° True radials; to the Knoxville VORTAC.

4. Redesignate Victor 1548 in part from the Chattanooga VOR as a 16-mile wide airway to the intersection of the Chattanooga VOR 037° and the Knoxville VOR 247° True radials, thence as a 10-mile wide airway to the Knoxville VOR.

The proposed realignment of Victor 16 and 1538 would improve air navigation by providing a more direct route between Nashville and Knoxville. The south alternate would provide for transition between the low altitude and intermediate altitude airway structures. The proposed realignment of Victor 115, Victor 875 and Victor 1548 is necessary to provide a common intersection of these airways and Victor 16 south alternate in the vicinity of Sweetwater, thence to conform to the alignment of

Victor 16 south alternate to the Knoxville VORTAC. This would also reduce the airway mileage between Chattanooga and Knoxville.

The control areas associated with the low altitude airways would extend upward from 700 feet above the surface to the base of the continental control area. Separate actions would be initiated to implement on an area basis Amendment 60–21 to Part 60 of the Civil Air Regulations.

Interested persons may submit such written data, views or arguments as they may desire. Communications should be submitted in triplicate to the Assistant Administrator, Southern Region, Attn: Chief, Air Traffic Division, Federal Aviation Agency, 52 Fairlie Street, Atlanta 3, Georgia. All communications received within forty-five days after publication of this notice in the FEDERAL REGISTER will be considered before action is taken on the proposed amendment. No public hearing is contemplated at this time, but arrangements for informal conferences with Federal Aviation Agency officials may be made by contacting the Regional Air Traffic Division Chief, or the Chief, Airspace Utilization Division, Federal Aviation Agency, Washington 25, D.C. Any data, views or arguments presented during such conferences must also be submitted in writing in accordance with this notice in order to become part of the record for consideration. The proposal contained in this notice may be changed in the light of comments received.

The official Docket will be available for examination by interested persons at the Docket Section, Federal Aviation Agency, Room C–226, 1711 New York Avenue NW., Washington 25, D.C. An informal Docket will also be available for examination at the office of the Regional Air Traffic Division Chief.

This amendment is proposed under section 307(a) of the Federal Aviation Act of 1958 (72 Stat. 749; 49 U.S.C. 1348).

Issued in Washington, D.C., on May 11, 1962.

CLIFFORD P. BURTON,
Chief, Airspace Utilization Division.

[F.R. Doc. 62–4750; Filed, May 16, 1962; 8:45 a.m.]

[14 CFR Part 600]

[Airspace Docket No. 62–EA–12]

FEDERAL AIRWAY

Proposed Alteration

Pursuant to the authority delegated to me by the Administrator (14 CFR 409.13), notice is hereby given that the Federal Aviation Agency is considering an amendment to § 600.6266 of the regulations of the Administrator, the substance of which is stated below.

Low altitude VOR Federal airway No. 266 extends, in part, from the Franklin, Va., VOR to Norfolk, Va., VOR, via the intersection of the Franklin VOR 087° True radial and the Norfolk VOR direct True radial to the Cofield, N.C., VOR.

The Federal Aviation Agency has under consideration alteration of this airway segment by redesignating it from the Franklin, Va., VOR via the direct True radial to the Norfolk, Va., VORTAC. This proposed action would provide an airway structure compatible with revised air traffic control procedures in the Norfolk terminal area. The realigned airway would overlie the Windsor, Va., holding pattern, an arrival fix serving Norfolk Municipal Airport, Norfolk Naval Air Station and Oceana Naval Air Station.

The control areas associated with this airway are so designated that they would automatically conform to the altered airway. The vertical extent of these control areas would remain as designated pending review of the adjacent airspace. Separate actions will be initiated to implement on an area basis Amendment 60–21 to Part 60 of the Civil Air Regulations.

Interested persons may submit such written data, views or arguments as they may desire. Communications should be submitted in triplicate to the Assistant Administrator, Eastern Region, Attn: Chief, Air Traffic Division, Federal Aviation Agency, Federal Building, New York International Airport, Jamaica 30, N.Y. All communications received within forty-five days after publication of this notice in the FEDERAL REGISTER will be considered before action is taken on the proposed amendment. No public hearing is contemplated at this time, but arrangements for informal conferences with Federal Aviation Agency officials may be made by contacting the Regional Air Traffic Division Chief, or the Chief, Airspace Utilization Division, Federal Aviation Agency, Washington 25, D.C. Any data, views or arguments presented during such conferences must also be submitted in writing in accordance with this notice in order to become part of the record for consideration. The proposal contained in this notice may be changed in the light of comments received.

The official Docket will be available for examination by interested persons at the Docket Section, Federal Aviation Agency, Room C–226, 1711 New York Avenue NW., Washington 25, D.C. An informal Docket will also be available for examination at the office of the Regional Air Traffic Division Chief.

This amendment is proposed under section 307(a) of the Federal Aviation Act of 1958 (72 Stat. 749; 49 U.S.C. 1348).

Issued in Washington, D.C., on May 11, 1962.

CLIFFORD P. BURTON,
Chief, Airspace Utilization Division.

[F.R. Doc. 62–4751; Filed, May 16, 1962; 8:45 a.m.]

[14 CFR Parts 600, 601]

[Airspace Docket No. 62–EA–14]

FEDERAL AIRWAY AND ASSOCIATED CONTROL AREAS

Proposed Revocation

Pursuant to the authority delegated to me by the Administrator (14 CFR 409.13), notice is hereby given that the Federal Aviation Agency (FAA) is considering amendments to §§ 600.225, 601.225 and 601.4225 of the regulations of the Administrator, the substance of which is stated below.

Red Federal airway No. 25 extends in part from the intersection of the northwest course of the Bangor, Maine, radio range and the west course of the Millinocket, Maine, radio range station (Baker Intersection) to the intersection of the northwest course of the Bangor, radio range and the southwest course of the Millinocket radio range. The FAA's latest IFR peak-day airway traffic survey shows a maximum of two aircraft movements on this segment of Red 25. Therefore, it appears that the retention of this airway segment is unjustified as an assignment of airspace. Accordingly, the FAA proposes to revoke this segment of Red 25 and its associated control areas. Adoption of this proposal would not result in discontinuance of the low frequency navigational aids associated with this segment of Red 25. Any proposals to discontinue one or more of these aids would be circularized separately and persons would be afforded an opportunity to comment. Concurrently with this action, the caption of § 601.4225 would be altered by substituting Baker Mountain, Maine, for Bangor, Maine.

Interested persons may submit such written data, views or arguments as they may desire. Communications should be submitted in triplicate to the Assistant Administrator, Eastern Region, Attn: Chief, Air Traffic Division, Federal Aviation Agency, Federal Building, New York International Airport, Jamaica 30, N.Y. All communications received within forty-five days after publication of this notice in the FEDERAL REGISTER will be considered before action is taken on the proposed amendment. No public hearing is contemplated at this time, but arrangements for informal conferences with Federal Aviation Agency officials may be made by contacting the Regional Air Traffic Division Chief, or the Chief, Airspace Utilization Division, Federal Aviation Agency, Washington 25, D.C. Any data, views or arguments presented during such conferences must also be submitted in writing in accordance with this notice in order to become part of the record for consideration. The proposal contained in this notice may be changed in the light of comments received.

The official Docket will be available for examination by interested persons at the Docket Section, Federal Aviation Agency, Room C–226, 1711 New York Avenue NW., Washington 25, D.C. An informal Docket will also be available for examination at the office of the Regional Air Traffic Division Chief.

This amendment is proposed under section 307(a) of the Federal Aviation Act of 1958 (72 Stat. 749; 49 U.S.C. 1348).

Issued in Washington, D.C., on May 11, 1962.

CLIFFORD P. BURTON,
Chief, Airspace Utilization Division.

[F.R. Doc. 62–4753; Filed, May 16, 1962; 8:45 a.m.]

[14 CFR Parts 600, 601]

[Airspace Docket No. 62–CE–28]

FEDERAL AIRWAYS AND ASSOCIATED CONTROL AREAS

Proposed Alteration

Pursuant to the authority delegated to me by the Administrator (14 CFR 409.13), notice is hereby given that the Federal Aviation Agency is considering amendments to §§ 600.6010, 600.6131 and 601.6131 of the regulations of the Administrator, the substance of which is stated below.

Low altitude VOR Federal airway No. 10 is designated in part from the Emporia, Kans., VORTAC direct to the Kansas City, Mo., VORTAC. Low altitude VOR Federal airway No. 131 is designated from the McAlester, Okla., VORTAC to the Chanute, Kans., VOR and from the Emporia VORTAC to the Topeka, Kans., VORTAC.

The Federal Aviation Agency has under consideration the following actions.

1. Revoke Victor 131 and its associated control areas between the Emporia VORTAC and the Topeka VORTAC.

2. Designate a north alternate to Victor 10 from the Emporia VORTAC to the Kansas City VORTAC via the Topeka VORTAC.

3. Extend Victor 131 and its associated control areas from the Chanute VOR to the Topeka VORTAC.

The revocation of Victor 131 between Emporia and Topeka would permit use of this number for the extension of Victor 131 between Chanute and Topeka. This new airway segment would provide a route between Chanute and Topeka for VOR equipped aircraft, provide an alternate routing out of Kansas City and together with Low altitude VOR Federal airway No. 77 would provide a by-pass airway around the Kansas City terminal area. The designation of Victor 10 north alternate is proposed merely to provide a suitable airway number for the existing airway segment between Emporia and Topeka and is extended to Kansas City to provide continuity in the alternate airway.

Interested persons may submit such written data, views, or arguments as they may desire. Communications should be submitted in triplicate to the Assistant Administrator, Central Region, Attn: Chief, Air Traffic Division, Federal Aviation Agency, 4825 Troost Avenue, Kansas City 10, Mo. All communications received within forty-five days after publication of this notice in the FEDERAL REGISTER will be considered before action is taken on the proposed amendment. No public hearing is contemplated at this time, but arrangements for informal conferences with Federal Aviation Agency officials may be made by contacting the Regional Air Traffic Division Chief, or the Chief, Airspace Utilization Division, Federal Aviation Agency, Washington 25, D.C. Any data, views, or arguments presented during such conferences must also be submitted in writing in accordance with this notice in order to become part of the record for consideration. The proposal contained in this notice may be changed in the light of comments received.

The official Docket will be available for examination by interested persons at the Docket Section, Federal Aviation Agency, Room C–226, 1711 New York Avenue NW., Washington 25, D.C. An informal Docket will also be available for examination at the office of the Regional Air Traffic Division Chief.

This amendment is proposed under section 307(a) of the Federal Aviation Act of 1958 (72 Stat. 749; 49 U.S.C. 1348).

Issued in Washington, D.C., on May 11, 1962.

CLIFFORD P. BURTON,
Chief, Airspace Utilization Division.

[F.R. Doc. 62–4752; Filed, May 16, 1962; 8:45 a.m.]

[14 CFR Part 601]

[Airspace Docket No. 62–KC–6]

TRANSITION AREA

Proposed Designation

Pursuant to the authority delegated to me by the Administrator (14 CFR 409.13), notice is hereby given that the Federal Aviation Agency is considering an amendment to Part 601 of the regulations of the Administrator, the substance of which is stated below.

The Federal Aviation Agency has under consideration designation of a transition area at Escanaba, Mich. The proposed transition area would be designated to extend upward from 700 feet above the surface within a 5-mile radius of the Escanaba Municipal Airport, Mich. (latitude 45°43′25″ N., longitude 87°05′40″ W.), within 2 miles either side of the 265° True bearing from the Escanaba Airport extending from the 5-mile radius area to 8 miles west of the airport; including the airspace extending upward from 1200 feet above the surface within 5 miles north and 8 miles south of the 085° and 265° True bearings from the Escanaba Airport extending from 7 miles east to 14 miles west of the airport. This transition area would provide protection for aircraft executing prescribed instrument approach, departure and holding procedures at the Escanaba Airport.

Interested persons may submit such written data, views or arguments as they may desire. Communications should be submitted in triplicate to the Assistant Administrator, Central Region, Attn: Chief, Air Traffic Division, Federal Aviation Agency, 4825 Troost Avenue, Kansas City 10, Mo. All communications received within forty-five days after publication of this notice in the FEDERAL REGISTER will be considered before action is taken on the proposed amendment. No public hearing is contemplated at this time, but arrangements for informal conferences with Federal Aviation Agency officials may be made by contacting the Regional Air Traffic Division Chief, or the Chief, Airspace Utilization Division, Federal Aviation Agency, Washington 25, D.C. Any data, views or arguments presented during such conferences must also be submitted in writing in accordance with this notice in order to become part of the record for consideration. The proposal contained in this notice may be changed in the light of comments received.

The official Docket will be available for examination by interested persons at the Docket Section, Federal Aviation Agency, Room C–226, 1711 New York Avenue NW., Washington 25, D.C. An informal Docket will also be available for examination at the office of the Regional Air Traffic Division Chief.

This amendment is proposed under section 307(a) of the Federal Aviation Act of 1958 (72 Stat. 749; 49 U.S.C. 1348).

Issued in Washington, D.C., on May 11, 1962.

CLIFFORD P. BURTON,
Chief, Airspace Utilization Division.

[F.R. Doc. 62–4754; Filed, May 16, 1962; 8:46 a.m.]

[14 CFR Part 601]

[Airspace Docket No. 62–WE–31]

TRANSITION AREA

Proposed Designation

Pursuant to the authority delegated to me by the Administrator (14 CFR 409.13), notice is hereby given that the Federal Aviation Agency is considering an amendment to Part 601 of the regulations of the Administrator, the substance of which is stated below.

The Federal Aviation Agency has under consideration the designation of a transition area at Tobe, Colo. The proposed transition area would be designated as that airspace extending upward from 1,200 feet above the surface within 7 miles northeast and 10 miles southwest of the Tobe, Colo., VORTAC 327° and 147° True radials extending from 9 miles southeast to 20 miles northwest of the VORTAC. This transition area would provide protection for aircraft en route between the Denver/Colorado Springs/Pueblo, Colo., area and various Texas locations when required to exercise holding pattern procedures at the Tobe VORTAC.

Interested persons may submit such written data, views or arguments as they may desire. Communications should be submitted in triplicate to the Assistant Administrator, Western Region, Attn: Chief, Air Traffic Division, Federal Aviation Agency, 5651 West Manchester Avenue, P.O. Box 90007, Airport Station, Los Angeles 9, Calif. All communications received within forty-five days after publication of this notice in the FEDERAL REGISTER will be considered before action is taken on the proposed amendment. No public hearing is contemplated at this time, but arrangements for informal conferences with Federal Aviation Agency officials may be made by contacting the Regional Air Traffic Division Chief, or the Chief, Airspace Utilization Division, Federal Aviation Agency, Washington 25, D.C. Any data, views or arguments presented during such conferences must also be submitted in writing in accordance with this notice in order to become part of the record for consideration. The pro-

posal contained in this notice may be changed in the light of comments received.

The official Docket will be available for examination by interested persons at the Docket Section, Federal Aviation Agency, Room C–226, 1711 New York Avenue NW., Washington 25, D.C. An informal Docket will also be available for examination at the office of the Regional Air Traffic Division Chief.

This amendment is proposed under section 307(a) of the Federal Aviation Act of 1958 (72 Stat. 749; 49 U.S.C. 1348).

Issued in Washington, D.C., on May 11, 1962.

CLIFFORD P. BURTON,
Chief, Airspace Utilization Division.

[F.R. Doc. 62–4755; Filed, May 16, 1962; 8:46 a.m.]

Notices

DEPARTMENT OF THE TREASURY

Coast Guard

[CGFR 62–15]

EQUIPMENT, INSTALLATIONS, OR MATERIALS

Approval and Termination of Approval Notice

1. Various items of lifesaving, firefighting, and miscellaneous equipment, installations, and materials used on merchant vessels subject to Coast Guard inspection or on certain motorboats and other pleasure craft are required by law and various regulations in 46 CFR Chapter I to be of types approved by the Commandant, United States Coast Guard. The procedures governing the granting of approvals, and the cancellation, termination or withdrawal of approvals are set forth in 46 CFR 2.75–1 to 2.75–50, inclusive. For certain types of equipment, installations, and materials, specific specifications have been prescribed by the Commandant and are published in 46 CFR Parts 160 to 164, inclusive (Subchapter Q—Specifications), and detailed procedures for obtaining approvals are also described therein.

2. The Commandant's approval of a specific item is intended to provide a control over its quality. Therefore, such approval applies only to the item constructed or installed in accordance with the applicable requirements and the details described in the specific approval. If a specific item when manufactured does not comply with the details in the approval, then such item is not considered to have the Commandant's approval, and the certificate of approval issued to the manufacturer does not apply to such modified item. For example, if an item is manufactured with changes in design or material not previously approved, the approval does not apply to such modified item.

3. After a manufacturer has submitted satisfactory evidence that a particular item complies with the applicable laws and regulations, a Certificate of Approval (Form CGHQ–10030) will be issued to the manufacturer certifying that the item specified complies with the applicable laws and regulations and approval is given, which will be in effect for a period of 5 years from the date given unless sooner canceled or suspended by proper authority.

4. The purpose of this document is to notify all concerned that certain approvals were granted and terminations of approvals were made, as described in this document, during the period from March 5, 1962 to April 10, 1962. These actions were taken in accordance with procedures set forth in 46 CFR 2.75–1 to 2.75–50, inclusive.

5. The delegations of authority for the Coast Guard's actions with respect to approvals may be found in Treasury Department Orders 120, dated July 31, 1950 (15 F.R. 6521), 167–14, dated November 26, 1954 (19 F.R. 8026), 167–15, dated January 3, 1955 (20 F.R. 840), 167–20, dated June 18, 1956 (21 F.R. 4894), CGFR 56–28, dated July 24, 1956 (21 F.R. 5659), or 167–38, dated October 26, 1959 (24 F.R. 8857), and the statutory authority may be found in R.S. 4405, as amended, 4462, as amended, 4488, as amended, 4491, as amended, secs. 1, 2, 49 Stat. 1544, as amended, sec. 17, 54 Stat. 166, as amended, sec. 3, 54 Stat. 346, as amended, sec. 3, 70 Stat. 152 (46 U.S.C. 375, 416, 481, 489, 367, 526p, 1333, 390b), sec. 4(e), 67 Stat. 462 (43 U.S.C. 1333(e)), or sec. 3(c), 68 Stat. 675 (50 U.S.C. 198), and implementing regulations in 46 CFR Chapter I or 33 CFR Chapter I.

6. In Part I of this document are listed the approvals granted which shall be in effect for a period of 5 years from the dates granted, unless sooner canceled or suspended by proper authority.

7. In Part II of this document are listed the approvals which have been terminated. Notwithstanding this termination of approvals of the items of equipment as listed in Part II such equipment may be used so long as such equipment is in good and serviceable condition.

PART I—APPROVALS OF EQUIPMENT, INSTALLATIONS, OR MATERIALS

LIFE PRESERVERS, BALSA WOOD (JACKET TYPE) MODELS 42 AND 46

Approval No. 160.004/15/0, Model 42, adult balsa wood life preserver, U.S.C.G. Specification Subpart 160.004, manufactured by The Safegard Corp., P.O. Box 66, Station B, Cincinnati 22, Ohio, effective April 10, 1962. (It is an extension of Approval No. 160.004/15/0 dated April 10, 1957.)

Approval No. 160.004/16/0, Model 46, child balsa wood life preserver, U.S.C.G. Specification Subpart 160.004, manufactured by The Safegard Corp., P.O. Box 66, Station B, Cincinnati 22, Ohio, effective April 10, 1962. (It is an extension of Approval No. 160.004/16/0 dated April 10, 1957.)

BUOYS, LIFE, RING, CORK OR BALSA WOOD

Approval No. 160.009/38/0, 30-inch cork ring life buoy, U.S.C.G. Specification Subpart 160.009, manufactured by Elvin Salow Co., 273–285 Congress Street, Boston 10, Massachusetts, effective March 13, 1962. (It is an extension of Approval No. 160.009/38/0 dated March 5, 1957 and published in the FEDERAL REGISTER April 10, 1957.)

WINCHES, LIFEBOAT

Approval No. 160.015/45/2, Type CL–17.5–55 lifeboat winch, approval is limited to mechanical components and for a maximum working load of 17,500 pounds pull at the drums (8,750 pounds per fall) identified by general assembly dwg. No. CL–17.5–55 dated January, 1956, manufactured by Marine Safety Equipment Corp., Point Pleasant Beach, New Jersey, effective April 10, 1962. (It is an extension of Approval No. 160.015/45/2 dated April 10, 1957.)

Approval No. 160.015/60/0, Type MP–31 lifeboat winch for use with mechanical davits, fitted with wire rope not more than 7/16 inch in diameter and with not more than 2 wraps of the falls on the drums (approval is limited to mechanical components and for a maximum working load of 4,000 pounds pull at the drums (2,000 pounds per fall)), identified by arrangement dwg. No. 1495–1 dated Jan. 8, 1951, and revised Sept. 19, 1951, manufactured by C. C. Galbraith & Son, Inc., 99 Park Place, New York, New York, effective March 13, 1962. (It is an extension of Approval No. 160.015/60/0 dated February 6, 1957 and approved in the FEDERAL REGISTER April 10, 1957.)

LIFE RAFTS

Approval No. 160.018/5/1, Type B life raft, for other than ocean and coastwise service, 10.5′ x 7.83′ x 3.0′, 15-person capacity, identified by general arrangement dwg. No. B–10–6–15–1, Rev. B dated September 5, 1959, effective March 13, 1962. (It is an extension of Approval No. 160.018/5/1 dated March 5, 1957 and published in the FEDERAL REGISTER April 10, 1957.)

WATER, EMERGENCY DRINKING (IN HERMETICALLY SEALED CONTAINERS)

Approval No. 160.026/34/0, container for emergency drinking water, dwg. No. R–0115–E–1, dated February 8, 1962 and Specification No. SR–0119–E, dated January 22, 1962, manufactured by Associated Processors, Inc., Williamsport, Pennsylvania, effective April 6, 1962.

DAVITS

Approval No. 160.032/47/4, gravity davit, Type G–105S (formerly Type 60–75), approved for a maximum working load of 22,000 pounds per set (11,000 pounds per arm), using 2-part fall, identified by arrangement dwg. No. 3368–2, Rev. A, dated September 11, 1953; manufactured by Welin Davit and Boat Division of Continental Copper & Steel Industries, Inc., Perth Amboy, New Jersey, effective March 30, 1962. (It supersedes Approval No. 160.032/47/3 dated June 20, 1959.)

Approval No. 160.032/117/0, mechanical davit, crescent sheath screw, Type C–60, approved for maximum working load of 12,000 pounds per set (6,000 pounds per arm) using two-part to five-part falls, identified by general arrangement dwg. No. 3310 dated November 23, 1949, manufactured by Welin Davit and Boat Division of Continental Copper & Steel Industries, Inc., Perth Amboy, New Jersey, effective April 10, 1962. (It is an extension of Approval No. 160.032/117/0 dated April 10, 1957.)

Approval No. 160.032/123/0, mechanical davit, straight boom sheath screw, Type 22–25, approved for maximum working load of 7,000 pounds per set (3,500 pounds per arm), using 2-part falls, identified by arrangement dwg. No. DB–101–2 dated March 24, 1950 and revised October 25, 1951, manufactured by Marine Safety Equipment Corp., Point Pleasant Beach, New Jersey, effective March 5, 1962. (It is an extension of Approval No. 160.032/123/0, dated March 5, 1957, and published in the FEDERAL REGISTER April 10, 1957.)

LIFEBOATS

Approval No. 160.035/16/2, 22.0′ x 6.8′ x 2.8′ steel, oar propelled lifeboat, 25-person capacity, identified by general arrangement dwg. No. G–2225 dated June 27, 1951, and revised December 17, 1956, manufactured by C. C. Galbraith & Son, Inc., 99 Park Place, New York 7, New York, effective April 10, 1962. (It is an extension of Approval No. 160.035/16/2 dated April 10, 1957.)

Approval No. 160.035/85/1, 12.0′ x 4.4 x 1.9′ steel, oar-propelled lifeboat, 6-person capacity, identified by general arrangement and construction dwg. No. 49R–1213 dated August 16, 1951, approved for use on vessels in Bays, Sounds, and Lakes; and River Service (if mechanical disengaging apparatus is fitted it shall be of an approved type and installed in accordance with drawings approved by the Commandant), manufactured by Lane Lifeboat and Davit Corp., 8920 26th Avenue, Brooklyn 14, New York, effective March 13, 1962. (It is an extension of Approval No. 160.035/85/1 dated February 6, 1957, and published in the FEDERAL REGISTER April 10, 1957.)

Approval No. 160.035/98/2, 22.0′ x 7.50′ x 3.17′ steel, oar-propelled lifeboat, 31-person capacity, identified by general arrangement and construction dwg. No. 49R–2217C dated August 8, 1950, manufactured by Lane Lifeboat and Davit Corp., 8920 26th Avenue, Brooklyn 14, New York, effective April 10, 1962. (It is an extension of Approval No. 160.035/98/2 dated April 10, 1957.)

Approval No. 160.035/280/2, 26.0′ x 9.0′ x 3.83′ aluminum, oar-propelled lifeboat, 53-person capacity, identified by construction and arrangement dwg. No. 26–8, Alt. B dated February 23, 1962, manufactured by Marine Safety Equipment Corp., Point Pleasant Beach, New Jersey, effective March 27, 1962. (It supersedes Approval No. 160.035/280/1 dated November, 1, 1957.)

Approval No. 160.035/348/0, 12.0′ x 4.4′ x 1.9′ aluminum, oar-propelled lifeboat 6-person capacity, identified by general arrangement and construction dwg. No. 52–1217, dated December 17, 1952, and revised October 26, 1956 (if mechanical disengaging apparatus is fitted, it shall be of an approved type and the installation in this particular lifeboat shall be approved by the Commandant), manufactured by Lane Lifeboat & Davit Corp., 8920 26th Avenue, Brooklyn 14, New York, effective April 10, 1962. (It is an extension of Approval No. 160.035/348/0 dated April 10, 1957.)

Approval No. 160.035/246/2, 22.0′ x 6.5′ x 2.67′ steel, oar-propelled lifeboat, 23-person capacity, identified by construction and arrangement dwg. No. 22–3, dated April 12, 1949, Rev. C, dated October 1, 1959, to be fitted with a Rottmer Type S–1 Release Gear 160.033/39/2 or Rottmer Type B–1 Release Gear 160.033/52/0, manufactured by Marine Safety Equipment Corp., Point Pleasant Beach, New Jersey, effective April 10, 1962. (It is an extension of Approval No. 160.035/246/2 dated April 10, 1957.)

Approval No. 160.035/121/2, 22.0′ x 6.67′ x 3.0′ steel, oar-propelled lifeboat, 25-person capacity, identified by general arrangement dwg. No. 22–6/3–25–2A dated August 16, 1950, revised January 13, 1957 (if mechanical disengaging apparatus is fitted, it shall be of an approved type and the installation in this particular lifeboat shall be approved by the Commandant), manufactured by Frank Morrison and Son Co., 1330 West 11th Street, Cleveland, Ohio, effective April 10, 1962. (It is an extension of Approval No. 160.035/121/2 dated April 10, 1957.)

Approval No. 160.035/126/2, 16.0′ x 6.0′ x 2.67′ steel, oar-propelled lifeboat, 15-person capacity, identified by general arrangement dwg. No. 16–6–15–2, Rev. B, dated September 24, 1955, and revised May 18, 1956, approved for service on vessels other than Ocean and Coastwise (if mechanical disengaging apparatus is fitted, it shall be of an approved type and the installation in this particular lifeboat shall be approved by the Commandant), manufactured by Frank Morrison and Son Co., 1330 West 11th Street, Cleveland, Ohio, effective April 10, 1962. (It is an extension of Approval No. 160.035/126/2 dated April 10, 1957.)

Approval No. 160.035/33/1, 18.0′ x 6.5′ x 2.6′ steel, oar-propelled lifeboat, 18-person capacity, identified by construction and arrangement dwg. No. 3121 dated November 14, 1956, and revised December 12, 1956, manufactured by Welin Davit and Boat Division of Continental Copper & Steel Industries, Inc., Perth Amboy, New Jersey, effective April 10, 1962. (It is an extension of Approval No. 160.035/33/1 dated April 10, 1957.)

Approval No. 160.035/340/0, 30.67′ x 10.17′ x 4.25′ steel, hand-propelled lifeboat with metallic thwarts, 78-person capacity, identified by construction and arrangement dwg. No. 80052 dated June 30, 1955, and revised November 9, 1956, manufactured by Welin Davit and Boat Division of Continental Copper & Steel Industries, Inc., Perth Amboy, New Jersey, effective April 10, 1962. (It is an extension of Approval No. 160.035/340/0 dated April 10, 1957.)

Approval No. 160.035/417/0, 30.0′ x 10.0′ x 4.33′ fibrous glass reinforced plastic, motor-propelled (diesel) Class "B" lifeboat, 74-person capacity, identified by construction and arrangement dwg. No. 80305, Rev. C dated March 1, 1962, manufactured by Welin Davit and Boat Div. of Continental Copper & Steel Industries, Inc., Perth Amboy, New Jersey, effective April 3, 1962.

KITS, FIRST-AID

Approval No. 160.041/1/0, first-aid kit, Model M 2, dwg. No. 99, dated July 1, 1951, manufactured by E. D. Bullard, 2680 Bridgeway, Sausalito, California, effective March 5, 1962. (It is an extension of Approval No. 160.041/1/0 dated March 5, 1957, and change of address of manufacturer.)

BUOYANT CUSHIONS, KAPOK OR FIBROUS GLASS

NOTE: Approved for use on motorboats of Classes A, 1, or 2 not carrying passengers for hire.

Approval No. 160.048/88/0, group approval for rectangular and trapezoidal kapok buoyant cushions, U.S.C.G. Specification Subpart 160.048, manufactured by Liberty Cork Co., 123 Whitehead Avenue, South River, New Jersey, effective April 10, 1962. (It is an extension of Approval No. 160.048/88/0 dated April 10, 1957.)

Approval No. 160.048/89/0, group approval for rectangular and trapezoidal kapok buoyant cushions, U.S.C.G. Specification Subpart 160.048, sizes and weights of kapok filling to be as per Table 160.048–4(c) (1) (i), manufactured by Billy Boy Products, Inc., Quincy, Michigan, for Montgomery Ward & Co., Inc., 619 West Chicago Avenue, Chicago 7, Illinois, effective April 10, 1962. (It is an extension of Approval No. 160.048/89/0 dated April 10, 1957.)

Approval No. 160.048/90/0, group approval for rectangular and trapezoidal kapok buoyant cushions, U.S.C.G. Specification Subpart 160.048, sizes and weights of kapok filling to be as per Table 160.048–4(c) (1) (i), manufactured by Trimco, Holiday Harbor, Celeron, New York, effective April 10, 1962. (It is an extension of Approval No. 160.048/90/0 dated April 10, 1957.)

Approval No. 160.048/91/0, group approval for rectangular and trapezoidal fibrous glass buoyant cushions, U.S.C.G. Specification Subpart 160.048, sizes and weights of fibrous glass filling to be as per Table 160.048–4(c) (1) (ii), manufactured by Trimco, Holiday Harbor, Celoron, New York, effective April 10, 1962. (It is an extension of Approval No. 160.048/91/0 dated April 10, 1957.)

BUOYANT CUSHIONS, UNICELLULAR PLASTIC FOAM

NOTE: Approved for use on motorboats of Classes A, 1, or 2 not carrying passengers for hire.

Approval No. 160.049/11/0, group approval for rectangular and trapezoidal unicellular plastic foam buoyant cushions, U.S.C.G. Specification Subpart 160.049, sizes to be as per Table 160.049–4(c) (1), manufactured by Mercury Boat Co., Highway 126, Piru, California, effective April 10, 1962. (It is an extension of Approval No. 160.049/11/0 dated April 10, 1957, and change of address of manufacturer.)

WORK VESTS, UNICELLULAR PLASTIC FOAM

Approval No. 160.053/13/0, Model 641, unicellular plastic foam work vest, dwgs. P–1, dated January 23, 1962, and P–2, dated January 17, 1962, manufactured by The Safegard Corp., Box 14037, P.O. Annex, Cincinnati, Ohio, for Safety First Supply Company, 425 Magee Street,

Pittsburgh 19, Pennsylvania, effective March 16, 1962.

FIRE PROTECTIVE SYSTEMS

Approval No. 161.002/6/0, audible and visual, supervised, type RB Smoke detector systems, eight (8) through forty-eight (48) lines (Drawing #SK–122753 Wiring Diagram Marine Smoke Detector, and Drawing #SK–134335 Schematic Marine Smoke Detector), manufactured by Walter Kidde & Company, Inc., Belleville 9, New Jersey, effective March 27, 1962.

TELEPHONE SYSTEMS, SOUND POWERED

Approval No. 161.005/43/1, sound powered telephone station, selective ringing, common talking, bulkhead mounting, splashproof, with attached 3″, 6″, or 8″ hand generator bell, dwg. No. B–170, Alt. 1, Type 8S, 8 stations maximum and Type 17S, 17 stations maximum, for use in locations not exposed to the weather, manufactured by Sig-Trans, Inc., Haverhill Road, Amesbury, Massachusetts, effective April 10, 1962. (It is an extension of Approval No. 161.005/43/1 dated April 10, 1957.)

Approval No. 161.005/46/1, sound powered signal relay telephone, self-locking, manual release, with indicator light, for operation with hand generator, dwg. B–177, Alt. 1, for connecting in parallel with hand generator bell on sound powered telephone stations to operate separately powered 115 volts A.C. audible signal, manufactured by Sig-Trans, Inc., Haverhill Road, Amesbury, Massachusetts, effective April 10, 1962. (It is an extension of Approval No. 161.005/46/1 dated April 10, 1957.)

Approval No. 161.005/48/0, sound powered telephone station, selective ringing, common talking, nonwaterproof, with internal hand generator bell, Type 8DDS and Type 17DDS, dwg. B–174, Alt. 2, for use in officers' quarters and radio room, manufactured by Sig-Trans, Inc., Haverhill Road, Amesbury, Massachusetts, effective April 10, 1962. (It is an extension of Approval No. 161.005/48/0 dated April 10, 1957.)

FLAME ARRESTERS, BACKFIRE (FOR CARBURETORS)

Approval No. 162.015/63/0, Model 102A–3 backfire flame arrester for carburetors, flame arrester assembly, marine carburetor air intake, 100A Series, dated 25 January 1962, Change B dated 8 February 1962, manufactured by Industrial Strainer Company, 695 Amelia Street, Plymouth, Michigan, effective April 5, 1962.

VALVES, PRESSURE-VACUUM RELIEF AND SPILL

Approval No. 162.017/81/0, Figure No. 160, pressure vacuum relief valve, atmospheric pattern, weight-loaded poppets, bronze, nickel cast iron or stainless steel body, dwg. No. 160–A, Alt. 1, dated November 12, 1956, approved for 4″ size, manufactured by Mechanical Marine Co., Inc., 17 Battery Place, New York 4, New York, effective April 10, 1962. (It is an extension of Approval No. 162.017/81/0 dated April 10, 1957.)

Approval No. 162.017/83/0, Figure No. CG–240–AL, pressure vacuum relief valve, enclosed pattern, weight-loaded poppets, aluminum body, dwg. No. CG–240–AL, dated January 15, 1957, approved for 4-inch size, manufactured by Mechanical Marine Co., Inc., 17 Battery Place, New York 4, New York, effective April 10, 1962. (It is an extension of Approval No. 162.-017/83/0 dated April 10, 1957.)

Approval No. 162.017/92/0, 4″ Vacuum Breather Valve, Fig. 4103–05 for propane, butane, and ammonia at a minimum temperature of −50° F and maximum pressure of 4 p.s.i.g., manufactured by Shand and Jurs Co., 2600 Eighth Street, Berkeley 10, California, effective March 16, 1962.

BOILERS, AUXILIARY, AUTOMATICALLY CONTROLLED PACKAGED

Approval No. 162.026/1/0, Clayton Steam Generator, Model RO–110, 150 p.s.i. maximum, 110 boiler horsepower, automatically controlled packaged auxiliary boiler, oil fired, heavy oil heater optional, Specification Subpart 162.026, manufactured by Clayton Manufacturing Co., P.O. Box 550, El Monte, California, effective March 16, 1962. (It supersedes Approval No. 162.026/1/0 dated February 26, 1962.)

PART II—TERMINATION OF APPROVALS OF EQUIPMENT, INSTALLATIONS, OR MATERIALS

LIGHTS (WATER): ELECTRIC, FLOATING, AUTOMATIC (WITH BRACKET FOR MOUNTING)

Termination of Approval No. 161.001/6/0, automatic floating electric water light (with bracket for mounting), identified by dwg. No. 607, Alt. 1, manufactured by Pomill Manufacturing Corp., 17 Battery Place, New York 4, New York, effective February 23, 1961. (Manufacturer no longer in business.)

Dated: May 10, 1962.

[SEAL] A. C. RICHMOND,
Admiral, U.S. Coast Guard
Commandant.

[F.R. Doc. 62–4773; Filed, May 16, 1962; 8:48 a.m.]

DEPARTMENT OF THE INTERIOR

Bureau of Land Management

[09390]

ARIZONA

Notice of Proposed Withdrawal and Reservation of Lands

The Forest Service, United States Department of Agriculture, has filed an application, Serial No. Arizona 09390, for the withdrawal of the lands described below, from location and entry under the General Mining Laws subject to existing valid claims. The applicant desires the lands for the purpose of the preservation of public highway roadside zones and scenic strips.

For a period of 30 days from the date of publication of this notice, all persons who wish to submit comments, suggestions or objections in connection with the proposed withdrawal may present their views in writing to the undersigned officer of the Bureau of Land Management, U.S. Department of the Interior, Room 3022 Federal Building, Phoenix 25, Arizona.

If circumstances warrant it, a public hearing will be held at a convenient time and place which will be announced.

The determination of the Secretary on the application will be published in the FEDERAL REGISTER. A separate notice will be sent to each interested party of record.

The lands involved in the application are:

GILA AND SALT RIVER MERIDIAN, ARIZONA

A strip of land 300 feet on each side of the center line as the following roads pass through the listed subdivisions:

Forest Highway No. 3

T. 21 N., R. 7 E.,
Sec. 33: E½SW¼, N½SW¼SE¼.
T. 20 N., R. 7 E.,
Sec. 3: SW¼NW¼, SW¼, less patented HES 619, Tracts A & B;
Sec. 4: Lot 1 and SE¼NE¼;
Sec. 10: NE¼NW¼, N½NE¼;
Sec. 11: N½;
Sec. 12: NE¼SW¼, SE¼, SW¼NE¼, SE¼NE¼SW¼NW¼, W½NE¼SW¼NW¼, W½SW¼NW¼, SE¼SW¼NW¼, SE¼NW¼SE¼NW¼, S½NE¼SE¼NW¼, S½SE¼NW¼;
Sec. 13: E½NE¼.
T. 20 N., R. 8 E.,
Sec. 17: S½SW¼;
Sec. 18: Lots 1, 2, SE¼NW¼, SE¼;
Sec. 20: N½NW¼, NE¼;
Sec. 21: SW¼NW¼, N½SW¼, SE¼;
Sec. 22: SW¼SW¼;
Sec. 27: SW¼NE¼, SE¼, NW¼NW¼, E½NW¼;
Sec. 34: NE¼NE¼;
Sec. 35: N½SW¼, SE¼, S½NW¼;
Sec. 36: S½S½S½S½.
T. 19 N., R. 8 E.,
Sec. 1: N½ lots 2 and 3.
T. 19 N., R. 9 E.,
Sec. 5: S½NW¼, N½SW¼, SE¼, SW¼NE¼;
Sec. 6: Lots 2, 3, except N½NW¼NE¼NW¼, 4 except NE¼NE¼NW¼NW¼, SE¼NW¼;
Sec. 8: SE¼SE¼SE¼;
Sec. 9: W½W½NW¼, W½SW¼;
Sec. 16: W½NW¼, SW¼;
Sec. 21: NW¼, W½SW¼;
Sec. 28: W½W½;
Sec. 33: NW¼, E½SW¼.
T. 18 N., R. 9 E.,
Sec. 4: Lot 2, E½SE¼;
Sec. 9: E½NE¼;
Sec. 10: W½W½;
Sec. 15: W½NW¼, SW¼;
Sec. 22: W½;
Sec. 27: W½;
Sec. 34: NW¼NW¼.

Forest Highway No. 10, Roadside Zone

T. 12 N., R. 8 E. (Unsurveyed),
Sec. 1: SE¼SE¼;
Sec. 9: SE¼SE¼;
Sec. 10: S½NE¼, N½SE¼, SW¼;
Sec. 11: N½SW¼, N½SE¼, S½NE¼, S½NW¼;
Sec. 12: NE¼NE¼, S½NE¼, N½SE¼, S½NW¼, N½SW¼;
Sec. 16: N½NE¼, SW¼NE¼, E½SW¼, W½SE¼, SE¼SE¼.
T. 12 N., R. 9 E. (Unsurveyed),
Sec. 3: N½NW¼, SW¼NW¼, NW¼NE¼;
Sec. 4: NE¼NE¼, S½NE¼, SW¼NW¼, NW¼SW¼;
Sec. 5: SW¼, NE¼SE¼, S½SE¼;
Sec. 6: N½SW¼, SW¼SW¼, N½SE¼, SE¼SE¼;
Sec. 7: NW¼NW¼.
T. 13 N., R. 9 E.,
Sec. 12: Lots 1, 2, 3, 4, 5, 6 and 7;
Sec. 13: NE¼NE¼, S½NE¼, SE¼, S½SW¼;

Sec. 23: NE¼, SW¼SW¼, E½SW¼, NW¼SE¼;
Sec. 24: NW¼NW¼;
Sec. 26: N½NW¼, SW¼NW¼, NW¼SW¼;
Sec. 27: SE¼NE¼, E½SE¼, SW¼SE¼;
Sec. 34: NW¼NE¼, E½NW¼, SW¼.

T. 13 N., R. 10 E.,
Sec. 5: Lots 3, 4, and 5;
Sec. 6: Lots 1, 6, 9, 11, 12, 13, SW¼NE¼;
Sec. 7: Lot 2.

T. 14 N., R. 10 E.,
Sec. 13: S½NE¼, E½SW¼, SW¼SW¼, W½SE¼, NE¼NE¼;
Sec. 23: E½NE¼, N½SE¼, SW¼SE¼, SE¼SW¼;
Sec. 24: W½NW¼;
Sec. 26: N½NW¼, SW¼NW¼;
Sec. 27: SE¼NE¼, SE¼;
Sec. 32: N½SE¼, SW¼SE¼, SE¼SW¼ (all less patented HES 97 and HES 178);
Sec. 33: SW¼, N½SE¼, SW¼SE¼;
Sec. 34: NW¼SW¼, S½NW¼, NE¼NW¼, NW¼NE¼.

T. 14 N., R. 11 E.,
Sec. 1: N½S½, SW¼SW¼;
Sec. 2: S½S½;
Sec. 3: SE¼SE¼;
Sec. 8: S½S½;
Sec. 9: S½SW¼, N½N½SE¼, SE¼NE¼;
Sec. 10: NW¼SW¼, S½NW¼, NE¼NW¼, N½NE¼;
Sec. 17: N½N½;
Sec. 18: Lots 1, 2, E½NW¼, W½NE¼, NE¼NE¼.

T. 14 N., R. 12 E.,
Sec. 6: Lots 1, 9, 10, 11, 12, 13, S½NE¼, NW¼SE¼.

T. 15 N., R. 12 E.,
Sec. 4: Lots 3, 4, SW¼NW¼, NW¼SW¼;
Sec. 8: E½NW¼, W½SW¼, NE¼SW¼, W½NE¼;
Sec. 18: E½NE¼, SW¼NE¼, N½SE¼, SW¼SE¼;
Sec. 19: W½NE¼, SE¼NE¼, E½SE¼;
Sec. 30: E½E½.

T. 16 N., R. 12 E.,
Sec. 24: SE¼NE¼, N½SE¼, SW¼SE¼, S½SW¼;
Sec. 25: N½NW¼;
Sec. 26: E½NE¼, SW¼NE¼, NW¼SE¼, SW¼;
Sec. 27: SE¼SE¼;
Sec. 33: NE¼SE¼, Lots 1, 2, and 3;
Sec. 34: NW¼SW¼, S½NW¼, NE¼NW¼, W½NE¼, NE¼NE¼.

U.S. Highway 66, Roadside Zone

T. 22 N., R. 5 E.,
Sec. 34: S½NW¼, W½W½SW¼NE¼.

T. 21 N., R. 6 E.,
Sec. 6: SW¼SE¼, E½E½SE¼SW¼;
Sec. 7: E½NE¼, SE¼NW¼NE¼, N½NW¼NE¼ (except those parts in RR R/W);
Sec. 8: N½SE¼NE¼SW¼, SW¼SE¼NE¼SW¼, SW¼NE¼SW¼, N½NE¼SW¼, NW¼SW¼, S½NW¼, S½SE¼SE¼, E½NE¼SE¼SE¼ (except those parts south of RR R/W);
Sec. 9: SW¼SW¼;
Sec. 15: SW¼, S½SE¼ (except those parts in RR main line R/W);
Sec. 16: W½NW¼, SE¼NW¼, SW¼NE¼, N½SE¼;
Sec. 17: NE¼NE¼ (except that part in RR R/W);
Sec. 23: N½N½ (except that part of NW¼NW¼ in RR R/W);
Sec. 24: NW¼NW¼, NW¼NE¼.

T. 21 N., R. 7 E.,
Sec. 13: SW¼NW¼ less patented HES 85;
Sec. 20: Lot 1.

T. 21 N., R. 8 E.,
Sec. 9: S½NE¼ and E½SE¼NW¼ (except those parts in RR R/W) N½NE¼SE¼, NE¼NW¼SE¼, E½NW¼NW¼SE¼;
Sec. 11: SW¼SW¼ (except that part in RR R/W);
Sec. 13: Lots 3, 4, S½NW¼, NW¼NW¼ (except those parts in RR R/W);
Sec. 14: NE¼, N½NW¼—except a strip of land 500 ft. on either side of the center line of W.C.N.M. road thru W½NE¼, NE¼NW¼ (PLO 1269);
Sec. 15: NE¼NE¼.

T. 21 N., R. 9 E.,
Sec. 13: S½SW¼, NW¼SW¼, SW¼SE¼ (except those parts in RR R/W);
Sec. 14: S½SW¼NW¼, SW¼SE¼NW¼, W½NW¼NE¼SW¼, S½NE¼NE¼SW¼, S½NW¼SE¼, S½NW¼NW¼SE¼, E½SE¼, NE¼NW¼SE¼, NW¼SW¼;
Sec. 15: NW¼NW¼SE¼, W½NE¼NW¼SE¼, N½SW¼NW¼SE¼, NW¼SE¼NW¼SE¼, N½SW¼, S½NW¼;
Sec. 16: N½S½, S½N½;
Sec. 17: S½N½, NE¼NW¼SW¼, NE¼SW¼, N½SE¼ (except that part of SW¼NW¼ in RR R/W);
Sec. 18: Lots 2, 6, SE¼NW¼, SW¼NE¼, NW¼SE¼, NE¼NE¼SW¼;
Sec. 24: N½NE¼.

T. 21 N., R. 10 E.,
Sec. 19: Lots 7, 8, 9, SE¼ and those parts of X Sur. 670 and X Sur. 663 embraced in former Lots 4, 5 and 6, less area in Patent 833438;
Sec. 20: S½SW¼;
Sec. 27: S½SW¼;
Sec. 28: S½SE¼, N½SW¼, SE¼SW¼, SW¼NW¼;
Sec. 29: NE¼NW¼, NE¼, NE¼SE¼;
Sec. 34: NE¼NW¼, NE¼, NE¼SE¼;
Sec. 35: SW¼NW¼, N½SW¼, Lots 1, 2, 3, NW¼SE¼.

U.S. Highways 89 and 89A, Roadside Zone

T. 15 N., R. 3 E.,
Sec. 1: Lots 1, 2, SE¼NW¼, NW¼SE¼, NE¼SW¼, S½NE¼.

T. 16 N., R. 4 E.,
Sec. 10: Lots 3, 5, 6, 9, 10, 11 and 12;
Sec. 15: Lot 4;
Sec. 31: E½NW¼, Lots 1, 2, and 3.

T. 17 N., R. 4 E.,
Sec. 24: N½SE¼, SW¼SE¼;
Sec. 25: NW¼NE¼, W½SW¼;
Sec. 26: SE¼SE¼;
Sec. 35: NE¼, W½SE¼, E½SW¼.

T. 17 N., R. 5 E.,
Sec. 12: N½SW¼SE¼SE¼, NW¼SE¼SE¼, E½SE¼SE¼, SW¼SE¼ except patented land, SE¼SW¼ except patented land;
Sec. 15: SE¼NW¼, SW¼, W½W½NE¼;
Sec. 16: S½SE¼;
Sec. 19: Lots 8, 9, 10, 11, 12, 13, 14 and 15;
Sec. 20: N½NW¼, SW¼NW¼, N½NE¼;
Sec. 21: N½NW¼, NW¼NE¼.

T. 17 N., R. 6 E.,
Sec. 4: Lots 2, 3, S½NW¼;
Sec. 5: SE¼NE¼, N½SE¼, N½N½ lot 5, SW¼NW¼ lot 5, N½SW¼NE¼ lot 5, SE¼NE¼ lot 5, NW¼SE¼SE¼, N½SE¼NW¼ lot 5;
Sec. 7: Lots 3, 4, NW¼SE¼, E½SW¼, N½NE¼SE¼, N½S½NE¼SE¼.

T. 18 N., R. 6 E.,
Sec. 4: NW¼SW¼;
Sec. 5: N½NE¼SE¼, S½SE¼SE¼ less patented HES 579;
Sec. 8: Unsurveyed N½N½NE¼ and N½S½N½NE¼, both less patented HES 579; W½SE¼ less patented HES 369;
Sec. 16: SW¼SW¼;
Sec. 17: Unsurveyed W½NE¼, SE¼NE¼ (both less patented HES 368);
Sec. 21: Unsurveyed SE¼NW¼, SW¼NE¼, NW¼SE¼ (all less patented HES 367); E½SE¼, NE¼SW¼, SW¼SE¼;
Sec. 27: Lot 2;
Sec. 28: Unsurveyed E½NE¼ less patented HES 94, NW¼NE¼;
Sec. 33: Lots 2, 7, 8, 9, 10, and the W½ of lot 1, and S½SE¼ of lot 1.

T. 19 N., R. 6 E.,
Sec. 2: Lot 3, E½SW¼;
Sec. 11: E½NW¼, SW¼;
Sec. 14: Lots 5, 6, 7, 8, 16, 17, 18 and 19;
Sec. 15: E½SE¼, NW¼SE¼;
Sec. 22: Lots 3 and 12;
Sec. 27: Lots 2, 11, 14 (all less patented HES 95), and Lots 1, 12, 23;
Sec. 34: Lots 3, 17 and 18.

T. 20 N., R. 6 E.,
Sec. 13: N½NE¼, SW¼NE¼, SE¼NW¼, NW¼SE¼, E½SW¼, SW¼SW¼;
Sec. 23: N½NE¼, SW¼NE¼, SE¼NW¼, NW¼SE¼, E½SW¼;
Sec. 35: Lots 1, 4, 5, 8, NW¼NE¼.

T. 20 N., R. 7 E.,
Sec. 5: Lots 3, 4, S½NW¼;
Sec. 7: Lot 4, NE¼NE¼, S½SE¼SE¼NE¼, SW¼SE¼, SE¼SW¼, W½NW¼SE¼, S½SE¼NW¼SE¼, SW¼SW¼NE¼SE¼ (except those parts of NE¼NE¼, S½SE¼SE¼NE¼, and the SW¼SW¼NE¼SE¼ in RR pipeline R/W);
Sec. 8: N½SW¼NW¼, SW¼SW¼NW¼.

T. 21 N., R. 7 E.,
Sec. 32: N½NE¼, SW¼NE¼, SE¼NW¼, SW¼.

T. 21 N., R. 8 E.,
Sec. 7: NE¼NE¼.

T. 22 N., R. 8 E.,
Sec. 16: SE¼SE¼, S½S½NE¼SE¼;
Sec. 21: E½NE¼, NE¼SE¼, NE¼NW¼SE¼SE¼, N½NE¼SE¼SE¼, SE¼NE¼SE¼SE¼, NE¼SE¼SE¼SE¼;
Sec. 28: S½SE¼NE¼NE¼, S½SW¼NE¼NE¼, NW¼SW¼NE¼NE¼, S½NW¼NE¼, SW¼NE¼, W½SE¼SE¼NE¼, SW¼SE¼NE¼, N½SE¼NE¼;
Sec. 32: SE¼NE¼, NE¼SE¼, NW¼SE¼, E½SW¼SE¼, W½SE¼SW¼, N½N½NW¼SW¼SE¼, N½N½NE¼SE¼SW¼;
Sec. 33: NW¼SW¼NW¼, S½SW¼NW¼.

T. 23 N., R. 8 E.,
Sec. 5: Lots 3, 4, S½NW¼, W½SW¼;
Sec. 7: E½SE¼, SE¼NE¼;
Sec. 8: W½NW¼, NW¼SW¼;
Sec. 17: W½SW¼;
Sec. 18: E½NE¼, E½SE¼;
Sec. 20: NW¼, E½SW¼, SW¼SE¼;
Sec. 28: SW¼SW¼;
Sec. 29: E½NW¼, W½NE¼, SE¼NE¼, E½NW¼NE¼SE¼, NE¼NE¼SE¼, SE¼NE¼SE¼, N½NE¼SE¼SE¼;
Sec. 33: E½W½NW¼NW¼, E½NW¼NW¼, N½SE¼NW¼, NE¼NW¼.

T. 24 N., R. 8 E.,
Sec. 4: Lot 3, SW¼;
Sec. 9: W½W½, NE¼NW¼;
Sec. 16: W½NW¼, NW¼SW¼;
Sec. 17: E½E½SE¼, E½E½SE¼NE¼;
Sec. 20: NE¼NE¼NE¼, S½NE¼NE¼, E½SE¼NE¼;
Sec. 29: NW¼SE¼SW¼, S½SE¼SW¼;
Sec. 32: E½NW¼, NW¼NE¼, E½SW¼, SW¼SW¼.

T. 25 N., R. 8 E.,
Sec. 21: E½NE¼, SE¼;
Sec. 28: W½E½, SE¼SW¼;
Sec. 33: E½NW¼, N½SW¼, SW¼SW¼, SW¼NW¼.

Total—7,239 acres, more or less.

Dated: May 10, 1962.

FRED J. WEILER,
State Director.

[F.R. Doc. 62–4757; Filed, May 16, 1962; 8:46 a.m.]

CALIFORNIA

Notice of Proposed Withdrawal and Reservation of Lands; Correction

MAY 10, 1962.

The notice of Proposed Withdrawal and Reservation of Lands published on pages 3936 and 3937 of the FEDERAL REGISTER, issued for Wednesday, April 25, 1962 (F.R. Doc. 62–3997; Filed, April 24, 1962; 8:45 a.m.) is hereby corrected (in

first paragraph) to read "* * * from all forms of appropriation under the public land laws except the mining laws * * *," replacing "* * * from all forms of appropriation under the public land laws except the mineral laws * * *."

ROLLA E. CHANDLER,
Manager.

[F.R. Doc. 62-4758; Filed, May 16, 1962; 8:46 a.m.]

IDAHO

Notice of Proposed Withdrawal and Reservation of Lands

MAY 10, 1962.

The U.S. Army Engineer District, Seattle, has filed an application, Serial No. Idaho 013260 for the withdrawal of the lands described below, from all forms of appropriation under the public land laws including the mining laws, mineral leasing laws, and the disposal of materials under the Act of July 31, 1947 (61 Stat. 681; 30 U.S.C. 601-604), as amended. The applicant desires the land for the construction, operation and maintenance of a small arms firing range to be used by the Department of the Air Force.

For a period of 30 days from the date of publication of this notice, all persons who wish to submit comments, suggestions, or objections in connection with the proposed withdrawal may present their views in writing to the undersigned officer of the Bureau of Land Management, Department of the Interior, P.O. Box 2237, Boise, Idaho.

If circumstances warrant it, a public hearing will be held at a convenient time and place, which will be announced.

The determination of the Secretary on the application will be published in the FEDERAL REGISTER. A separate notice will be sent to each interested party of record.

The lands involved in the application are:

BOISE MERIDIAN, IDAHO

T. 4 S., R. 5 E.,
Sec. 3: Lot 4, SW¼NW¼, SW¼;
Sec. 4: Lots 1, 2, 3, 4, S½N½, S½;
Sec. 5: Lots 1, 2, 3, S½NE¼, E½SE¼;
Sec. 9: N½;
Sec. 10: NW¼.

The areas described aggregate 1622.43 acres of public land in Elmore County, Idaho.

MICHAEL T. SOLAN,
Manager.

[F.R. Doc. 62-4759; Filed, May 16, 1962; 8:46 a.m.]

[Classification No. 109]

NEVADA

Small Tract Classification; Amendment

1. Effective May 11, 1962 Federal Register Document 56-1699 appearing on pages 1453-55 of the issue of March 6, 1956, is amended to provide for disposal by direct sale of the following described tracts embracing approximately 358.77 acres.

Tract No.	Township and Range	Meridian	Section	Subdivision	Acres	Value
1	17 N., 64 E.	MDM	18	N½SW¼NE¼SE¼	5.00	$225
2				N½SE¼NE¼SE¼	5.00	225
3			19	S½NW¼SW¼NE¼	5.00	225
4				N½NW¼NE¼SW¼	5.00	225
5				N½NE¼NE¼SW¼	5.00	225
6				N½NW¼NW¼SE¼	5.00	175
7				S½NW¼NE¼SW¼	5.00	225
8				S½NE¼NE¼SW¼	5.00	225
9				S½NW¼NW¼SE¼	5.00	175
10				W½SW¼NE¼SW¼	5.00	225
11				NE¼SW¼NE¼SW¼, NW¼SE¼NE¼SW¼	5.00	225
12				SE¼SW¼NE¼SW¼, SW¼SE¼NE¼SW¼	5.00	225
13	17 N., 64 E.	MDM	19	E½SE¼NE¼SW¼	5.00	175
14				N½NE¼SW¼SW¼	5.00	225
15				N½NW¼SE¼SW¼	5.00	225
16				N½NE¼SE¼SW¼	5.00	175
17				S½NW¼SE¼SW¼	5.00	225
18				S½NE¼SE¼SW¼	5.00	175
19				NW¼SW¼SE¼SW¼, NE¼SE¼SW¼SW¼	5.00	225
20				E½SW¼SE¼SW¼	5.00	175
21				N½SE¼SE¼SW¼	5.00	175
22				S½SE¼SE¼SW¼	5.00	175
23	17 N., 63 E.	MDM	25	N½NW¼NE¼NE¼	5.00	175
24				N½NE¼NE¼NE¼	5.00	175
25	17 N., 64 E.	MDM	30	N½NE¼NE¼NW¼	5.00	175
26	17 N., 63 E.	MDM	25	S½NW¼NE¼NE¼	5.00	175
27				S½NE¼NE¼NE¼	5.00	175
28	17 N., 64 E.	MDM	30	S½NE¼NE¼NW¼	5.00	175
29	17 N., 63 E.	MDM	25	N½SW¼NE¼NE¼	5.00	175
30	17 N., 64 E.	MDM	30	NE¼SE¼NE¼NE¼, Lot 10	4.78	225
31				NW¼SE¼NW¼NW¼, Lot 9	5.00	225
32				E½SE¼NW¼NW¼	5.00	175
33				N½SW¼NE¼NW¼	5.00	175
34				N½SE¼NE¼NW¼	5.00	175
35	17 N., 63 E.	MDM	25	S½SW¼NE¼NE¼	5.00	175
36				W½SE¼NE¼NE¼	5.00	175
37	17 N., 64 E.	MDM	30	SE¼SE¼NE¼NE¼, Lot 11	3.48	225
38				S½SW¼NE¼NW¼	5.00	175
39				S½SE¼NE¼NW¼	5.00	175
40	17 N., 63 E.	MDM	25	N½NW¼SE¼NE¼	5.00	175
41				N½NE¼SE¼NE¼	5.00	225
42	17 N., 64 E.	MDM	30	Lot 14	4.74	225
43				N½NE¼SW¼NW¼	5.00	175
44				N½NW¼SE¼NW¼	5.00	175
45				N½NE¼SE¼NW¼	5.00	175
46	17 N., 63 E.	MDM	25	SW¼NW¼SE¼NE¼, NW¼SW¼SE¼NE¼	5.00	175
47				SE¼NW¼SE¼NE¼, SW¼NE¼SE¼NE¼	5.00	225
48	17 N., 64 E.	MDM	30	S½NE¼SW¼NW¼	5.00	175
49				S½NW¼SE¼NW¼	5.00	175
50				S½NE¼SE¼NW¼	5.00	175
51	17 N., 63 E.	MDM	25	NE¼SW¼SE¼NE¼, NW¼SE¼SE¼NE¼	5.00	225
52	17 N., 64 E.	MDM	30	NE¼SE¼SE¼NE¼, Lot 17	4.76	226
53				Lot 16	5.00	175
54				N½SE¼SW¼NW¼	5.00	175
55				N½SW¼SE¼NW¼	5.00	175
56	17 N., 64 E.	MDM	30	N½SE¼SE¼NW¼	5.00	175
57	17 N., 63 E.	MDM	25	S½SW¼SE¼NE¼	5.00	225
58				S½SE¼SE¼NE¼	5.00	225
59	17 N., 64 E.	MDM	30	Lot 18	2.26	126
60				S½SE¼SW¼NW¼	5.00	175
61				S½SW¼SE¼NW¼	5.00	175
62				S½SE¼SE¼NW¼	5.00	175
63	17 N., 63 E.	MDM	25	N½NE¼NW¼SE¼	5.00	175
64				N½NW¼NE¼SE¼	5.00	225
65				N½NE¼NE¼SE¼	5.00	225
66				SW¼NE¼NW¼SE¼, NW¼SE¼NW¼SE¼	5.00	175
67				SE¼NE¼NW¼SE¼, SW¼NW¼NE¼SE¼	5.00	225
68				SE½NW¼NE¼SE¼, SW¼NE¼NE¼SE¼	5.00	225
69				NE¼SE¼NW¼SE¼, NW¼SW¼NE¼SE¼	5.00	225
70				NE¼SW¼NE¼SE¼, NW¼SE¼NE¼SE¼	5.00	225
71				SE¼NE¼NE¼SE¼, NE¼SE¼NE¼SE¼	5.00	175
72				E½SW¼SW¼NE¼SE¼, SE¼SW¼NE¼SE¼	3.75	225
73				S½SE¼NE¼SE¼	5.00	175

2. The above tracts shall not be subject to disposal until it is so provided by an order to be issued by an authorized officer, opening the lands to direct sale.

3. All valid applications filed prior to February 18, 1961, will be granted the preference right provided for by 43 CFR 257.5.

DANIEL P. BAKER,
Chief, Division of Lands and Minerals Management.

MAY 11, 1962.

[F.R. Doc. 62-4789; Filed, May 16, 1962; 8:49 a.m.]

[Classification No. 141]

NEVADA

Small Tract Classification; Amendment

Effective May 10, 1962, Federal Register Document 58-1035 filed February 11, 1958 is amended to permit disposal by direct sale of the following lands:

MOUNT DIABLO MERIDIAN

T. 18 N., R. 24 E.,
Sec. 28, Lot 17; Lot 44.

The area described aggregates 5 acres.

DANIEL P. BAKER,
Chief, Division of Lands and Minerals Management.

MAY 10, 1962.

[F.R. Doc. 62-4790; Filed, May 16, 1962; 8:49 a.m.]

[I-43]

UTAH

Notice of Proposed Withdrawal of Lands for Reclamation Purposes

The Bureau of Reclamation, United States Department of the Interior, has filed an application, Serial No. Utah

087869, for a First Form Withdrawal of the lands described below, in Emery County, Utah, from public entry, subject to valid existing claims, for reclamation purposes.

The applicant desires the land to meet the requirements for the construction, operation and maintenance of the Joes Valley Dam and Reservoir, Emery County Project feature. The areas involved are confined to those considered to fulfill only the absolute needs of project construction, operation and maintenance. There will be no contamination of the area; the withdrawal of the lands for reclamation purposes will permit the use of the lands for recreation and wildlife purposes, in accordance with laws pertaining to multiple use projects; and the storage, use or control of water on any of the proposed withdrawn land will be in accordance with existing valid water rights and State laws pertaining to the appropriation, control and distribution of water.

For a period of 30 days from the date of publication of this notice, all persons who wish to submit comments or suggestions in connection with the proposed withdrawal may present their views in writing to the State Director for Utah, Bureau of Land Management, Darling Building, P.O. Box 777, Salt Lake City 10, Utah. If circumstances warrant it, a public hearing will be held at a convenient time and place, which will be announced.

The determination of the Secretary on the application will be published in the FEDERAL REGISTER. A separate notice will be sent to each interested party of record.

The lands involved in the application are:

SALT LAKE MERIDIAN, UTAH

T. 17 S., R. 6 E.,
Sec. 30: S½N½NE¼.
T. 18 S., R. 6 E.,
Sec. 4: S½ Lot 5, S½ Lot 6, S½ Lot 7, N½S½NW¼, N½SW¼NE¼;
Sec. 8: N½SW¼SW¼.

The above area aggregates 180 acres.

R. D. NIELSON,
State Director.

[F.R. Doc. 62-4760; Filed, May 16, 1962; 8:46 a.m.]

WASHINGTON

Notice of Proposed Withdrawal and Reservation of Lands

The Forest Service has filed an application, Serial No. W-04282, for the withdrawal of the lands described below, from all forms of appropriation under the general mining laws, but not the mineral leasing laws, subject to valid existing rights. The applicant desires the land for public recreation purposes.

For a period of 30 days from the date of publication of this notice, all persons who wish to submit comments, suggestions, or objections in connection with the proposed withdrawal may present their views in writing to the undersigned officer of the Bureau of Land Management, Department of the Interior, Room 680 Bon Marche Building, Spokane 1, Washington.

If circumstances warrant it, a public hearing will be held at a convenient time and place, which will be announced.

The determination of the Secretary on the application will be published in the FEDERAL REGISTER. A separate notice will be sent to each interested party of record.

The lands involved in the application are:

ROCK ISLAND RECREATION AREA

T. 24 N., R. 15 E., W.M., Washington,
Sec. 1: Lots 3, 4, 5, 6.
153.70 acres.

SODA SPRINGS RECREATION AREA

T. 27 N., R. 15 E., W.M., Washington.
Unsurveyed, but when surveyed will probably be:
Sec. 3.: S½SW¼SW¼, SW¼SE¼SW¼, except patented MS-1298;
Sec. 4: S½SE¼SE¼;
Sec. 9: E½NE¼;
Sec. 10: W½NW¼, W½E½NW¼, except patented MS-1297 and MS-1298.
250 acres, more or less.

The aggregate area of these lands is 403.70 acres, more or less.

J. E. BURT, Jr.,
Officer-in-Charge.

[F.R. Doc. 62-4761; Filed, May 16, 1962; 8:46 a.m.]

CIVIL AERONAUTICS BOARD

[Docket No. 13203 etc.]

FLYING TIGER LINE, INC., ET AL.; RATE CASES

Notice of Hearing

In the matter of the investigation of certain rate filings of The Flying Tiger Line, Inc., American Airlines, Inc., Trans World Airlines, Inc., and United Air Lines, Inc.

Notice is hereby given, pursuant to the provisions of the Federal Aviation Act of 1958, as amended, that a hearing in the above-entitled proceeding will be held on June 4, 1962, at 10:00 a.m., e.d.s.t., in Room 911, Universal Building, Connecticut and Florida Avenues NW., Washington, D.C., before the undersigned Examiner.

For information concerning the issues involved and other details of this proceeding, interested persons are referred to the report of prehearing conference served February 19, 1962, the report of further prehearing conference served May 2, 1962, and the orders of the Board bearing the following numbers:

E-17752, dated November 22, 1961, Docket 13205 et al.
E-17806, dated December 5, 1961, Docket 13203.
E-17826, dated December 13, 1961, Docket 13272.
E-17860, dated December 21, 1961, Docket 13269.
E-17993, dated February 8, 1962, Docket 13203.
E-18032, dated February 16, 1962, Docket 13205 et al.
E-18044, dated February 23, 1962, Docket 13203.
E-18056, dated February 28, 1962, Docket 13419.
E-18059, dated March 1, 1962, Docket 13272.
E-18091, dated March 9, 1962, Docket 13269.
E-18187, dated April 5, 1962, Docket 13203 et al.

And other documents which are in the various dockets referred to in the above-stated orders, which dockets are available in the Docket Section of the Civil Aeronautics Board.

Dated at Washington, D.C., May 11, 1962.

[SEAL] LESLIE G. DONAHUE,
Hearing Examiner.

[F.R. Doc. 62-4797; Filed, May 16, 1962; 8:50 a.m.]

[Docket No. 13394 etc.]

FRONTIER-NORTH CENTRAL ROUTE TRANSFER "USE IT OR LOSE IT" CASE

Notice of Postponement of Prehearing Conference

Notice is hereby given that the prehearing conference in the above-entitled matter now assigned to be held on May 29 is postponed to June 12, 1962, 10 a.m., e.d.s.t., Room 1027, Universal Building, Connecticut and Florida Avenues NW., Washington, D.C., before Examiner Richard A. Walsh.

Dated at Washington, D.C., May 14, 1962.

[SEAL] FRANCIS W. BROWN,
Chief Examiner.

[F.R. Doc. 62-4798; Filed, May 16, 1962; 8:50 a.m.]

FEDERAL COMMUNICATIONS COMMISSION

[Docket Nos. 14336-14340; FCC 62M-678]

ANTENNAVISION SERVICE CO., INC.

Order Continuing Hearing

In re applications of Antennavision Service Company, Inc., for renewal of the licenses for station KPH82, a facility in the Domestic Public Point-to-Point Microwave Radio Service at Wildcat Peak, Arizona, Docket No. 14336, File No. 657-C1-R-61; for renewal of the license for station KPH83, a facility in the Domestic Public Point-to-Point Microwave Radio Service at Jack's Peak, Arizona, Docket No. 14337, File No. 658-C1-R-61; for renewal of the license for station KOU61, a facility in the Domestic Public Point-to-Point Microwave Radio Service at Hutch Mountain, Arizona, Docket No. 14338, File No. 2326-C1-R-61; for a modification of license to cover a construction permit for additional facilities for station KOU61 in the Domestic Public Point-to-Point Microwave Radio Service at Hutch Mountain, Arizona, Docket No. 14339, File No. 2525-C1-ML-61; for a construction permit to increase power and change antenna at existing licensed station KOU61 in the Domestic Public Point-to-Point Microwave Radio Station

at Hutch Mountain, Arizona, Docket No. 14340, File No. 3699–C1–P–61.

The Hearing Examiner having under consideration a Petition for Continuance filed by Antennavision Service Company, Inc. (Antennavision), wherein it is requested that the hearing herein, now scheduled to commence on May 14, 1962, be postponed to June 13, 1962, or another date within the period of June 12 through 22, 1962, at the convenience of the Examiner and the parties to the proceeding;

It appearing, that it is alleged in the petition that Mr. Bruce Merrill, President of Antennavision has been requested to appear as the sole witness in the proceedings herein;

It further appearing, that it is alleged in the Petition that Mr. Merrill has recently returned to his office in Arizona after spending considerable time on business in New York, and is involved in various business matters there, as well as in California; that, if required to return to Washington, D.C., he will be available but would suffer great personal and business inconvenience;

It further appearing, that it is alleged that Mr. Merrill is now scheduled to be in Washington, D.C., at a business convention during the week of June 17, 1962, so that if the present hearing date is continued to the time hereinabove specified, he would also be able to avoid the great financial expense and loss of time which would otherwise be involved in making the transcontinental trip twice within a 30-day period;

It further appearing, that it is alleged that the Commission's Common Carrier Bureau, the only other party to the proceeding, has no objection to a grant of the continuance nor to a waiver of the provisions of 47 CFR 1.43 relating to the deferral of action on motions for a four-day period;

It further appearing, that the matters specified on behalf of Antennavision set forth conditions which had not been foreseen at the time the previous postponement was granted and, therefore, come within the exceptions to the Examiner's ruling that he would not entertain further petitions or motions for postponement (See Order herein released April 11, 1962, FCC 62M–535); and

It further appearing, that good cause has been shown for a prompt grant of the petition:

It is ordered, This 11th day of May 1962, that the Petition for Continuance is granted and the hearing heretofore scheduled to commence on May 14, 1962, is hereby rescheduled to commence on June 13, 1962, at 10:00 a.m., at the Offices of the Commission in Washington, D.C.

Released: May 11, 1962.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] BEN F. WAPLE,
Acting Secretary.

[F.R. Doc. 62–4775; Filed, May 16, 1962; 8:48 a.m.]

[Docket Nos. 14644, 14645; FCC 62–509]

BAY SHORE BROADCASTING CO. AND FAIRFIELD PUBLISHING CO.

Designating Applications for Consolidated Hearing on Stated Issues

In re applications of Keith Moyer and James Hilderbrand d/b as Bay Shore Broadcasting Co., Hayward, California, Docket No. 14644, File No. BP–14113, requests: 1340 kc, 100 w, U, Class IV; Fairfield Publishing Co., Fairfield, California, Docket No. 14645, File No. BP–15082, requests: 1340 kc, 250 w, U, Class IV; for construction permits.

1. The Commission has before it for consideration (a) the above-captioned and described applications; and (b) the "Joint Request for Approval of Agreement, Pursuant to § 1.316", filed on March 23, 1962, by the applicants.

2. The agreement, in substance, provides for the dismissal of the Fairfield proposal, in exchange for $6,514.00, which is alleged to be the amount of the expenses incurred in the prosecution of the Fairfield application. The prayers of the joint request include, inter alia, the request that the approval be "without any condition which would impede consideration of the Bay Shore application without a hearing". We construe this prayer to mean that if the surviving Bay Shore application is designated for hearing, the agreement is void, leaving nothing for the Commission to approve.

3. The Bay Shore proposal causes interference to station KOMY, Watsonville, California; station KSRO, Santa Rosa, California; and to the proposed operation of James E. Walley, permittee of a standard broadcast station at Oroville, California, in addition to involving mutually destructive interference with the Fairfield proposal. Also, the Bay Shore proposal receives interference from stations KOMY and KSRO; from station KMAK, Fresno, California and the Walley proposal at Oroville, to such an extent that it cannot be determined that the Bay Shore proposal meets the requirements of § 3.28(d) (3) of the Commission's rules. From a study of applicant's engineering data, it is impossible to define the city limits and the principal business areas of Hayward, California, so it is necessary to determine whether the appropriate coverage of the areas meet the requirements of § 3.188 of the Commission's rules. The antenna system proposed by Bay Shore has not been approved by the Federal Aviation Agency, but the proposal has been examined by the Commission in the light of the criteria contained in FAA Regulations, section 626.12, and apparently meets such criteria; however, any grant of the Bay Shore application will be made subject to applicable procedures of the Federal Aviation Agency.

4. The Fairfield proposal causes interference to station KOMY, Watsonville, California, station KSRO, Santa Rosa, California, station KCRA, Sacramento, California and to the proposed operation of James E. Walley, permittee of a standard broadcast station at Oroville, California, in addition to involving mutually destructive interference with the Bay Shore proposal. Applicant concedes that its proposal does not meet the requirements of § 3.28(d) (3) of the Commission's rules.

5. Under the doctrine of the National Broadcasting Co., Inc. (KOA) case, 319 U.S. 239, the Bay Shore application will be designated for hearing on the grounds that its proposed operation may violate protected contours of existing stations. Therefore, the referenced agreement, by its own terms, is null and void. Since the Commission has no agreement before it for consideration, the substantive provisions of the agreement need not be discussed with respect to its compliance with section 311(c) of the Communications Act of 1934, as amended and § 1.316 of the Commission's rules.

6. In view of the foregoing, the Commission is unable to make the statutory finding that a grant of the subject applications would serve the public interest, convenience, and necessity, and is of the opinion that the applications must be designated for hearing in a consolidated proceeding on the issues set forth below.

It is ordered, This 9th day of May 1962, that pursuant to section 309(e) of the Communications Act of 1934, as amended, the instant applications are designated for hearing in a consolidated proceeding, at a time and place to be specified in a subsequent order, upon the following issues:

1. To determine the areas and populations which would receive primary service from the proposal of Keith Moyer and James Hilderbrand d/b as Bay Shore Broadcasting Company and from the proposal of Fairfield Publishing Company and the availability of other primary service to such areas and populations.

2. To determine whether the instant proposal of Keith Moyer and James Hilderbrand d/b as Bay Shore Broadcasting Company would cause objectionable interference to station KOMY, station KSRO, and to the proposed operation of James E. Walley, permittee of a standard broadcast station at Oroville, California, or any other existing standard broadcast stations, and, if so, the nature and extent thereof, the areas and populations affected thereby, and the availability of other primary service to such areas and populations.

3. To determine whether the instant proposal of Fairfield Publishing Company would cause objectionable interference to station KSRO, station KOMY, station KCRA, and to the proposed operation of James E. Walley, permittee of a standard broadcast station at Oroville, California, or any other existing standard broadcast stations, and, if so, the nature and extent thereof, the areas and populations affected thereby, and the availability of other primary service to such areas and populations.

4. To determine whether the interference received by each proposal from the other proposal herein and any existing stations would affect more than ten

percent of the population within its normally protected primary service area in contravention of § 3.28(d)(3) of the Commission's rules and, if so, whether circumstances exist which would warrant a waiver of said section.

5. To determine whether the instant proposal of Keith Moyer and James Hilderbrand d/b as Bay Shore Broadcasting Company would provide coverage of the city of Hayward, California, as required by § 3.188 of the Commission's rules, and, if not, whether circumstances exist which would warrant a waiver of said section.

6. To determine, in the light of section 307(b) of the Communications Act of 1934, as amended, which of the instant proposals would better provide a fair, efficient and equitable distribution of radio service.

7. To determine, in the light of the evidence adduced pursuant to the foregoing issues, which, if either, of the instant applications should be granted.

It is further ordered, That KCRA, Inc., Finley Broadcasting Company, and KOMY, Inc., licensees of stations KCRA, KSRO, and KOMY, respectively, and James E. Walley, permittee of a standard broadcast station at Oroville, California, are made parties to the proceeding.

It is further ordered, That, in the event of a grant of the application of Keith Moyer and James Hilderbrand d/b as Bay Shore Broadcasting Company, the construction permit shall be conditioned as follows:

Before program tests are authorized, permittee shall submit a complete nondirectional proof of performance to establish that minimum antenna efficiency of 150 mv/m/kw is achieved.

This authorization is subject to compliance by permitee with any applicable procedures of the Federal Aviation Agency.

It is further ordered, That, in the event of a grant of the application of Fairfield Publishing Company, the construction permit shall be conditioned as follows:

Before program tests are authorized, permittee shall establish by measurement that antenna efficiency does not exceed essentially 154 mv/m/kw, as proposed.

It is further ordered, That the Joint Request for Approval of Agreement, filed by the above-captioned applicants is dismissed as moot.

It is further ordered, That, to avail themselves of the opportunity to be heard, the applicants and parties respondent herein, pursuant to § 1.140 of the Commission's rules, in person or by attorney, shall, within 20 days of the mailing of this Order, file with the Commission in triplicate, a written appearance stating an intention to appear on the date fixed for the hearing and present evidence on the issues specified in this Order.

It is further ordered, That the applicants herein shall, pursuant to section 311(a)(2) of the Communications Act of 1934, as amended, and § 1.362(b) of the Commission's rules, give notice of the hearing, either individually or, if feasible, jointly, within the time and in the manner prescribed in such rule, and shall advise the Commission of the publication of such notice as required by § 1.362(g) of the rules.

It is further ordered, That, the issues in the above-captioned proceeding may be enlarged by the Examiner, on his own motion or on petition properly filed by a party to the proceeding, and upon sufficient allegations of fact in support thereof, by the addition of the following issue: To determine whether the funds available to the applicant will give reasonable assurance that the proposals set forth in the application will be effectuated.

Released: May 14, 1962.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] BEN F. WAPLE,
Acting Secretary.

[F.R. Doc. 62-4776; Filed, May 16, 1962; 8:48 a.m.]

[Docket No. 13062; FCC 62-507]

CHE BROADCASTING CO. (NSL)

Order Designating Application for Hearing on Stated Issues

In re application of CHE Broadcasting Company (NSL), Albuquerque, New Mexico, Docket No. 13062, File No. BP-11842, requests: 1240 kc, 250 w. U; for construction permit.

At a session of the Federal Communications Commission held at its offices in Washington, D.C., on the 9th day of May 1962;

The Commission having under consideration the above-captioned and described application;

It appearing, that, except as indicated by the issues specified below, the instant applicant is legally, technically, financially and otherwise qualified to construct and operate the instant proposal; and it further appearing, that the following matters are to be considered in connection with the issues specified below:

1. It appears that the instant proposal will not cover the city in accordance with § 3.188(b)(1) of the Commission rules regarding 25 mv/m coverage of the business areas.

2. It appears that the instant proposal will not adequately cover the city with the nighttime RSS limitation contour.

3. Section V-A of the application form as filed by the applicant is incomplete in that:

i. There is no computation of the nighttime, R.S.S. contour

ii. There is no indication of the population within the nighttime R.S.S. limitation contour.

4. It has not been determined that the instant proposal would render satisfactory service to the city and suburban and rural areas contiguous thereto in accordance with the objectives of § 3.21 of the Commission's rules.

5. By letter dated August 2, 1960, the Commission questioned certain aspects of the applicant's proposed programming. No reply has been received, and an appropriate issue is included herein.

It further appearing, that the instant application proposes to utilize the existing antenna system of station KARA for simultaneous transmission therewith and that an appropriate condition is attached hereto in the event of a grant of the instant proposal to prevent interaction between the two operations and interference to other radio services.

It further appearing, that, in view of the foregoing, the Commission is unable to make the statutory finding that a grant of the subject application would serve the public interest, convenience, and necessity, and is of the opinion that the application must be designated for hearing on the issues set forth below:

It is ordered, That, pursuant to section 309(e) of the Communications Act of 1934, as amended, the instant application is designated for hearing, at a time and place to be specified in a subsequent Order, upon the following issues:

1. To determine the areas and population which would receive primary service from the instant applicant and the availability of other primary service to such areas and populations.

2. To determine the efforts made by CHE Broadcasting Company to ascertain the programming needs and interests of the area to be served and the manner in which CHE Broadcasting Company proposes to meet such needs and interests.

3. To determine the location and extent of the entire main business area and whether the instant proposal would provide day and night coverage of the city sought to be served, as required by § 3.188 of the Commission rules, and, if not, whether circumstances exist which would warrant a waiver of said section.

4. To determine whether the proposed operation is consistent with the objectives of § 3.21 of the Commission rules regarding the allocation of standard broadcast facilities.

5. To determine, in the light of the evidence adduced pursuant to the foregoing issues, whether a grant of the instant application would serve the public interest, convenience and necessity.

It is further ordered, That, in the event of a grant of the instant application of CHE Broadcasting Company, the construction permit shall contain a condition that measurement data, made on both stations at the point at which the antenna resistance is measured, shall be submitted with the application for license to prove that the installation of filter circuits or other equipment does not prevent satisfactory performance pursuant to § 3.47 of the Commission rules, and field observations or measurements shall be made to clearly show that operation of the two stations with the same antenna does not result in spurious radiations to the extent that interference would result to other radio services.

It is further ordered, That, to avail itself of the opportunity to be heard the applicant, pursuant to § 1.140 of the Commission rules, in person or by attorney, shall, within twenty (20) days of the mailing of this order, file with the Commission in triplicate, a written appearance stating an intention to appear on the date fixed for the hearing and present evidence on the issues specified in this order.

It is further ordered, That, the applicant herein shall, pursuant to section

311(a)(2) of the Communications Act of 1934, as amended, and § 1.362(b) of the Commission's rules, give notice of the hearing, within the time and in the manner prescribed in such rule, and shall advise the Commission of the publication of such notice as required by § 1.362(g) of the rules.

Released: May 14, 1962.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] BEN F. WAPLE,
Acting Secretary.

[F.R. Doc. 62-4777; Filed, May 16, 1962; 8:48 a.m.]

[Docket Nos. 14341-14344; FCC 62M-672]

COLLIER ELECTRIC CO. ET AL.

Order Following Further Prehearing Conference

In re applications of Collier Electric Company, Docket No. 14341, File No. 848-C1-R-61; Docket No. 14342, File No. 849-C1-R-61; Docket No. 14343, File No. 2670-C1-R-61; Docket No. 14344, File No. 2710-C1-R-61; for renewal of the license for station KAQ79, a facility in the Domestic Public Point-to-Point Microwave Radio Service at Fort Morgan, Colorado, et al.

The Hearing Examiner having under consideration the proceedings in the further prehearing conference held in the above-entitled matters on May 9, 1962, and the agreements of the parties as approved therein by the Examiner;

It appearing, that, at the aforementioned conference it became clear that in order to accommodate the schedule of the Examiner as well as that of certain of the parties herein, who are involved in the proceeding In re Applications of Laramie Community TV Company, et al, Docket Nos. 14552-6 (see separate order approved this date), it would be necessary to adjust the date heretofore specified for the start of the hearings herein:

It is ordered, This 9th day of May 1962, that the hearing heretofore scheduled to commence on July 9, 1962, is rescheduled to commence on July 5, 1962, at the Offices of the Commission in Washington, D.C., at 10:00 a.m.:

It is further ordered, That the other procedural dates specified in the Order of the Examiner released March 26, 1962 (FCC 62M-434) shall remain unchanged:

And it is further ordered, That the agreements and understandings entered into by the parties concerning the future conduct of the hearing are approved as set forth in the transcript of the further prehearing conference which to this extent are incorporated hereby by reference.

Released: May 11, 1962.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] BEN F. WAPLE,
Acting Secretary.

[F.R. Doc. 62-4778; Filed, May 16, 1962; 8:48 a.m.]

[Docket No. 14642]

ROBERT EARL COX

Order To Show Cause

In the matter of Robert Earl Cox, 943 West 127th Street, Compton, California, Docket No. 14642; order to show cause why there should not be revoked the license for radio station 11Q0183 in the Citizens Radio Service.

The Commission, by the Chief, Safety and Special Radio Services Bureau, under delegated authority, having under consideration the matter of certain alleged violations of the Commission's rules in connection with the operation of the above-captioned station;

It appearing, that, pursuant to § 1.76 of the Commission's rules, written notice of violation of the Commission's rules was served upon the above-named licensee as follows: Official Notice of Violation mailed on January 22, 1962, alleging that on January 7, 1962, Citizens radio station 11Q0183 was observed in violation of §§ 19.33 and 19.61 of the Commission's rules, in that the station was operated with excessive frequency deviation, and the communications transmitted were not substantive or related to the licensee's business or personal affairs.

It further appearing, that, the above-named licensee, received said Official Notice but did not make satisfactory reply thereto, whereupon the Commission, by letter dated March 1, 1962, and sent by Certified Mail, Return Receipt Requested (Cert. No. 125247), brought this matter to the attention of the licensee and requested that such licensee respond to the Commission's letter within fifteen days from the date of its receipt stating the measures which had been taken, or were being taken, in order to bring the operation of the radio station into compliance with the Commission's rules, and warning the licensee that failure to respond to such letter might result in the institution of proceedings for the revocation of the radio station license; and

It further appearing, that receipt of the Commission's letter was acknowledged by the signature of the licensee on March 2, 1962 to a Post Office Department return receipt; and

It further appearing, that, although more than fifteen days have elasped since the licensee's receipt of the Commission's letter, no response was made thereto; and

It further appearing, that, in view of the foregoing, the licensee has repeatedly violated § 1.76 of the Commission's rules;

It is ordered, This 11th day of May 1962, pursuant to section 312 (a)(4) and (c) of the Communications Act of 1934, as amended, and Section 0.291(b)(8) of the Commission's Statement of Delegations of Authority, that the said licensee show cause why the license for the above-captioned Radio Station should not be revoked, and appear and give evidence in respect thereto at a hearing to be held at a time and place to be specified by subsequent order; and

It is further ordered, That the Secretary send a copy of this order by Certified Mail, Return Receipt Requested to the said licensee.

Released: May 14, 1962.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] BEN F. WAPLE,
Acting Secretary.

[F.R. Doc. 62-4779; Filed, May 16, 1962; 8:48 a.m.]

[Docket No. 14641; FCC 62-513]

GOODLAND CHAMBER OF COMMERCE

Order Designating Application for Hearing on Stated Issues

In re application of: Goodland Chamber of Commerce, Goodland, Kansas, Docket No. 14641, File No. BPTTV-1221; for construction permit for a new VHF television broadcast translator station.

At a session of the Federal Communications Commission held at its offices in Washington, D.C., on the 9th day of May 1962;

The Commission having under consideration the above-captioned application requesting a construction permit for a new VHF television broadcast translator station to operate on channel 13, serving Goodland, Kansas; and

It appearing, that channels 10 and 31 are assigned to Goodland, Kansas and that television station KWHT-TV, a Columbia Broadcasting System television affiliate, is now operating on channel 10; and

It further appearing, that, by letter dated January 22, 1962, television station KWHT-TV objected informally to a grant of the above-captioned application alleging, in substance, that Goodland, Kansas is already being served by it and by television station KOMC-TV, channel 8, McCook, Nebraska; that the Goodland, Kansas television market is one of the smallest in the United States, comprising approximately 10,800 television homes; and that the authorization of a television translator to the Goodland area would result in economic hardship to KWHT-TV; and

It further appearing, that the above-captioned application proposes to rebroadcast the programs of television station KHPL-TV, channel 6, Hayes Center, Nebraska, a satellite of television station KHOL-TV, Kearney-Holdrege, Nebraska, an ABC-CBS affiliate; and

It further appearing, that operation of the VHF television translator as proposed would result in partial duplication of CBS television network programs to Goodland, Kansas; and

It further appearing, that Goodland Chamber of Commerce has failed to show in its application that it has available funds for the construction and maintenance of the proposed translator station; and

It further appearing, that upon consideration of the above-captioned application and the informal objection to grant of said application filed by KWHT-TV, the Commission is unable to determine, without hearing, that a grant of said application would be in the public interest:

It is ordered, That pursuant to section 309(e) of the Communications Act of 1934, as amended, the above-captioned application of Goodland Chamber of Commerce is designated for evidentiary hearing on the following issues:

1. To determine the nature and extent of television service currently being received in Goodland, Kansas, and the nature and extent of service provided by KWHT–TV, channel 10, Goodland.

2. To determine what impact, if any, a grant of the above-captioned application would have on the quantity and quality of service presently being rendered by television station KWHT–TV, and whether the impact would be such as to jeopardize KWHT–TV's continued existence or result in a curtailment in the quantity and quality of service currently rendered by that station.

3. To determine whether there is a need for VHF television translator service to Goodland, Kansas, and, if so, whether such service should be authorized subject to the condition that it not duplicate the programming of television station KWHT–TV.

4. To determine whether Goodland Chamber of Commerce is financially qualified to construct and operate the proposed translator station.

5. To determine in the light of the evidence adduced under the foregoing issues whether the public interest would be served by a grant of the above-captioned application.

It is further ordered, That the burden of proceeding with the introduction of evidence and the burden of proof as to each of the foregoing issues shall be on the applicant, Goodland Chamber of Commerce.

It is further ordered, That Standard Electronics Corporation, licensee of television station KWHT–TV, is hereby made a party to the above-captioned proceedings.

It is further ordered, That the hearing on the above issues shall be held in Goodland, Kansas, at a time to be specified in a subsequent Order.

It is further ordered, That the applicant herein shall, pursuant to section 311(a)(2) of the Communications Act of 1934, as amended, and § 1.362(b) of the Commission's rules, give notice of the hearing within the time and in the manner prescribed in such rule, and shall advise the Commission of the publication of such notice as required by § 1.362(g) of the Commission's rules.

It is further ordered, That, to avail themselves of the opportunity to be heard, the applicant and party herein, pursuant to § 1.140 of the Commission's rules, in person or by attorney, shall, within twenty (20) days of the mailing of this order, file with the Commission, in triplicate, a written appearance stating an intention to appear on the date fixed for the hearing and present evidence on the issues specified in this order.

Released: May 14, 1962.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] BEN F. WAPLE,
Acting Secretary.

[F.R. Doc. 62–4780; Filed, May 16, 1962; 8:48 a.m.]

[Docket Nos. 14455, 14456; FCC 62M–676]

JEFFERSON RADIO CO. (WIXI) AND VOICE OF THE MID SOUTH

Order Continuing Hearing

In re applications of W. D. Frink, tr/as Jefferson Radio Company (WIXI), Docket No. 14455, File No. BL–8187; for license to cover construction permit BP–10672 authorizing a new standard broadcast station at Irondale, Alabama; Fred H. Davis and W. D. Frink, d/b as Voice of the Mid South, Docket No. 14456, File No. BP–14110; for construction permit to build a new standard broadcast station at Centreville, Alabama.

The Hearing Examiner having under consideration a petition of the Broadcast Bureau filed this date, May 10, requesting a change in the date for commencement of hearing from May 14 to June 18, 1962;

It appearing that both the applicants and the Broadcast Bureau propose to introduce testimony from a number of witnesses residing in the vicinity of Birmingham, Alabama, and that the Bureau is simultaneously with this petition requesting a change in place of hearing from Washington to Birmingham; and

It further appearing that because of this development it would be in the interest of all parties to delay the commencement of hearing from the presently scheduled date; and

It further appearing that W. D. Frink, on behalf of the applicants, has informally advised the Bureau that the applicants have no objection to the requested continuance and that under the circumstances immediate action upon the request is imperative:

It is ordered, This 10th day of May 1962, that the Broadcast Bureau's petition for change of hearing date is granted and the date for commencement of hearing is changed from May 14 to June 18, 1962.

Released: May 11, 1962.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] BEN F. WAPLE,
Acting Secretary.

[F.R. Doc. 62–4781; Filed, May 16, 1962; 8:48 a.m.]

[Docket Nos. 14552–14556; FCC 62M–673]

LARAMIE COMMUNITY TV CO. ET AL.

Order Following Prehearing Conference

In re applications of Laramie Community TV Company, division of Collier Community TV Company, Inc., Laramie, Wyoming; Albany Electronics, Inc., Laramie, Wyoming, et al., Docket No. 14552, File No. BPTTV–78; Docket No. 14553, File No. BPTTV–79; Docket No. 14554, File No. BPTTV–80; Docket No. 14555, File No. BPTTV–539; Docket No. 14556, File No. BPTTV–540.

The Hearing Examiner having under consideration the proceedings at the prehearing conference held in the above-entitled matters on May 9, 1962, and the agreements of the parties as approved therein by the Examiner;

It appearing, that counsel for Albany Electronics, Inc., gave notice to all parties that applicant would not be represented by counsel at the conference because of the distance and travel expenses involved, and because such counsel would otherwise be occupied as a Judge of the Justice of the Peace Court in Laramie;

It further appearing, that in the aforementioned notice counsel for Albany Electronics, Inc. (Albany), agreed to be bound by any and all agreements arrived at during the prehearing conference of May 9, 1962;

It further appearing, that Laramie Community TV Company (Laramie), the party upon which the Commission placed the burden of proceeding with the introduction of evidence as well as the burden of proof on the first seven issues specified in its Memorandum Opinion and Order of designation released March 5, 1962 (FCC 62–250), proposes to present its direct case primarily through written sworn exhibits, reserving the right to supplement its presentation through the testimony of witnesses;

It further appearing, that the other parties represented at the conference may desire to present direct cases through written sworn exhibits and to supplement such cases through the oral testimony of witnesses;

It further appearing, that counsel for the Broadcast Bureau may desire to present testimony through public witnesses who volunteer to testify with respect to the various issues;

It further appearing, that, because of the complexity of the issues and because counsel for one of the applicants and for the intervenor herein also represent such parties in another proceeding before the Examiner now scheduled to commence on July 5, 1962, a reasonably extended period should be allowed for the preparation of the direct cases;

It further appearing, that the parties should be afforded an opportunity to meet and discuss among and between themselves the nature and extent of the evidence to be supplied in response to Issues 5 and 6 in an attempt to arrive at a stipulation with respect thereto;

It further appearing, that in the preparation of their cases certain of the parties may desire to request data and information with respect to the issues which is in the possession of other parties and should be afforded a reasonable opportunity to arrive at stipulations with respect thereto;

It further appearing, that the various applicants may be called upon to produce certain records regarding operations heretofore conducted which are pertinent to the issues:

It is ordered, This 9th day of May 1962, that:

(1) Albany is excused from participation in this prehearing conference but, except as otherwise specified in the transcript of the prehearing conference or in this Order, is fully bound by all agreements or stipulations of the parties and orders of the Examiner insofar as they may be applicable to Albany.

(2) Insofar as Laramie's direct case in response to the issues upon which it has the burden of proof and of pro-

ceeding with the introduction of evidence is to be presented in writing, it shall be in the form of sworn exhibits and copies thereof shall be furnished to the other parties and to the Examiner no later than June 21, 1962;

(3) Insofar as Albany has the burden of proof with respect to the issues herein and its direct case with respect thereto is to be presented in writing or through exhibits, sworn copies thereof shall be furnished to the other parties and the Examiner no later than June 21, 1962;

(4) Insofar as any of the parties desires to present a written direct case or offer exhibits as part of their direct case other than as specified in subparagraphs (2) and (3) hereinabove, such party shall do so in the form of sworn exhibits and copies thereof shall be exchanged between and among the parties and supplied to the Examiner no later than July 5, 1962;

(5) Insofar as the direct cases of the parties are to be presented orally through witnesses each of the parties desiring to do so shall on the dates hereinabove set forth with respect to their written direct cases submit a list to every other party and the Examiner setting forth the name of the witnesses (other than public witnesses who volunteer to give testimony with respect to the issues), and the title of his position in the respective corporate entity or, if he is to be presented as an outside expert, a brief description of his qualifications; in each instance there shall also be an indication of the subject with respect to which the witness is to testify and an indication of the issue toward which such testimony is to be directed;

(6) Insofar as the written cases of the parties which are to be submitted respectively on June 21 and July 5 are concerned, each of the parties shall by July 5 with respect to the June 21 written cases, and by July 13 with respect to the July 5 written cases, notify the other parties in writing with a copy to the Examiner of the names of the witnesses whom such party desires to cross-examine and the parties so notified shall make such witnesses available for cross-examination at the hearing. In this connection the parties should, by informal stipulation, arrange appropriate schedules between and among themselves for the orderly appearance of witnesses, so that it may not be necessary for witnesses, who are to be called at a later stage of the proceedings, to be present for any extensive period before they may reasonably be expected to testify;

(7) The parties shall confer among and between themselves regarding the nature of the evidence to be presented in response to Issues 5 and 6 in the aforementioned order of designation in an attempt to arrive at appropriate stipulations with respect thereto and shall, no later than May 28, 1962, advise the Examiner whether they have reached such stipulations or, if they have failed to do so, the nature and extent of the disagreement between and among themselves;

(8) The parties shall also consult between and among themselves regarding their respective desires that other parties produce data or material from their files in an attempt to arrive at agreement with respect to this matter and shall, no later than May 28, advise the Examiner whether they have reached agreement and, if not, the nature and extent of the disagreement which exists;

(9) Should the parties be unable to agree or arrive at stipulations regarding the matters set forth in subparagraphs (7) and (8) hereinabove, and advise the Examiner to that effect, the parties should be prepared to attend a further prehearing conference at 9:00 a.m., on June 7, 1962, at the offices of the Commission to make such formal requests of the Examiner as they may desire regarding these matters;

(10) Since counsel for Albany is local counsel in Laramie and, since the distance, time and expense involved would appear to make it impracticable for such counsel to appear and participate in the informal discussions heretofore provided for, such counsel will be afforded an opportunity before the start of the hearings at Laramie to make such requests on behalf of and to state such positions with respect to Albany as he deems appropriate; and the Examiner will undertake to make appropriate rulings with respect thereto prior to the taking of evidence in this proceeding; and

(11) All of the foregoing requirements shall not apply with respect to public witnesses who may be sponsored by counsel for the Broadcast Bureau, it being understood that to the extent practicable counsel sponsoring such witnesses shall in advance of their appearance advise the other parties and the Examiner of the identity of such witnesses and generally give indication of the subjects with respect to which they are to testify and the issues toward which such testimony is to be directed:

It is further ordered, That the hearing heretofore scheduled to commence on June 20, 1962, is rescheduled to commence on July 19, 1962, at 9:00 a.m., in Laramie, Wyoming:

It is further ordered, That the agreements and understandings entered into between the parties concerning the future conduct of the hearings are approved as set forth in the transcript of the prehearing conference which to this extent are incorporated herein by reference.

Released: May 11, 1962.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] BEN F. WAPLE,
Acting Secretary.

[F.R. Doc. 62-4782; Filed, May 16, 1962; 8:48 a.m.]

[Docket No. 14043; FCC 62M-680]

MELODY MUSIC, INC. (WGMA)

Order Continuing Hearing

In re application of Melody Music, Inc. (WGMA), Hollywood, Florida, Docket No. 14043, File No. BR-2855; for renewal of license of station WGMA, Hollywood, Florida.

The Hearing Examiner having under consideration a petition filed on May 10, 1962, by Melody Music, Inc., requesting (1) that the further hearing in the above-entitled proceeding presently scheduled for May 28, 1962, be continued to June 11, 1962, and (2) that the date for exchange of hearing exhibits be extended from May 21, 1962 to May 28, 1962;

It appearing, that counsel for the Broadcast Bureau, the only other party to the proceeding, has agreed to a waiver of the four-day requirement of § 1.43 of the Commission's rules and consented to a grant of the instant petition; and good cause has been shown for the grant thereof:

It is ordered, This 11th day of May 1962, that the hearing in the above-entitled proceeding be and it is hereby continued from May 28 to June 11, 1962, at 10 a.m., in Washington, D.C.; and that the date for exchange of exhibits is extended from May 21 to May 28, 1962.

Released: May 14, 1962.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] BEN F. WAPLE,
Acting Secretary.

[F.R. Doc. 62-4783; Filed, May 16, 1962; 8:48 a.m.]

[Docket Nos. 14639, 14640; FCC 62-506]

OLNEY BROADCASTING CO. AND JAMES R. WILLIAMS

Order Designating Applications for Consolidated Hearing on Stated Issues

In re applications of Harwell V. Shepard tr/as Olney Broadcasting Company, Olney, Texas, Docket No. 14639, File No. BP-10494; requests: 540 kc, 250 w, DA-D, Class II, James R. Williams, Anadarko, Oklahoma, Docket No. 14640, File No. BP-13635; requests: 540 kc, 250 w, D, Class II, for construction permits.

At a session of the Federal Communications Commission held at its offices in Washington, D.C., on the 9th day of May 1962;

The Commission having under consideration the above-captioned and described applications;

It appearing, that, except as indicated by the issues specified below, each of the instant applicants is legally, technically, financially, and otherwise qualified to construct and operate the instant proposals; and

It further appearing, that the following matters are to be considered in connection with the aforementioned issues specified below:

1. The subject proposals appear to involve mutually destructive interference.

2. The proposal of James R. Williams appears to cause objectionable interference to the existing operations of stations KWMT, Ft. Dodge, Iowa and KNOE, Monroe, Louisiana.

3. The proposal of James R. Williams may receive interference from existing stations which would affect more than ten percent of the population within the proposed primary service area in contravention of § 3.28(d)(3) of the Commission's rules.

It further appearing, that, in view of the foregoing, the Commission is unable to make the statutory finding that a grant of the subject applications would serve the public interest, convenience, and necessity, and is of the opinion that the applications must be designated for hearing in a consolidated proceeding on the issues set forth below:

It is ordered, That, pursuant to section 309(e) of the Communications Act of 1934, as amended, the instant applications are designated for hearing in a consolidated proceeding, at a time and place to be specified in a subsequent Order, upon the following issues:

1. To determine the areas and populations which would receive primary service from the instant proposals and the availability of other primary service to such areas and populations.

2. To determine the nature and extent of the interference, if any, that each of the instant proposals would cause to and receive from each other and the interference that each of the instant proposals would receive from all other existing standard broadcast stations, the areas and populations affected thereby, and the availability of other primary service to the areas and populations affected by interference from any of the instant proposals.

3. To determine whether the instant proposal of James R. Williams would cause objectionable interference to stations KWMT, Ft. Dodge, Iowa and KNOE, Monroe, Louisiana, or any other existing standard broadcast stations, and, if so, the nature and extent thereof, the areas and populations affected thereby, and the availability of other primary service to such areas and populations.

4. To determine whether interference received from existing stations would affect more than ten percent of the population within the normally protected primary service area of the instant proposal of James R. Williams, in contravention of § 3.28(d)(3) of the Commission rules, and, if so, whether circumstances exist which would warrant a waiver of said section.

5. To determine, in the light of section 307(b) of the Communications Act of 1934, as amended, which of the instant proposals would better provide a fair, efficient and equitable distribution of radio service.

6. To determine, in the light of the evidence adduced pursuant to the foregoing issues, which, if either, of the instant applications should be granted.

It is further ordered, That, American Broadcasting Stations, Inc., and KNOE, Inc., licensees of stations KWMT and KNOE, respectively, are made parties to the proceeding.

It is further ordered, That, in the event of a grant of the application of James R. Williams, the construction permit shall contain the following conditions:

Before program tests are authorized, the permittee shall establish by a non-directional proof-of-performance that the proposed antenna system will provide a minimum efficiency of 175 mv/m/kw.

This authorization is subject to compliance by permittee with any applicable procedures of the Federal Aviation Agency.

It is further ordered, That, to avail themselves of the opportunity to be heard, the applicants and parties respondent herein, pursuant to § 1.140 of the Commission rules, in person or by attorney, shall, within 20 days of the mailing of this order, file with the Commission in triplicate, a written appearance stating an intention to appear on the date fixed for the hearing and present evidence on the issues specified in this order.

It is further ordered, That the applicants herein shall, pursuant to section 311(a)(2) of the Communications Act of 1934, as amended, and § 1.362(b) of the Commission's rules, give notice of the hearing, either individually or, if feasible, jointly, within the time and in the manner prescribed in such rule, and shall advise the Commission of the publication of such notice as required by § 1.362(g) of the rules.

It is further ordered, That, the issues in the above-captioned proceeding may be enlarged by the Examiner, on his own motion or on petition properly filed by a party to the proceeding, and upon sufficient allegations of fact in support thereof, by the addition of the following issue: To determine whether the funds available to the applicant will give reasonable assurance that the proposals set forth in the application will be effectuated.

Released: May 14, 1962.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] BEN F. WAPLE,
Acting Secretary.

[F.R. Doc. 62-4784; Filed, May 16, 1962; 8:48 a.m.]

[Docket Nos. 14637, 14638; FCC 62-505]

WILLIAM L. ROSS AND HUGH JORDAN STOCK

Memorandum Opinion and Order Designating Applications for Consolidated Hearing on Stated Issues

In re applications of William L. Ross, Riverton, Wyoming, Docket No. 14637, File No. BP-14086; requests 1370 kc, 1 kw, D. Class III; Hugh Jordan Stock, Riverton, Wyoming, Docket No. 14638, File No. BP-14184; requests: 740 kc, 1 kw, Day; for construction permits.

1. The Commission has before it (a) the above-captioned applications; (b) a petition to deny the application of William L. Ross, filed August 10, 1961 by Riverton Broadcasting Company, Inc., licensee of station KVOW, Riverton's only existing standard broadcast station; (c) responsive and subsequent pleadings to the latter petition; and (d) a petition to deny the application of Hugh Jordan Stock, also filed by the licensee of station KVOW. Apart from the matters involved in the hearing issues set forth in the latter portion of this order, no questions appear to exist regarding the qualifications of the applicants.

2. In each case, petitioner predicates its standing to object upon the potential economic injury to the existing operation of station KVOW which would occur if a new standard broadcast station were licensed in Riverton.[1] In substance, KVOW contends that the estimates submitted by the applicant, Ross, regarding the proposed costs of building a new Riverton station are unreasonably low and, even if the estimates were found to be reasonable, Ross would not have sufficient cash and liquid assets to cover costs of construction and initial operation of the proposed facility. KVOW's contentions with respect to the Stock proposal are essentially similar.

3. On August 23, 1961, Ross filed his opposition to the KVOW petition, stating that his estimates as to construction costs were fully supported by builder's and manufacturer's quotations and by the applicant's own personal experience. On August 25, 1961, Ross amended his application to indicate the availability of additional liquid assets. On August 31, 1961, KVOW filed its reply to the opposition and amendment—again disputing the applicant's cost estimates and declaring that Ross was still approximately $1,000 short of the necessary cash and liquid assets. On September 18, 1961, Ross again amended the instant application, submitting a new $5,000 loan commitment from a Riverton bank.

4. On January 9, 1962, Stock amended his application to indicate the availability of additional liquid assets and to support the estimates submitted regarding costs of construction.

5. It is our belief that Ross' pleadings of August 23, 1961, his amendments of August 25, and September 18, 1961, and Stock's amendment of January 9, 1962 have eliminated any substantial question regarding the sufficiency or the availability of funds necessary to construct the proposed stations and commence operation. However, as set forth below, we have found it necessary to direct further inquiry toward possible long term financial problems which may arise upon licensing of a second, or a third, standard broadcast station in Riverton, Wyoming.

6. On December 26, 1961, the Commission directed a letter to Mr. Ross, noting that the population of Riverton is small (6,845, 1960 Census), and requesting that additional information be submitted, justifying the applicant's estimate that $40,000 in gross revenues would be realized during the first year's operation.[2] The applicant responded, on January 17, 1962, with an amendment to the application. In substance, the

[1] See Sanders Brothers v. F.C.C. 309 U.S. 470 (1940).

[2] By Commission letter of December 21, 1961, a similar request was made of Mr. Stock, with regard to his estimate of $60,000 in gross revenues to be realized during the first year's operation. The applicant's response included only a cursory statement in justification of his estimate. No further pleadings were filed with respect to this application but it is our view that the discussion herein with respect to the Ross application is equally applicable to the Stock proposal.

amendment contained a complete description of the Riverton area and of Fremont County, within which Riverton is located; a chart depicting the growth trend and absolute amount of gross retail sales in Fremont County from 1950 to 1961; a projection of the continued growth trend of retail sales through 1963; and a prediction, (said to be conservatively based upon the "Paul H. Chapman Company Formula" for determining business potential of new or existing radio stations), that at least $40,000 worth of gross revenue would be available to the new station during its first year of operation. (Operating expenses for the period were estimated at $35,000.) Mr. Ross also submitted letters from Riverton business leaders supporting a second station for their city and a chart, listing forty cities with two standard broadcast stations in which combined retail and selected services sales amounted to less than $20,000,000 per year.

7. On February 21, 1962, the licensee of station KVOW submitted a "Supplement" to its petition to deny the Ross application,[3] containing statistical data which conflicts with that submitted by the applicant, and an appended affidavit of Richard M. Allerton, a consultant in management, marketing, sales, and research, and former director of research for the National Association of Broadcasters. The burden of KVOW's contentions, supported by the Allerton affidavit, is as follows:

(a) The applicant's figures overestimate current retail sales in Fremont County, Wyoming, and, similarly, the applicant's projection of future sales is overoptimistic.

(b) Use of the "Paul H. Chapman Formula" results in a figure for expected gross revenues for the proposed station that is at least 100 percent too high. In fact, approximately $64,000 is potentially available in gross revenues for both Riverton stations and this figure is substantially less than the predicted combined costs of operating the stations. Therefore, the licensing of a second station in Riverton would not be in the public interest and would result in a net degradation of radio service available in that area.

(c) Given these economic facts, the Commission should disgard its usual informal standard in judging an applicant's financial qualifications—i.e., that the applicant show sufficient cash and liquid assets to cover costs of constructing its proposed station and to operate the station for a period of at least three months without revenue. Instead, when the economic base of support for a new station is questionable, the applicant should be required to show sufficient cash and liquid assets to construct the station and operate for a period of one year without revenue.

8. The Commission has fully considered the contentions of KVOW and of the instant applicants and is of the opinion that a substantial question of fact exists as to whether Riverton, Wyoming and surrounding area can support two or more standard broadcast stations. Accordingly, the instant applications will be designated for hearing to determine whether the licensing of a second, or a third, Riverton station would serve the public interest. Carroll Broadcasting Co. v. F.C.C., 258 F. 2d 440, 17 R.R. 2066 (1958). In determining whether the licensing of one, or two, additional stations in Riverton would result in a net degradation of service to the public, it will be necessary to examine both quantitative and qualitative aspects of the question—i.e., to determine not only whether one or more stations would actually be forced to close down owing to lack of revenue, but whether, short of that end point, competitive practices would necessarily be engendered which would degrade the sum total of programming available to the listening public. Should it be determined, pursuant to the economic issue included herein, that Riverton and surrounding area can support two stations but not three, it will be necessary to subject the two new Riverton proposals to comparative consideration.[4]

9. We see no reason, however, to change our present standard regarding the necessary availability of cash and liquid assets to permit operation of a new station for a period of three months without revenue. This informal, but not inflexible, standard has proved to be a workable tool in establishing financial qualifications and we are not persuaded that requiring an applicant to demonstrate ability to operate for a full year without revenue would have any meaningful relation to the public interest. If Riverton can, in fact, support two or more standard broadcast stations, it is difficult to find any logical or practical distinction between this case and the typical case in which sufficient cash for three months operation without revenue is required. Conversely, if a station cannot gain a sufficient foothold to survive after exhaustion of sufficient funds to operate for three months with a total lack of revenue, we do not believe that the chances for survival will be greatly increased after exhaustion of one year's predicted operating funds. We do believe, however, that the imposition of so stringent a requirement would act as an unnecessary deterrent to potential applicants for areas which might well benefit from the addition of a new standard broadcast service.

10. In view of the foregoing, the Commission is unable to make the statutory finding that a grant of the subject applications would serve the public interest, convenience, and necessity, and is of the opinion that the applications must be designated for hearing on the issues set forth below. *Accordingly, it is ordered,* That, pursuant to section 309(e) of the Communications Act of 1934, as amended, the instant applications are designated for hearing in a consolidated proceeding, at a time and place to be specified in a subsequent Order, upon the following issues:

1. To determine the areas and populations which would receive primary service from each of the instant applicants and the availability of other primary service to such areas and populations.

2. To determine whether there are adequate revenues available to support two or more standard broadcast stations in Riverton, Wyoming, without loss or degradation of standard broadcast service to Riverton and surrounding areas.

3. To determine whether there is a reasonable possibility that the tower height and location proposed by Hugh Jordan Stock would constitute a menace to air navigation.

4. To determine, in the event Riverton, Wyoming and surrounding area can support two standard broadcast stations, but not three, which of the subject applications for new stations would better serve the public interest, convenience and necessity in light of the evidence adduced pursuant to the foregoing issues and the record made with respect to the significant differences between the applicants as to:

(a) The background and experience of each having a bearing on the applicant's ability to own and operate the proposed station.

(b) The proposals of each of the applicants with respect to the management and operation of the proposed station.

(c) The programming service proposed in each of the said applications.

5. To determine, in the light of the evidence adduced pursuant to the foregoing issues which, if either, of the instant applications should be granted.

It is further ordered, That the Federal Aviation Agency and Riverton Broadcasting Company, Inc., licensee of station KVOW, Riverton, Wyoming, are made parties to the proceeding.

It is further ordered, That, in the event of a grant of either application, the construction permit shall contain the following condition:

This authorization is subject to compliance by permittee with any applicable procedures of the Federal Aviation Agency.

It is further ordered, That the aforementioned petitions of Riverton Broadcasting Company, Inc., are granted to the extent indicated and are denied in all other respects.

It is further ordered, That, to avail themselves of the opportunity to be heard, the applicants and parties respondent herein, pursuant to § 1.140 of the Commission rules, in person or by attorney, shall, within 20 days of the

[3] Ross has moved to strike the KVOW "Supplement" and KVOW has opposed the motion to strike with a petition for acceptance. The Commission's rules do not provide for the filing of petitions to deny or supplements thereto following the "cut-off date" of an application listed in a public notice, pursuant to § 1.354(c) of the rules. However, since the KVOW "Supplement" deals solely with an amendment to the instant application which was itself filed after the "cut-off date", we have considered KVOW's most recent contentions upon our own motion.

[4] Either of the two applicants for new stations, if denied for reasons unrelated to basic qualifications, could, of course, contest the renewal application of station KVOW when it is filed at the usual time. We do not, however, intend to consider the KVOW license in this proceeding.

mailing of this order, file with the Commission in triplicate, a written appearance stating an intention to appear on the date fixed for the hearing and present evidence on the issues specified in this order.

It is further ordered, That the applicants herein shall, pursuant to section 311(a)(2) of the Communications Act of 1934, as amended, and § 1.362(b) of the Commission's rules, give notice of the hearing, within the time and in the manner prescribed in such rule, and shall advise the Commission of the publication of such notice as required by § 1.362(g) of the rules.

Adopted: May 9, 1962.

FEDERAL COMMUNICATIONS COMMISSION,[5]
[SEAL] BEN F. WAPLE,
Acting Secretary.

[F.R. Doc. 62-4785; Filed, May 16, 1962; 8:48 a.m.]

[Docket Nos. 14635, 14636; FCC 62-504]

SALEM BROADCASTING CO. (WJBD) AND LEADER BROADCASTING CO.

Memorandum Opinion and Order Designating Applications for Consolidated Hearing on Stated Issues

In re applications of Thomas S. Land and Bryan Davidson d/b as Salem Broadcasting Company (WJBD), Salem, Illinois, Docket No. 14635, File No. BP-14073; has: 1350 kc, 500 w, Day, requests: 1350 kc, 1 kw, Day; Donald E. Condee and Ned M. Webber d/b as Leader Broadcasting Co., Edwardsville, Illinois, Docket No. 14636, File No. BP-14530; requests: 1350 kc, 500 w, Day; for construction permits.

1. The Commission has before it for consideration the above-captioned applications; and (a) "Petition for Assignment of New File Number" filed by Salem Broadcasting Company (Salem) on February 12, 1962; (b) Opposition by Leader Broadcasting Co. (Leader), filed on February 19, 1962; and (c) Reply to the Opposition, filed on March 2, 1962. Petitioner contends that the application of Leader, as amended to reflect a change in transmitter site, should be assigned a new file number pursuant to § 1.354(j)(1) of the Commission's rules on the grounds that the amended proposal would cause "new or increased interference" to petitioner's proposed operation. In its opposition, Leader asserts that the proposed WJBD operation would receive interference, within its 0.5 mv/m contour, from existing stations KCHR, WAAB, and WLOU, affecting approximately 11,200 persons as well as interference from its original proposal, affecting approximately 5,100 persons, resulting in a failure to serve approximately 13.2 percent of the population of the primary service area. Accordingly, a grant to Salem would be in contravention of the ten percent limitation prescribed by § 3.28(d)(3) of the Commission's rules. A grant of the Leader proposal, as amended, would result in an additional population loss of about 500 persons and increase the loss from all sources from 13.2 percent to 13.6 percent of the population. It is asserted by Leader that the change in site was for the purpose of avoiding any possible interference to the 25 mv/m contour of station KWK, St. Louis, Missouri and to provide a stronger signal over the business area of Edwardsville. It is further contended that this additional loss of population, being merely cumulative, in no way changes or alters the status of the Salem application vis a vis § 3.28(d)(3) of the Commission's rules and thus does not require the assignment of a new file number.

2. After due consideration of the pleadings and data on file, it is the opinion of the Commission that the aforementioned petition by Salem should be denied. Prior to its "Report and Order" released on March 28, 1960 (19 RR 1600), the Commission was faced with the fact that many applicants were withholding engineering amendments until after designation for hearing in order to avoid the risk of being assigned a new file number. In amending § 1.354(h)(1), (now § 1.354(j)(1)), it was the intent of the Commission to restrict the filing of amendments which would result in essentially new applications requiring repetitive processing, but to permit amendments prior to hearing which would eliminate hearing issues but not create new ones. Study of data on file indicates that the loss of population by Salem from all sources prior to the Leader amendment of December 13, 1961 amounted to 13.2 percent of the population within the proposed normally protected daytime service area; that subsequent to the Leader amendment, the loss of population by Salem represents 13.6 percent of the normally protected daytime service area population. Accordingly, we are of the opinion that the Leader amendment will cause interference which raises no new issues so as to constitute problems of "new or increased interference" within the meaning and intent of § 1.354(j)(1) of the rules.

3. Data on file indicates that the instant proposals involve mutual interference and this interference in conjunction with interference from existing operations appears to place each proposal in violation of § 3.28 of the Commission's rules.

4. The proposal of Salem appears to cause co-channel interference to stations WAAP, Peoria, Illinois; and KCHR, Charleston, Missouri.

5. In view of the foregoing, the Commission is unable to make the statutory finding that a grant of the subject applications would serve the public interest, convenience and necessity, and is of the opinion that the applications must be designated for hearing in a consolidated proceeding on the issues set forth below.

Accordingly, it is ordered, That pursuant to section 309(e) of the Communications Act of 1934, as amended, the instant applications are designated for hearing in a consolidated proceeding, at a time and place to be specified in a subsequent Order, upon the following issues:

1. To determine the areas and populations which would receive primary service from the proposed operation of the Leader Broadcasting Co. and the availability of other primary service to such areas and populations.

2. To determine the areas and populations which may be expected to gain or lose primary service from the proposed operation to station WJBD and the availability of other primary service to such areas and populations.

3. To determine the nature and extent of the interference, if any, that each of the instant proposals would cause to and receive from each other and the interference that each of the instant proposals would receive from all other existing standard broadcast stations, the areas and populations affected thereby, and the availability of other primary service to the areas and populations affected by interference from any of the instant proposals.

4. To determine whether the instant proposal of Salem Broadcasting Company would cause objectionable interference to stations WAAP, Peoria, Illinois, and KCHR, Charleston, Missouri, or any other existing standard broadcast stations, and, if so, the nature and extent thereof, the areas and populations affected thereby, and the availability of other primary service to such areas and populations.

5. To determine whether the interference received by each proposal from the other proposal herein and any existing stations would affect more than ten percent of the population within its normally protected primary service area in contravention of § 3.28(d)(3) of the Commission rules, and, if so, whether circumstances exist which would warrant a waiver of said section.

6. To determine, in the light of section 307(b) of the Communications Act of 1934, as amended, which of the instant proposals would best provide a fair, efficient and equitable distribution of radio service.

7. To determine, in the light of the evidence adduced pursuant to the foregoing issues which, if either, of the instant applications should be granted.

It is further ordered, That the aforementioned petition, filed February 12, 1962 by Salem Broadcasting Company is denied.

It is further ordered, That Peoria Broadcasting Company and South Missouri Broadcasting Co., Inc., licensees of stations WAAP and KCHR, respectively, are made parties to the proceeding.

It is further ordered, That, in the event of a grant of either of the above-captioned applications, the construction permit shall include the following condition:

Pending a final decision in Docket No. 14419 with respect to pre-sunrise operation with daytime facilities, the present provisions of § 3.87 of the Commission rules are not extended to this authorization, and such operation is prohibited.

It is further ordered, That, in the event the Leader Broadcasting Co. proposal is favorably considered, the construction permit issued shall contain the following condition:

[5] Dissenting statement of Commissioner Cross filed as part of the original document.

This authorization is subject to compliance by permittee with any applicable procedures of the Federal Aviation Agency.

It is further ordered, That, to avail themselves of the opportunity to be heard, the applicants and parties respondent herein, pursuant to § 1.140 of the Commission rules, in person or by attorney, shall within 20 days of the mailing of this order, file with the Commission in triplicate, a written appearance stating an intention to appear on the date fixed for the hearing and present evidence on the issues specified in this order.

It is further ordered, That the applicants herein shall, pursuant to section 311(a)(2) of the Communications Act of 1934, as amended, and § 1.362(b) of the Commission's rules, give notice of the hearing, either individually or, if feasible, jointly, within the time and in the manner prescribed in such rule, and shall advise the Commission of the publication of such notice as required by § 1.362(g) of the rules.

It is further ordered, That, the issues in the above-captioned proceeding may be enlarged by the Examiner, on his own motion or on petition properly filed by a party to the proceeding, and upon sufficient allegations of fact in support thereof, by the addition of the following issue: To determine whether the funds available to the applicant will give reasonable assurance that the proposals set forth in the application will be effectuated.

Adopted: May 9, 1962.

Released: May 14, 1962.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] BEN F. WAPLE,
Acting Secretary.

[F.R. Doc. 62-4786; Filed, May 16, 1962; 8:49 a.m.]

[Docket Nos. 14632-14634; FCC 62-503]

TUSCARAWAS BROADCASTING CO. ET AL.

Order Designating Applications for Consolidated Hearing on Stated Issues

In re applications of The Tuscarawas Broadcasting Company, Uhrichsville, Ohio, Docket No. 14632, File No. BP-13896; requests: 1540 kc, 250 w, Day; The Niles Broadcasting Company, Niles, Ohio, Docket No. 14633, File No. BP-13993; requests: 1540 kc, 500 w, DA, Day; Punxsutawney Broadcasting Company (WPME), Punxsutawney, Pennsylvania, Docket No. 14634, File No. BP-14022; has: 1540 kc, 1 kw, Day, Class II-D, requests: 1540 kc, 5 kw, 1 kw (CH), Day, Class II-D; for construction permits.

At a session of the Federal Communications Commission held at its offices in Washington, D.C., on the 9th day of May 1962;

The Commission having under consideration the above-captioned and described applications;

It appearing, that, except as indicated by the issues specified below, each of the instant applicants is legally, technically, financially, and otherwise qualified to construct and operate the instant proposals; and

It further appearing, that the following matters are to be considered in connection with the aforementioned issues specified below:

1. The proposals of The Tuscarawas Broadcasting Company and The Niles Broadcasting Company involve mutual co-channel interference with the existing operation of Station WABQ, Cleveland, Ohio.

2. The proposal of the Tuscarawas Broadcasting Company will cause interference to the proposal of The Niles Broadcasting Company.

3. The proposal of The Niles Broadcasting Company involves mutual interference with the proposed operation of WPME and will receive interference from the existing operation of Station WPME, Punxsutawney, Pennsylvania.

4. Each of the proposals herein may receive interference in excess of 10 percent from all sources.

5. The application of The Tuscarawas Broadcasting Company does not disclose that a 25 mv/m signal will be provided over the business and factory areas of the city sought to be served, in accordance with § 3.188(b)(1) of the rules.

6. By petition filed June 9, 1961, accompanied by an engineering affidavit, Tuschman Broadcasting Corporation (hereinafter Tuschman), licensee of Station WABQ, requests that the proposal (BP-13896) of the Tuscarawas Broadcasting Company (hereinafter Tuscarawas) be denied. Tuschman alleges that the Tuscarawas proposal would cause objectionable interference to Station WABQ and asserts that the aforementioned proposal fails to comply with § 3.28(c) (now § 3.28(d)(3)) of the Commission's rules.

7. In its reply, accompanied by an engineering statement, Tuscarawas asserts that, based upon field measurements, its proposal will not violate § 3.28(d)(3) of the rules, and that such engineering statement refutes all the alleged engineering deficiencies mentioned in the petition to deny.

8. Concerning the question as to § 3.28(d)(3) of the rules, we find that the measurements available are insufficient upon which to base a conclusion, and thus an issue must be included concerning this matter.

It further appearing, that, in view of the foregoing, the Commission is unable to make the statutory finding that a grant of the subject applications would serve the public interest, convenience, and necessity, and is of the opinion that the applications must be designated for hearing in a consolidated proceeding on the issues set forth below:

It is ordered, That, the petition to deny filed by Tuschman Broadcasting Corporation is granted insofar as is provided below and is denied in all other respects and that pursuant to section 309(e) of the Communications Act of 1934, as amended, the instant applications are designated for hearing in a consolidated proceeding, at a time and place to be specified in a subsequent Order, upon the following issues:

1. To determine the areas and populations which would receive primary service from the proposals of The Tuscarawas Broadcasting Company and The Niles Broadcasting Company, and the availability of other primary service to such areas and populations.

2. To determine the areas and populations which may be expected to gain or lose primary service from the proposed operation of Station WPME and the availability of other primary service to such areas and populations.

3. To determine whether the instant proposals of The Tuscarawas Broadcasting Company and The Niles Broadcasting Company would cause objectionable interference to Station WABQ, Cleveland, Ohio, or any other existing standard broadcast stations, and, if so, the nature and extent thereof, the areas and populations affected thereby, and the availability of other primary service to such areas and populations.

4. To determine the nature and extent of the interference, if any, that each of the instant proposals would cause to and receive from each other and the interference that each of the instant proposals would receive from all other existing standard broadcast stations, the areas and populations affected thereby, and the availability of other primary service to the areas and populations affected by interference from any of the instant proposals.

5. To determine whether the interference received by each instant proposal from any of the other proposals herein and any existing stations would affect more than ten percent of the population within its normally protected primary service area in contravention of § 3.28(d)(3) of the Commission rules and, if so, whether circumstances exist which would warrant a waiver of said section.

6. To determine whether the instant proposal of The Tuscarawas Broadcasting Company would provide coverage of the city sought to be served, as required by § 3.188(b)(1) of the Commission rules, and, if not, whether circumstances exist which would warrant a waiver of said section.

7. To determine, in the light of section 307(b) of the Communications Act of 1934, as amended, which of the instant proposals would best provide a fair, efficient and equitable distribution of radio service.

8. To determine, in the light of the evidence adduced pursuant to the foregoing issues which, if any, of the instant applications should be granted.

It is further ordered, That, Tuschman Broadcasting Corporation, licensee of Station WABQ, Cleveland, Ohio, is made a party to the proceeding.

It is further ordered, That, to avail themselves of the opportunity to be heard, the applicants and party respondent herein, pursuant to § 1.140 of the Commission rules, in person or by attorney, shall, within 20 days of the mailing of this order, file with the Commission in triplicate, a written appearance stating an intention to appear on the date fixed for the hearing and present evidence on the issues specified in this order.

It is further ordered, That, in the event of a grant of the proposals of The Tuscarawas Broadcasting Company or The Niles Broadcasting Company, the construction permits shall contain the following condition:

This authorization is subject to compliance by permittee with any applicable procedures of the FAA.

It is further ordered, That the applicants herein shall, pursuant to section 311(a)(2) of the Communications Act of 1934, as amended, and §1.362(b) of the Commission's rules, give notice of the hearing, either individually or, if feasible, jointly, within the time and in the manner prescribed in such rule, and shall advise the Commission of the publication of such notice as required by § 1.362(g) of the rules.

It is further ordered, That, the issues in the above-captioned proceeding may be enlarged by the Examiner, on his own motion or on petition properly filed by a party to the proceeding, and upon sufficient allegations of fact in support thereof, by the addition of the following issue: To determine whether the funds available to the applicant will give reasonable assurance that the proposals set forth in the application will be effectuated.

Released: May 14, 1962.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] BEN F. WAPLE,
Acting Secretary.

[F.R. Doc. 62-4787; Filed, May 16, 1962; 8:49 a.m.]

[Docket No. 14631; FCC 62-502]

WEZY, INC. (WEZY)

Order Designating Application for Hearing on Stated Issues

In re application of WEZY, Inc. (WEZY), Cocoa, Florida, Docket No. 14631, File No. BP-14409; has: 1350 kc, 1 kw, 500 w-LS, DA-N, U, req: 1350 kc, 1 kw, DA-N, U, Class III; for construction permit.

At a session of the Federal Communications Commission held at its offices in Washington, D.C., on the 9th day of May 1962;

The Commission having under consideration the above-captioned and described applications;

It appearing, that, except as indicated by the issues specified below the instant applicant is legally, technically, financially and otherwise qualified to construct and operate the instant proposals; and

It further appearing, that, according to data submitted with the subject application, the proposed operation of WEZY would cause co-channel interference to the existing operation of Station WDCF, Dade City, Florida; and

It further appearing, that, in view of the outstanding proposed rule making procedure in Docket No. 14419 with respect to pre-sunrise operation with daytime facilities, any grant of the instant proposal prior to a final decision in Docket No. 14419, should be appropriately conditioned; and

It further appearing, that, in view of the foregoing, the Commission is unable to make the statutory finding that a grant of the subject application would serve the public interest, convenience, and necessity and is of the opinion that the application must be designated for hearing the issues set forth below:

It is ordered, That, pursuant to section 309(e) of the Communications Act of 1934, as amended, the instant application is designated for hearing at a time and place to be specified in a subsequent Order, upon the following issues:

1. To determine the areas and populations which may be expected to gain or lose primary service from the proposed operation of Station WEZY and the availability of other primary service to such areas and populations.

2. To determine whether the instant proposal of WEZY would cause objectionable interference to Station WDCF, or any other existing standard broadcast station, and, if so, the nature and extent thereof, the areas and populations affected thereby, and the availability of other primary service to such areas and populations.

3. To determine, in the light of the evidence adduced pursuant to the foregoing issues, whether a grant of the instant application would serve the public interest, convenience and necessity.

It is further ordered, That, Pasco Broadcasting Corporation, licensee of Station WDCF, Dade City, Florida, is made a party to the proceeding.

It is further ordered, That any grant of the instant proposal prior to a final decision in Docket No. 14419, will be conditioned as follows:

Pending a final decision in Docket No. 14419 with respect to pre-sunrise operation with daytime facilities, the present provisions of § 3.87 of the Commission rules are not extended to this authorization, and such operation is precluded.

It is further ordered, That, to avail themselves of the opportunity to be heard, the applicant and party respondent herein, pursuant to § 1.140 of the Commission rules, in person or by attorney, shall, within 20 days of the mailing of this order, file with the Commission in triplicate, a written appearance stating an intention to appear on the date fixed for the hearing and present evidence on the issues specified in this order.

It is further ordered, That the applicant herein shall, pursuant to section 311(a)(2) of the Communications Act of 1934, as amended, and § 1.362(b) of the Commission's rules, give notice of the hearing, within the time and in the manner prescribed in such rule, and shall advise the Commission of the publication of such notice as required by § 1.362(g) of the rules.

Released: May 14, 1962.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] BEN F. WAPLE,
Acting Secretary.

[F.R. Doc. 62-4788; Filed, May 16, 1962; 8:49 a.m.]

[Docket No. 14407 etc.; FCC 62M-675]

GRAND BROADCASTING CO. ET AL.

Order Scheduling Prehearing Conference

In re applications of Grand Broadcasting Company, Grand Rapids, Michigan, Docket No. 14407, File No. BPCT-2928; Atlas Broadcasting Company, Grand Rapids, Michigan, Docket No. 14408, File No. BPCT-2950; West Michigan Telecasters, Inc., Grand Rapids, Michigan, Docket No. 14469, File No. BPCT-2956; MKO Broadcasting Corporation, Grand Rapids, Michigan, Docket No. 14470, File No. BPCT-2959; Major Television Company, Grand Rapids, Michigan, Docket No. 14471, File No. BPCT-2960; Peninsular Broadcasting Company, Grand Rapids, Michigan, Docket No. 14472, File No. BPCT-2962; for construction permits for new television broadcast stations.

It is ordered, This 10th day of May 1962, pursuant to the oral request of all applicants, that a further prehearing conference shall be held on May 17, 1962, commencing at 9:00 a.m. in the offices of the Commission at Washington, D.C.

Released: May 11, 1962.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] BEN F. WAPLE,
Acting Secretary.

[F.R. Doc. 62-4792; Filed, May 16, 1962; 8:49 a.m.]

FEDERAL POWER COMMISSION

[Docket No. CP62-139]

CITIES SERVICE GAS CO.

Notice of Application and Date of Hearing

MAY 10, 1962.

Take notice that on December 4, 1961, as supplemented on December 27, 1961, and March 8, 1962, Cities Service Gas Company (Applicant), P.O. Box 1995, Oklahoma City, Oklahoma, filed in Docket No. CP62-139 an application pursuant to section 7 of the Natural Gas Act for a certificate of public convenience and necessity authorizing the construction and operation of certain facilities on its natural gas transmission system in Kansas and Missouri and for permission and approval to abandon certain transmission facilities to be replaced by a portion of the facilities proposed herein to be constructed, all as more fully set forth in the application, as supplemented, on file with the Commission and open to public inspection.

The facilities proposed to be constructed and operated and the facilities proposed to be abandoned are:

Ottawa-Sedalia-Carrollton System

Loop approximately 16 miles of Applicant's Ottawa-Sedalia 12" gas pipeline with 20" pipeline beginning at the east end of Applicant's present 20" pipeline loop in the NE¼, Section 25, T. 16 S., R. 22 E.; thence easterly paralleling Applicant's 12" pipeline a distance of 5 miles to the SE¼, Section 23, T. 16 S., R. 23 E., all located in Miami County,

Kansas, and beginning at the east end of Applicant's 20" pipeline loop in the SE¼, Section 27, T. 45 N., R. 32 W.; thence easterly paralleling Applicant's 12" pipeline a distance of 11 miles to the SE¼, Section 16, T. 45 N., R. 30 W., all located in Cass County, Missouri.

Ottawa-Topeka-Falls City-St. Joseph System

Replace approximately 20.5 miles of 16" pipeline with 26" pipeline beginning at Applicant's Ottawa Compressor Station in the NW¼, Section 32, T. 16 S., R. 20 E., Franklin County, Kansas; thence north to Lawrence Junction in the SW¼, Section 18, T. 13 S., R. 20 E., Douglas County, Kansas.

Construct 7.5 miles of 16" pipeline beginning at a point on the present North Topeka 16" pipeline in the NW¼, Section 31, T. 11 S., R. 18 E., Douglas County, Kansas; thence in a southwesterly direction 6.4 miles to an interconnection with the Tecumseh 16" pipeline in NE NW¼, Section 6, T. 12 S., R. 17 E.; thence west 1.4 miles to the Topeka Town Border station in the NW¼, Section 1, T. 12 S., R. 16 E., Shawnee County, Kansas.

Reclaim 1.3 miles of 12" pipeline beginning at the Tecumseh 16" junction in the northwest corner, Section 7, T. 12 S., R. 17 E., thence in a northwesterly direction to the Topeka Town Border station in the NW¼, Section 1, T. 12 S., R. 16 E., all located in Shawnee County, Kansas.

Applicant states that the proposed additions and replacements are for the purpose of meeting the estimated peak-day demands of Applicant's existing customers for the heating seasons of 1962–63, and for the purpose of meeting other increasing demands of existing customers of Applicant.

Applicant estimates the total capital cost of the facilities proposed in this docket at $2,891,000. The cost of reclaiming the facilities to be replaced and abandoned is estimated at $84,000, with $173,500, estimated as the salvage value of these facilities. Applicant proposes to finance the construction out of treasury cash.

This matter is one that should be disposed of as promptly as possible under the applicable rules and regulations and to that end:

Take further notice that, pursuant to the authority contained in and subject to the jurisdiction conferred upon the Federal Power Commission by sections 7 and 15 of the Natural Gas Act, and the Commission's rules of practice and procedure, a hearing will be held on June 14, 1962, at 9:30 a.m., e.d.s.t., in a Hearing Room of the Federal Power Commission, 441 G Street NW., Washington, D.C., concerning the matters involved in and the issues presented by such application: *Provided, however,* That the Commission may, after a non-contested hearing, dispose of the proceedings pursuant to the provisions of § 1.30(c) (1) or (2) of the Commission's rules of practice and procedure. Under the procedure herein provided for, unless otherwise advised, it will be unnecessary for Applicant to appear or be represented at the hearing.

Protests or petitions to intervene may be filed with the Federal Power Commission, Washington 25, D.C., in accordance with the rules of practice and procedure (18 CFR 1.8 or 1.10) on or before June 4, 1962. Failure of any party to appear at and participate in the hearing shall be construed as waiver of and concurrence in omission herein of the intermediate decision procedure in cases where a request therefor is made.

JOSEPH H. GUTRIDE,
Secretary.

[F.R. Doc. 62–4756; Filed, May 16, 1962; 8:46 a.m.]

HOUSING AND HOME FINANCE AGENCY

Office of the Administrator

REGIONAL DIRECTOR OF COMMUNITY FACILITIES, REGION VII; PUERTO RICO AND VIRGIN ISLANDS

Redelegation of Authority With Respect to Housing for Educational Institutions

The Regional Director of Community Facilities, Region VII (Puerto Rico and Virgin Islands), with respect to the program of loans for housing for educational institutions authorized under Title IV of the Housing Act of 1950, as amended (64 Stat. 77, as amended, 12 U.S.C. 1749–1749c), is hereby authorized within such Region to execute loan agreements and amendments thereof involving loans for student and/or faculty housing and for other educational facilities.

(62 Stat. 1283 (1948), as amended by 64 Stat. 80 (1950), 12 U.S.C. 1701c; Housing and Home Finance Administrator's delegation effective July 1, 1960 (25 F.R. 5801, June 23, 1960))

Effective as of the 17th day of May 1962.

[SEAL] ELISEO G. FONT,
Regional Administrator, Region VII.

[F.R. Doc. 62–4793; Filed, May 16, 1962; 8:49 a.m.]

REGIONAL DIRECTOR OF COMMUNITY FACILITIES, REGION VII; PUERTO RICO AND VIRGIN ISLANDS

Redelegation of Authority With Respect to Public Facility Loans

The Regional Director of Community Facilities, Region VII (Puerto Rico and Virgin Islands), with respect to the public facility loans program authorized under section 202 of Public Law 345, 84th Congress, as amended (69 Stat. 643, as amended, 42 U.S.C. 1492), is hereby authorized within such Region to enter into contracts and amendments thereof with public agencies involving loans for essential public works or facilities.

(62 Stat. 1283 (1948), as amended by 64 Stat. 80 (1950), 12 U.S.C. 1701c; Housing and Home Finance Administrator's delegation effective July 1, 1960 (25 F.R. 5801, June 23, 1960))

Effective as of the 17th day of May 1962.

[SEAL] ELISEO G. FONT,
Regional Administrator, Region VII.

[F.R. Doc. 62–4794; Filed, May 16, 1962; 8:50 a.m.]

REGIONAL DIRECTOR OF COMMUNITY FACILITIES, REGION VII; PUERTO RICO AND VIRGIN ISLANDS

Redelegation of Authority With Respect to Public Works Planning

The Regional Director of Community Facilities, Region VII (Puerto Rico and Virgin Islands), with respect to the program of advances for public works planning authorized under section 702 of the Housing Act of 1954, as amended (68 Stat. 641, as amended, 40 U.S.C. 462), is hereby authorized within such Region:

1. To execute offers and amendments thereof to public agencies involving advances to aid in planning proposed public works;

2. To determine the amount of partial repayment due if the public agency undertakes construction of only a portion of the planned public work;

3. To approve the planning data submitted by public agencies in accordance with contracts resulting from acceptance of offers under subparagraph 1 above;

4. To authorize payments under any contracts resulting from acceptance of offers under subparagraph 1 above.

(62 Stat. 1283 (1948), as amended by 64 Stat. 80 (1950), 12 U.S.C. 1701c; Housing and Home Finance Administrator's delegation effective July 1, 1960 (25 F.R. 5801, June 23, 1960))

Effective as of the 17th day of May 1962.

[SEAL] ELISEO G. FONT,
Regional Administrator, Region VII.

[F.R. Doc. 62–4795; Filed, May 16, 1962; 8:50 a.m.]

REGIONAL DIRECTOR OF COMMUNITY FACILITIES, REGION VII; PUERTO RICO AND VIRGIN ISLANDS

Redelegation of Authority With Respect to Loans for Housing for the Elderly

The Regional Director of Community Facilities, Region VII (Puerto Rico and Virgin Islands), with respect to the program of loans for housing for the elderly authorized under section 202 of the Housing Act of 1959, as amended (73 Stat. 667, as amended, 12 U.S.C. 1701q), is hereby authorized to take the following action within such region:

1. To execute loan agreements, and regulatory agreements;

2. To amend or modify any such loan agreements or regulatory agreements.

(62 Stat. 1283 (1948), as amended by 64 Stat. 80 (1950), 12 U.S.C. 1701c; Housing and Home Finance Administrator's delegation effective February 27, 1962 (27 F.R. 1850, February 27, 1962))

Effective as of the 17th day of May 1962.

[SEAL] ELISEO G. FONT,
Regional Administrator, Region VII.

[F.R. Doc. 62–4796; Filed, May 16, 1962; 8:50 a.m.]

SECURITIES AND EXCHANGE COMMISSION

[File No. 94D–18]

BONNEVILLE RESOURCES, INC.

Order Canceling Hearing and Making Suspension Permanent

MAY 11, 1962.

In the matter of Bonneville Resources, Inc., 17 East Oakland Avenue, Salt Lake City, Utah, File No. 94D–18.

The Commission by order dated March 9, 1962, having temporarily suspended the Regulation F exemption of Bonneville Resources, Inc., pursuant to Rule 656 of the general rules and regulations under the Securities Act of 1933, as amended, and Bonneville Resources, Inc. having requested a hearing upon the allegations set forth in the aforementioned order, and

The company having withdrawn its request for a hearing and counsel for the Division of Corporation Finance not objecting thereto,

It is ordered, That the request for hearing be, and it hereby is, deemed withdrawn.

It is further ordered, That the hearing in this matter scheduled for May 17, 1962, be and it hereby is canceled.

Pursuant to the provisions of Rule 656 of Regulation F, the suspension of the Regulation F exemption from registration under the Securities Act of 1933, as amended, with respect to the proposed public offering of the securities by the company becomes permanent.

By the Commission.

[SEAL] ORVAL L. DUBOIS, *Secretary.*

[F.R. Doc. 62–4762; Filed, May 16, 1962; 8:47 a.m.]

[File No. 1–4583]

PRECISION MICROWAVE CORP.

Order Summarily Suspending Trading

MAY 11, 1962.

The Common Stock, Par Value $1.00, of Precision Microwave Corp., being listed and registered on the American Stock Exchange, a national securities exchange; and

The Commission being of the opinion that the public interest requires the summary suspension of trading in such security on such Exchange and that such action is necessary and appropriate for the protection of investors; and

The Commission being of the opinion further that such suspension is necessary in order to prevent fraudulent, deceptive or manipulative acts or practices, with the result that it will be unlawful under section 15(c)(2) of the Securities Exchange Act of 1934 and the Commission's rule 15c2–2 thereunder for any broker or dealer to make use of the mails or of any means or instrumentality of interstate commerce to effect any transaction in, or to induce or attempt to induce the purchase or sale of such security, otherwise than on a national securities exchange:

It is ordered, Pursuant to section 19(a)(4) of the Securities Exchange Act of 1934 that trading in said security on the American Stock Exchange be summarily suspended in order to prevent fraudulent, deceptive or manipulative acts or practices, this order to be effective for a period of ten (10) days, May 14, 1962, to May 23, 1962, both dates inclusive.

By the Commission.

[SEAL] ORVAL L. DUBOIS, *Secretary.*

[F.R. Doc. 62–4763; Filed, May 16, 1962; 8:47 a.m.]

SMALL BUSINESS ADMINISTRATION

[Declaration of Disaster Area 379]

ARKANSAS

Declaration of Disaster Area

Whereas it has been reported that during the month of April, 1962, because of the effects of certain disasters, damage resulted to residences and business property located in Columbia County in the State of Arkansas;

Whereas the Small Business Administration has investigated and has received other reports of investigations of conditions in the area affected;

Whereas after reading and evaluating reports of such conditions, I find that the conditions in such area constitute a catastrophe within the purview of the Small Business Act.

Now, therefore, as Administrator of the Small Business Administration, I hereby determine that:

1. Applications for disaster loans under the provisions of section 7(b)(1) of the Small Business Act may be received and considered by the Offices below indicated from persons or firms whose property, situated in the aforesaid County and areas adjacent thereto, suffered damage or destruction resulting from tornado and accompanying conditions occurring on or about April 30, 1962.

Offices

Small Business Administration Regional Office,
Fidelity Building,
1000 Main Street,
Dallas 2, Tex.

Small Business Administration Branch Office,
3209 Federal Office Building,
700 West Capitol Avenue,
Little Rock, Ark.

2. Applications for disaster loans under the authority of this declaration will not be accepted subsequent to November 30, 1962.

Dated: May 3, 1962.

JOHN E. HORNE, *Administrator.*

[F.R. Doc. 62–4769; Filed, May 16, 1962; 8:47 a.m.]

[Declaration of Disaster Area 378]

WEST VIRGINIA

Declaration of Disaster Area

Whereas it has been reported that during the month of April, 1962, because of the effects of certain disasters, damage resulted to residences and business property located in Lincoln County in the State of West Virginia;

Whereas the Small Business Administration has investigated and has received other reports of investigations of conditions in the area affected;

Whereas after reading and evaluating reports of such conditions, I find that the conditions in such area constitute a catastrophe within the purview of the Small Business Act.

Now, therefore, as Administrator of the Small Business Administration, I hereby determine that:

1. Applications for disaster loans under the provisions of section 7(b)(1) of the Small Business Act may be received and considered by the Offices below indicated from persons or firms whose property, situated in the aforesaid County and areas adjacent thereto, suffered damage or destruction resulting from flood and accompanying conditions occurring on or about April 30, 1962.

Offices

Small Business Administration Regional Office,
Executive Office Building,
1904 Byrd Avenue,
Richmond 26, Va.

Small Business Administration Field Office,
United States Courthouse and Federal Building,
500 Quarrier Street—Room 3000,
Charleston, W. Va.

2. Applications for disaster loans under the authority of this declaration will not be accepted subsequent to November 30, 1962.

Dated: May 2, 1962.

JOHN E. HORNE, *Administrator.*

[F.R. Doc. 62–4764; Filed, May 16, 1962; 8:47 a.m.]

INTERSTATE COMMERCE COMMISSION

[No. 33750]

FOURTH-CLASS MAIL

Reformation of Rates and Other Conditions of Mailability

At a general session of the Interstate Commerce Commission, held at its office in Washington, D.C., on the 11th day of May A.D. 1962.

Upon consideration of the various pleadings now currently pending in this matter before the Commission and in recognition of the fact that a civil action has been commenced by the Railway Express Agency in the United States District Court for the District of Columbia for the purpose of testing the authority of the Postmaster General to increase

the maximum limits of weight and size of parcel post:

It is ordered, That further proceedings in this matter be stayed pending decision of the United States District Court on the issue of the authority of the Postmaster General, or pending further order or orders of the Commission.

By the Commission.

[SEAL] HAROLD D. McCOY, *Secretary.*

[F.R. Doc. 62-4768; Filed, May 16, 1962; 8:47 a.m.]

FOURTH SECTION APPLICATIONS FOR RELIEF

MAY 14, 1962.

Protests to the granting of an application must be prepared in accordance with Rule 40 of the general rules of practice (49 CFR 1.40) and filed within 15 days from the date of publication of this notice in the FEDERAL REGISTER.

LONG-AND-SHORT HAUL

FSA No. 37732: *Fertilizer and fertilizer materials from IFA territory to the south.* Filed by Illinois Freight Association, Agent (No. 173), for interested rail carriers. Rates on fertilizer and fertilizer materials, as described in the application, in carloads, from points in Illinois Freight Association Territory, to points in southern territory.

Grounds for relief: Short-line distance formula and grouping.

Tariff: Supplement 26 to Illinois Freight Association tariff I.C.C. 928.

FSA No. 37733: *Feldspar from Bedford, Va.* Filed by Norfolk and Western Railway Company (No. 1), for itself and interested rail carriers. Rates on feldspar, in carloads, from Bedford, Va., to Jersey City and Trenton, N.J., also Philadelphia, Pa.

Grounds for relief: Market competition.

Tariff: Supplement 5 to Norfolk and Western Railway Company's tariff I.C.C. 9841.

By the Commission.

[SEAL] HAROLD D. McCOY, *Secretary.*

[F.R. Doc. 62-4765; Filed, May 16, 1962; 8:47 a.m.]

[Rev. S.O. 562, Taylor's I.C.C. Order 143-A]

MONON RAILROAD

Diversion or Rerouting of Traffic

Upon further consideration of Taylor's I.C.C. Order No. 143 (The Monon Railroad) and good cause appearing therefor: *It is ordered,* That:

(a) Taylor's I.C.C. Order No. 143 be, and it is hereby, vacated and set aside.

(b) Effective date: This order shall become effective at 4:30 p.m., May 10, 1962.

It is further ordered, That this order shall be served upon the Association of American Railroads, Car Service Division, as agent of all railroads subscribing to the car service and per diem agreement under the terms of that agreement and by filing it with the Director, Office of the Federal Register.

Issued at Washington, D.C., May 10, 1962.

INTERSTATE COMMERCE COMMISSION, CHARLES W. TAYLOR, *Agent.*

[F.R. Doc. 62-4767; Filed, May 16, 1962; 8:47 a.m.]

[Notice 638]

MOTOR CARRIER TRANSFER PROCEEDINGS

MAY 14, 1962.

Synopses of orders entered pursuant to section 212(b) of the Interstate Commerce Act, and rules and regulations prescribed thereunder (49 CFR Part 179), appear below:

As provided in the Commission's general rules of practice any interested person may file a petition seeking reconsideration of the following numbered proceedings within 30 days from the date of service of the order. Pursuant to section 17(8) of the Interstate Commerce Act, the filing of such a petition will postpone the effective date of the order in that proceeding pending its disposition. The matters relied upon by petitioners must be specified in their petitions with particularity.

No. MC-FC 64305. By order of May 10, 1962, Division 3, acting as an Appellate Division, approved the transfer to W. C. Willingham Transport, Inc., Dallas, Tex., of a portion of the operating rights in Certificate No. MC 106379 Sub 20, issued June 29, 1956, to Gulf Southeastern Transportation Company, a corporation, Dallas, Tex.; as modified by the order of March 30, 1962, in No. MC-F 7812, authorizing the transportation of: Machinery, equipment, materials and supplies used in, or in connection with, the discovery, development, production, refining, manufacture, processing, storage, transmission, and distribution of natural gas and petroleum and their products and by-products, and machinery, equipment, materials, and supplies used in, or in connection with, the construction, operation, repair, servicing, maintenance, and dismantling of pipelines including the stringing and picking-up thereof, and such other commodities as require specialized handling or rigging because of size or weight, between points in Texas. Joe G. Fender, 314 Melrose Building, Houston 2, Tex., attorney for applicants.

[SEAL] HAROLD D. McCOY, *Secretary.*

[F.R. Doc. 62-4766; Filed, May 16, 1962; 8:47 a.m.]

DEPARTMENT OF COMMERCE

Office of the Secretary

GEORGE W. FLANAGAN

Statement of Changes in Financial Interests

In accordance with the requirements of section 710(b)(6) of the Defense Production Act of 1950, as amended, and Executive Order 10647 of November 28, 1955, the following changes have taken place in my financial interests as reported in the FEDERAL REGISTER during the past six months.

A. Deletions: No change.
B. Additions: No change.

This statement is made as of May 4, 1962.

GEORGE W. FLANAGAN.

MAY 4, 1962.

[F.R. Doc. 62-4774; Filed, May 16, 1962; 8:48 a.m.]

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